



Legal Treatment of Unaccompanied Minors

Brazil • Canada • Chile • European Union • Finland
France • Germany • Greece • Israel • Italy • Malta
Russian Federation • Turkey • United Kingdom

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Comparative Summary

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This report examines the status of unaccompanied minors seeking asylum in **Brazil, Canada, Chile, the European Union (EU), Finland, France, Germany, Greece, Italy, Israel, Malta, Russia, Turkey, and the United Kingdom (UK)**. The report explores the definition of unaccompanied minors in each jurisdiction covered and the issues of protection, restrictions on claiming asylum, and detention of unaccompanied minors as well as refugee resettlement and family reunification.

I. Defining Unaccompanied Minors

Unaccompanied minors are defined differently depending on the jurisdiction. For the most part, unaccompanied minors are defined as asylum seekers under the age of 18 who are not accompanied by an adult when entering the state's territory. Some countries, such as **Canada** and **Brazil**, have definitions in policy or in guidance documents. Others, such as **Chile**, draw on the United Nations Convention on the Rights of the Child, with elaborations through jurisprudence. In the **EU**, the definition is codified in the directly applicable Dublin III Regulation and the EU Qualification Directive, which must be implemented into the law of the member states. National legislation defining unaccompanied minors in the **EU** member states **Greece, Germany, Italy, and France**, draws on the EU definition. In **Israel**, procedures from the Population and Immigration Authority form the definition. **Malta** provides a definition in legislation, which is further defined in regulation. The **UK** sets out its rules in regulation. **Russia**, on the other hand, does not distinguish between minor and adult asylum seekers. Some countries, such as **Italy**, make distinctions between minors over 14 years of age and those younger than 14 years of age.

II. Restrictions on Claiming Asylum

Some countries have restrictions on the ability for migrants to claim asylum, whether adults or unaccompanied minors. In **Canada**, the United States is designated as a safe third country, and asylum seekers crossing the land border from the United States are generally inadmissible for refugee status in Canada, with exceptions, including unaccompanied minors. In the **EU**, the Dublin III Regulation provides that the member state where the minor has family present is responsible for providing asylum to the child. **Germany, Malta, and the UK** have safe country of origin policies, where asylum requests from certain countries are presumed to be without merit. **Finland** does not maintain a safe country list, but assumes that all **EU** member states are safe countries. In all **EU** states, the law provides that asylum seekers can only make an asylum claim in one **EU** country. It also deems **Turkey** to be a safe third country. **Israel** makes it a criminal offense to cross outside of an official border crossing, precluding an asylum claim. **Greece and Turkey**, however, provide minors with an exemption from the expedited removal procedure, without exempting them from the overall inadmissibility policy. In **Russia**, minors can be returned to their country of origin if they are from member states of the Commonwealth of Independent States.

III. Protection Offered to Unaccompanied Minors

Many countries offer residency to unaccompanied minors, and decisions must consider the best interests of the child. In **Brazil**, unaccompanied minors are eligible for resident visas. In countries such as **Germany** and **Canada**, child protection agencies are contacted to care for the unaccompanied minor, and the children are entitled to a legal representative who must take into account the views of the minor. Minors have the right to seek and receive asylum following international treaties currently in force in **Chile**. In the **EU**, unaccompanied minors are entitled to a legal representative, with fees paid for by the state. In **Greece**, unaccompanied minors who are victims of human trafficking activity and who are cooperating with the authorities for the prosecution of this activity may be given visas on a discretionary basis. In **Finland**, a legal representative is appointed by the district court, but the relationship is severed once the minor turns 18 years of age. In **France**, minors are generally exempt from removal proceedings. In **Israel**, minors must be interviewed in a way that is sensitive to the potential trauma they may have experienced. **Israel** also distinguishes between asylum seekers eligible for citizenship under the Law of Return and those who are ineligible, with some exceptions for Ukrainian citizens. **Russia** does not provide for the appointment of a legal representative, nor are children eligible for any specific visa programs.

Services provided to unaccompanied minors in the jurisdictions covered by this report, including housing, education, vocational training, and healthcare, are set out in Figure 1.

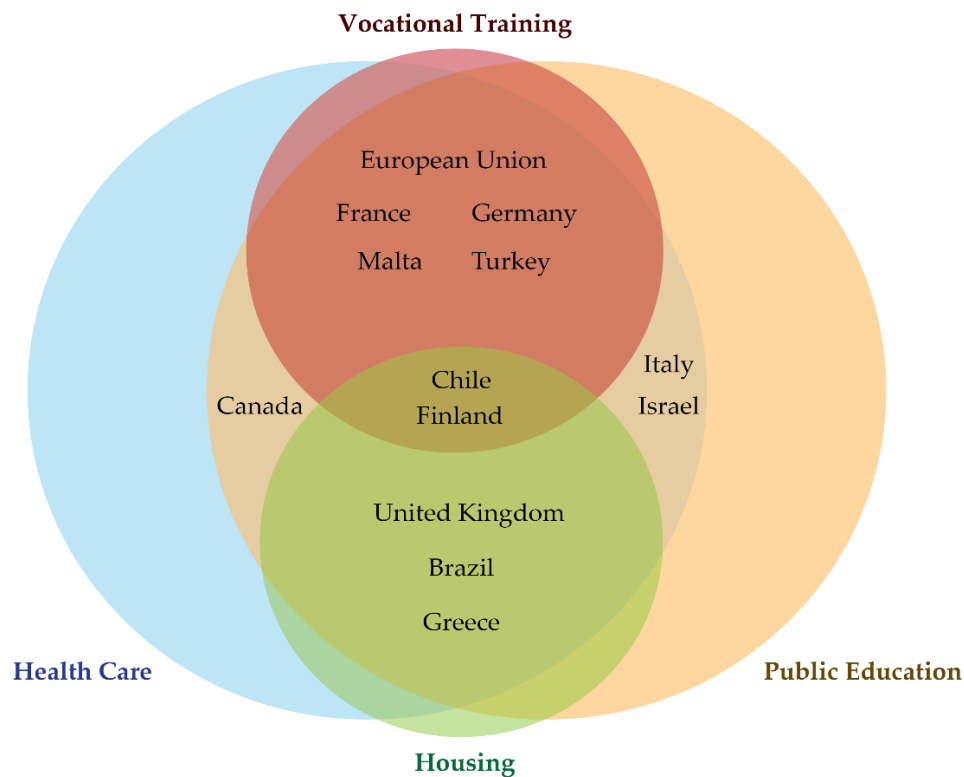


Figure 1: Social Services Offered to Unaccompanied Minors

IV. Detention of Unaccompanied Minors

Jurisdictions take varying approaches to the detention of unaccompanied minors. EU law requires that children not be housed in prison facilities or co-mingled with adult detainees. Furthermore, detention must be as short as possible and only used as a last resort. **Brazil** bans the collective detention of classes of migrants and will not repatriate minors, a policy also implemented in **France**. In **Germany**, minors and families with minors should only be detained in exceptional circumstances and without endangering the well-being of the child. **Greece** similarly severely limits the detention of minors, restricting it to less than 25 days. **Israel** allows detention for up to 60 days with an extension permissible if release would harm public health or the security of the state. **Italy** places children in foster families as an alternative to detention. In **Malta**, unaccompanied minors are not to be held in detention, although, in practice, many are held under the authority of health regulations. In **Finland**, minors over the age of 15 can be detained, and the state also provides financial assistance to a minor who wishes to return to their country of origin. In the **UK**, minors can only be held in immigration detention facilities for a maximum of 24 hours. In **Canada**, minors can only be held in immigration detention as a last resort and must attend school if required by provincial law for persons of their age.

V. Resettlement and Integration Programs

Unaccompanied minors are sometimes eligible for resettlement or integration programs. In **Brazil**, the migration policy provides for such programs and social benefits, public goods, education, comprehensive public legal assistance, work, housing, banking services, and social security. According to EU law, once their application has been approved, asylum seekers must be granted access to employment, education, procedures for recognition of qualifications, social welfare, healthcare, and accommodation under the same conditions as nationals. Some states in **Germany** have established special education programs geared toward migrant communities to aid in their integration. In **Greece**, some migrants are resettled elsewhere in Europe under an EU resettlement program. In **France**, the law and jurisprudence grant unaccompanied minors access to the same programs and services as French citizens. **Malta** recently launched an integration program that leads to the issuance of a certificate after 230 hours of instruction. **Turkey** provides child asylum seekers with basic educational programming, but does not envisage the permanent settlement of refugees on its territory, instead working with the United Nations High Commissioner for Refugees (UNHCR) toward the resettlement of asylum seekers. In the **UK**, local authorities continue to have a duty to support the integration of asylum seekers between 18 and 21 years of age. **Canada** restricts the resettlement of unaccompanied minors to those who apply in-country rather than from abroad through the UNHCR, unless they have family already present in Canada.

VI. Family Reunification

Some jurisdictions provide for family reunification as a right, while others restrict family reunification in scope, geography, or at the discretion of the decision maker. In **Chile**, the possibility of family reunification with the minor's parents will be evaluated, except when the children's best interests require prolonging the separation. EU legislation provides

unaccompanied minors with the right to be reunited with family members in any of the EU member states. Family reunification must be requested within three months of arrival and is restricted to first-degree relatives in an ascending line unless there are no such relatives available. In **Germany**, parents of unaccompanied minors who have been granted certain residence titles must be issued a temporary residence permit to move to that country. **Greece** restricts family reunification to legal residents and refugee status holders. In **France**, unmarried children may generally request to be joined by their parents and their minor unmarried siblings who are still dependent on the parents. **UK** law places a duty on the government to trace the family of the unaccompanied minor with the best interests of the child as a primary, but not sole, priority, but suggests that reunification does not necessarily have to occur in the UK. In **Canada**, minors cannot apply for family reunification, but the minor's parents can apply to the minister of Immigration, Refugees and Citizenship for permanent residence on humanitarian and compassionate grounds.

Brazil

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SUMMARY Brazil has approved the UN Convention on the Rights of the Child, the UN Convention Relating to the Status of Stateless Persons, and the UN Convention for the Reduction of Statelessness. A constitutional principle provides for the granting of asylum to aliens, and states that everyone is equal before the law with no distinction between aliens and Brazilian citizens.

A new migration law and its regulation were enacted based on principles of non-criminalization, nondiscrimination, equal opportunity, and protection of children. They also provide for the regulation of unaccompanied children and adolescents who arrive in the country and the granting of a residence permit.

The Child and Adolescent Statute provides for the full protection of children and adolescents, reiterates the constitutional principle of nondiscrimination, and, among other things, defines the ages of children and adolescents.

Two resolutions and an ordinance address the issue of unaccompanied, separated or undocumented minors entering the country and the necessary procedures and bodies responsible for their migratory regularization.

I. Introduction

A. International Conventions

On November 21, 1990, Brazil issued Decree No. 99,710,¹ ratifying Legislative Decree No. 28 of September 14, 1990,² which approved the UN Convention on the Rights of the Child, fully incorporating it into Brazil's positive law.³

On May 22, 2002, Brazil enacted Decree No. 4,246, which promulgated the UN Convention Relating to the Status of Stateless Persons;⁴ and on August 18, 2015, it enacted Decree No. 8,501,⁵ which promulgated the UN Convention on the Reduction of Statelessness.⁶

¹ Decreto No. 99.710 de 21 de Novembro de 1990, <https://perma.cc/SDS6-XNP5>.

² Decreto Legislativo No. 28, de 14 de Setembro de 1990, <https://perma.cc/FJD6-DNE2>.

³ Convention on the Rights of the Child, Nov. 20, 1989, 1577 U.N.T.S. 3, <https://perma.cc/VUW4-C67B>.

⁴ Decreto No. 4.246, de 22 de Maio de 2002, <https://perma.cc/8EDG-XM59>.

⁵ Decreto No. 8.501, de 18 de Agosto de 2015, <https://perma.cc/9FDZ-ADLN>.

⁶ Convention on the Reduction of Statelessness, Aug. 30, 1961, 989 U.N.T.S. 175, <https://perma.cc/N4TH-JWNV>.

B. Federal Laws

1. *Law No. 13,445 of May 24, 2017*

On May 24, 2017, Brazil promulgated Law No. 13,445, a new migration law that provides for the rights and duties of migrants and visiting aliens, regulates their entry and stay in the country, and establishes principles and guidelines for public policies for emigrants.⁷

According to article 3 of Law No. 13,445, the migratory policy of Brazil is governed by, *inter alia*, non-criminalization of migration;⁸ nondiscrimination due to the criteria or procedures by which the person was admitted into the national territory;⁹ a humanitarian reception;¹⁰ a guarantee of the right to family reunion;¹¹ equality of treatment and opportunity for migrants and their families;¹² equal and free access of migrants to services, programs, and social benefits, *bens públicos* (public goods), education, comprehensive public legal assistance, work, housing, banking services and social security;¹³ integral protection and attention to the superior interest of the migrant child and adolescent;¹⁴ and repudiation of collective deportation or deportation practices.¹⁵

Migrants must be guaranteed the inviolable right to life, liberty, equality, security, and property in the national territory on an equal basis with Brazilian nationals,¹⁶ and they must be ensured family reunion with their spouses or partners and children, relatives, and dependents.¹⁷

2. *Decree No. 9,199 of November 20, 2017*

Decree No. 9,199 of November 20, 2017, regulates Law No. 13,445 of May 24, 2017.¹⁸ According to article 108, political asylum will be granted as an instrument of protection to persons who are persecuted in a state for their beliefs, opinions, and political affiliation or for acts that may be considered political crimes.¹⁹

⁷ Lei No. 13.445, de 24 de Maio de 2017, art. 1, <https://perma.cc/B22B-XJTY>.

⁸ Id. art. 3 III.

⁹ Id. art. 3 IV.

¹⁰ Id. art. 3 VI.

¹¹ Id. art. 3 VIII.

¹² Id. art. 3 IX.

¹³ Id. art. 3 XI.

¹⁴ Id. art. 3 XVII.

¹⁵ Id. art. 3 XXII.

¹⁶ Id. art. 4.

¹⁷ Id. art. 4 III.

¹⁸ Decreto No. 9.199, de 20 de Novembro de 2017, art. 1, <https://perma.cc/C2SN-DMNV>.

¹⁹ Id. art. 108.

Political asylum may be:

- I - diplomatic, when requested abroad in legations, warships and camps or Brazilian military aircraft; or
 - II - territorial, when requested anywhere in the national territory, before a unit of the Federal Police or regional representation of the Ministry of Foreign Affairs.
- § 1 - A legation is considered to be the seat of any ordinary diplomatic mission and, when the number of asylum seekers exceeds the normal capacity of the buildings, the residence of the heads of mission and the places designated by them for this purpose.
- § 2 - The request for territorial asylum received by the units of the Federal Police shall be forwarded to the Ministry of Foreign Affairs.
- § 3 - Irregular entry into the national territory shall not constitute an impediment to the application for asylum and to the application of protection mechanisms, in which case the provisions of article 307 [of Decree No. 9,199, which defines infractions and sanctions] shall not apply, provided that, at the end of the procedure, the condition of asylee is recognized.²⁰

Article 110 states that diplomatic asylum consists of the protection offered by Brazil and the conduct of the asylee strictly within the national territory,²¹ in line with the provisions of the Multilateral Convention on Diplomatic Asylum,²² enacted by Decree No. 42,628, of November 13, 1957.²³ It is incumbent upon the highest authority present at the place where a request for diplomatic asylum is made to ensure the integrity of the asylum seeker and to establish, together with the secretariat of state for foreign affairs, the conditions and rules for the asylum seeker's stay at the place of request and the communication channels with the territorial state, in order to request safe conduct allowing the asylum seeker to access the national territory.²⁴ A territorial state is considered to be one in whose territory the place of request for diplomatic asylum is located.²⁵ Unauthorized departure from the place designated by the authority referred to in article 110 will imply the waiver of diplomatic asylum.²⁶ Upon arrival in the national territory, beneficiaries of diplomatic asylum will be immediately informed about the need to register their condition.²⁷

Territorial asylum is a discretionary act and must observe the provisions of the Convention on

²⁰ Id. art. 109.

²¹ Decreto No. 9.199, de 20 de Novembro de 2017, art. 110.

²² Multilateral Convention on Diplomatic Asylum, Mar. 8, 1954, 1438 U.N.T.S. 101, <https://perma.cc/6RQL-GVSB>.

²³ Decreto No. 42.628, de 13 Novembro de 1957, <https://perma.cc/EVZ8-D479>.

²⁴ Decreto No. 9.199, de 20 de Novembro de 2017, art. 110 § 1.

²⁵ Id. art. 110 § 2.

²⁶ Id. art. 110 § 3.

²⁷ Id. art. 110 § 4.

Territorial Asylum,²⁸ which was enacted by Decree No. 55,929 of April 19, 1965,²⁹ and the restrictive elements contained in the immigration legislation.³⁰

Article 112 states that the president of the republic must decide on the request for political asylum and on the revocation of its concession, after consulting the minister of Foreign Affairs.³¹

3. *Law No. 8,069 of July 13, 1990*

On July 13, 1990, Brazil enacted the Child and Adolescent Statute through Law No. 8,069, which provides for the full protection of children and adolescents.³² Children and adolescents enjoy all the fundamental rights inherent to the human person, without prejudice to the integral protection referred to in Law No. 8,069, ensuring, by law or by other means, all the opportunities and facilities, in order to provide them with physical, mental, moral, spiritual, and social development, in conditions of freedom and dignity.³³

Furthermore, the rights set forth in Law No. 8,069 apply to all children and adolescents, without discrimination based on birth, family situation, age, sex, race, ethnicity or color, religion or belief, disability, personal development and learning condition, economic condition, environment, social status, region and place of residence, or any other condition that differentiates people, families, or the community in which they live.³⁴

The *Conselho Tutelar* (Tutelary Council) is a permanent, autonomous, and non-jurisdictional body, charged by society with ensuring compliance with the rights of children and adolescents, as defined in Law No. 8,069.³⁵ In each municipality and each administrative region of the Federal District, there will be, at least one such council as an integral body of the local public administration. Councils are composed of five members, chosen by the local population for a mandate of four years, with reappointment permitted through new selection processes.³⁶ Every child or adolescent is guaranteed access to the *Defensoria Pública* (Public Defender's Office), the *Ministério Público* (Public Prosecutor's Office), and the judiciary, through any of its bodies.³⁷

²⁸ Convention on Territorial Asylum, Dec. 29, 1954, O.A.S.T.S. No. 19, <https://perma.cc/HYG6-YXEU>.

²⁹ Decreto No. 55.929, de 14 de Abril de 1965, <https://perma.cc/LSW6-NGMP>.

³⁰ Decreto No. 9.199, de 20 de Novembro de 2017, art. 111.

³¹ Id. art. 112.

³² Estatuto da Criança e do Adolescente, Lei No. 8,069, de 13 de Julho de 1990, art. 1, <https://perma.cc/G93D-YMGL>.

³³ Id. art. 3.

³⁴ Id. art. 3 (sole para.).

³⁵ Id. art. 131.

³⁶ Id. art. 132.

³⁷ Id. art. 141.

II. Defining Unaccompanied Minors

A. Civil Code

Article 5 of the Brazilian Civil Code states that minority ceases upon reaching 18 years of age, and the person is then fully capable of practicing all acts of civil life.³⁸ It further establishes that a minor's incapacity may also cease by the concession of the parents, or one of them in the absence of the other, through a public instrument regardless of judicial sanction or judicial decision if the minor has reached 16 years of age,³⁹ by marriage,⁴⁰ by public employment,⁴¹ by graduation from an institution of higher education,⁴² or by an employment relationship with a commercial or civil establishment that provides the 16-year-old minor with economic support.⁴³

B. Child and Adolescent Statute

For the purposes of the Child and Adolescent Statute, a child is considered to be a person less than 12 years of age, and an adolescent is a person between 12 and 18 years of age.⁴⁴ In some exceptional cases foreseen in the statute, it also applies to persons between the ages of 18 and 21 years.⁴⁵

C. Joint Resolution No. 1 of August 9, 2017

On August 9, 2017, to address the issue of unaccompanied children and adolescents, the *Conselho Nacional dos Direitos da Criança e do Adolescente* (National Council for the Rights of Children and Adolescents, CONANDA),⁴⁶ the *Comitê Nacional para os Refugiados* (National Committee for Refugees), the *Conselho Nacional de Imigração* (National Immigration Council) and the *Defensoria Pública da União* (Federal Public Defender's Office, DPU) issued Joint Resolution No. 1.⁴⁷

³⁸ Código Civil, Lei No. 10.406, de 10 de Janeiro de 2002, art. 5, <https://perma.cc/5HM8-Q9QJ>.

³⁹ Id. art. 5 (sole para.) I.

⁴⁰ Id. art. 5 (sole para.) II.

⁴¹ Id. art. 5 (sole para.) III.

⁴² Id. art. 5 (sole para.) IV.

⁴³ Id. art. 5 (sole para.) V.

⁴⁴ Estatuto da Criança e do Adolescente, Lei No. 8,069, de 13 de Julho de 1990, art. 2.

⁴⁵ Id. art. 2 (sole para.).

⁴⁶ Law No. 8,242 of October 12, 1991 created CONANDA. Among other things, it is responsible for preparing the general norms of the national policy for the care of the rights of children and adolescents, supervising the execution actions, observing the lines of action and the guidelines established in arts. 87 and 88 of Law No. 8,069, of July 13, 1990 (Child and Adolescent Statute). Lei No. 8.242, de 12 de Outubro de 1991, art. 2 I, <https://perma.cc/92FV-7LML>.

⁴⁷ Resolução Conjunta No. 1, de 9 de Agosto de 2017, <https://perma.cc/9XXF-RJDR>.

The provisions of Resolution No. 1 apply to children and adolescents of other nationalities or stateless persons who are unaccompanied or separated at a border point.⁴⁸ For the purposes of the resolution, the definitions are

I - Unaccompanied child or adolescent: one who does not have an adult accompanying him/her when entering national territory;

II - Separated child or adolescent: one who is accompanied by an adult person who is not the legal guardian who holds family power, when entering Brazilian territory.⁴⁹

D. CONANDA Resolution No. 232 of December 28, 2022

On December 28, 2022, the CONANDA issued Resolution No. 232, which applies to children and adolescents outside their country of origin who are unaccompanied, separated, or undocumented throughout the national territory.⁵⁰ For the purposes of Resolution CONANDA No. 232, the classifications are

I - Unaccompanied child or adolescent: one who is separated from both parents and other relatives, and is not under the care of a legally responsible adult;

II - Separated child or adolescent: one who is separated from both parents, but accompanied by other members of the extended family and is not under the care of an adult who is in charge of this responsibility, that is, who holds family power under the terms of the Child and Adolescent Statute.

III - It is also considered an undocumented child or adolescent: one who does not have any valid documentation proving his/her identity or parentage, regardless of being accompanied, separated or unaccompanied.⁵¹

The absence of documentation proving identity or parentage must not constitute an impediment to the full protection of the child or adolescent or to the exercise of the minor's rights.⁵² Resolution No. 232 also applies to children or adolescents who are accompanied by adults who claim to be their legal guardians, but who cannot provide documentation in this regard.⁵³

⁴⁸ Id. art. 1.

⁴⁹ Id. art. 1 § 1.

⁵⁰ Resolução CONANDA No. 232, de 28 de Dezembro de 2022, <https://perma.cc/S76Y-4PEC>.

⁵¹ Id. art. 1 § 1.

⁵² Id. art. 1 § 3.

⁵³ Id. art. 1 § 4.

III. Restrictions on Claiming Asylum

The possibility of asylum is provided for in article 4(X) of the Federal Constitution of 1988, which puts political asylum as one of the pillars governing international relations of Brazil.⁵⁴ There is no specific law to deal with asylum cases, which are evaluated directly by the president of the republic.⁵⁵

According to Joint Resolution No. 1,⁵⁶ the child and adolescent assistance policy will be applied, in its entirety and equitably, to all children and adolescents of another nationality or stateless persons, at a Brazilian border point.⁵⁷

Administrative procedures involving unaccompanied or separated children or adolescents must be processed with the highest priority and speed, and the best interest of the child or adolescent must be considered when making the decision.⁵⁸

IV. Protection Offered to Unaccompanied Minors

A. Visas

1. *Law No. 13,445 of May 24, 2017*

Residence may be authorized, upon registration, to immigrants, border residents or visitors if they

- have received refuge, asylum or stateless person protection, or
- are minors who are from another country or are stateless, unaccompanied or abandoned, and who are on the Brazilian border or in national territory.⁵⁹

2. *Decree No. 9,199 of November 20, 2017*

Article 157 of Decree No. 9,199 states that a residence permit may be granted to a child or adolescent who is a national of another country or is stateless, unaccompanied or abandoned, who is at a migratory control point at the Brazilian borders or in the national territory.⁶⁰

In the decision-making process, the evaluation of a request for a residence permit based on the provisions of article 157 and the possibility of returning to the family life must consider the best

⁵⁴ Constituição Federal [C.F.] [Constitution], art. 4(X), <https://perma.cc/3GFU-B7GD>.

⁵⁵ *Entenda as Diferenças entre Refúgio e Asilo*, Ministério da Justiça e Segurança Pública, <https://perma.cc/CFV3-BMS5>.

⁵⁶ Resolução Conjunta No. 1, de 9 de Agosto de 2017, art. 2.

⁵⁷ The child and adolescent assistance policy is listed in articles 86 to 89 of the Child and Adolescent Statute, Lei No. 8.069, de 13 de Julho de 1990, arts. 86–89, <https://perma.cc/HWR8-WE33>.

⁵⁸ Id. art. 3.

⁵⁹ Lei No. 13.445, de 24 de Maio de 2017, art. 30.

⁶⁰ Decreto No. 9.199, de 20 de Novembro de 2017, art. 157.

interest of the child or adolescent.⁶¹ The application for residence permit provided for in article 157 may be made by the Federal Public Defender's Office.⁶²

Paragraph 3 of article 157 establishes that the term of the residence permit will remain in force until the immigrant reaches the age of majority,⁶³ which occurs at the age of 18 years under the Civil Code,⁶⁴ as discussed in Part II.A, above.

An immigrant who reaches the age of majority and is interested in remaining in the country must appear at a Federal Police unit within 180 days to formalize the request to change the period of residence to indefinite.⁶⁵

The application for a residence permit based on the provisions of article 157 must comply with the requirements laid down in an act of the minister of Justice and Public Security, after consultation with the other interested ministries (discussed below).⁶⁶

3. *Joint Resolution No. 1 of August 9, 2017*

Article 12 of Joint Resolution No. 1 states that the DPU will be responsible for requests for migratory regularization, requests for documents and other acts of protection, such as filling out the *Formulario para Análise de Proteção* (Protection Analysis Form, FAP) (Annex I of Joint Resolution No. 1), as well as accompanying unaccompanied or separated children and adolescents in the procedures subsequent to their preliminary identification.⁶⁷

After the initial interview of a child or adolescent, the public defender responsible for migratory regularization requests must complete the FAP (Annex I) and indicate the possibility of

I - return to family life, according to parameters of full protection and attention to the best interests of the child and adolescent;

II - measure of protection by family reunion;

III - protection as a victim of human trafficking;

IV - another measure of migratory regularization, or protection as a refugee or stateless person; in accordance with the legislation in force.⁶⁸

⁶¹ Id. art. 157 § 1.

⁶² Id. art. 157 § 2.

⁶³ Id. art. 157 § 3.

⁶⁴ Código Civil, Lei No. 10.406, de 10 de Janeiro de 2002, art. 5.

⁶⁵ Decreto No. 9.199, de 20 de Novembro de 2017, art. 157 § 4.

⁶⁶ Id. art. 157 § 5.

⁶⁷ Id. at. 12.

⁶⁸ Id. art. 13.

Unaccompanied or separated children and adolescents must be consulted about the possibilities of residence and reception, ensuring their full *protagonismo* (participation).⁶⁹

The Federal Public Defender's Office has authority to represent unaccompanied or separated children and adolescents who are in Brazilian territory, for the purposes of presenting requests for migratory regularization, requests for documents, and other acts of protection and guarantee of rights, applying the terms of Joint Resolution No. 1.⁷⁰

4. Ordinance No. 197 of March 6, 2019

On March 6, 2019, the Ministry of Justice and Public Security enacted *Portaria* (Ordinance) No. 197,⁷¹ which establishes procedures for processing residence permit requests, registration and issuance of the National Migration Registry for a child or adolescent who is a national of another country or is stateless, unaccompanied or separated, who is at a migratory control point in the Brazilian borders or in the national territory.⁷²

For the purposes of Ordinance No. 197, the concept of unaccompanied or separated child or adolescent provided for in Joint Resolution No. 1 of August 9, 2017, will be adopted.⁷³

Recognition of the condition of a child or adolescent, unaccompanied or separated, occurs through the evaluation procedure of the Federal Public Defender's Office or by court decision.

The residence permit provided for in Ordinance No. 197 can be requested by a public defender or by a legal representative for the minor appointed by a judge of competent jurisdiction.⁷⁴

Article 4 of Ordinance 197 states that the application for a residence permit will be presented at one of the units of the Federal Police and lists the documents that must accompany the request.⁷⁵

⁶⁹ Id. art. 13 (sole para.).

⁷⁰ Id. art. 16.

⁷¹ MJSP Portaria No. 197, de 6 de Março de 2019, art. 1, <https://perma.cc/KFE3-U5U9>.

⁷² The *Carteira de Registro Nacional Migratório* (National Migration Registry Card, CRNM) is a service for those who intend to register and obtain the CRNM in the following cases: registration of an immigrant who is the holder of a temporary visa, when a residence permit has been granted (with a decision published in the *Diário Oficial da União* (Official Gazette)), or the person's status as a refugee, stateless person or asylee has already been recognized by the competent bodies. The registration consists of civil identification, using biographical and biometric data, to obtain a *Registro Nacional Migratório* (National Migration Registry number, RNM) and the CRNM. *Registrar-se Como Estrangeiro no Brasil*, Polícia Federal, <https://perma.cc/CM7Z-YFHT>.

⁷³ MJSP Portaria No. 197, de 6 de Março de 2019, art. 2.

⁷⁴ Id. art. 3.

⁷⁵ Id. art. 4.

The protocol of the application for a residence permit provided by the Federal Police will guarantee to the applicant the enjoyment of the rights provided for in Law No. 13,445 of May 24, 2017 (discussed above).⁷⁶ The protocol is valid for 180 days, extendable by the Federal Police.⁷⁷

The period of residence will be subject to evaluation in each case, and must be fixed by the date on which the immigrant reaches the age of majority (18 years), under the terms of article 157 § 3 of Decree No. 9,199, of November 20, 2017 (discussed in Part IV.A.2, above).⁷⁸

As discussed above, an immigrant who reaches the age of majority and who is interested in remaining in the country must appear at a unit of the Federal Police, within 180 days, to formalize the request to change the period of residence to indefinite.⁷⁹

B. Role of Child Protection Agencies

According to article 6 of CONANDA Resolution No. 232, throughout the process, children and adolescents must participate, be consulted, and be kept informed, in a way appropriate to their stage of development, about the procedures and decisions taken in relation to them and their rights, as provided for in article 12 of the UN Convention on the Rights of the Child, observing Decree No. 99,710 of November 21, 1990.⁸⁰ Migrant or refugee children or adolescents must be consulted regarding the language in which they prefer to express themselves, as provided for in article 30 of the UN Convention on Children's Rights, observing Decree No. 99,710 of November 21, 1990.⁸¹

All unaccompanied, separated or undocumented children and adolescents must have access to immigration or asylum procedures, without prejudice to the guarantee of protection and the legal representation procedures provided for in CONANDA Resolution No. 232 and in national legislation.⁸²

⁷⁶ Id. art. 6.

⁷⁷ Id. art. 6 (sole para.).

⁷⁸ Id. art. 9.

⁷⁹ Id. art. 13.

⁸⁰ Resolução CONANDA No. 232, de 28 de Dezembro de 2022, art. 6. According to article 12 of the UN Convention on the Rights of the Child, state parties must assure that children who are capable of forming their own views have the right to express those views freely in all matters affecting them, and their views must be given due weight in accordance with their age and maturity. For this purpose, children must in particular be provided the opportunity to be heard in any judicial and administrative proceedings affecting them, either directly or through a representative or an appropriate body, in a manner consistent with the procedural rules of national law.

⁸¹ Resolução CONANDA No. 232, de 28 de Dezembro de 2022, art. 6 (sole para.). Article 30 of the UN Convention on the Rights of the Child establishes that, in those states in which ethnic, religious or linguistic minorities or persons of indigenous origin exist, children belonging to such a minority or who are indigenous must not be denied the right, in community with other members of their group, to enjoy their own culture, to profess and practice their own religion, or to use their own language.

⁸² Resolução CONANDA No. 232, de 28 de Dezembro de 2022, art. 7.

Unaccompanied, separated or undocumented children or adolescents will be immediately identified when entering Brazilian territory, and the service must be done in a comprehensible language appropriate to their age and cultural identity, with the presence of an interpreter or cultural mediator whenever necessary.⁸³ In cases where there are no identification documents for children or adolescents, their provisional identification must be made based on self-declared biographical and biometric data under article 9 of CONANDA Resolution No. 232 (discussed below).⁸⁴ If unaccompanied, separated or undocumented children or adolescents are identified after entering the national territory and without prior identification in the *controle migratório* (migratory control), they will be quickly referred to the competent authority for the application of the measures provided for in CONANDA Resolution No. 232.⁸⁵

Article 9 of CONANDA Resolution No. 232 states that a border authority that at the time of migratory control receives a child or adolescent with signs or evidence of being unaccompanied, separated or undocumented, should

- I - register the occurrence;
- II - carry out preliminary biographical identification extracted from the reports or documents that the child or adolescent has;
- III - carry out the biometric identification for the purposes of consultation with international organizations of criminal investigation and databases;
- IV - proceed with the entry registration at the migratory control;
- V - notify the Court and the *Promotoria da Infância e Juventude* (Public Prosecutor's Office for Childhood and Youth);
- VI - notify representation of the Tutelary Council for the adoption of appropriate protective measures and registration and monitoring of the case in the *Sistema de Informação para a Infância e Adolescência* (Information System for Children and Adolescents).
- VII - notify the DPU.⁸⁶

The process must be conducted in a safe manner, sensitive to the minor's age, gender identity, sexual orientation, disability, religious and cultural diversities, ensuring the principle of equity and equality, avoiding the risk of any violation of the child's or adolescent's physical and psychological integrity, and respecting the minor's human dignity.⁸⁷

If it is not possible to identify the age or other information of children or adolescents, they will be given the benefit of the doubt, applying the protection measures provided for in CONANDA

⁸³ Id. art. 8.

⁸⁴ Id. art. 8 § 1.

⁸⁵ Id. art. 8 § 2.

⁸⁶ Id. art. 9.

⁸⁷ Id. art. 9 § 1.

Resolution No. 232, in the Federal Constitution, and in the current legislation.⁸⁸ Efforts must be made to preserve the ties of kinship or affinity between unaccompanied, separated or undocumented children and adolescents, especially in the process of institutionalization or family care.⁸⁹ In urgent cases, the Tutelary Council will be activated through the person on call in the region, and it will support the border authority in taking the protective measures needed.⁹⁰

In the case of an unaccompanied child or adolescent, the Tutelary Council must be notified when the person is registered at migratory control. This is necessary to ensure that, in coordination with the *Justiça da Infância e da Juventude* (Juvenile Court) and the local service network,

- there are adequate reception measures,
- the family is located and has the support of the local service network, and
- the protection measures provided in CONANDA Resolution 232 are in place to guarantee the family's migratory regularization and legal responsibility, while always observing the best interest of the child.⁹¹

According to article 10, after the notification to the Juvenile Court and the public prosecutor's office for juveniles, the child or adolescent must be referred to the DPU or to another protection body that will carry out the interview for protection analysis with completion of the FAP (Annex I). The interview's purpose is to assess the juvenile's vulnerability and to record the personal details, including, when possible, identification of the juvenile's affiliation and that of any siblings, as well as the juvenile's citizenship and that of the father, mother, and siblings.⁹²

The interview must be carried out within the parameters established in the Annex to CONANDA Resolution No. 232, limiting the report strictly to what is necessary for the fulfillment of its purpose.⁹³

The DPU, or another protection body, represents children and adolescents who are in Brazilian territory in presenting requests for migratory regularization, requests for documents, and other acts for the protection and guarantee of their rights, including interviewing and filling out the FAP, in accordance with the applicable terms of CONANDA Resolution No. 232.⁹⁴

The bodies listed in article 10 of CONANDA Resolution No. 232 are responsible for requests for migratory regularization or requests for recognition of refugee status, requests for documents, and other acts of protection, such as filling out a FAP as well as accompanying the unaccompanied, separated or undocumented child or adolescent in the procedures subsequent

⁸⁸ Id. art. 9 § 2.

⁸⁹ Id. art. 9 § 3.

⁹⁰ Id. art. 9 § 4.

⁹¹ Id. art. 9 § 8.

⁹² Id. art. 10.

⁹³ Id. art. 10 § 1.

⁹⁴ Id. art. 10 § 2.

to the minor's preliminary identification, with the cooperation and awareness of the members of the *Sistema de Garantia dos Direitos da Criança e do Adolescente* (Guarantee System for the Rights of Children and Adolescents),⁹⁵ such as the Tutelary Council, Municipal Council for the Rights of Children and Adolescents, the Juvenile Court, the public prosecutor's office, and the public defender's office of the local state.⁹⁶

If necessary, and based on cooperation mechanisms, the DPU may call on a representative of the state public defender's office to act in cases whose treatment is governed by CONANDA Resolution No. 232.⁹⁷ The request for migratory regularization or for recognition of refugee status, accompanied or not by the FAP, may be presented to the Federal Police unit through the guardian, provisional or not, or a special curator appointed by the court. In these cases, the state must provide free legal assistance to children and adolescents.⁹⁸

Under article 10, after the DPU or another protection body conducts the interview and fills out the FAP, it will carry out the request for migratory regularization or recognition of refugee status, also indicating the possibility of:

I - reintegration into living with the family of origin, natural or extended, according to legal parameters and attention to the best interests of the child and adolescent, for their full protection;

II - measures to facilitate family reunification, current or future;

III - permanence with the guardian who accompanies the child or adolescent;

IV - need to be referred to a shelter service for children and adolescents, upon application of a protective measure by the competent authority, pursuant to Law No. 8,069/1990;

V - protection as a victim of human trafficking;

VI - another measure of migratory regularization, or protection as a refugee or stateless person, according to the legislation in force;

⁹⁵ The Guarantee System for the Rights of Children and Adolescents represents the interaction and integration between the various members of the state and civil society in the promotion, defense, and control of the realization of the rights of children and adolescents provided for in the Child and Adolescent Statute. This means that, although civil society, the family, public bodies and federal, state, and municipal authorities have specific responsibilities to perform, so that children and adolescents have their rights fully guaranteed, these members have equal responsibility to prevent, investigate, and solve the existing problems for the effectiveness of these guarantees. The public bodies of the judiciary system are part of the Guarantee System along with the military, civil, and federal police; the tutelary councils; human rights organizations; the councils for the rights of children and adolescents; and the various other councils that work in the discussion, formulation, and control of public policies. *Sistema de Garantia de Direitos*, Observatório da Criança e do Adolescente, <https://perma.cc/XA6V-B3QY>. Resolução CONANDA No. 113, de 19 de Abril de 2006, <https://perma.cc/Y3HX-72Y9>.

⁹⁶ Resolução CONANDA No. 232, de 28 de Dezembro de 2022, art. 13.

⁹⁷ Id. art. 13 § 1.

⁹⁸ Id. art. 13 § 2.

VII - communication to the Tutelary Council and to the Childhood and Youth Court, if the immediate impossibility of the situations provided for in items I, II and III is verified, or the situations provided for in the items IV and V are confirmed.⁹⁹

According to article 14, paragraph 1, of CONANDA Resolution No. 232, unaccompanied, separated, or undocumented children and adolescents must be informed about the right to reunite with their family and consulted about the possibilities detailed in items I, II, and III and on referral to a shelter service. A juvenile's opinion must be considered by the competent authority, ensuring that the juvenile is being heard and participating.¹⁰⁰ Where any measure is indicated that implies the return of a child or adolescent to the country of origin or residence, a specific analysis on protection risks must be carried out, considering, in addition, the reasons that motivated the juvenile's displacement.¹⁰¹

Under the provisions of article 14, paragraph 1, of CONANDA Resolution No. 232, if there is enough information to lead to the search and location of the parents or guardians without risk to the protection of the child or adolescent, the competent official body or international body must be notified to adopt the necessary measures with the country of origin or residence, in conjunction with the protection network of the place where the child or adolescent is located in Brazil, aimed at family reunification.¹⁰²

The Juvenile Court may, at any time, after hearing the Public Prosecutor's Office:

I - Appoint a special curator for the protocol of the request for residence or refuge authorization, according to the sole paragraph of article 142 of the Child and Adolescent Statute;

II - Appreciate the request for migratory regularization;

III - Activate the DPU for the purposes of article 10, items II and III of CONANDA Resolution No. 232, if it has not been done at a previous moment, observing the provisions of CONANDA Resolution No. 232 by the DPU.¹⁰³

In cases of children or adolescents from native peoples and traditional communities, an interpreter or cultural mediator and anthropologist must accompany them.¹⁰⁴

⁹⁹ Id. art. 14.

¹⁰⁰ Id. art. 14 § 1.

¹⁰¹ Id. art. 14 § 2.

¹⁰² Id. art. 14 § 4.

¹⁰³ Id. art. 17.

¹⁰⁴ Id. art. 17 (sole para.).

V. Detention and Repatriation of Unaccompanied Minors

A. Law No. 13,445 of May 24, 2017

As discussed in Part I.B.1, above, the migratory policy of Brazil is governed by, inter alia, non-criminalization of migration,¹⁰⁵ integral protection and attention to the superior interest of the migrant child and adolescent,¹⁰⁶ and repudiation of collective deportation or deportation practices.¹⁰⁷ Article 49 of Law No. 13,445 defines repatriation as an administrative measure to return a person to the country of origin or nationality where there is an impediment to the person remaining in Brazil.¹⁰⁸ Repatriation must not be applied to a person in a situation of refuge or statelessness, in fact or in law; to a minor under 18 years of age who is unaccompanied or separated from his family, except in cases where it proves to be favorable to the guarantee of the minor's rights or for the reintegration of the family of origin; or to those who need humanitarian aid. Additionally, in no case will a person be repatriated to a country or region that may pose a risk to the life, personal integrity, or freedom of the person.¹⁰⁹

B. Decree No. 9,199 of November 20, 2017

Decree No. 9,199 states that the beneficiary of stateless protection, refuge, or political asylum will not be repatriated, deported, or expelled while there is a pending process of recognition of the beneficiary's condition in Brazil.¹¹⁰

Immigrants or visitors who have not reached the age of majority and are unaccompanied or separated from their family will not be repatriated or deported unless compulsory removal would be more favorable for the guarantee of their rights or for their reintegration into their family or community of origin.¹¹¹

The DPU must be notified, preferably by electronic means, when immigrants who have not reached the age of civil majority are unaccompanied or separated from their family and when their immediate repatriation is not possible.¹¹²

C. Joint Resolution No. 1 of August 9, 2017

No compulsory removal measure will be applied to children and adolescents who are unaccompanied or separated from their families to territories where their lives or freedom are threatened, or where their fundamental rights are at risk, respecting the principles of *convivência*

¹⁰⁵ Lei No. 13.445, de 24 de Maio de 2017, art. 3 III.

¹⁰⁶ Id. art. 3 XVII.

¹⁰⁷ Id. art. 3 XXII.

¹⁰⁸ Id. art. 49.

¹⁰⁹ Id. art 49 § 4.

¹¹⁰ Decreto No. 9.199, de 20 de Novembro de 2017, art. 181.

¹¹¹ Id. art. 184.

¹¹² Id. art 185 § 3.

familiar (family life) and non-return.¹¹³ Unaccompanied or separated children and adolescents will not be criminalized due to their migratory status.¹¹⁴

D. CONANDA Resolution No. 232 of December 28, 2022

No repatriation measure will be applied to children or adolescents in a situation of refuge or statelessness, in fact or in law, who are unaccompanied, separated, or undocumented from their family, except in cases where it proves favorable for the guarantee of their rights or for reintegration into their family of origin.¹¹⁵ A return to the country or region of origin will only be allowed when it does not represent a risk to the life, personal integrity, or freedom of the child or adolescent, respecting the principle of family life.¹¹⁶

VI. Resettlement and Integration Programs

A. Federal Constitution

According to the Brazilian Constitution, everyone is equal before the law with no distinction whatsoever, guaranteeing to Brazilians and foreigners residing in the country the inviolability of the rights to life, liberty, equality, security, and property, according to the terms defined in article 5 of the Constitution.¹¹⁷

Article 227 establishes that it is the duty and highest priority of the family, the society, and the government to protect the rights to life, health, nourishment, education, leisure, professional training, culture, dignity, respect, liberty, and family and community harmony of children, adolescents, and *jovens* (youths), in addition to safeguarding them against all forms of negligence, discrimination, exploitation, violence, cruelty, and oppression.¹¹⁸ The government must promote full health assistance programs for children, adolescents, and youths, permitting participation by nongovernmental entities.¹¹⁹

¹¹³ Resolução Conjunta No. 1, de 9 de Agosto de 2017, art. 4.

¹¹⁴ Id. art. 5.

¹¹⁵ Resolução CONANDA No. 232, de 28 de Dezembro de 2022, art. 4.

¹¹⁶ Id. art. 4 (sole para.).

¹¹⁷ C.F. art. 5.

¹¹⁸ Id. art. 227. The Youth Statute, which was enacted by Law No. 12,852 of August 5, 2013 (Estatuto da Juventude, Lei No. 12.852, de 5 de Agosto de 2013, <https://perma.cc/YU9V-FEGW>), defines youths as persons aged between 15 and 29 years (art. 1 § 1). However, the provisions of the Child and Adolescent Statute are applicable to adolescents aged between 15 and 18 years, and, exceptionally, the Youth Statute, when it does not conflict with the norms of full protection of adolescents set forth by the Child and Adolescent Statute (art. 1 § 2).

¹¹⁹ C.F. art. 227 § 1.

B. Law No. 8,069 of July 13, 1990

As discussed in Part I.B.3, above, the Child and Adolescent Statute states that children and adolescents enjoy all the fundamental rights inherent to the human person.¹²⁰ Furthermore, the rights set forth in the statute apply to all children and adolescents, without discrimination.¹²¹

C. Law No. 13,445 of May 24, 2017

Law No. 13,445 establishes that migrants must be guaranteed the inviolable right to life, liberty, equality, security, and property in the national territory on an equal basis with Brazilian nationals.¹²² Furthermore, the migratory policy of Brazil is governed by equal and free access of migrants to services, programs, and social benefits, *bens públicos* (public goods), education, comprehensive public legal assistance, work, housing, banking services, and social security.¹²³

As explained, Brazilian laws do not make any distinction between migrants and Brazilian citizens, and the researched federal legislation did provide any specific provision regarding resettlement or integration programs other than the access to public services as indicated in Law No. 13,445.

VII. Family Reunification

A. Law No. 13,445 of May 24, 2017

The legislation provides several provisions that favor family reunification. As discussed in Part I.B.1, above, a guarantee of the right to family reunion is one of the principles that guide the migratory policy of Brazil, as stated in article 3 of Law No. 13,445.¹²⁴ In addition, family reunion with their spouses or partners and children, relatives, and dependents must be ensured to migrants.¹²⁵

The possibility of family reunion is also provided for in article 49 of Law No. 13,445, which states, as an exception, that repatriation may be applied to a person in a situation of refuge or statelessness, who is a minor under 18 years of age, unaccompanied or separated from the minor's family, where it proves to be favorable to the guarantee of the minor's rights or for the reintegration of the family of origin, provided that there is no risk to the minor.¹²⁶

¹²⁰ Estatuto da Criança e do Adolescente, Lei No. 8,069, de 13 de Julho de 1990, art. 3.

¹²¹ Id. art. 3 (sole para.).

¹²² Lei No. 13,445, de 24 de Maio de 2017, art. 4.

¹²³ Id. art. 3 XI.

¹²⁴ Lei No. 13,445, de 24 de Maio de 2017, art. 3 VIII.

¹²⁵ Id. art. 4 III.

¹²⁶ Id. art. 49 § 4.

B. Decree No. 9,199 of November 20, 2017

As stated in article 157 of Decree No. 9,199, a residence permit may be granted to a child or adolescent who is a national of another country or is stateless, unaccompanied or abandoned, who is at a migratory control point at the Brazilian borders or in the national territory.¹²⁷ However, during the decision-making process of the request for residence, and the possibility of returning to the family life, the best interest of the child or adolescent must be considered.¹²⁸

C. Joint Resolution No. 1 of August 9, 2017

During migratory regularization procedures for a child or adolescent, the public defender responsible for the regularization must take into account in the analysis, among other things, the possibility of the minor's return to family life, according to the parameters of full protection and attention to the best interests of the child or adolescent, and a measure of protection by family reunion.¹²⁹

D. CONANDA Resolution No. 232 of December 28, 2022

Article 14 of CONANDA Resolution No. 232 also states that, during the request for migratory regularization, the possibility of reintegration in the natural or extended family of origin, according to legal parameters and with attention to the best interests of the child or adolescent, for the minor's full protection, and measures to facilitate current or future family reunification, *inter alia*, must also be indicated.¹³⁰

The resolution states that where any measure is applied that implies the return of the child or adolescent to the country of origin or residence, a specific analysis of protection risks must be carried out, considering, in addition, the reasons that motivated the minor's displacement.¹³¹ Furthermore, if it is possible to locate the parents or guardians and there is no risk to the child or adolescent, the competent national or international authorities must be contacted to adopt the necessary measures with the country of origin or residence for family reunification.¹³²

¹²⁷ Decreto No. 9.199, de 20 de Novembro de 2017, art. 157.

¹²⁸ Id. art. 157 § 1.

¹²⁹ Id. art. 13 I, II.

¹³⁰ Resolução CONANDA No. 232, de 28 de Dezembro de 2022, art. 14 I, II.

¹³¹ Id. art. 14 § 2.

¹³² Id. art. 14 § 4.

Canada

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SUMMARY While there is no legislated definition of an unaccompanied minor in Canadian immigration and refugee law, definitions are set in policy documents. The Immigration and Refugee Protection Act must be interpreted in line with the Convention on the Rights of the Child. While there is a Safe Third Country Agreement with the United States restricting asylum claims at the land border, unaccompanied minors are exempt. Unaccompanied minors generally follow the same refugee determination process as adults, but are entitled to a designated representative. Most unaccompanied minors are referred to provincial child protection services, and in most cases may not be held in detention. Resettlement and family reunification programs are limited, though the parents of unaccompanied minors can be allowed to enter Canada on humanitarian and compassionate grounds at the discretion of the minister of immigration, refugees and citizenship.

I. Introduction

Canada's refugee and immigration system is governed by the Immigration and Refugee Protection Act (IRPA).¹ The responsible agencies for implementing Canada's refugee and immigration system are Immigration Refugees and Citizenship Canada (IRCC) and the Canada Border Services Agency (CBSA). An arms-length tribunal, the Immigration and Refugee Board of Canada (IRB), adjudicates in-country refugee claims. Provincial and territorial governments also play a role in delivering social services for refugees as well as selecting nominees for immigrants, but are not involved in admitting refugee claimants arriving in Canada.

It has been estimated that up to 3,000 unaccompanied children claim refugee status in Canada each year.²

II. Defining Unaccompanied Minors

While there is no legislated definition of unaccompanied minors in Canadian law, in 1996 the IRB issued guidelines for the adjudication of child refugee claims. One of the classes

consists of children who are alone in Canada without their parents or anyone who purports to be a family member. For example, an older child may be living on his or her own or a

¹ Immigration and Refugee Protection Act (IRPA), S.C. 2001, c. 27, <https://perma.cc/KQ9N-XC8C>.

² Maya Reisdorf, *'Inhumane and Degrading': How Canada's Immigration Policies Fail Child Refugees*, part 1.A, Canadian Bar Assn. (Nov. 17, 2021), <https://perma.cc/49U2-RKWD>.

child may be in the care of a friend of the child's family. These children should be considered unaccompanied.³

According to the Canadian Encyclopedia,

groups such as the Canadian Council for Refugees argue that the definition of an unaccompanied minor should be broad enough to recognize that even in cases where the child may be accompanied by another relative, such as a 19-year-old sibling, they still require additional supports when settling in Canada without their parents as guardians. Unfortunately, while there are some protections in place, as of 2017, there is no integrated federal strategy on how to deal with separated and unaccompanied child migrants in Canada.⁴

In 2019, the Canadian Council for Refugees (CCR), a non-governmental organization, passed a resolution to

1. Call on the federal government, in collaboration with provincial and territorial governments and NGOs, to establish a national framework for unaccompanied and separated migrant, refugee claimant and refugee children.
2. Insist that Canada's national framework for unaccompanied and separated migrant, refugee claimant and refugee children take into account the following:
 - a. the development of appropriate legislation, policy, protocols and safeguards to ensure fair and compassionate treatment of unaccompanied and separated minors at all stages of their settlement in Canada;
 - b. adequate access to services and supports in all areas critical to the minor's settlement and wellbeing (including, but not limited to: access to safe housing, education, healthcare services, legal assistance, social welfare, basic needs supports and family reunification), and;
 - c. that Canada's national framework for unaccompanied and separated migrant, refugee claimant and refugee children is developed and implemented in accordance with the *United Nations Convention on the Rights of the Child* and the *United Nations Guidelines for the Alternative Care of Children*.⁵

Similar to child custody cases, the claims of unaccompanied children must be adjudicated with the best interests of the child as an important factor to be considered. According to the IRCC,

[t]he IRPA does not set out specific procedures or criteria for dealing with refugee claims from children. However, Paragraph 3(3)(f) requires that the IRPA be interpreted and applied in compliance with international human rights instruments, including the *Convention on the Rights of the Child*.

³ IRB, *Chairperson Guideline 3: Child Refugee Claimants: Procedural and Evidentiary Issues*, Introduction (Sept. 30, 1996), <https://perma.cc/95FA-KBH3>.

⁴ Petra Molnar, "Child Migration to Canada," *The Canadian Encyclopedia* (Mar. 8, 2017), <https://perma.cc/A5RZ-4QRA>.

⁵ Canadian Council for Refugees, Res. 2 of June 1, 2019, *Developing a National Framework for Unaccompanied Minors in Canada*, <https://perma.cc/JR6E-RNC7>.

The *Convention on the Rights of the Child* recognizes the obligation of a government to take measures to ensure that a child seeking refugee protection receives appropriate protection. Canada has signed and ratified this Convention.

Article 3(1) of the Convention on the Rights of the Child, notes that the “best interest of the child” should be a primary consideration in all actions concerning children. This principle has been recognized by the international community as a fundamental human right of a child.

These guidelines take into account the 1999 Supreme Court of Canada (SCC) decision on *Baker v. Canada*, [1999], which noted that the principles that are reflected in international human rights law may serve as an aid in interpreting domestic law.

In *Legault v. Canada (Minister of Citizenship and Immigration)*, the Federal Court of Appeal noted that the interests of children must be examined with care and weighed with other factors. The “best interests” principle is but one of many factors to be considered when making a decision. There is no presumption that the “best interest of the child” must prevail over other important considerations.⁶

III. Restrictions on Claiming Asylum

Generally, persons who cross the border from the United States are not eligible to make a refugee claim in Canada, due to the existence of a Safe Third Country Agreement (STCA).⁷ The STCA

provides that persons seeking asylum must make that claim in the first country they reach, and that once a claim is adjudicated, the claimant cannot go to the other country and make another claim there, with the claimant being returned to the country they entered from. There are certain exemptions — for example, unaccompanied minors. The agreement was first implemented in 2004 after being signed in 2002 as part of the U.S.-Canada Smart Border Action Plan. Under the agreement, the United States is designated as a “safe third country” under section 102 of the Immigration and Refugee Protection Act (IRPA), and is based on four factors:

1. The United States being a party to the 1951 Refugee Convention and the 1984 Convention Against Torture.
2. Policies and review processes with respect to claims under the conventions.
3. The human rights record and independent judiciary of the United States.
4. The existence of an STCA.

To date, the United States is the only country designated as a “safe third country” under IRPA.⁸

⁶ *Processing In-Canada Claims for Refugee Protection of Minors and Vulnerable Persons*, IRCC (Apr. 11, 2019) (choose “Legislation on minor children”), <https://perma.cc/3FZ3-CVN3>.

⁷ *Final Text of the Safe Third Country Agreement*, IRCC (Dec. 5, 2002), <https://perma.cc/4LXD-KCV7>.

⁸ Michael Chalupovitsch, *Canada: Asylum Claims along Entire Canada-US Border Now Subject to Safe Third Country Agreement*, *Global Legal Monitor* (Apr. 6, 2023), <https://perma.cc/BGF5-88F8>.

The STCA initially only applied to refugee applications made at official ports of entry, but on March 24, 2023, its application was extended to the entirety of the land border and most of the water border between the United States and Canada. Unaccompanied minors continue to be excepted from the terms of the STCA.

The unaccompanied minor exemption in the STCA has drawn some criticism “for excluding children who have a parent in either the US or Canada and for not providing any provisions for reuniting an unaccompanied child claimant already in Canada with a parent who is applying at the border within” the exemption.⁹

As noted in a recent post in the Global Legal Monitor,

[t]he constitutionality of the STCA is currently before the Supreme Court of Canada, with the CCR arguing that Canada should have reviewed the inclusion of the United States as a “safe third country” because, in its view, “key aspects of US asylum law and practice are contrary to the Refugee Convention and other international human rights protections.” The appeal was heard in October 2022, with a decision forthcoming.¹⁰

IV. Protection Offered to Unaccompanied Minors

A. Visas

IRPA does not provide a specific procedure for the refugee application for minors. The Act provides that it must be interpreted in line with international human rights agreements, one of which is the United Nations Convention on the Rights of the Child.¹¹ The IRPA regulations state that if a CBSA officer believes that a refugee application is well founded, the application must be referred to the IRB for adjudication.¹² Successful refugee applicants can apply for permanent residence status.

B. Legal Representation

Unaccompanied minors making refugee claims in Canada are entitled to have a representative designated by the IRB, which can be any person who meets certain criteria. The criteria include

- the person must be over 18 years of age;
- the person must have an appreciation of the nature of the proceedings;
- the person must not be in a conflict of interest situation with the child claimant such that the person must not act at the expense of the child's best interests;

⁹ Edit Freyo, *Unsafe at Any Angle: Vulnerability-Generation on the US-Canada Border*, 11, 44 *Laws* 12-13 (2022), <https://perma.cc/SPK5-88AQ>.

¹⁰ Chalupovitsch, *supra* note 8.

¹¹ IRPA s. 3(3)(f) (“This Act is to be construed and applied in a manner that . . . complies with international human rights instruments to which Canada is signatory.”).

¹² Immigration and Refugee Protection Regulations, SOR/2002-227, s. 228, <https://perma.cc/UB4A-HSZN>. While this section deals with removal orders, it applies to refugee applications, because in-country claimants are *prima facie* inadmissible to enter Canada since they do not have a visa.

- the person must be willing and able to fulfill the duties of a representative and to act in the best interests of the child.¹³

The duties of the designated representative include

- to retain counsel;
- to instruct counsel or to assist the child in instructing counsel;
- to make other decisions with respect to the proceedings or to help the child make those decisions;
- to inform the child about the various stages and proceedings of the claim;
- to assist in obtaining evidence in support of the claim;
- to provide evidence and be a witness in the claim;
- to act in the best interests of the child.¹⁴

UNICEF Canada called for the repeal of the rules providing for the IRB to designate a representative for minors and called for children to

be informed about the decision-making process which they will be subject to, provided with the information about possible solutions and services they are entitled to, and be supported to express their views on these issues, whether directly themselves or through a representative. Should they wish to express themselves through a representative, there must be a process in place allowing them to have input into the selection of a representative.¹⁵

C. Role of Child Protection Agencies

According to IRCC's operational guideline on processing child refugee protection claims, "[a]ll children (under age 18) who are without a caregiver should be considered abandoned and must be referred to the appropriate child protection agency without delay."¹⁶ Since child protection is under provincial jurisdiction however, some provinces may not be in a position to provide child protective services to minors over 16 years of age (for example in Ontario, Nova Scotia, and New Brunswick).¹⁷ It also falls to the child protection agencies to provide legal representation for refugee claimants in their care.

¹³ IRB, *Chairperson Guideline 3: Child Refugee Claimants: Procedural and Evidentiary Issues*, supra note 3, A.II, Designated Representative.

¹⁴ Id.

¹⁵ UNICEF Canada, *Children's Rights in the Context of Migration: A UNICEF Canada Submission to the Department of Immigration, Refugees and Citizenship* 8 (undated), <https://perma.cc/GT89-EGSU>.

¹⁶ *Processing In-Canada Claims for Refugee Protection of Minors and Vulnerable Persons*, supra note 6 (choose "Presence or absence of parents, other adults").

¹⁷ Reisdorf, supra note 2.

V. Detention of Unaccompanied Minors

The CBSA's National Directive for the Detention or Housing of Minors states that section 60 of IRPA "affirms the principle that the detention of a minor must be a measure of last resort."¹⁸ The directive also states that

1. Unaccompanied minors shall never be detained or housed at an [Immigration Holding Center (IHC)] unless it is for an operational reason (e.g. [Port of Entry] arrival at 03:00, outside of normal business hours) and an [alternative to detention (ATD)] cannot be found. In the event that an unaccompanied minor is held at an IHC for more than 24 hours, a CBSA officer must conduct a [best interests of the child] assessment that includes a thorough ATD review for the purpose of release. Unaccompanied minors shall also have heightened supervision (IHC staff), and access to guards, NGO staff and/or other supports as necessary.
2. If the presence of smugglers or traffickers is a concern, the matter must be discussed with [child protection services (CPS)] to ensure that adequate protection is provided ...
3. In most cases, unaccompanied minors are to be released in the care of a [community-based organization] or CPS (e.g. local Children's Aid Society where a MOU is established) if they do not have a relative or trusted community link. While in their custody, the organization will make every effort to ensure that the minor meets CBSA's reporting requirements. Contact information of the organization, relative, trusted community member charged with temporary care of the minor or an [Immigration and Refugee Board] Designated Representative or lawyer must be indicated in the minor's file.¹⁹

Unaccompanied minors may not be held in segregation, they should not be co-mingled with non-family members, and "should never" be held in detention for longer than 48 hours except where "danger to the public considerations have been raised."²⁰

Minors in detention must also attend school from age 5 or 6 until 16 or 18 depending on the province or territory, and qualified teachers provide instruction at IHCs.²¹ Minors must also have access to health care services, indoor and outdoor recreation, and proper nutrition.²²

A briefing note prepared for the minister of public safety in 2020 noted that between April and December 2019, one unaccompanied minor was detained.²³

¹⁸ Canada Border Services Agency, *National Directive for the Detention or Housing of Minors*, sec. 2. <https://perma.cc/L2X7-N29K>.

¹⁹Id. sec. 11.

²⁰ Id. sec. 6.8(c).

²¹ Id. sec. 13.3.

²² Id. sec. 6.8(g).

²³ Public Safety Canada, *Minors in Canada's Immigration Detention System* (Sept. 10, 2020), <https://perma.cc/64AU-5LNA>.

Minors have the same rights as adults in terms of challenging detention orders, which can be appealed to the IRB's Refugee Appeal Division, or judicially reviewed by the Federal Court.

VI. Resettlement and Integration Programs

According to a United Nations High Commissioner for Refugees (UNHCR) handbook, the following options exist for the resettlement of unaccompanied minors who are applying for refugee protection in Canada from abroad.

If an unaccompanied minor has family in Canada, they could be eligible for consideration as a Government-assisted refugee, private sponsored or sponsored under Canada's Family Class Program.

Referrals of unaccompanied minors should always be sent to the Resettlement Operations Division at Immigration, Refugees and Citizenship headquarters in Ottawa. In coordination with the appropriate local office, the minor's relatives in Canada will then be contacted to determine their willingness and ability to provide support and act as guardians for the minor.

If an unaccompanied minor abroad has no family in Canada willing to act as the minor's guardian, the current policy is not to accept them for resettlement.²⁴

VII. Family Reunification

As noted, a successful refugee applicant can apply for permanent residence in Canada. Family members can be included in the application for permanent residence, whether they are in Canada or abroad. However, the definition of family member in the IRPA does not include parents or siblings:

Child refugees cannot sponsor their parents. To sponsor a parent, the child refugee must wait until they have turned 18 years old, and must have been earning the necessary minimum income for the three years previous to their application. In 2019, the minimum necessary income to sponsor two people was [C]\$41,007 [approx. US\$30,300]).²⁵

The minister of IRCC has the discretion to grant a parent's application for permanent residence on humanitarian and compassionate grounds, which "must take 'into account the best interests of a child directly affected.'"²⁶ The Supreme Court of Canada, in the case of *Kanthasamy v. Canada (Citizenship and Immigration)*, further defined how to interpret the best interests of a child in the context of a humanitarian and compassionate residence application:

Where, as here, the legislation specifically directs that the best interests of a child who is "directly affected" be considered, those interests are a singularly significant focus and perspective. The Minister's Guidelines set out relevant considerations for this inquiry:

²⁴ UNHCR, *UNHCR Resettlement Handbook*, Country Ch.: Canada 10-11 (2017), <https://perma.cc/W5J2-3E4F>.

²⁵ Reisdorf, *supra* note 2, part 2.

²⁶ *Id.*

Generally, factors relating to a child's emotional, social, cultural and physical welfare should be taken into account when raised. Some examples of factors that applicants may raise include but are not limited to:

- the age of the child;
- the level of dependency between the child and the [humanitarian and compassionate] applicant or the child and their sponsor;
- the degree of the child's establishment in Canada;
- the child's links to the country in relation to which the [humanitarian and compassionate] assessment is being considered;
- the conditions of that country and the potential impact on the child;
- medical issues or special needs the child may have;
- the impact to the child's education; and
- matters related to the child's gender.²⁷

²⁷ *Kanthasamy v. Canada (Citizenship and Immigration)*, [2015] 3 SCR 909, para. 40 (citation omitted), <https://perma.cc/48C9-CQ8E>.

Chile

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SUMMARY In 2021, Chile established the Protocol for the Protection of Unaccompanied and Separated Children in the Context of Migration and/or in Need of International Protection. This document, drafted and signed by the Supreme Court, government agencies, and international organizations, is currently in force. It guides the first foster program, further judicial measures, and follow-up obligations adopted to protect unaccompanied and separated minors by applying domestic legislation and international human rights treaties.

I. Definition of Unaccompanied and Separated Minor

Although there is no domestic legislation in Chile that defines an unaccompanied minor, the Protocol for the Protection of Unaccompanied and Separated Children and Adolescents in the Context of Migration and/or in Need of International Protection of 2021 (Protocol) explicitly includes the definition provided by the Committee on the Rights of the Child in 2005.¹

Thus, an unaccompanied migrant minor is understood to be one who “is separated from both parents and other relatives and is not in the care of an adult who, by law or custom, has such responsibility.”²

The Protocol also recognizes the concept of accompanied but separated minors, consisting of those separated from both parents or their legal or habitual guardians, but not necessarily from other relatives. Therefore, they may be minors accompanied by other adult members of the extended family.³ The Committee on the Rights of the Child also defines this concept.⁴

¹ Committee on the Rights of the Child, General Comment No. 6, para. 7 (2005), <https://perma.cc/VUB8-LYJD> (in Spanish).

² Corte Suprema (Supreme Court), Protocolo para la protección de niños, niñas y adolescentes no acompañados y separados en el contexto de la migración y/o en necesidad de protección internacional (Dec. 13, 2021), p. 9, <https://perma.cc/2NNC-ESGA>.

³ Id.

⁴ General Comment No. 6, *supra* note 1, at para. 8.

II. Principles Applicable in the Protection of Unaccompanied or Separated Minors in Chile

A. No Discrimination

Treatment of an unaccompanied or separated minor should be aimed at ensuring the enjoyment of their rights, irrespective of age, gender, gender identity or sexual orientation, ethnic or national origin, disability, religion, economic status, residence or documentation status, migration status or that of their parent, mother or caregiver, statelessness, race, color, marital or family status, health or other social status, activities, expressed opinions or beliefs, or those of their parents, guardians or relatives.⁵

B. Comprehensive Protection of Children

The unaccompanied or separated child or adolescent who has entered the country must receive special care and help from a logic of comprehensive protection. The latter means ensuring the promotion of well-being and its development through:

- the satisfaction of basic material, physical and educational needs;
- emotional care; and
- security as adequate protection against any abuse, exploitation, or form of violence.⁶

C. Best Interests of the Child

Any official making a decision that impacts the life of an unaccompanied or separated child must assess, determine, consider, and protect the best interests of the child. In other words, more importance should be given to what is best for the child in order to ensure the full and effective enjoyment of their rights and holistic development.⁷

Determining best interests is important to assess and weigh all the elements necessary to decide in a given situation. It is a unique activity that must be carried out in each case and each review of the specific circumstances of each child. These include identity, age, sex or gender, degree of maturity, social and cultural context, nationality, ethnic background, vulnerabilities, and special protection needs.⁸

D. Right of the Child to be Heard and to Have Their Views Duly Taken into Account

The unaccompanied or separated minors must be heard to resolve issues according to their best interests. It is impossible to adequately determine the child's best interests unless the child's right

⁵ Supreme Court, *supra* note 2, at p. 11.

⁶ *Id.*

⁷ *Id.* at 12.

⁸ *Id.*

to be heard is realized. In addition, it must be guaranteed that these opinions are duly taken into account, depending on the age, maturity, and evolution of the child's or adolescent's faculties when making decisions and determining the best interests of each child.⁹

E. Reunification of the Child with Their Family

The comprehensive protection provided under the Protocol has, among its purposes, to reunite the unaccompanied or separated minors with their family, either in their country of origin, Chile, or a third country.¹⁰

When this is not possible, or the child's best interests require prolonging the separation, other durable solutions aimed at the social integration of the child shall be adopted. However, the obligations arising from articles 9 and 10 of the Convention on the Rights of the Child are binding. They should govern Chile's decisions on family reunification. Measures should be taken to ensure that parents are reunited with their children and/or to regularize their situation on the basis of the best interests of the child.¹¹

F. Identification of International Protection Needs and Ensuring the Principle of Non-Refoulment

The principle of non-refoulment and immediate reference to the Refugee Protection System¹² must be safeguarded in cases where there is a need for international protection under the terms of article 2 of Law 20,430 regulating the Protection of Refugees,¹³ as well as complementary protection under article 10 of Law 21,325 regulating Migration and Foreigners in Chile.¹⁴

Chile has the international obligation to identify foreign children who require international protection within its jurisdictions,¹⁵ whether as refugees or otherwise, through an initial assessment with guarantees of security and privacy. These guarantees exist to provide them with the appropriate and individualized treatment necessary by the adoption of special protection measures.¹⁶

⁹ Id. at 20.

¹⁰ Id.

¹¹ Id.

¹² Ley No. 20.430, Establece Disposiciones sobre Protección de Refugiados, Apr. 15, 2010, <https://perma.cc/4785-XMBS>.

¹³ Id. arts. 38-40.

¹⁴ Ley No. 21.325, de Migración y Extranjería, Apr. 20, 2021, <https://perma.cc/SY5X-2LYM>.

¹⁵ Supreme Court, *supra* note 2, p. 21.

¹⁶ Inter-American Court of Human Rights, Opinion Advisory OC-21/14, para. 82, <https://perma.cc/YX9W-H3XN> (in Spanish).

Minors have the right to seek and receive asylum following international treaties currently in force in Chile¹⁷ as well as Chilean domestic legislation.¹⁸ In addition, children may submit applications for refugee status in their own capacity, whether accompanied or unaccompanied.¹⁹

III. Steps Adopted in the Protection of Unaccompanied or Separated Minors

A. First Foster

The Protocol establishes that police officers in charge of the first encounter must ensure that this meeting is carried out in an appropriate space, that communication with the minor is conducted using clear and simple language, and that a translator is provided if necessary.²⁰

It is also a priority to determine whether the minor is accompanied or separated, and to determine their nationality or stateless status. This must be done immediately once the minor enters Chile.²¹

Immediate protection measures must be taken, including all necessary actions to protect the minor's life, health, physical and mental integrity, and safety. In addition, police officers must report evidence of trafficking in persons, sexual exploitation, drug trafficking, or drug use to protect the minor's safety, privacy, and identity.²²

Finally, police officers must inform the minors of the steps to be followed, the process that will be carried out, the participants, and the rights of the unaccompanied or separated minor.²³ Finally, once a structured interview has been carried out with the minor, the first reception stage will culminate with the referral of the minor to the corresponding family court judge. Further, the police officers must send all the information they have to the family court.²⁴

B. Judicial Stage

Once the case is received by the corresponding family court, it will adopt all the necessary protection measures for the unaccompanied or separated minor.²⁵

A *guardian ad litem* will be appointed,²⁶ that is, a lawyer to defend the interests of the minor during the judicial proceedings. An immediate hearing must be held to adopt preventive measures and

¹⁷ Supreme Court, *supra* note 2, p. 21.

¹⁸ *Id.*

¹⁹ *Id.*

²⁰ *Id.* at 22.

²¹ *Id.*

²² *Id.*

²³ *Id.* at 24.

²⁴ *Id.* at 32.

²⁵ *Id.* at 33.

²⁶ *Id.*

protect the minor, who must also be interviewed personally by the family court judge.²⁷ The family court judge shall determine whether, in addition to the other protection measures that he may decree, international protection is necessary²⁸ and order the issuance of personal identity documents to the minor.²⁹

Finally, the possibility of family reunification with the minor's parents will be evaluated,³⁰ except when the children's best interests require prolonging the separation.³¹ To expedite this measure regarding family reunification outside Chile, the Ministry of Foreign Affairs must have available information regarding the Memoranda of Understanding – if any – with the minor's country of origin.³² If reunification is not possible, the judge must determine the form of alternative care to the family environment,³³ always considering the child's best interests.³⁴

C. The Follow-Up to the Protection Measures Adopted

To ensure effective compliance with the protection measures adopted by the family judge, the Protocol establishes Observation and Compliance Centers, which, in coordination with the Supreme Court, are responsible for monitoring measures to protect the rights of unaccompanied or separated minors,³⁵ according to the guidelines established in Act 37-2014,³⁶ and the resolution of the Supreme Court of March 29, 2019, in AD-1251-2018.³⁷

²⁷ Id. at 34.

²⁸ Id. at 37.

²⁹ Id. at 40.

³⁰ Id.

³¹ Id.

³² Id.

³³ Id. at 41.

³⁴ Id.

³⁵ Id. at 43.

³⁶ Corte Suprema, Acta 37-2014, Mar. 14, 2014, <https://perma.cc/A6M3-PAYK>.

³⁷ Corte Suprema, Tribunal Pleno, AD-1251-2018, Mar. 29, 2019, <https://perma.cc/3PEA-8P3D>.

European Union

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SUMMARY The European Union's (EU) asylum legislation contains special provisions for minors and unaccompanied minors to protect the best interests of the child. Protecting the best interests of the child, which includes in particular respecting the principle of family unity, must be a primary consideration of the EU Member States when applying and implementing the legislation. This principle is derived from the Charter of Fundamental Rights of the European Union and is reiterated in the EU asylum legislation. Unaccompanied minors are generally considered a vulnerable group and are therefore entitled to special safeguards. Member States are encouraged to prioritize asylum applications of unaccompanied minors.

While their application is pending, unaccompanied minors must have access to education, employment, vocational training, and healthcare. As soon as possible, Member States must appoint a legal representative for unaccompanied minors to navigate the process. Likewise, once their application has been approved, Member States must appoint a legal guardian, and the minor must have access to employment, education, procedures for recognition of qualifications, social welfare, healthcare, and accommodation under the same conditions as nationals.

The detention of unaccompanied minors must be reserved to exceptional circumstances, and they must be released as soon as possible. Return decisions must take due account of the best interests of the child. Practices with regard to returning unaccompanied minors vary from Member State to Member State, with some granting them a legal right to stay and others not returning them in practice.

Family reunification must be taken into account with regard to which Member State is responsible for processing an asylum application of an unaccompanied minor. If an unaccompanied minor is returned, Member States must ensure that he or she will be returned to a member of his or her family, a guardian, or an adequate reception facility in the country of return. If an unaccompanied minor is granted a right to stay, Member States must authorize the entry and residence of first-degree relatives in the direct ascending line.

I. Introduction

The European Union (EU) is tasked with establishing a Common European Asylum System (CEAS).¹ To that end, several legislative instruments have been adopted that establish, among other things, common procedures, a uniform status for refugees and people who have been awarded subsidiary and temporary protection, criteria and mechanisms for determining which

¹ Consolidated Version of the Treaty on the Functioning of the European Union (TFEU), art. 67, para. 2, art. 78, 2016 O.J. (C 202) 47, <https://perma.cc/46HD-WF4G>.

Member State is responsible for considering an asylum application, standards regarding conditions for the reception of applicants for asylum or subsidiary protection, and partnerships and cooperation with third countries.²

A. Statistics

According to Eurostat, 166,760 out of 535,000 first-time asylum applicants in the EU and European Free Trade Association (EFTA)³ countries in 2021 were under the age of 18, representing 31.2% of the total number of first-time asylum applicants. On average, between 2011 and 2021, 15.3% of the total number of first-time asylum applicant children were unaccompanied minors. In 2021, the number was 13.9%. The majority of children in 2021 came from Syria (26.1%), Afghanistan (21.5%), and Iraq (6.1%), whereas most unaccompanied minors came from Afghanistan (53%), Syria (16.3%), and Bangladesh (5.8%). In general, the approval rate for children is 1.3 times higher than for adults for first instance decisions.⁴

B. Overview of the Legal Framework

The EU's asylum legislation contains special provisions for minors and unaccompanied minors to protect the best interests of the child. Protecting the best interests of the child, which includes in particular respecting the principle of family unity, must be a primary consideration of the EU Member States when applying and implementing the legislation. EU legislation either applies directly in the EU Member States in the case of regulations or must be implemented by the Member States in the case of directives.⁵

- The Charter of Fundamental Rights of the European Union (EU Charter) explicitly mentions the rights of the child in article 24, in particular that the child's best interests must be a primary consideration.⁶ The EU Charter generally binds the institutions, bodies, offices, and agencies of the EU and applies to the Member States only when they are implementing EU law.⁷ It has the same legal status as the EU Treaties.⁸ As such, it has to be taken into account when applying and interpreting the EU asylum legislation.
- The Dublin III Regulation of the EU, which establishes the criteria and mechanisms for determining the Member State responsible for examining an asylum application, applies

² TFEU, art. 78, para. 2.

³ EFTA is an intergovernmental organization made up of Iceland, Liechtenstein, Norway, and Switzerland. See *About EFTA*, EFTA, <https://perma.cc/UBX8-FYXX>.

⁴ *Children in Migration - Asylum Applicants*, Eurostat (last updated Dec. 2, 2022), <https://perma.cc/KQ85-6NSA>.

⁵ Id. art. 288, paras. 2, 3.

⁶ Charter of Fundamental Rights of the European Union (EU Charter), 2012 O.J. (C 326) 391, <https://perma.cc/LC3B-5S8L>.

⁷ Id. art. 51.

⁸ Consolidated Version of the Treaty on European Union (TEU), art. 6, para. 1, 2016 O.J. (C 202) 13, <https://perma.cc/5WLT-6XCP>.

directly in the Member States. It contains an exception for unaccompanied minors with regard to which Member State is in charge of processing the application.⁹

- The 2001 Temporary Protection Directive sets up special procedures to deal with mass influxes of displaced persons.¹⁰ It was triggered for the first time on March 4, 2022, due to the mass inflow of persons fleeing Ukraine as a result of Russia's invasion.¹¹ The directive provides specific rules for unaccompanied minors in article 13, paragraph 4, and article 16.
- The Qualification Directive provides common grounds to grant international protection in the EU.¹² It mentions unaccompanied minors in section 20, paragraph 3 as a vulnerable group. Article 31 specifically deals with unaccompanied minors.
- The Asylum Procedures Directive creates a common asylum system in the EU.¹³ Article 25 deals with procedural guarantees for unaccompanied minors.
- The Reception Conditions Directive establishes common standards of conditions of living for asylum seekers.¹⁴ It addresses unaccompanied minors in articles 11, 21, 22, 23, and 24.
- The Return Directive lays down common standards and procedures for returning illegal immigrants.¹⁵ Article 10 focuses on the return and removal of unaccompanied minors, whereas article 17 deals with detention of minors and families.

In 2016, the European Commission published several proposals to reform the CEAS to address the problem of unequal burden sharing and to promote solidarity among the Member States. However, the reforms did not receive the necessary support and are currently on hold.¹⁶ In 2020, the European Commission therefore proposed a "New Pact on Migration and Asylum," which, among other things, contains several provisions that address the situation of unaccompanied minors, such as strengthening the guardianship system.¹⁷

II. Defining Unaccompanied Minors

The Dublin III Regulation of the EU establishes the criteria and mechanisms for determining the Member State responsible for examining an asylum application and is directly applicable in the EU Member States without any implementing national legislation needed. It defines "minor" as

⁹ Consolidated Version of Dublin III Regulation, 2013 O.J. (L 180) 31, <https://perma.cc/93EW-G63Q>.

¹⁰ Temporary Protection Directive, 2001 O.J. (L 212) 12, <https://perma.cc/MCB2-AAAW>.

¹¹ Council Implementing Decision (EU) 2022/382, 2022 O.J. (L 71) 1, <https://perma.cc/JQN5-5QWQ>.

¹² Qualification Directive, 2011 O.J. (L 337) 9, <https://perma.cc/D856-XTHB>.

¹³ Asylum Procedures Directive, 2013 O.J. (L 180) 60, <https://perma.cc/WS3W-6885>.

¹⁴ Reception Conditions Directive, 2013 O.J. (L 180) 96, <https://perma.cc/5TQY-TCAE>.

¹⁵ Return Directive, 2008 O.J. (L 348) 98, <https://perma.cc/S2X5-42TQ>.

¹⁶ *Legislative Train Schedule: Reform of the Common European Asylum System (CEAS)*, Eur. Parl. (last updated Mar. 20, 2023), <https://perma.cc/6FZA-HYR3>.

¹⁷ Eur. Comm'n, *Communication from the Commission to the European Parliament, the Council, the European Economic and Social Committee and the Committee of the Regions on a New Pact on Migration and Asylum*, COM/2020/609 final, point 2.4 (Sept. 23, 2020), <https://perma.cc/GYV3-4AEH>.

a third-country national or stateless person below the age of 18 and “unaccompanied minor” as “a minor who arrives on the territory of the Member States unaccompanied by an adult responsible for him or her whether by law or by the practice of the Member State concerned, and for as long as he or she is not effectively taken into the care of such a person; it includes a minor who is left unaccompanied after he or she has entered the territory of the Member States.”¹⁸ Other EU asylum legislation contains the same definitions.

III. Restrictions on Claiming Asylum

A. Dublin III Regulation

In general, the Dublin III Regulation states that the criteria for establishing responsibility to process an asylum application are, in hierarchical order, family considerations, recent possession of a visa or residence permit in a Member State, and whether the applicant has entered the EU irregularly or regularly.¹⁹ For irregular entries, the Member State where the applicant first enters is responsible and not the one where the application was lodged.²⁰ Article 8 describes the special procedure that has to be followed to determine which Member State is responsible for the asylum application of an unaccompanied minor. It states that, as an exception, in the case of unaccompanied minors, the Member State responsible is the one where a family member or a sibling of the unaccompanied minor is legally present, or in the absence of a family member or sibling, where a relative, meaning an aunt, uncle, or grandparent, is legally present. If they are present in more than one Member State, the best interests of the child must be the guiding principle in making a decision.²¹ In the absence of a family member, a sibling, or a relative, the Member State responsible is the one where the unaccompanied minor has lodged an asylum application.²²

B. The Concept of Safe Country of Origin and Safe Third Country

The Asylum Procedures Directive deals with the concept of safe country of origin and safe third country and how it influences an asylum application. Member States are authorized to designate certain countries as safe countries of origin.²³ Such a designation must be based “on a range of sources of information, including in particular information from other Member States, EASO [European Asylum Support Office], UNHCR [United Nations High Commissioner for Refugees], the Council of Europe and other relevant international organisations.”²⁴ According to the annex of the Asylum Procedures Directive, “a country is considered as a safe country of origin where, on the basis of the legal situation, the application of the law within a democratic system and the general political circumstances, it can be shown that there is generally and consistently no

¹⁸ Dublin III Regulation, art. 2(i) & (j).

¹⁹ Id. arts. 7-15.

²⁰ Id. art. 13.

²¹ Id. art. 8, para. 3.

²² Id. art. 8, para. 4.

²³ Asylum Procedures Directive, art. 37.

²⁴ Id. art. 37, para. 3.

persecution as defined in Article 9 of Directive 2011/95/EU [Qualification Directive], no torture or inhuman or degrading treatment or punishment and no threat by reason of indiscriminate violence in situations of international or internal armed conflict.”

Article 36 of the Asylum Procedures Directive provides that the application of the concept of safe country of origin to an individual applicant may only take place if the applicant is a national of that country or is stateless and was formerly habitually resident in that country. Furthermore, the safe third country concept may only be applied if in the third country concerned

- (a) life and liberty are not threatened on account of race, religion, nationality, membership of a particular social group or political opinion;
- (b) there is no risk of serious harm as defined in Directive 2011/95/EU;
- (c) the principle of non-refoulement in accordance with the Geneva Convention is respected;
- (d) the prohibition of removal, in violation of the right to freedom from torture and cruel, inhuman or degrading treatment as laid down in international law, is respected; and
- (e) the possibility exists to request refugee status and, if found to be a refugee, to receive protection in accordance with the Geneva Convention.²⁵

Member States must lay down national rules on the application of this concept.²⁶ They may provide that no or no full examination of the asylum application and of the safety of the applicant will take place in cases where a competent authority has established that the applicant is seeking to enter or has entered illegally from a European safe third country.²⁷

With regard to unaccompanied minors, the Asylum Procedures Directive provides that the guiding principle in applying the directive must be the best interests of the child.²⁸ In particular, using an accelerated procedure or an asylum procedure at the border or in transit zones is only possible if the unaccompanied minor comes from a safe country of origin, among other reasons.²⁹ Furthermore, the Member State may only consider the application of an unaccompanied minor to be inadmissible if a country that is not an EU Member State is a safe third country for the minor.³⁰

C. Other Restrictions

In addition, authorities may use an accelerated procedure or an asylum procedure at the border or in transit zones for unaccompanied minors if the applicant has introduced a subsequent inadmissible application for international protection, may for serious reasons be considered a danger to the national security or public order of the Member State, has been forcibly expelled for serious reasons of public security or public order under national law, has misled the

²⁵ Id. art. 38, para. 1.

²⁶ Id. art. 38, para. 2.

²⁷ Id. art. 39.

²⁸ Id. art. 25, para. 6.

²⁹ Id.

³⁰ Id. art. 25, para. 6(c).

authorities by presenting false documents, or, in bad faith, has destroyed or disposed of an identity or travel document that would have helped establish his or her identity or nationality.³¹

IV. Protection Offered to Unaccompanied Minors

The Reception Conditions Directive defines an “applicant with special reception needs” as a vulnerable person, who is in need of special guarantees in order to benefit from the rights and comply with the obligations provided for in the directive.³² Article 21 contains a non-enumerative list of vulnerable persons, among them, minors and unaccompanied minors. Special provisions to protect this group are therefore in place, and a determination must be made within a reasonable period of time after an application has been lodged.³³ Member States are encouraged to prioritize asylum applications of unaccompanied minors.³⁴ In general, the best interests of the minor must be the primary consideration when implementing the law.³⁵ Member States must “ensure a standard of living adequate for the minor’s physical, mental, spiritual, moral and social development.”³⁶ The Asylum Procedure Directive also sets out special procedural guarantees for unaccompanied minors.³⁷

A. Visas

In general, while an asylum application is pending, applicants are allowed to remain in the Member State until a decision is made. That right does not constitute an entitlement to a residence permit.³⁸ However, Member States may grant temporary residence permits, certificates, or registration cards to unaccompanied minors while their application is pending. The practice varies from Member State to Member State. A 2015 report by the European Migration Network found that 15 Member States granted temporary residence permits, certificates, or registration cards to unaccompanied minors during the assessment of their applications.³⁹ In addition, if the 2001 Temporary Protection Directive is triggered, unaccompanied minors are granted an EU harmonized protection status for a period of one year and must be provided with the necessary residence permits and visas, including transit visas, for the period of their stay.⁴⁰

³¹ Id. art. 25, para. 6(a),(b).

³² Reception Conditions Directive, art. 2(k).

³³ Id. art. 22, para. 1.

³⁴ Asylum Procedures Directive, art. 31, para. 7(b).

³⁵ Reception Conditions Directive, art. 23, para. 1.

³⁶ Id.

³⁷ Asylum Procedures Directive, art. 25.

³⁸ Id. art. 9, para. 1.

³⁹ European Migration Network, *Policies, Practices and Data on Unaccompanied Minors in the EU Member States and Norway* 21 (May 2015), <https://perma.cc/6SNJ-AUAK>. The countries were Austria, Belgium, Bulgaria, Croatia, Czech Republic, Germany, Greece, Ireland, Latvia, Lithuania, Malta, Poland, Slovenia, the Slovak Republic, and Spain. In addition, the United Kingdom, an EU Member State at the time, granted temporary permissions to unaccompanied minors to enter the country.

⁴⁰ Temporary Protection Directive, arts. 4, 8.

Once an application is approved, a residence permit based on refugee status or subsidiary protection is issued, or, depending on national law, based on humanitarian grounds.⁴¹

B. Legal Representation

As soon as possible, Member States must appoint a legal representative for unaccompanied minors and inform them immediately of such an appointment.⁴² Again, the leading principle must be the best interests of the minor. The legal representative should generally remain the same during the asylum process to ensure the minor's well-being and social development.⁴³ The legal representative must inform and prepare the unaccompanied minor for the personal asylum interview and be present at the interview to ask questions and comments.⁴⁴ However, if the unaccompanied minor will be 18 years old before an asylum decision at first instance is taken, the Member States are allowed to refrain from appointing a legal representative.⁴⁵ Legal and procedural information must be provided free of charge to the unaccompanied minors and their legal representatives, in particular information on the procedure in the light of the applicant's particular circumstances.⁴⁶

C. Role of Child Protection Agencies

In general, unaccompanied minors who apply for asylum should be placed with adult relatives, a foster family, in accommodation centers with special provisions for minors, or in other suitable accommodations.⁴⁷ Member States, with the assistance of international or other relevant organizations, must start tracing the members of the unaccompanied minor's family as soon as possible after the application is lodged.⁴⁸ Staff working with unaccompanied minors must receive continuous training concerning their needs.⁴⁹

Furthermore, as mentioned, a representative must be appointed for an unaccompanied minor, who may be "a person or an organisation appointed by the competent bodies in order to assist and represent an unaccompanied minor in procedures provided for in this Directive with a view to ensuring the best interests of the child and exercising legal capacity for the minor where necessary."⁵⁰ In addition, once an asylum application of an unaccompanied minor has been approved, Member States must appoint a legal guardian or, where necessary, an organization

⁴¹ Qualification Directive, art. 24.

⁴² Reception Conditions Directive, art. 24, para. 1; Asylum Procedures Directive, art. 25, para. 1(a).

⁴³ *Id.*

⁴⁴ Asylum Procedures Directive, art. 25, para. 1(b).

⁴⁵ *Id.* art. 25, para. 2.

⁴⁶ *Id.* art. 25, para. 4.

⁴⁷ Reception Conditions Directive, art. 24, para. 2.

⁴⁸ *Id.* art. 24, para. 3.

⁴⁹ *Id.* art. 24, para. 4.

⁵⁰ *Id.* art. 2(j), 24; Asylum Procedures Directive, art. 2(n), 25.

responsible for the care and well-being of minors to represent the unaccompanied children.⁵¹ Such a legal guardian or representative must ensure that the minor's needs are duly met.⁵²

The national laws of the EU Member States can provide that a child protection agency is appointed as guardian for the unaccompanied minor, such as the local youth welfare office in Germany.⁵³ The European Commission also recommends that appointed guardians and/or competent child protection authorities be involved in the assessment of the best interests of the child with regard to adopting a return decision.⁵⁴

V. Detention and Repatriation of Unaccompanied Minors

A. Detention

The Reception Conditions Directive provides that the detention of unaccompanied minors must be reserved to exceptional circumstances and that they must be released as soon as possible.⁵⁵ It is prohibited to detain them in a prison and together with adults. Instead, they should be housed in an institution with personnel and facilities that take into account the needs of persons their age.⁵⁶ Detained minors in general must be able to engage in leisure activities, including play and recreational activities appropriate to their age.⁵⁷

In addition, article 17 of the Return Directive deals with detention of unaccompanied minors and families with minors. Like the Reception Conditions Directive, it states that detention must be as short as possible and only used as a last resort.⁵⁸ Member States must ensure that minors have access to basic education for the duration of their stay and can engage in leisure activities.⁵⁹ If possible, unaccompanied minors must be held in institutions with personnel and facilities that take into account the needs of persons their age.⁶⁰ Guiding principle for the detention of minors is again the best interests of the child.⁶¹

⁵¹ Qualification Directive, art. 31.

⁵² Id. art. 31, para. 2.

⁵³ Bürgerliches Gesetzbuch [BGB], Jan. 2, 2002, Bundesgesetzblatt [BGBl.] I at 42, 2909; corrected in BGBl. 2003 I at 738, as amended, § 1774, <https://perma.cc/UMW2-3AZR>.

⁵⁴ Eur. Comm'n, *Annex to the Commission Recommendation Establishing a Common "Return Handbook" to Be Used by Member States' Competent Authorities When Carrying Out Return Related Tasks (Return Handbook)*, C(2017) 6505 (Sept. 27, 2017), at 45, <https://perma.cc/DPK8-M8GL>.

⁵⁵ Reception Conditions Directive, art. 11, para. 3.

⁵⁶ Id.

⁵⁷ Id. art. 11, para. 2.

⁵⁸ Return Directive, art. 17, para. 1.

⁵⁹ Id. art. 17, para. 3.

⁶⁰ Id. art. 17, para. 4.

⁶¹ Id. art. 17, para. 5.

B. Return

With regard to the return of minors, the CJEU has opined that when issuing a return decision, Member States “must . . . take due account of the best interests of the child.”⁶² Practices with regard to returning unaccompanied minors vary from Member State to Member State. A 2019 study from the European Union Agency for Fundamental Rights (FRA) found that some Member States, such as France and Italy, provide unaccompanied minors with a legal right to stay. Others do not provide them with such a legal right but do not enforce returns in practice.⁶³

Before a return decision is issued, minors have a right to be heard. This right stems from the Convention on the Rights of the Child (CRC) and the EU Charter and must be part of the assessment of the best interests of the child.⁶⁴ The European Commission states in its non-legally binding Return Handbook that the measures adopted by Member States to ensure the right to be heard should be guided by the following key principles:

- expressing views is a choice and not an obligation;
- the right to be heard should not be subject to any age limits or other arbitrary restrictions, either in law or in practice;
- a minor should be heard in an environment that is appropriate to his/her needs;
- the means used to give effect to the right to be heard should be adapted to the level of understanding and ability to communicate and should take into account the circumstances of the case;
- in full consideration of the need to protect minors from harm, a minor should not be interviewed more often than necessary;
- facilitating the expression of views may require special measures for a minor in particularly vulnerable situations, including the provision of interpretation and translation services.⁶⁵

The EU Return Directive lays down common standards and procedures for returning illegal immigrants.⁶⁶ It reiterates the obligation of the Member States to take due account of the best interests of the child when implementing the directive.⁶⁷ Article 10 focuses on the return and removal of unaccompanied minors. Member States must ensure that an unaccompanied minor will be returned to a member of his or her family, a guardian, or an adequate reception facility in the country of return. Furthermore, before issuing a return decision, assistance by “appropriate bodies” must be sought, such as legal or medical assistance from a governmental or non-

⁶² CJEU, C-82/16, K.A. and Others, ECLI:EU:C:2018:308, paras. 102, 103, 107, <https://perma.cc/2LVZ-HD44>.

⁶³ European Union Agency for Fundamental Rights [FRA], *Returning Unaccompanied Children: Fundamental Rights Considerations*, FRA Focus 3 (Sept. 2019), <https://perma.cc/WV95-CCCR>.

⁶⁴ Convention on the Rights of the Child [CRC], Nov. 20, 1989, 1577 U.N.T.S. 3, art. 12, para. 2, <https://perma.cc/75BM-KGD6>; EU Charter, arts. 24, 41, para. 2; CJEU, Case C-249/13, Khaled Boudjlida v Préfet des Pyrénées-Atlantiques, paras. 47-49, <https://perma.cc/W76Y-NEM7>; Return Handbook, *supra* note 54, at 44, 57.

⁶⁵ Return Handbook, *supra* note 54, at 57.

⁶⁶ Return Directive, *supra* note 15.

⁶⁷ *Id.* arts. 5, 10, in conjunction with recital 22.

governmental (NGO) guardian system or child protection bodies.⁶⁸ According to the Return Handbook, providing assistance is more than mere guardianship.⁶⁹

With regard to the manner in which a return decision is enforced, FRA has stated that

[r]emoval operations must be carried out in a safe, child-appropriate and gender-sensitive manner. Joint return operations through charter flights, regardless of whether they are organised at a national level or coordinated by the European Coast and Border Guard Agency, should not include unaccompanied children. These operations are not suitable for this category of vulnerable persons. They can be traumatising for the children, who may have to witness the use of force and means of restraint against adult returnees, without having the support of their parents to deal with such experiences.⁷⁰

VI. Resettlement and Integration Programs

A. Relocation and Resettlement

There are three main types of relocation arrangements within the EU, which mainly concerned the transfer of asylum seekers from France, Greece, Italy, and Malta to other EU Member States during the height of the refugee crisis in 2015 and in the following years. These are the European Emergency Relocation Mechanism, bilateral arrangements for unaccompanied children, and voluntary relocation for people rescued at sea.⁷¹

The European Emergency Relocation Mechanism was set up in 2015 as a temporary relocation scheme under article 78, paragraph 3 of the Treaty on the Functioning of the European Union (TFEU).⁷² It applied to 40,000 refugees that arrived either in Italy (24,000) or Greece (16,000) from September 16, 2015, until September 17, 2017, as well as to applicants having arrived on the territory of those Member States from August 15, 2015, onwards.⁷³ These applicants were relocated from Italy and Greece to other Member States. The Member State of relocation received a lump sum of 6,000 euros (about US\$6,573) per person.⁷⁴ Priority was to be given to vulnerable applicants, such as unaccompanied minors, and the best interests of the child had to be a primary

⁶⁸ Id. art. 10, para. 1; Return Handbook, supra note 54, at 46.

⁶⁹ Return Handbook, supra note 54, at 47.

⁷⁰ FRA, supra note 63, at 30.

⁷¹ FRA, *Relocating Unaccompanied Children: Applying Good Practices to Future Schemes* 7 (2020), <https://perma.cc/4MBU-VBBV>.

⁷² Council Decision (EU) 2015/1523, 215 O.J. (L 239) 146, <https://perma.cc/XV79-5HZU>. On September 22, 2015, the Council adopted a second emergency relocation decision to relocate a further 120,000 people seeking international protection from Italy and Greece to other Member States. See Consolidated Version of Council Decision (EU) 2015/1601, 2015 O.J. (L 248) 80, <https://perma.cc/842M-7LQF>.

⁷³ Id. arts. 3, 4, 13, para. 3.

⁷⁴ Id. art. 10.

consideration.⁷⁵ However, according to the FRA, only 823 out of the 40,000 relocated refugees were unaccompanied children.⁷⁶

In addition, between 2016 and 2019, some Member States made bilateral arrangements to relocate unaccompanied minors.⁷⁷ For example, Ireland voluntarily relocated more than 40 unaccompanied children from France and eight unaccompanied children from Greece. The United Kingdom, an EU Member State at the time, amended its Immigration Act to allow for the relocation of 480 unaccompanied minors.⁷⁸

Lastly, between 2018 and 2019, some Member States voluntarily relocated refugees rescued at sea from Italy and Malta, including 46 unaccompanied minors.⁷⁹

However, the FRA reported that the number of relocation pledges were low, because Member States found

complying with their [unaccompanied minors'] protection safeguards and special reception needs was one of the obstacles to relocation. Notably, Member States' authorities, and other parties involved, did not have enough facilities and staff to provide children with appropriate care and accommodation and to ensure that safeguards were in place on time, such as guardianship, best interests' assessment, providing legal advice and child-friendly information. Although important for the individual children who were protected, the schemes adopted so far are not sufficient to respond to the protection needs of unaccompanied children.⁸⁰

B. Integration

Unaccompanied minors that have applied for international protection in an EU Member State must have access to education, employment, vocational training, and healthcare.⁸¹ Likewise, once their application has been approved, they must be granted access to employment, education, procedures for recognition of qualifications, social welfare, healthcare, and accommodation under the same conditions as nationals.⁸² Primary consideration must be the best interests of the child.⁸³

⁷⁵ Id. art. 5, para. 3, art. 6, para. 1, recital 27.

⁷⁶ FRA, *supra* note 71, at 6.

⁷⁷ Dublin III Regulation, art. 17, para. 2.

⁷⁸ FRA, *supra* note 71, at 6.

⁷⁹ Id.; Joint Declaration of Intent on a Controlled Emergency Procedure—Voluntary Commitments by Member States for a Predictable Temporary Solidarity Mechanism (Malta Declaration) (Sept. 23, 2019), StateWatch.org, <https://perma.cc/5RCW-KYVK>.

⁸⁰ FRA, *supra* note 71, at 6.

⁸¹ Reception Conditions Directive, arts. 14-16, 19.

⁸² Qualification Directive, arts. 26-30, 32.

⁸³ Id. art. 20, para. 5.

VII. Family Reunification

Article 6, paragraph 3(a) of the Dublin III Regulation obligates EU Member States to take family reunification possibilities into account with respect to all procedures provided for in the regulation. As mentioned, in the case of unaccompanied minors, the Member State primarily responsible for processing the asylum application is the one where a family member or a sibling of the unaccompanied minor is legally present, or, in the absence of a family member or sibling, where a relative, meaning an aunt, uncle, or grandparent, is legally present.⁸⁴

Likewise, the Return Directive obligates Member States to ensure that an unaccompanied minor will be returned to a member of his or her family, a guardian, or an adequate reception facility in the country of return.⁸⁵ Member States must, therefore, in a first step determine the identity and nationality of the unaccompanied minor and trace family members.⁸⁶ Family tracing must start as soon as possible. Consular services, liaison officers, such as those working under the EU Return Liaison Officers program, child protection bodies, international organizations, and NGOs operating within the European Reintegration Network program in the country of return should be involved, among others, to facilitate the efforts.⁸⁷

Lastly, for unaccompanied minors whose asylum application has been approved, the Family Reunification Directive sets out the conditions for family reunification of third country nationals legally residing in an EU Member State.⁸⁸ The objective of family reunification is to “preserve the family unit” and “facilitat[e] the integration of third country nationals in the Member State.”⁸⁹ With regard to unaccompanied minors, it provides that the Member States must authorize the entry and residence of first-degree relatives in the direct ascending line,⁹⁰ and they may authorize the entry and residence of a minor’s legal guardian or any other member of the family, where the minor has no relatives in the direct ascending line or such relatives cannot be traced.⁹¹

⁸⁴ Dublin III Regulation, art. 8.

⁸⁵ Return Directive, art. 10, para. 2.

⁸⁶ Return Handbook, *supra* note 54, at 47.

⁸⁷ *Id.*; FRA, *supra* note 63, at 24.

⁸⁸ Family Reunification Directive, 2003 O.J. (L 251) 12, <https://perma.cc/LV8D-RKVP>.

⁸⁹ *Id.* recital 4, art. 2(d).

⁹⁰ Unlike for other applicants, there is no requirement that the family members be dependent on the unaccompanied minor or that they do not enjoy proper family support in the country of origin for purposes of family reunification. See Family Reunification Directive, art. 10, para. 3, in conjunction with art. 4, para. 2(a).

⁹¹ *Id.* art. 10, para. 3.

Finland

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SUMMARY Finland is a member of the European Union and bound by EU law on immigration. Finland has ratified the Convention on the Rights of the Child, and all decisions pertaining to unaccompanied minors must be made with the best interest of the child.

Finland may dismiss an unaccompanied minor's application under the Dublin III regulation for processing in a different member state when the applicant has family members in a different member state or when he or she has received protection in a different member state. Finland does not have a set list of safe countries but will determine whether the unaccompanied minor is arriving from a safe country in each individual instance.

While applications are pending, unaccompanied minors have a right to housing, funding, health care, education (including vocational training), and language training. If the minor is above 15 years old, he or she also has a right to work. Unaccompanied minors also have a right to court appointed legal representative that protects their interests throughout the application process.

Unaccompanied minors are eligible for repatriation funding provided a legal guardian or parent meet them upon their return to their home country. Finland cannot detain a person less than 15 years old. Detaining a minor who is 15 years old or older must be absolutely necessary and less invasive alternatives, such as requiring that the minor report to its housing unit several times a day, must be considered.

When an application is granted, a special integration plan is drawn up for unaccompanied minors by their local municipality.

Unaccompanied minors can sponsor their parents and siblings for family reunification without meeting a financial obligation requirement (after they have turned 18), provided the application for family unification is made within three months of the applicant receiving his or her residency permit.

I. Introduction

Finland is a European Union (EU) member state bound by EU regulations and required to implement EU Directives into national law.¹ This includes the Dublin III Regulation² and the Asylum Procedures Directive,³ the Return Directive,⁴ and the Temporary Protection Directive.⁵

A. Statistics

Finland, like most of the EU member countries, saw a spike in asylum applications from unaccompanied minors in 2015.⁶ In 2015, Finland received applications from 3,014 applicants; up from 196 in 2014.⁷ In 2022, Finland received 246 applications from unaccompanied minors, which was an increase from 136 in 2021.⁸ According to a Nordic Council survey, more than 90% of unaccompanied minors were granted international protection in 2016.⁹

Between December 2021 and April 2023, the top five most common countries of citizenship among unaccompanied minors were Somalia, Afghanistan, Ukraine, Syrian Arab Republic, and Ethiopia.¹⁰

B. Legislative Framework

The application, reception, and integration of asylum seekers is regulated in the Alien Act,¹¹ the Act on the Reception of Persons Seeking International Protection and Identification of and

¹ Consolidated Version of the Treaty on the Functioning of the European Union (TFEU), art. 288, para. 3, 2016, O.J. (C 202) 47, <https://perma.cc/RYE3-HR3Y>. For more on the relevant EU law, see Jenny Gesley, European Union, in this report.

² Consolidated Version of Dublin III Regulation, 2013 O.J. (L 180), <https://perma.cc/WZ82-QT9N>.

³ Directive 2013/32/EU of the European Parliament and of the Council of 26 June 2013 on Common Procedures for Granting and Withdrawing International Protection (recast) (Asylum Procedures Directive), 2013 O.J. (L 180) 60, <https://perma.cc/VQ9Q-ZJJ3>.

⁴ Directive 2008/115/EC of the European Parliament and of the Council of 16 December 2008 on Common Standards and Procedures in Member States for Returning Illegally Staying Third-Country Nationals (Return Directive), 2008 O.J. (L 348) 98, <https://perma.cc/DN2Z-ARUM>.

⁵ Council Directive 2001/55/EC of 20 July 2001 on Minimum Standards for Giving Temporary Protection in the Event of a Mass Influx of Displaced Persons and on Measures Promoting a Balance of Efforts Between Member States in Receiving such Persons and Bearing the Consequences thereof (Temporary Protection Directive), 2001 O.J. (L 212) 12, <https://perma.cc/HRC3-YA5S>.

⁶ Statista, *Number of Asylum Applications from Unaccompanied Minors from 2012 to 2022*, <https://perma.cc/Q65Y-QYQQ>.

⁷ Id.

⁸ Id.

⁹ Nordic Council, *Samhällets Mottagande av Ensamkommande Barn*, at 26, <https://perma.cc/28RW-2VYW>.

¹⁰ *Statistics, Unaccompanied Minors*, Migri, <https://perma.cc/6UQ7-JP2Z>.

¹¹ *Ulkomaalaislaki* (Alien Act) (2004/301), <https://perma.cc/52UQ-C4E8> (in Finnish), *Utlänningslag* (FFS 2004/301), <https://perma.cc/4MYM-M69J> (in Swedish).

Assistance to Victims of Human Trafficking,¹² and the Act on Promotion of Integration.¹³ In addition, Finland has signed (1990) and ratified (1991) the United Nation's (UN) Convention on the Rights of the Child and must therefore take the best interest of the child into account in each decision that pertains to an unaccompanied minor seeking asylum in Finland.¹⁴ Finland has also ratified the Geneva Convention Relating to the Status of Refugees of 1951.¹⁵

II. Defining Unaccompanied Minors

Finnish law defines a minor as a person who has not yet turned 18 years old.¹⁶ An unaccompanied minor is a minor who arrives without a parent or legal guardian.¹⁷

In Finland, determining the age of the asylum seeker is based on the documents presented by the applicant, or through a medical examination when there are obvious reasons to suspect that the applicant may be above 18 years old.¹⁸ The medical examination is carried out by the Institute for Health and Welfare, at the request of the Finnish Immigration Service, by examining the person's teeth and wrist bones.¹⁹ While the examination must be preceded by a written consent from the minor or the party representing him or her, a result of refusing to undergo the examination is that the person is considered above 18 years old.²⁰

¹² Laki kansainvälistä suojelua hakevan vastaanotosta sekä ihmiskaupan uhrin tunnistamisesta ja auttamisesta (Act on the Reception of Persons Seeking International Protection and Identification of and Assistance to Victims of Human Trafficking) (2011/746), <https://perma.cc/J44K-R86F> (in Finnish), Lag om mottagande av personer som söker internationellt skydd och om identifiering av och hjälp till offer för människohandel (FFS 2011/746), <https://perma.cc/T53B-6FHS> (in Swedish).

¹³ Laki kotoutumisen edistämisestä (Act on Promotion of Integration) (2010/386), <https://perma.cc/LRN9-CZWA> (in Finnish), Lagen om främjande av integration (FFS 2010/1386), <https://perma.cc/4AB2-VYUA> (in Swedish). This law is set to expire on January 1, 2025.

¹⁴ United Nations Human Rights, Office of the High Commissioner, Status of Ratifications Interactive Dashboard, Finland, <https://perma.cc/XL2G-S9HX>; Asetus lapsen oikeuksia koskevan yleissopimuksen voimaansaattamisesta sekä yleissopimuksen eräiden määräysten hyväksymisestä annetun lain voimaantulosta (Decree on the Entry into force of the Convention on the Rights of the Child and the Entry into Force of the Law Approving Certain Provisions of the Convention) <https://perma.cc/X7GE-GBNU> (in Finnish); § 4 Act on Promotion of Integration; § 6 Alien Act.

¹⁵ UN Convention Relating to the Status of Refugees, July 28, 1951, 189 U.N.T.S. 137, <https://perma.cc/CG92-TNKM>.

¹⁶ 6 § Alien Act.

¹⁷ 38 § Alien Act.

¹⁸ 6a § Alien Act.

¹⁹ 6b § Alien Act.

²⁰ Id.

III. Restrictions on Claiming Asylum

A. Dublin III Regulation

As a member of the EU, Finland is bound by the Dublin III Regulation, which determines where an application for asylum should be processed.²¹ The Finnish Immigration Service may dismiss an application for asylum in the following cases:

- You have arrived from a safe country where you have been granted asylum or subsidiary protection or otherwise sufficient protection, and you may be returned to this country (safe country of asylum).
- You have arrived from a safe country where you could have been granted asylum or subsidiary protection or otherwise sufficient protection, you have sufficient ties to that country and you may be returned there (safe third country).
- You can be sent to another country that is responsible for examining your asylum application according to the Dublin Regulation (the Dublin procedure).
- You have received international protection in another EU Member State (the Dublin procedure).
- You have made a subsequent application that does not contain any new grounds that would influence our decision on your matter.²²

B. Safe Countries List

Finland does not provide a safe country list, but the Finnish Migration Service typically considers all EU member states to be safe countries.²³ In addition, Finland considers a third country a safe country when “there is no risk of persecution or serious violations of human rights” and will assess and determine third countries to be safe countries by examining the following questions:²⁴

- Does the state have a stable and democratic social system?
- Does the state have an independent and impartial judicial system and does the administration of justice meet the requirements for a fair trial?
- Has the state signed the main international conventions on human rights and does the state adhere to them?
- Have there been serious violations of human rights in the state?²⁵

The EU Asylum Procedures Directive does not prohibit Finland from using expedited processing for unaccompanied minors.

²¹ Consolidated Version of Dublin III Regulation, 2013 O.J. (L 180), <https://perma.cc/P3NN-ESH>; *When is an Application Not Processed in Finland?*, Migri, <https://perma.cc/XP8X-LPB9>.

²² *When is an Application Not Processed in Finland?*, supra note 21.

²³ *Expedited Processing*, Migri, <https://perma.cc/KB5T-JTVG>.

²⁴ Id.

²⁵ Id.

IV. Protection Offered to Unaccompanied Minors

A. Travel Documents

While the application process is pending, unaccompanied minors have a right to travel documents, including alien passports.²⁶

B. Legal Representation

Upon arrival in Finland, all unaccompanied minors have a right to a legal representative that protect the minor's interests.²⁷ The legal representative is assigned by the local district court.²⁸ When the minor turns 18 years old and gains legal capacity, the legal representative relationship is automatically severed.²⁹

C. Role of Child Protection Agencies

In addition to the individual legal representative, the Ombudsman for Children in Finland, an independent authority under the Ministry of Justice, is responsible for protecting the interest of the child, including ensuring that Finland adopts legislation that considers the best interest of the child.³⁰

D. Housing

Upon arriving in Finland, unaccompanied minors will be housed in special group homes, separate from general arrival centers and adult asylum seekers.³¹

When the minor is granted protected status, he or she is eligible for special housing.³² These special measures may continue until the minor is 25 years old.³³ Unaccompanied minors who are

²⁶ 134 § Alien Act.

²⁷ 39 § Act on the Reception of Persons Seeking International Protection and Identification of and Assistance to Victims of Human Trafficking. See also Migri, *Representative of an Unaccompanied Minor Asylum Seeker*, <https://perma.cc/8PWY-7PMV>.

²⁸ 39 § Act on the Reception of Persons Seeking International Protection and Identification of and Assistance to Victims of Human Trafficking.

²⁹ Id. 43 §.

³⁰ 1 § Laki lapsiasiavaltuutetusta (Act on the Ombudsman for Children in Finland) (2004/1221), <https://perma.cc/G2AX-9SWG> (in Finnish), Lag om barnombudsmannen, <https://perma.cc/D9RD-MJRC> (in Swedish).

³¹ 17 § Act on the Reception of Persons Seeking International Protection and Identification of and Assistance to Victims of Human Trafficking.

³² 27 § Act on Promotion of Integration.

³³ Id.

less than 16 years old will be housed in group homes, whereas older minors who are 16 or 17 years old may be housed in what is known as supported housing units.³⁴

E. While Application is Being Processed

While the application for being processed, the unaccompanied minor has a right to go to school, work if she or he is above 15 years old, receive language training, receive health care, and receive a daily grant for his or her expenses.³⁵

V. Detention and Repatriation of Unaccompanied Minors

There are two detention centers in Finland, one in Helsinki and one in Joutseno.³⁶ Deportation of unaccompanied minors whose applications are denied is carried out on a voluntary basis, where the minor voluntarily leaves. Deportation against a minor's wishes will typically not take place.³⁷

A. Detention of Minors

Minors who are 15 years or older can be detained.³⁸ Minors who are not yet 15 years old cannot be detained.³⁹ In lieu of detaining a minor who is 15 years old, he or she can be required to report to his or her group home up to four times a day.⁴⁰ The decision must be based on the needs of the child and not exceed what is required.⁴¹

B. Repatriation of Minors

Finland provides financial assistance for unaccompanied minors who wish to return to their home countries.⁴² Repatriation requires that the parent(s) or legal guardian(s) of the minor can meet the child upon arrival.⁴³

³⁴ *Accommodation of an Unaccompanied Minor Asylum Seeker*, Migri, <https://perma.cc/ZLG4-CFHF>.

³⁵ 20, 21, 26, 29 §§ Act on the Reception of Persons Seeking International Protection and Identification of and Assistance to Victims of Human Trafficking.

³⁶ *Förvarstugande*, Migri, <https://perma.cc/S3NS-C8BS>.

³⁷ *Id.*

³⁸ 122 § Alien Act.

³⁹ *Id.*

⁴⁰ 120 § Alien Act.

⁴¹ *Id.*

⁴² 31 § Act on the Reception of Persons Seeking International Protection and Identification of and Assistance to Victims of Human Trafficking. See also *Frivillig Återresa*, Migri, <https://perma.cc/4DWU-9X3J>.

⁴³ *Frivillig Återresa*, *supra* note 42.

VI. Resettlement and Integration Programs

A. Resettlement

Finland participates in resettlement programs for refugees.⁴⁴ In 2023, Finland has committed to receive 1,050 quota refugees through the UN resettlement scheme.⁴⁵

Finland committed to receive about 3,000 persons as part of the European Emergency Resettlement Scheme.⁴⁶ In 2020, 49 unaccompanied minors arrived in Finland from Greece as part of the voluntary resettlement program.⁴⁷ In total, 126 unaccompanied minors arrived from Greece in 2020 and 2021.⁴⁸

B. Integration Program

For unaccompanied children who receive a residency permit, an integration plan is always developed by the municipality where he or she lives.⁴⁹ The plan is developed together with the minor and his or her legal representation.⁵⁰ The best interest of the child must always be considered, and the child should be heard in all matters relevant to the child.⁵¹

VII. Family Reunification

Unaccompanied minors who have received residency based on international protection in Finland are eligible for family reunification without needing to prove that they can financially support their family members.⁵² The definition of a family member is found in section 37 of the Alien Act, and defines a parent as a family member when a child who is not yet 18 sponsors the parent.⁵³ As a result, historically an unaccompanied minor could only sponsor his or her parents if awarded a residency permit before turning 18 years old. A new provision, section 38 of the Alien Act, was introduced in 2022, which also allows persons who have turned 18 to sponsor

⁴⁴ *Resettlement of Quota Refugees is One Way of Helping the Most Vulnerable*, Ministry of the Interior, <https://perma.cc/L8QB-EWRU>.

⁴⁵ *Asylum in Finland - Quota Refugees*, Migri, <https://perma.cc/R45B-865F>. For an overview of the quota refugee selection process see *Selection of Quota Refugees*, Migri, <https://perma.cc/7UW8-W5YV>.

⁴⁶ *Finland Bär Sitt Ansvar för de Asylsökande*, Finnish Embassy Athens, <https://perma.cc/E7L5-AN7C>.

⁴⁷ European Commission Press Release, *Migration: Relocation of Unaccompanied Children from Greece to Portugal and Finland* (July 8, 2020), <https://perma.cc/WM9E-NDAZ>.

⁴⁸ UNHCR, The UN Refugee Agency: Baltic and Nordic Countries, *New Report from UNHCR and Save the Children: Finland's Earlier Relocation of Asylum-Seeking Children From Greece Showcased Good and Child-Friendly Practices* (Oct. 13, 2022), <https://perma.cc/G9S7-CHZN>.

⁴⁹ 15 § Act on Promotion of Integration.

⁵⁰ *Id.*

⁵¹ 4 § Act on Promotion of Integration.

⁵² 37, 39 §§ Alien Act.

⁵³ 37 § Alien Act.

their parents if they applied for international protection before they turned 18 years old.⁵⁴ The change in law reflects the EU decision C-550/16, which found that for purposes of family reunification, an unaccompanied minor who, after applying for asylum, turned 18 will continue to be regarded as a minor when he or she turns 18 before a decision of granting refugee status has been made on the case.⁵⁵

The family unification request must still be made within three months of the unaccompanied minor receiving his or her right to residence.⁵⁶

⁵⁴ 38 § Alien Act.

⁵⁵ European Court of Justice Case C-550/16, ECLI:EU:C:2018:248, <https://perma.cc/S8KZ-49LA>.

⁵⁶ 38 § Alien Act.

France

Laure Le Gall
Foreign Law Consultant

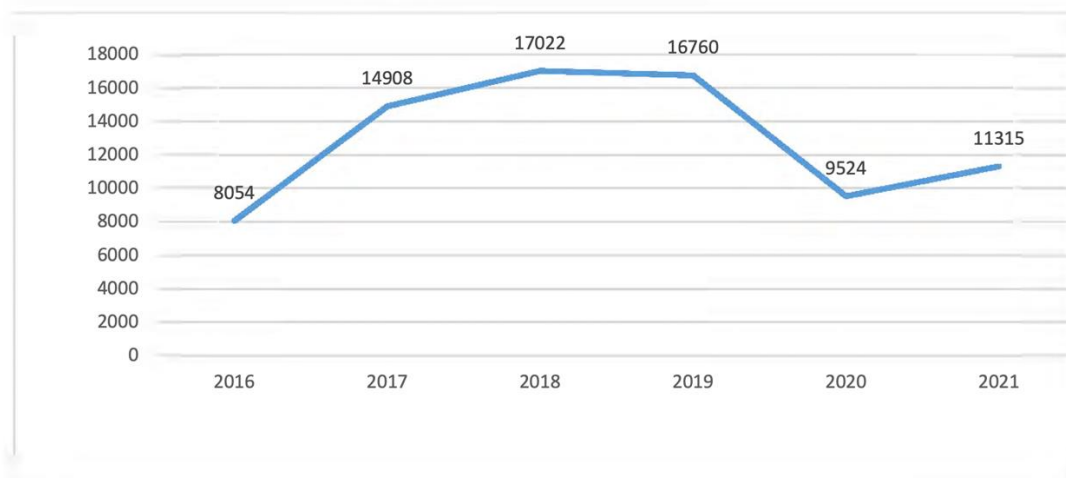
SUMMARY The support and care of unaccompanied minors in France is governed by international conventions, European regulations, and French laws.

An unaccompanied minor is a foreign child under the age of 18, who has arrived in France unaccompanied by one of the persons entrusted with legal custody or by a legal representative. The child protection services are responsible for welcoming the minor and taking him or her into their care.

The deportation of unaccompanied minors is prohibited under French law.

I. Introduction

In 2021, 11,315 persons were placed under the status of unaccompanied minor, and 94.8% of them were boys.¹ As shown in the graph below, the Covid-19 crisis led to a significant decrease in the number of unaccompanied minors in France. The slow rebound in 2021 is related to the gradual lifting of border restrictions.²



Number of persons placed under the status of unaccompanied minor in France from 2016 to 2021³

¹ Ministère de la Justice, Direction de la Projection Judiciaire de la Jeunesse, Mission Mineurs Non-Accompagnés, *Rapport Annuel d'Activité 2021*, at 7, <https://perma.cc/487C-E2A7>.

² Id.

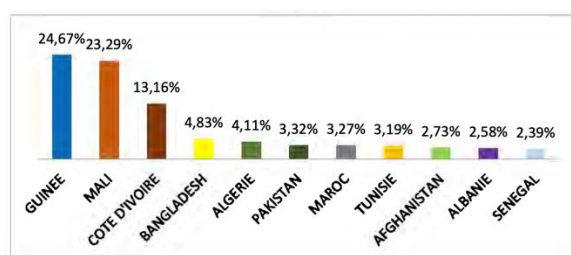
³ Id.

The age of unaccompanied minors varies, with the majority being over 16, as shown on the following chart.

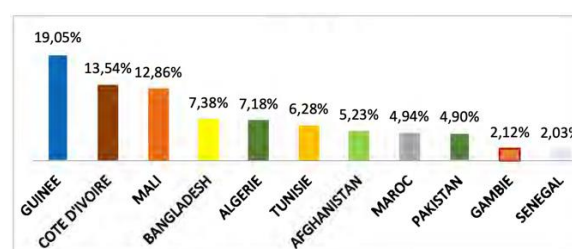
Age	2021	2021%	2020	2020%	2019	2019%	2018	2018%
- 10 ans	35	0,31%	12	0,12%	20	0,12%	28	0,16%
10 – 12 ans	93	0,82%	50	0,52%	117	0,70%	95	0,56%
13 – 14 ans	1 341	11,85%	478	5,01%	1 526	9,11%	1 808	10,62%
15 ans	3 195	28,24%	1 372	14,40%	5 178	30,89%	5 561	32,67%
16 ans	4 630	40,92%	3 484	36,58%	7 647	45,63%	7 495	44,04%
17 ans et plus	2 021	17,86%	4 128	43,34%	2 272	13,56%	2 035	11,94%
Total	11 315	100%	9 524	100%	16 760	100 %	17 022	100 %

Distribution of unaccompanied minors by age range between 2019 and 2020⁴

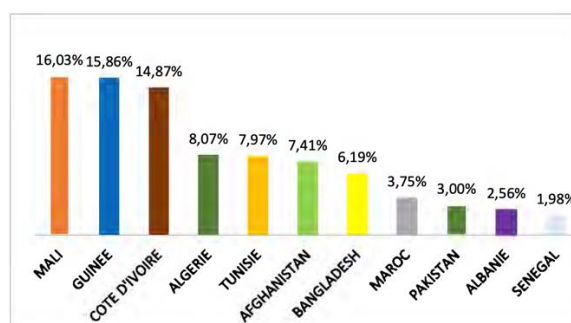
Finally, between 2019 and 2021, a majority of unaccompanied minors came to France from the African continent.



2019



2020



2021

Main countries of origin of unaccompanied minors between 2019 and 2021⁵

Note that all these figures only include persons officially recognized as unaccompanied minors by virtue of a court order or a decision issued by the French Administration.

⁴ Id. at 8.

⁵ Id. at 9.

Many French, European, and international regulations are applicable to unaccompanied minors. These regulations will be cited in this report. In the same way, several actors are involved in the care of unaccompanied minors. This report will present them.

II. Defining Unaccompanied Minors

France has ratified the United Nations Convention on the Rights of the Child, which requires states to grant special protection and assistance to children temporarily or permanently deprived of their family environment.⁶

Under the European Directive 2011/95/EU of the European Parliament and of the Council of Europe, an unaccompanied minor is

a minor who arrives on the territory of the Member States unaccompanied by an adult responsible for him or her whether by law or by the practice of the Member State concerned, and for as long as he or she is not effectively taken into the care of such a person; it includes a minor who is left unaccompanied after he or she has entered the territory of the Member States.⁷

The Member States of the European Union have the responsibility to protect any child in a situation of minority and isolation.

In France, minors are individuals of either sex under the age of 18.⁸ Regarding the notion of isolation, a 2016 Government order states that the person is considered to be isolated when no adult is legally responsible for him or her on the national territory or effectively takes charge of him or her and shows his or her willingness to be entrusted with the child on a long-term basis, in particular by referring the matter to the competent judge.⁹

Before 2016, French law used the terminology *mineurs isolés* (isolated minors). However, the notion of isolation was too restrictive and only referred to the exercise of legal custody over a minor.¹⁰ Since 2016, French law uses the expression “unaccompanied minors.” The notion of accompaniment is broader and refers to the fact that the minor is not accompanied by an adult who cares for him or her.¹¹

⁶ United Nations Convention on the Rights of the Child, art. 20, Nov. 20, 1989, 1577 U.N.T.S. 3, <https://perma.cc/EE3T-BB2R>.

⁷ Directive 2011/95/EU of the European Parliament and of the Council of 13 December 2011 on standards for the qualification of third-country nationals or stateless persons as beneficiaries of international protection, for a uniform status for refugees or for persons eligible for subsidiary protection, and for the content of the protection granted (recast), art 2, <https://perma.cc/L2RN-SCE3>.

⁸ Code civil (Civil Code), art. 388, <https://perma.cc/CK7R-YFWP>.

⁹ Arrêté du 17 novembre 2016 pris en application du décret n° 2016-840 du 24 juin 2016 relatif aux modalités de l'évaluation des mineurs privés temporairement ou définitivement de la protection de leur famille, art. 1, <https://perma.cc/U8XM-3JA6>.

¹⁰ Défenseur des Droits de la République Française, *Rapport – Les Mineurs Non Accompagnés au Regard du Droit* 6 (2022), <https://perma.cc/P9KP-SPZR>.

¹¹ Id.

Unaccompanied minors do not have their own legal status. They are at the crossroads of the law on foreigners and the child protection system, which does not impose any nationality requirement.¹²

III. Restrictions on Claiming Asylum

Unaccompanied minors may apply for asylum. The country in which they may do so varies.

A. Unaccompanied Minors with Family Members in one of the EU Member States

Under the *Dublin III* EU Regulation, the Member State responsible for the asylum application of the minor is the one in which his or her family members (father, mother, siblings, uncles, aunts), or an adult responsible for the minor, are legally present, provided that this is in his or her best interests.¹³ States must take the necessary measures to identify family members.¹⁴

Such family reunification must always be in the child's best interests. Thus, a child cannot be transferred if the identified parent cannot take care of him or her, or if there is a risk of the minor being a victim of human trafficking.¹⁵

B. Unaccompanied Minors with no Family Members or Relatives in one of the Member States

If the minor has no family members or close relatives in the territory of a Member State of the European Union, the state responsible is the last state in which he or she applied for international protection, i.e., the state in which he or she is located, provided that this protects his or her best interests.¹⁶ In the case of multiple applications in several Member States, the Court of Justice of the European Union has ruled that the Member State responsible for the asylum case is the last country where an application was submitted.¹⁷

If the minor applies for asylum in France, the *Office Français de Protection des Réfugiés et Apatrides* (French Office for the Protection of Refugees and Stateless Persons), or Ofpra, will be responsible for reviewing his or her file. Ofpra is an *établissement public administratif* (French government

¹² France Terre d'Asile, *L'accueil et la prise en charge des mineurs isolés étrangers en France* (2017), <https://perma.cc/Q9NZ-FLB7>.

¹³ Regulation (EU) No 604/2013 of the European Parliament and of the Council of June 26, 2013, establishing the criteria and mechanisms for determining the Member State responsible for examining an application for international protection lodged in one of the Member States by a third-country national or a stateless person (recast), art. 8(1), <https://perma.cc/4W2P-FZG8>.

¹⁴ Directive 2013/33/EU of the European Parliament and of the Council of June 26, 2013, laying down standards for the reception of applicants for international protection (recast), art. 24(3), <https://perma.cc/BB6R-AWSW>.

¹⁵ Id. art. 23(2)(c).

¹⁶ See Regulation No. 604/2013, art. 8(4).

¹⁷ CJEU, 6 June 2013, MA, BT, DA v. Secretary of State for the Home Department, Case. C-648/11, <https://perma.cc/Q3F7-3SV2>.

agency) created in 1952.¹⁸ Aside from examining asylum applications, Ofpra provides legal and administrative protection for refugees and stateless persons.¹⁹

IV. Protection Offered to Unaccompanied Minors

A. Visas

French law only requires persons over the age of 18 to have a valid residence permit.²⁰ Minors are therefore not subject to any requirement regarding the legality of their entry or residence and cannot personally be subject to a removal order in principle.²¹

B. Role of Child Protection Agencies

Upon their arrival in France, unaccompanied minors are placed under the care of the *Aide Sociale à l'Enfance* (ASE) (French child protection agency). This institution's mission is to prevent the difficulties that minors temporarily or permanently deprived of the protection of their families may encounter and to ensure their care.²²

The process starts with a first interview to assess the minor's situation.²³ If the person is recognized as an unaccompanied minor within five days, or if the assessment has not been completed within five days, the ASE must report the presence of the young person to the *procureur de la République* (public prosecutor), who may issue an order to extend the delay and put the minor under the of protection of the ASE.²⁴

If the identity documents do not make it possible to establish minority, or if the young person has no documents, a social assessment will be initiated.²⁵ The evaluation must be carried out by trained professionals and by a multidisciplinary team, in a language understood by the foreigner, or with the assistance of an interpreter.²⁶ The assessor must be neutral and benevolent and conduct the assessment in conditions that guarantee the interests of the child.²⁷ The assessor must analyze the coherence of the story collected during several interviews and compare the young

¹⁸ Loi n° 52-893 du 25 juillet 1952 relative au droit d'asile, art. 1, <https://perma.cc/8SM3-YW9W>.

¹⁹ Code de l'entrée et du séjour des étrangers et du droit d'asile (CESEDA) (Code of Entry and Residence of Foreigners and of the Right of Asylum), art. L. 121-7, <https://perma.cc/WGU8-XXX9>.

²⁰ Id. art. L. 311-1.

²¹ Sénat, *Rapport d'information n° 598 fait au nom de la commission des affaires sociales sur la prise en charge sociale des mineurs non accompagnés* 30 (June 28, 2017), <https://perma.cc/42NS-P4L2>.

²² Code de l'action sociale et des familles (CASF) (Code of Social Action and Families), art. L. 112-3, <https://perma.cc/PPE8-JMUG>.

²³ Id. art. L. 223-2.

²⁴ Id. art. R. 222-11.

²⁵ See Arrêté du 17 novembre 2016, *supra* note 9.

²⁶ Id.

²⁷ Id.

person's physical appearance, independence and autonomy, reasoning, and understanding with the age he or she claims to be.²⁸

In case of doubt, or when the alleged age is not plausible, the court can order a medical assessment to establish the youth's minority, including through bone X-ray examinations.²⁹ These examinations consist of an X-ray of the jaw, wrist, and clavicle and a comparison with the Greulich and Pyle Atlas, a reference atlas on the phases of bone maturation.³⁰

If the status of unaccompanied minor is granted, the minor will remain under the care of the ASE. Otherwise, he or she may challenge the decision refusing to recognize him or her as an unaccompanied minor in court.

C. Legal Representation

French law provides for two types of legal representation.

First, guardianship, which has two forms, as follows:

- guardianship referred to the childhood protection agency: this guardianship is delegated to the ASE for unaccompanied minors, French or foreign, with no family network; and
- guardianship with a family council may be implemented when the minor has family members in France. In fact, this measure only concerns a small proportion of unaccompanied foreign minors.³¹

Then, the delegation of parental authority where the persons who have legal custody rights over the minor delegate these rights.³² Again, this measure may only apply in a limited number of instances.

V. Detention and Repatriation of Unaccompanied Minors

Unaccompanied minors cannot be deported and sent back to their country of origin.³³

²⁸ Id.

²⁹ Loi n° 2016-297 relative à la protection de l'enfant, art. 43 (Mar. 14, 2016), <https://perma.cc/9V8Z-62ND>.

³⁰ Ministère de la Justice, *Note du 5 septembre 2018 relative à la situation des mineurs non accompagnés faisant l'objet de poursuites pénales*, at 11, <https://perma.cc/CG66-R6BS>.

³¹ Civil Code, arts. 398 and 411.

³² Id. art. 377.

³³ CESEDA, art. L. 631-4.

VI. Resettlement and Integration Programs

Unaccompanied minors are granted several rights.

A. Health Care

The UN Convention on the Rights of the Child recognizes “the right of the child to the enjoyment of the highest attainable standard of health and to facilities for the treatment of illness and rehabilitation of health.”³⁴ To have access to healthcare, minors must have health coverage. In France, minors are covered by the universal health protection (called *PUma*), managed by the *Caisse Primaire d’Assurance Maladie* (CPAM), the French system of social security.³⁵

The performance of medical acts on a minor usually requires the consent of the persons having legal custody of the child. These persons must make the medical decisions concerning the minor, except in cases of emergency or express refusal on the part of the minor.³⁶ In the case of unaccompanied minors, if the ASE has obtained guardianship or a delegation of parental authority for the minor, they will make these decisions. In the absence of guardianship or delegation of parental authority, the judge may also authorize, exceptionally and in the child's interest, the ASE to perform an act of parental authority, particularly in health-related matters.³⁷

B. Education

The additional protocol to the European Convention on Human Rights states in article 2 that “no one shall be denied the right to education.”³⁸ The right to education for all is enshrined in the French Constitution. Indeed, the 13th paragraph of the Preamble of the Constitution of 1946 provides that the Nation guarantees equal access of children and adults to education, professional training, and culture. The organization of free and secular public education at all levels is a duty of the State.³⁹

The Ministry of Education reminded the public in a note that school is a right for all children residing on national territory, regardless of their nationality, their migratory status, or their previous background.⁴⁰ The judge ensures compliance with these provisions. For instance, the

³⁴ See Convention on the Rights of the Child, art. 24(1).

³⁵ Ministère du travail, de l’emploi et de la santé, *Circulaire ministérielle n° DSS/2A/2011/351* (Sept. 8, 2011), <https://perma.cc/E5KH-QNPA>.

³⁶ Code de la santé publique (Public Health Code), arts. L. 1111-5 and R. 4127-42, <https://perma.cc/WRH2-3MPS>.

³⁷ Civil Code, art. 375-7.

³⁸ Protocol to the Convention for the Protection of Human Rights and Fundamental Freedoms, Mar. 20, 1952, ETS No. 009, <https://perma.cc/PX8F-MSKV>.

³⁹ Constitution of the Fifth Republic (June 3, 1958), <https://perma.cc/J27G-LRBR> (in French), referring in its preamble to the Constitution of the Fourth Republic (Oct. 27, 1946), <https://perma.cc/L95D-MVXN> (in French).

⁴⁰ *Circulaire n° 2012-141 sur l’organisation de la scolarité des élèves allophones nouvellement arrivés* (Oct. 2, 2012), Ministère de l’éducation nationale et de la jeunesse, <https://perma.cc/5VGX-KU8G>.

Council of State held that the deprivation for a child, particularly if he or she suffers from isolation on French territory, of any possibility of benefiting from schooling or from an adapted school or vocational training, in accordance with the modalities that the legislator has defined in order to ensure compliance with the constitutional requirement of equal access to education, is likely to constitute a serious and manifestly illegal infringement of a fundamental freedom.⁴¹

French law and jurisprudence therefore guarantee unaccompanied minors the same access to education as citizens.

VII. Family Reunification

A. Family Members Eligible for Family Reunification

A minor who has obtained refugee status or the benefit of subsidiary protection, and on the condition that he or she is not married, may request to be joined by his or her parents, and other minor, unmarried children still dependent on their parents (i.e., brothers and sisters).⁴²

To initiate this procedure, the identity of family members must first be declared to Ofpra when applying for asylum by entering their name, date, and place of birth on the Ofpra form.⁴³ Family members who have not been declared at the time of filing the asylum application with Ofpra cannot benefit from family reunification. However, omissions or inaccuracies can be corrected later, provided they can be justified.⁴⁴

Family reunion may be refused if:

- the presence of the family members in France would constitute a threat to public order;
- it is established that they have committed serious offenses which justified the granting of asylum protection.⁴⁵

B. Procedure

The parents of the unaccompanied minor refugee must apply for a long-stay visa with the French consular authorities in their country.⁴⁶ The visa application must be filed for each family member who wishes to join the refugee. They must provide proof of the existence of a family link with the minor.⁴⁷ They must present the foreign civil status documents, the civil status documents of the minor established by Ofpra, or, in the absence of these documents, elements establishing the

⁴¹ Conseil d'Etat, Decision n° 407355 (Feb. 15, 2017), <https://perma.cc/B54C-7TCP>.

⁴² CESEDA, art. L. 561-2.

⁴³ Id. art. R. 521-5.

⁴⁴ Id.

⁴⁵ Id. art. L. 561-3.

⁴⁶ Id. art. L. 561-5.

⁴⁷ Id.

family link between the minor and the members of his or her family who wish to benefit from family reunification.⁴⁸

In principle, the consular authorities have two months to process the application for a long-stay visa, but they can extend this period by four months to verify the foreign civil status documents.⁴⁹ If these verifications are unsuccessful within this period, the administration may extend it again for four months.⁵⁰ At the end of the procedure, if the application is accepted, the minor's family members are issued a long-stay visa. The parents of a minor who has been granted refugee status obtain a 10-year residence permit.⁵¹ If the child benefits from subsidiary protection, his or her parents will obtain a multiannual residence permit for a period of four years.⁵² This visa allows them to enter France legally.

If the visa application is denied, it is mandatory to file a prior administrative appeal to challenge the decision. This appeal must be made within thirty days following the notification of the visa refusal before the *Commission de recours contre les décisions de refus de visa d'entrée en France* (Commission of appeal against the decisions of refusal of entry visa in France) (CRRV).⁵³ The CRRV may reject the appeal or recommend granting a visa, but the decision is taken by the *Ministère de l'Intérieur* (French equivalent of the State Department), which is not obliged to follow its opinion.⁵⁴ If the CRRV rejects the appeal, it is possible to file an appeal with the Administrative Court of Nantes within two months of the notification of this decision.⁵⁵

⁴⁸ Id.

⁴⁹ Id. art. R. 211-4.

⁵⁰ Id.

⁵¹ Id. art. L. 424-3.

⁵² Id. art. L. 424-11.

⁵³ Id. arts. D. 312-3, D. 312-4.

⁵⁴ Id. art. R. 312-6.

⁵⁵ Id.

Germany

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SUMMARY Germany has ratified the Geneva Convention Relating to the Status of Refugees of 1951 and the Convention on the Rights of the Child, and has implemented certain EU asylum law requirements into German law. The best interests of the child must be the primary consideration for all matters regarding children. The German Asylum Act and the Residence Act provide rules for the admission of refugees and the handling of refugee claims in general. The Asylum Seeker Benefits Act provides that people with special needs, such as unaccompanied minors, are eligible to receive appropriate health care and related care, and the Eighth Book of the German Social Security Code contains a specific chapter on unaccompanied minors.

Once an unaccompanied minor arrives in Germany and is identified as such, he or she is taken into preliminary care by a youth welfare office. Once the appropriate youth welfare office has received him or her, the office has the power to place the minor with a suitable person, a suitable institution, or other suitable accommodation on a temporary basis. The office has the right and the duty to represent the unaccompanied minor while he or she is in preliminary care or regular care. A legal guardian, which can be the youth welfare office, must be appointed immediately after the unaccompanied minor has been taken into regular care.

Minors and families with minors should only be detained in exceptional circumstances and only for as long as necessary without endangering the well-being of the child. If unaccompanied minors are returned, the competent authority must ensure that they are returned to a family member, to a person having the right of care and custody, or to an appropriate reception center.

Unaccompanied minors of school age have a duty and a right to attend school in Germany. States offer various support measures, in particular language classes or special preparatory classes for migrant children.

The youth welfare office in charge of preliminary care of the unaccompanied minor must ascertain whether he or she has relatives in Germany or abroad and must work towards uniting the minor with a relative if this is in his or her best interests. If the unaccompanied minor applies for asylum, the application is to be processed by the EU Member State in which a family member or a sibling of the unaccompanied minor is legally present, or in the absence of such family member, where a relative is legally present. Furthermore, parents of unaccompanied minors who have been granted a residence title must be issued a residence permit to move to Germany.

I. Introduction

As a Member State of the European Union (EU), the Dublin III Regulation, which establishes the criteria and mechanisms for determining the EU Member State responsible for examining an asylum application, is directly applicable in Germany.¹ In addition, Germany is required to implement the EU asylum directives into national law. Directives are binding with regard to the result they set out to achieve; the means are up to the member states.² The guarantees for minors codified in the EU asylum legislation must be respected by German authorities.³

A. Statistics

According to the German Federal Office for Migration and Refugees (Bundesamt für Migration und Flüchtlinge, BAMF), in 2022, Germany received a total of 244,132 asylum applications, made up of 217,774 first-time applications and 26,358 subsequent applications.⁴ Minors under 18 years made up 37.3% (81,232) of the total number of first-time asylum applicants.⁵ 7,277 were unaccompanied minors.⁶ The majority of unaccompanied minors in 2022 came from Afghanistan (39.1%), Syria (38.1%), Turkey (5.1%), and Somalia (4.3%).⁷

B. Overview of the Legal Framework

Germany has ratified the Geneva Convention Relating to the Status of Refugees of 1951 (Refugee Convention) and the Convention on the Rights of the Child (CRC), and has implemented certain EU asylum law requirements into German law.⁸ The CRC as well as the Charter of Fundamental Rights of the European Union (EU Charter) provide that the best interests of the child must be the primary consideration for all matters regarding children.⁹ The 2013 EU Asylum Procedures Directive has not yet been transposed into German law, but has direct effect since the deadline for transposition passed on July 20, 2015.¹⁰ The EU's Dublin III Regulation, which contains an exception for unaccompanied minors with regard to which Member State is in charge of

¹ Consolidated Version of Dublin III Regulation, 2013 O.J. (L 180) 31, <https://perma.cc/93EW-G63Q>.

² Consolidated Version of the Treaty on the Functioning of the European Union (TFEU), art. 288, para. 3, 2016, O.J. (C 202) 47, <https://perma.cc/69YD-RXTA>.

³ See EU survey for a detailed description of the specific provisions for unaccompanied minors in the asylum legislation.

⁴ BAMF, *Das Bundesamt in Zahlen 2022. Asyl* 8 (Mar. 2023), <https://perma.cc/X4NB-6Z5W>.

⁵ Id. at 20.

⁶ Id. at 22.

⁷ Id.

⁸ Convention Relating to the Status of Refugees (Refugee Convention), July 28, 1951, 189 U.N.T.S. 137, <https://perma.cc/X8Y6-8NGS>; Convention on the Rights of the Child (CRC), Nov. 20, 1989, 1577 U.N.T.S. 3, art. 12, para. 2, <https://perma.cc/75BM-KGD6>.

⁹ CRC, art. 3, para. 1; Charter of Fundamental Rights of the European Union (EU Charter), art. 24, para. 2, 2012 O.J. (C 326) 391, <https://perma.cc/LC3B-5S8L>.

¹⁰ Asylum Procedures Directive, art. 51, para. 1, 2013 O.J. (L 180) 60, <https://perma.cc/824U-GCTZ>; CJEU, Case 148/78, Ratti, 1979 E.C.R 1629, ECLI:EU:C:1979:110, para. 22, <https://perma.cc/J4NR-TFD9>.

processing the asylum application, is directly applicable in Germany.¹¹ German law must be interpreted in line with the requirements set out in the EU directives.¹²

The German Asylum Act (Asylgesetz, AsylG) and the Residence Act (Aufenthaltsgesetz, AufenthG) are the two most important immigration laws that provide rules for the admission of refugees and the handling of refugee claims in general.¹³ The Asylum Act codifies the process and consequences of granting and denying asylum, whereas the Residence Act provides rules concerning the entry, stay, exit, and employment of foreigners in general. Additionally, rules on asylum can be found in the Asylum Seeker Benefits Act (Asylbewerberleistungsgesetz, AsylbLG) and the Eighth Book of the German Social Security Code (Sozialgesetzbuch - Achtes Buch, SGB 8).¹⁴ The Asylum Seeker Benefits Act provides that people with special needs, such as unaccompanied minors, are eligible to receive appropriate health care and related care.¹⁵ The Eighth Book of the German Social Security Code contains a specific chapter on unaccompanied minors.¹⁶

II. Defining Unaccompanied Minors

German law defines a child as someone who has not reached the age of 14 and a juvenile as someone who is 14 but not yet 18 years old.¹⁷ They are considered unaccompanied minors when they arrive in Germany unaccompanied by a person responsible for their care or a legal guardian; this also applies in the event that they are married.¹⁸

III. Restrictions on Claiming Asylum

A. Dublin III Regulation

As mentioned, the EU Dublin III Regulation applies directly in Germany. Article 8 describes the special procedure that has to be followed to determine which Member State is responsible for the asylum application of an unaccompanied minor. It states that, as an exception to the general rule,

¹¹ Consolidated Version of Dublin III Regulation, art. 8, 2013 O.J. (L 180) 31, <https://perma.cc/93EW-G63Q>.

¹² Bundesverwaltungsgericht [BVerwG], July 7, 2011, docket no. 10 C 26.10, ECLI:DE:BVerwG:2011:070711U10C26.10.0, para. 33, <https://perma.cc/EF8V-3FUV> (original), <https://perma.cc/96QJ-5FUZ> (English translation).

¹³ Asylgesetz [AsylG], Sept. 2, 2008, Bundesgesetzblatt [BGBl.] I at 1798, as amended, <https://perma.cc/NMZZ-AV8Z> (original), <https://perma.cc/47U5-NB87> (English translation, updated through Mar. 1, 2016); Aufenthaltsgesetz [AufenthG], Feb. 25, 2008, BGBl. I at 162, as amended, <https://perma.cc/2W8D-LTAF> (original), <https://perma.cc/NX2X-WFDB> (English translation, updated through Feb. 17, 2020).

¹⁴ Asylbewerberleistungsgesetz [AsylbLG], Aug. 5, 1997, BGBl. I at 222, as amended, <https://perma.cc/N557-74J5>; Sozialgesetzbuch (SGB) - Achtes Buch (VIII) - Kinder- und Jugendhilfe [SGB 8], Sept. 11, 2012, BGBl. I at 2022, as amended, <https://perma.cc/PG5T-5QR7>.

¹⁵ AsylbLG, § 6, para. 2.

¹⁶ SGB 8, §§ 42–42f.

¹⁷ Id. § 7, para. 1.

¹⁸ Id. § 42a, para. 1.

in the case of unaccompanied minors, the Member State responsible is the one where a family member or a sibling of the unaccompanied minor is legally present, or in the absence of a family member or sibling, where a relative, meaning an aunt, uncle, or grandparent, is legally present. If they are present in more than one Member State, the best interests of the child must be the guiding principle in making a decision.¹⁹ In the absence of a family member, a sibling, or a relative, the Member State responsible is the one where the unaccompanied minor has lodged an asylum application.²⁰

B. The Concept of Safe Country of Origin and Safe Third Country

Safe countries of origin are the Member States of the EU and the countries contained in annex II of the German Asylum Act.²¹ The list is reviewed every two years and can be amended by the federal government without the consent of the German Bundesrat.²² It currently lists eight countries.²³ The designation as a safe country of origin allows the accelerated processing of applications from asylum seekers from these countries, because there is a presumption that the application is manifestly without merit.²⁴ In such a case, the applicant has only one week to leave the country instead of the usual thirty days.²⁵ There are no specific provisions with regard to unaccompanied minors. The 2013 EU Asylum Procedures Directive, which has direct effect in Germany, does not prohibit using an accelerated procedure or an asylum procedure at the border or in transit zones if the unaccompanied minor comes from a safe third country.²⁶

IV. Protection Offered to Unaccompanied Minors

A. Visas

In general, while an asylum application or an application for a residence title is pending, applicants are allowed to remain in Germany until a decision is made.²⁷ In addition, if the EU's Temporary Protection Directive – which creates procedures to address a mass influx of displaced persons – is triggered, unaccompanied minors are granted an EU harmonized protection status for a period of one year and must be provided with the necessary residence permits and visas, including transit visas, for the period of their stay.²⁸

¹⁹ Id. art. 8, para. 3.

²⁰ Id. art. 8, para. 4.

²¹ AsylG, § 29a, para. 2, annex II.

²² Id. § 29a, paras. 3, 4.

²³ The countries are Albania, Bosnia and Herzegovina, Ghana, Kosovo, Macedonia, Montenegro, Senegal, and Serbia.

²⁴ AsylG, § 29a, para. 1, § 30a, para. 1.

²⁵ Id. § 36, para. 1, § 38, para. 1.

²⁶ Asylum Procedures Directive, art. 25, para. 6. For more information see the introduction and the EU survey.

²⁷ AsylG, § 55, para. 1; AufenthG, § 81, para. 3.

²⁸ Temporary Protection Directive, arts. 4, 8, 2001 O.J. (L 212) 12, <https://perma.cc/MCB2-AAAW>. Further information on this directive appears in the EU survey in this report.

B. Role of Child Protection Agencies

1. Preliminary Care of the Unaccompanied Minor

Once an unaccompanied minor arrives in Germany and is identified as such, he or she is taken into preliminary care by the youth welfare office.²⁹ The youth welfare office together with the unaccompanied minor must ascertain

- whether conducting the national distribution procedure (discussed below) would endanger the best interests of the child;
- whether the unaccompanied minor has relatives in Germany or abroad;
- whether the best interests of the child require jointly taking of siblings or other unaccompanied minors into care;
- whether the health of the unaccompanied minor prevents performing the national distribution procedure within 14 days of the start of the preliminary care, based on a medical examination that must be performed.³⁰

Regarding the national distribution procedure, the youth welfare office within seven working days must inform the competent state authority in charge of distributing unaccompanied minors in Germany that the minor was taken into preliminary care and whether he or she will participate in the distribution process.³¹ Unaccompanied minors are distributed among the different German states according to a quota system, the *Königsteiner Schlüssel*, to distribute the burden evenly.³² The competent state authority must notify the German Federal Office of Administration (Bundesverwaltungsamt, BVA) within three working days of the participation or nonparticipation of the unaccompanied minor in the distribution process.³³

If the youth welfare office determines the unaccompanied minor should participate in the distribution process, it must ensure that the minor is accompanied by a qualified person to the local welfare office in charge of caring for the minor and that the local office receives all of the minor's personal data immediately.³⁴

If there is doubt as to the identity of the unaccompanied minor, the youth welfare office must perform identity verification measures without undue delay, such as taking photographs and fingerprints.³⁵ For foreigners under 14, only photographs are taken.³⁶ In addition, an age

²⁹ SGB 8, § 42a, para. 1.

³⁰ Id. § 42a, para. 2.

³¹ Id. § 42a, para. 4.

³² Id. §§ 42b, 42c.

³³ Id.

³⁴ Id. § 42a, para. 5.

³⁵ Id. § 42a, para. 3a; AufenthG, § 49, paras. 8, 9.

³⁶ AufenthG, § 49, paras. 8, 9.

verification must be performed.³⁷ If a medical examination is necessary for such verification, the youth welfare office must provide full information to the unaccompanied minor regarding the procedure, the potential consequences of the age determination, and the consequences of a refusal to have the examination performed.³⁸

2. Regular Care of the Unaccompanied Minor

Once the youth welfare office in charge of taking regular care of the unaccompanied minor has been determined and has received him or her, the office has the power to place the minor with a suitable person, a suitable institution, or other suitable accommodation on a temporary basis.³⁹ In addition, the youth welfare office must ensure the best interests of the child are met, including healthcare and monetary support.⁴⁰

C. Legal Representation

The youth welfare office has the right and the duty to represent the unaccompanied minor in legal matters while he or she is in preliminary care.⁴¹ The minor must be involved in making decisions, and the presumed wishes of the legal guardian or caretaker must also be taken into account.⁴² Likewise, the youth welfare office in charge of the regular care of the unaccompanied minor is authorized to represent him or her, taking into account the presumed wishes of the legal guardian or caretaker.⁴³ This includes, in particular, immediately submitting an application for asylum if the minor needs international protection.⁴⁴ The minor must be involved.⁴⁵

A legal guardian for the unaccompanied minor must be appointed immediately after the regular care has started.⁴⁶ The local youth welfare office may be appointed as legal guardian.⁴⁷ In 2015, the age of legal capacity to act in asylum and residence procedures was raised from sixteen to eighteen years, meaning that every foreigner under the age of 18 must have a legal guardian to act on his or her behalf and to handle the complex asylum procedure.⁴⁸

³⁷ SGB 8, § 42f.

³⁸ Id. § 42f, para. 2.

³⁹ Id. § 42, para. 1, sentence 2.

⁴⁰ Id. § 42, para. 2, sentence 3.

⁴¹ Id. § 42a, para. 3.

⁴² Id.

⁴³ Id. § 42, para. 2, sentence 4.

⁴⁴ Id. § 42, para. 2, sentence 5.

⁴⁵ Id.

⁴⁶ Id. § 42, para. 3, sentence 4.

⁴⁷ Bürgerliches Gesetzbuch [BGB], Jan. 2, 2002, BGBl. I at 42, 2909; corrected in BGBl. 2003 I at 738, as amended, § 1774, <https://perma.cc/UMW2-3AZR>.

⁴⁸ AsylG, § 12; AufenthG, § 80.

V. Detention and Repatriation of Unaccompanied Minors

A. Detention

The Residence Act provides that minors and families with minors should only be detained in exceptional circumstances and only for as long as necessary without endangering the well-being of the child.⁴⁹ In addition, the needs of persons their age must be taken into account, in accordance with article 17 of the EU Return Directive.⁵⁰

B. Return

Unaccompanied minors who are determined to be ineligible for protection can either return to their country of origin voluntarily or they can be removed by the authorities (forced return). There are two programs for the voluntary return of foreigners that are open to unaccompanied minors in Germany: the Reintegration and Emigration Program for Asylum Seekers in Germany (REAG) and the Government Assisted Repatriation Program (GARP). The programs are organized and managed by the International Organisation for Migration (IOM) and provide applicants with organizational and financial support.⁵¹ A 2018 study by the European Migration Network reported that 80 unaccompanied minors departed with the REAG/GARP program in 2017 and 170 in 2016.⁵² In addition, several German states offer support for voluntary returns through various return programs.⁵³

The German Residence Act only deals with the removal (forced return) of unaccompanied minors.⁵⁴ It provides that the competent authority must ensure that unaccompanied foreign minors are returned to a family member, to a person having the right of care and custody, or to an appropriate reception center.⁵⁵ If this cannot be ensured, the removal must be suspended. In 2022, 2,141 unaccompanied minors were returned following unauthorized entry at the border.⁵⁶ Between 2019 and 2022, the total number was 3,294.⁵⁷ Furthermore, 2,196 minors total were deported; however, the statistics do not differentiate between accompanied and unaccompanied minors.⁵⁸

⁴⁹ AufenthG, § 62, para. 1.

⁵⁰ Id. § 62a, para. 3; Return Directive, 2008 O.J. (L 348) 98, <https://perma.cc/S2X5-42TQ>. For more information on the EU Return Directive, see the EU survey.

⁵¹ For more information see REAG/GARP, Federal Office for Migration and Refugees (BAMF)/International Organization for Migration (IOM) Germany, <https://perma.cc/4J3V-8UZ5>.

⁵² Tangermann & Hoffmeyer-Zlotnik, *Unaccompanied Minors in Germany. Challenges and Measures after the Clarification of Residence Status. Focused Study by the German National Contact Point for the European Migration Network (EMN)* 69 (Mar. 2018), <https://perma.cc/Y73P-FUCZ>.

⁵³ *Programmes of the Federal States*, BAMF/IOM, <https://perma.cc/B5JP-T3RD>.

⁵⁴ AufenthG, § 58, para. 1a.

⁵⁵ Id.

⁵⁶ Id. § 57; Deutscher Bundestag Drucksache [BT-Drs.] 20/5674, at 7, <https://perma.cc/N23D-2BE6>.

⁵⁷ BT-Drs. 20/5764, *supra* note 56, at 7.

⁵⁸ BT-Drs. 20/5795, at 9, <https://perma.cc/P5RF-YT6C>.

VI. Resettlement and Integration Programs

A. Relocation and Resettlement

Between 2012 and 2014 on a pilot basis and since 2015 on a permanent basis, Germany has participated in resettlement programs.⁵⁹ The program initially offered 500 spots per year. Since 2016, it is conducted within the framework of the EU resettlement program. In 2023, Germany will provide 6,500 spots for resettled refugees and for humanitarian purposes.⁶⁰ The level of special protection needed must be a consideration in selecting people for resettlement, meaning priority is given to children, women, and old or sick people.⁶¹

Resettlement refugees are granted temporary residence permits after they enter Germany and do not need to apply for asylum.⁶² The Federal Office for Migration and Refugees coordinates the program and distributes the resettlement refugees among the states.⁶³ In 2017, children under the age of 18 made up 46% of resettlement refugees.⁶⁴

B. Integration

The German Basic Law (Grundgesetz, GG) places education within the competency of the 16 German states.⁶⁵ The Federal Constitutional Court (Bundesverfassungsgericht, BVerfG) has interpreted article 7 (school system) as a duty to attend school. Furthermore, in 2021, the court found, for the first time, that children have a constitutional right to education, which is derived from article 2, paragraph 1 (free development of one's personality) in conjunction with article 7, paragraph 1 of the Basic Law.⁶⁶ Articles 2 and 7 are not limited to German nationals and therefore also apply to foreign unaccompanied children. However, the different German states regulate access to education differently. For example, in some German states compulsory education only

⁵⁹ *Resettlement und humanitäre Aufnahmen*, Bundesministeriums des Innern und für Heimat [BMI], <https://perma.cc/EYA5-4EJF>.

⁶⁰ Id.; Anordnung des Bundesministeriums des Innern und für Heimat für das Resettlement-Verfahren 2023 gemäß § 23 Abs. 4 des Aufenthaltsgesetzes (AufenthG) zur Aufnahme besonders schutzbedürftiger Flüchtlinge unterschiedlicher Staatsangehörigkeit oder staatenloser Flüchtlinge aus Ägypten, Jordanien, Kenia, Libanon, Libyen, und Pakistan sowie bis zu 50 besonders schutzbedürftiger Flüchtlinge aus weiteren Staaten, Feb. 15, 2023, at 1, <https://perma.cc/P2BJ-S3KV>.

⁶¹ Anordnung des BMI, *supra* note 60, at 3.

⁶² AufenthG, § 23, para. 4.

⁶³ Id. § 75, no. 8.

⁶⁴ Tatjana Baraulina & Maria Bitterwolf, *Resettlement in Germany – What is the Programme for Particularly Vulnerable Refugees Accomplishing?* BAMF Brief Analysis 5 (June 2018), <https://perma.cc/BGG6-H5P2>.

⁶⁵ Grundgesetz [GG], May 23, 1949, BGBl. I at 1, as amended, arts. 30, 70, <https://perma.cc/BP2A-UPMB> (original), <https://perma.cc/M6RV-QRHV> (English translation, updated through June 28, 2022).

⁶⁶ BVerfG, Nov. 19, 2021, docket no. 1 BvR 971/21, <https://perma.cc/3J85-S9BP> (original), <https://perma.cc/QJP8-LPAN> (English translation); see also Jenny Gesley, *Germany: Constitutional Court Rejects Challenge to Pandemic Prohibition of In-Person Classes; Finds Constitutional Right to Education*, Global Legal Monitor (Dec. 14, 2021), <https://perma.cc/5ZNG-YS4C>.

applies after a few months of residency, such as in Baden-Württemberg,⁶⁷ while in others it applies directly after being assigned to a municipality or after being taken into care, such as in North Rhine-Westphalia,⁶⁸ or directly after entering Germany or applying for asylum, such as in Berlin.⁶⁹

Some states have introduced special classes or programs to help “students with a migration background,” such as preparatory classes or additional language courses. The state of Saarland, for example, offers one-year long preparatory classes to students with a migration background “to facilitate and accelerate their integration into the school” before they can attend regular classes.⁷⁰ The focus is on learning the German language. The preparatory class generally consists of around eight students who speak the same or a different language.⁷¹ Classes in their native language are possible.⁷²

Once unaccompanied minors are no longer subject to compulsory education, they may apply for vocational training or enter the general job market. The Federal Ministry of Education and Research (BMBF) offers a 26-week long career orientation for young refugees to provide them with

detailed insights into training occupations in the craft trades sector. Throughout the whole of the scheme, they learn specialist terminology and knowledge for the training occupation they aspire to enter and receive individual assistance from a project support worker. The “Career Orientation for Refugees” Programme takes place in workshops and at companies.⁷³

This is part of the “Routes into training for refugees” program, which includes other measures offered by the BMBF, the Federal Employment Agency, and the German Confederation of Skilled Crafts to facilitate the integration of young refugees in Germany.⁷⁴

⁶⁷ Schulgesetz für Baden-Württemberg [SchG], Aug. 1, 1983, Gesetzblatt für Baden-Württemberg [GBl.] 1983, at 397, as amended, § 72, para. 1, sentence 3, <https://perma.cc/Z6EK-QF33>. The duty to attend school starts six months after moving to Germany from abroad.

⁶⁸ Schulgesetz für das Land Nordrhein-Westfalen [Schulgesetz NRW, SchulG], Feb. 15, 2005, Gesetz- und Verordnungsblatt Nordrhein-Westfalen [GV. NRW.] at 102, as amended, § 34, para. 6, <https://perma.cc/5PD9-37R3>. The duty to attend school for children of asylum applicants and unaccompanied minors who have applied for asylum starts once they have been assigned to a specific municipality.

⁶⁹ Schulgesetz für das Land Berlin [Schulgesetz, SchulG], Jan. 26, 2004, Gesetz- und Verordnungsblatt Berlin [GVBl.] 2004, at 26, as amended, § 41, para. 2, <https://perma.cc/H8WT-KLLS>.

⁷⁰ Verordnung zum Unterricht für ausländische Kinder, Jugendliche und Heranwachsende sowie Schüler und Schülerinnen mit Migrationshintergrund, Nov. 24, 2009, Amtsblatt I 2009, at 1818, as amended, § 3, para. 1, <https://perma.cc/3PZZ-HMC6>.

⁷¹ Id. § 3, para. 2.

⁷² Id. § 8.

⁷³ *Career Orientation for Refugees*, BIBB, <https://perma.cc/8X4P-QWS6>.

⁷⁴ Id.

VII. Family Reunification

There are two types of family reunifications, one according to welfare law and one according to asylum and residence law. As mentioned, once an unaccompanied minor arrives in Germany and is identified as such, he or she is taken into (preliminary) care by the youth welfare office.⁷⁵ The youth welfare office must ascertain whether the unaccompanied minor has relatives in Germany or abroad.⁷⁶ If this is the case, the youth welfare office must work towards uniting the unaccompanied minor with the relative if this is in his or her best interests.⁷⁷ The child must be given an opportunity to participate in the transfer and the decision to reunite the family.⁷⁸

As also mentioned, if the unaccompanied minor applies for asylum, the EU Member State in charge of processing the asylum application is the one in which a family member or a sibling of the unaccompanied minor is legally present, or in the absence of a family member, where a relative is legally presents.⁷⁹ Tracing the family of the unaccompanied minor is therefore a first step in determining the responsible Member State.

Furthermore, parents of unaccompanied minors who have been granted certain residence titles listed in section 36 of the Residence Act must be issued a temporary residence permit to move to Germany.⁸⁰ Other family members may be granted a temporary residence permit if it would otherwise constitute extraordinary hardship.⁸¹ The Federal Administrative Court (Bundesverwaltungsgericht, BVerwG) has opined that extraordinary hardship means

exceptional cases in which a refusal of the right of residence and therefore of preservation of the family unit would contradict fundamental concepts of justice in the light of article 6 (1) and (2) of the Basic Law and article 8 of the European Convention on Human Rights, and would therefore be simply indefensible. An extraordinary hardship in this sense fundamentally presupposes that the family member in need of protection is unable to survive independently, but must necessarily rely on the family's assistance, and that such assistance can reasonably be provided only in Germany.⁸²

However, if the unaccompanied minor has only been granted temporary protection status, granting a residence permit to the parents is discretionary.⁸³ The law provides a non-exhaustive

⁷⁵ SGB 8, § 42, para. 1, sentence 1, no. 3, § 42a.

⁷⁶ Id. § 42a, para. 2, sentence 1, no. 2.

⁷⁷ Id. § 42a, para. 5, sentence 2.

⁷⁸ Id. § 42a, para. 5, sentence 3.

⁷⁹ Dublin III Regulation, art. 8.

⁸⁰ AufenthG, § 36, para. 1. A temporary residence permit is one type of residence title. For a list of all residence titles, see AufenthG, § 4.

⁸¹ Id. § 36, para. 2.

⁸² BVerwG, July 30, 2013, docket no. 1 C 15.12, paras. 11, 12, <https://perma.cc/U4QH-HBDU> (original), <https://perma.cc/44EH-TUDP> (English translation); GG, art. 6; European Convention on Human Rights [ECHR], Nov. 4, 1950, 213 U.N.T.S. 221, art. 8, <https://perma.cc/8HJN-RVC4>.

⁸³ AufenthG, § 36a, para. 1, sentence 2.

list of reasons to grant such a discretionary residence permit for humanitarian reasons, such as if living together as a family has not been possible for a long time.⁸⁴ The best interests of the child and integration aspects have to be taken into account.⁸⁵

⁸⁴ Id. § 36a, para. 2.

⁸⁵ Id. § 36a, para. 2, sentences 3, 4.

Greece

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SUMMARY Greece has recently reformed its laws concerning the reception, placement under guardianship, and accommodation of migrants and asylum seekers who are unaccompanied minors. The Greek international protection legislation provides procedural protections to unaccompanied minors by adopting the best interest of the minor as a general principle in making decisions, and under certain circumstances exempting unaccompanied minors from disadvantageous fast-track procedures for the examination of asylum applications. The law establishes a centralized database of qualified legal entities that act as “guardianship service providers,” from which guardians are appointed to unaccompanied minors. The law designates the Special Secretariat for the Protection of Unaccompanied Minors under the Ministry of Migration and Asylum as the competent body responsible for administering the rules regarding the accommodation and care of unaccompanied minors, in cooperation with the minor’s appointed guardian and other immigration and social services authorities. While guardianship service providers remain the legal guardian of the unaccompanied minor, the law provides for various options for the physical custody and daily care of the minor, including placement with a foster family, accommodation in a full-service long-term accommodation center, or accommodation in semi-independent living facilities for older minors. General rules regarding repatriation are applicable to unaccompanied minors if and when their asylum applications are denied, or their status terminated. Unaccompanied minors have been resettled in other European countries through a voluntary resettlement program funded by the European Union.

I. Introduction

The estimated number of migrants and asylum seekers who were unaccompanied minors (UAMs) and were first registered in Greece was around 2,220 in December 2021.¹ Following the events that lead to the 2015 European refugee crisis, the European Union (EU) started allocating funds to Greece for the improvement of the country’s capacity to receive, accommodate, and process the influx of asylum seekers, with more than 3.3 billion euros being provided as of September 2021.² Besides improving the country’s legal, administrative, and physical infrastructure for asylum management, a resettlement scheme was also created and funded by

¹ See Maria Margarita Mentzelopoulou, Eur. Parl. Rsch. Serv., PE 729.356, *Unaccompanied Migrant Children in Greece* 3 (Apr. 2022), <https://perma.cc/2XC9-Y6S7> (providing the number as 2,217 on Dec. 15, 2021, with an additional 211 awaiting registration); METAdrasi, *Integration of Unaccompanied Children in Greece: Opportunities, Challenges and Recommendations* 7 (2022), <https://perma.cc/K5U8-AG9Z> (providing the number of registered UAMs as 2,225 in December 2021). METAdrasi, a Greek nongovernmental organization that focuses on the implementation of programs regarding the reception and integration of refugees into Greek society, reports that the number was 4,048 on Jan. 15, 2020. METAdrasi, at 13.

² Mentzelopoulou, *supra* note 1, at 4; Eur. Comm’n, *Managing Migration: EU Financial Support to Greece* (Sept. 2021), <https://perma.cc/3VKA-8NJ5>.

the EU to distribute the effort to accommodate the influx among other European countries on a voluntary basis, in which 16 countries were participating as of October 2022.³

Greece, as an EU-member state, has broadly transposed the relevant EU laws concerning the reception, processing, and qualification of asylum seekers into its national legislation. Nevertheless, its location as a neighbor of Turkey, which hosts the greatest number of asylum seekers globally, has put a strain on its legal, administrative, and physical capacity to receive and accommodate the arrival of asylum seekers in high numbers. Greece responded with a rapid evolution of its asylum laws in the period between 2015 and the present, an overview of which will be provided in this report to the extent it is applicable to UAMs.

A. Legislative Framework

- The International Protection Code (IPC) provides the main legal framework establishing the rules and standards regarding the availability of asylum for third-country nationals or stateless persons in Greece.⁴ The provisions of the IPC concerning UAMs were recently reformed by Law 4960/2022.
- Law 4554/2018 on “guardianship of unaccompanied minors and other provisions” (LGUAM), which also amended Law 4960/2022, governs the process of the establishment of guardianship over UAMs and their placement with third parties, and creates the administrative framework for the appointment of guardians.⁵
- Ministerial Decision 9889/2020 issued by the Ministry of Migration and Asylum and the Ministry of Health governs the procedure for age determinations that are to be conducted in accordance with the IPC framework when there is doubt as to the age of an asylum seeker.⁶

B. Jurisdictional Responsibilities

- The Asylum Service of the Ministry of Migration and Asylum is the main authority responsible for receiving applications for asylum and determining whether or not the third-country national or stateless person will be recognized as a beneficiary of international protection.

³ See Part V.A, *infra*.

⁴ Code of Legislation on the Reception, International Protection of Third Country Nationals and Stateless Persons and Temporary Protection in the Event of a Mass Influx of Displaced Foreigners (IPC), Law 4939/2022, E.K.E.D. 2022, A:111, <https://perma.cc/K2R8-4J97> (in Greek), as amended by Law 4960/2022, E.K.E.D. 2022, A:145, <https://perma.cc/WDR5-5DS5> (in Greek). All subsequent citations to the IPC are to the IPC as amended by Law 4960/2022. The IPC recodifies Law 4636/2019, E.K.E.D. 2019, A:169, <https://perma.cc/7P68-3E3A> (in Greek), which transposed various provisions of European Union Directives 2011/95/EU, 2013/32/EU, and 2023/33/EU into Greek law. Third-country national is defined as “a natural person who is not a citizen of the European Union (EU) as defined in para. 1 Article 20 of the Treaty on the Functioning of the European Union, the Member States of the European Economic Area (EEA) and Switzerland.” IPC art. 1(μρ).

⁵ Law on Guardianship of Unaccompanied Minors and Other Provisions, Law 4554/2018, E.K.E.D. 2018, A:130, <https://perma.cc/3E8D-7H3H> (in Greek), as amended by Law 4960/2022, *supra* note 4.

⁶ Ministerial Decision 9889/2020, E.K.E.D. 2020, B:3390, <https://perma.cc/6LRP-HRUG> (in Greek).

- The Special Secretariat for the Protection of Unaccompanied Minors (SSPUAM) at the Ministry of Migration and Asylum is the administrative body responsible for administering the framework concerning the accommodation and care of UAMs in cooperation with a UAM's appointed guardian and other immigration and social services authorities.⁷

The Public Prosecutor's Office is responsible for appointing a guardian for the UAM after registration, determining the scope of the guardian's powers, and transferring the physical custody of the minor to a qualified responsible adult under certain circumstances.⁸ In a medical emergency, the public prosecutor may overrule an appointed guardian's decision made in good faith if the physician responsible for the minor's treatment so requests.⁹

II. Defining Unaccompanied Minors

For the purposes of Greek immigration and asylum law, an "unaccompanied minor" is defined as

a minor who arrives in Greece without being accompanied by a person who exercises, in accordance with Greek law, his/her parental care or guardianship or by an adult relative who in practice exercises his/her care and for as long as the exercise of these duties has not been assigned to another person in accordance with the law. This definition also includes the minor who ceases to be accompanied after entering Greece.¹⁰

The law makes a distinction between an unaccompanied minor and a "minor separated from his/her family" (or "separated minor"). The latter is defined as

a minor who arrives in Greece without being accompanied by a person exercising his/her parental care in accordance with Greek legislation or by another person to whom it has been assigned according to the law, but accompanied by an adult relative who in practice takes care of him/her.¹¹

In this report, the term "UAM" will be used to include both categories of minors, unless otherwise indicated.

III. Restrictions on Claiming Asylum

Article 89 of the IPC provides the grounds on which an application for international protection must be rejected as inadmissible. Rejection on the basis of inadmissibility precludes the application from being examined for its merits under articles 3-9 of the IPC, which provide the substantial requirements for a finding of a well-founded fear of prosecution. The existence of a "first country of asylum" in which the applicant has received international protection or in which

⁷ See Part III *infra* for an overview of the protections provided to UAMs under the law, including the role of the SSPUAM.

⁸ IPC arts. 66 IA; 64(2).

⁹ *Id.* art. 66Δ.

¹⁰ IPC, art. 1(m).

¹¹ *Id.* art. 1(n).

asylum procedures must continue in accordance with EU law, or the existence of another country that would be considered safe for the applicant (“safe third country”) are considered bases for inadmissibility. The other two grounds of inadmissibility are the submission of a repeat application that does not show the existence of any new material elements, and the existence of a prior application that was made on the applicant’s behalf by a family member.¹²

A. First Country of Asylum

The IPC provides that an application for international protection must be found inadmissible if the applicant was already granted international protection by an EU member state, or a third country that is considered a first country of asylum under the law. The application must be considered inadmissible also if another EU member state or state bound by EU law has assumed responsibility for examining the international protection application under Regulation (EU) 604/2013, which governs the allocation among EU member states and states bound by EU law of the responsibility for examining applicants for international protection.

The IPC defines a “first country of asylum” as follows:

A country shall be considered as the first country of asylum for the applicant on condition that he or she is readmitted to that country if he or she has been recognised as a refugee by it and still enjoys the relevant protection or enjoys other adequate protection in that country, including by benefiting from the principle of non-refoulement.¹³

While “first country of asylum” is provided as a discrete ground for inadmissibility, the Greek Council for Refugees (GCR) has reported on the basis of its communication with asylum authorities that it is not used as a stand-alone ground of inadmissibility in practice and that no applications were rejected solely on this ground in 2021.¹⁴

B. Safe Third Country

The “safe third country” concept is an important restriction on the availability of international protection because

- it is a ground for inadmissibility and thus may lead to summary rejection of an application without an examination of specific merits of a claim to well-founded fear to return,
- the government may designate a country generally “safe” without needing to determine whether the country is specifically safe for the applicant (though the applicant has the right to object to the application of the determination to his specific case),¹⁵ and

¹² IPC art. 89.

¹³ IPC art. 90.

¹⁴ Greek Council for Refugees (GCR), *AIDA Asylum Information Database Country Report: Greece, 2021 Update* 146-47 (2022), <https://perma.cc/W8DJ-XRY3>.

¹⁵ IPC art. 91(2), (3).

- the law provides broad grounds for showing that the applicant has a personal connection to the safe third country, which must be shown for the concept to apply to the applicant.

The IPC provides the following detailed definition of “safe third country” and the applicant’s personal connections to the country that must be shown for the application to be found inadmissible on safe third country grounds:

Article 91

Safe third countries

1. A country shall be considered as a safe third country for a particular applicant, when the following criteria are cumulatively met:

a) his life and freedom are not threatened because of race, religion, nationality, membership in a particular social group or political beliefs,

b) that country observes the principle of non-refoulement, in accordance with the Geneva Convention,

c) there is no risk of serious harm to the applicant according to article 14 of this Code,

d) that country prohibits the removal of someone to a country where he or she would be at risk of being subjected to torture or cruel, inhuman or degrading treatment or punishment, as defined in international law;

e) there is the possibility to request refugee status, and in the event that the applicant is recognized as a refugee, to be granted protection in accordance with the Geneva Convention and

f) the applicant has a link with the third country in question, on the basis of which it would be reasonable for him to go there. The applicant’s passage through a third country may, in combination with specific circumstances concerning him, in particular i) the time of his stay there, ii) possible contact or objective and subjective possibility of contact with the authorities, for access to work or the granting of a right of residence, iii) possible, prior to transit, residence, such as indicative long-term visits or studies, iv) existence of any even distant family ties, v) existence of social or professional or cultural relations, vi) existence of property, vii) connection with a wider community, viii) knowledge of the relevant language, ix) geographical proximity of the country of origin, to be considered as a link of the applicant with the third country,

2. The fulfillment of the above criteria is examined on a case-by-case basis and for each applicant separately, unless the third country has been characterized as generally safe and is included in the national list of safe third countries. . . .¹⁶

Article 91(2) of the IPC further provides that, if the safe third country is determined to be generally safe by a governmental decision, the applicant may object to the application of that determination to his or her specific case; however, the applicant has the burden to cite the reasons why the determination should not be applicable.

¹⁶ IPC art. 91(1)-(2).

An important development was the Greek government's decision in 2021 to consider Turkey a safe third country for asylum seekers originating from Syria, Afghanistan, Pakistan, Bangladesh, and Somalia, leading to a great increase of inadmissibility decisions being issued for such asylum seekers on the grounds of the safe third country concept.¹⁷

C. Exceptions for Unaccompanied Minors

UAMs are not excepted from the application of the grounds of inadmissibility to their applications. UAMs, however, do enjoy certain procedural protections in the form of being exempted in some circumstances from being processed under the three special fast-track examination procedures which are, primarily due to abbreviated timeframes, generally disadvantageous for applicants. The three special procedures are

- the “accelerated” procedure, which is applicable when the application or the applicant demonstrates certain features that *prima facie* indicate the weakness or frivolity of the application,¹⁸
- the “border” procedure, which is applicable where the application was lodged at the border or in transit zones of ports of entry and the applicant is held in reception centers or closed facilities while his application is examined on both its admissibility and its merits in an expedited timeline not exceeding 28 days (the applicant is released if a decision cannot be rendered in 28 days and the application transfers to the regular procedure) and the law provides that asylum seekers in the “border” procedure enjoy the same guarantees as those who have applied in the mainland and to which the regular procedure applies,¹⁹ and
- the “fast-track border” procedure, whereby the registration and related paperwork, including notifications of decisions and receipt of appeals, may be conducted by the Hellenic Police or the Armed Forces, and the asylum is conducted in practice by personnel deployed by the European Union Agency for Asylum (but may be conducted, if needed, by the police or members of the armed forces with the necessary training).²⁰ The “fast-track border” procedure also has a severely expedited timeline, with the Asylum Service having to issue a first instance decision in seven days, which must be appealed within 10 days; and the appeal must be examined within four days of filing and a decision must be issued within seven days of the appeal hearing.²¹

The “fast-track border” procedure appears to apply to asylum seekers arriving in the Greek Eastern Aegean Islands after the adoption of the EU-Turkey Statement of March 18, 2016, whereby Turkey agreed to accept rapid return of irregular migrants not in need of international protection (including those whose asylum application was denied) who have crossed from Turkey into Greece or in Turkish waters, in exchange for EU funds for refugee management in

¹⁷ GCR, *supra* note 14, at 137.

¹⁸ IPC art. 88(9).

¹⁹ *Id.* art. 95(1)-(2).

²⁰ *Id.* art. 95(3)(b); GCR, *supra* note 14, at 94.

²¹ IPC art. 95(3)(c); GCR, *supra* note 14, at 94-95.

Turkey and a 1-to-1 relocation scheme whereby the EU agreed to take one Syrian migrant for each Syrian migrant returned to Turkey.²² According to the GCR, the fast track border procedure

may result—and it often has—in compromising the procedural guarantees provided by the international, European and national legal framework, including the right to be assisted by a lawyer. As these extremely brief time limits undoubtedly affect the procedural guarantees available to asylum seekers subject to an accelerated procedure, as such, there should be an assessment of their conformity with Article 43 of the recast [EU] Asylum Procedures Directive, which does not permit restrictions on the procedural rights available in a border procedure for reasons related to large numbers of arrivals.²³

UAMs under 15 years of age, or those UAMs who are victims of human trafficking, torture, rape or other serious forms of psychological, physical or sexual violence are exempted from all special procedures; their applications must be always examined under the regular procedure.²⁴ UAMs who do not fall under this category are not categorically exempted from the three types of special procedures that exist in the IPC, and may have their applications examined under the special procedures mentioned above.

The IPC does not exempt UAMs from the application of these special procedures when they are applied on the grounds of the existence of a safe third country, while UAMs are exempted when the procedures are applied on the basis of various other grounds.²⁵ Nevertheless, the IPC provides that the special procedures on this basis may be applied to a UAM only when they are in the best interest of the minor.²⁶

IV. Protection Offered to Unaccompanied Minors

A. Visas

A special visa regime exists for persons, including UAMs, who are considered to be victims of human trafficking or actions facilitating illegal immigration and who cooperate with competent authorities for the prosecution of such actions.²⁷ The application of this regime is discretionary.²⁸

²² GCR, *supra* note 14, at 93; Press Release, Eur. Council, EU-Turkey Statement (Mar. 18, 2016), <https://perma.cc/TM7F-XE5N>.

²³ GCR, *supra* note 14, at 94.

²⁴ IPC art. 80(7).

²⁵ *Id.* art. 95(1)-(3).

²⁶ *Id.* art. 95(4)(d).

²⁷ Immigration and Social Integration Code and Other Provisions, Law 4251/2014, E.K.E.D. 2014, A:80, arts. 49-56, <https://perma.cc/626B-CFM3> (in Greek) (transposing Directive 2014/81/EC, 2014 O.J. (L 261) 19, <https://perma.cc/6Q9Y-GBY2>). Note that Law 4251/2014 will be superseded by the recently passed Immigration Code, Law 5038/2023, E.K.E.D. 2023, A:81, <https://perma.cc/WJW8-28J4> (in Greek), when it enters into force on January 1, 2024. Articles 135-142 of Law 5038/2023 provide for the same visa regime, in accordance with EU law.

²⁸ See Law 4251/2014 art. 49.

B. Legal Representation

The system for the legal representation of UAMs was recently reformed by Law 4960/2022.

The SSPUAM is the competent authority responsible for ensuring that the UAM is put under guardianship and for supervising the implementation of the guardianship.²⁹

Law 4960/2022 creates a National Guardianship System for Unaccompanied Minors (System) from which a registered guardian is appointed to the UAM, taking into account the best interests of the minor in light of the personal characteristics and circumstances of the minor and respecting his or her personal social, religious, and intercultural needs.³⁰ Guardians are appointed by the public prosecutor, in principle from among guardianship service providers (GSPs) that are registered in the System.³¹ The IPC provides a list of legal persons that can be registered in the System as a GSP, which includes legal entities under public law, local government organizations, state legal persons governed by private law, civil nonprofit associations, public benefit foundations, civil nonprofit companies, civil society organizations, foreign nongovernmental organizations with branches in Greece, and international organizations.³² The IPC provides rules regarding the selection of GSPs by the Ministry of Migration and Asylum for inclusion in the System, the applicable tendering and contracting procedures, and the funding of the System.³³ Guardian entities perform their duties of representation through guardianship officers, who must be qualified employees of the guardian entities.³⁴ The Guardianship Board for Unaccompanied Minors established within the Ministry of Migration and Asylum has the power to review complaints concerning the guardianship services and decide on disagreements arising between a guardian and a UAM or between a guardian and the staff of the accommodation facility or other persons to whom the UAM was entrusted for daily care, such as foster parents, adult relatives, or close acquaintances.³⁵

The appointed guardian holds the custody of the UAM, and is responsible for the UAM's representation in matters of civil status and in assisting the UAM in matters relating to property.³⁶

In fulfilling its duties as holder of custody, the guardian must seek and determine a place of safe and appropriate accommodation for the UAM in cooperation with the SSPUAM, ensure the UAM's access to medical care and the obtaining of necessary health care and social security registration numbers for the UAM, take any action necessary for the enrollment of the UAM in education and training (including formal, nonformal, and vocational), and make the necessary

²⁹ IPC art. 65(1), 65(2)(b).

³⁰ Id. art. 66B.

³¹ Id. art. 66IA(1)-(2).

³² Id. art. 66H(1).

³³ Id. arts. 66H(3)-(5); 66Θ.

³⁴ Id. art. 66IA.

³⁵ Id. art. 66S(4).

³⁶ Id. art. 66Γ.

arrangements for the daily care and supervision of the UAM, including arranging the placement of the UAM with a foster family or an adult relative for this purpose.³⁷

The guardian has the power and duty to represent the UAM in any legal transaction where direct legal representation is allowed, in procedures related to international protection, immigration, and social integration, and in any other administrative and judicial procedure, including in the obtaining of a lawyer's representation or free legal aid.³⁸ The guardian also must assist the UAM in accessing social protection benefits, participating in economic life and employment and registration with the social security system and the tax system, and accessing banking services.³⁹ The guardian must also, if authorized by the public prosecutor, take care and administer the property of the UAM, including bringing actions in the name of the minor if necessary.⁴⁰

C. Role of Child Protection Agencies

Any competent authority that detects the entry into the territory of a UAM must immediately inform the SSPUAM, or the nearest public prosecutor's office.⁴¹ Following the identification and registry of the UAM by the Reception and Identification Service or the police, the UAM must be placed by the SSPUAM in a special accommodation center that is appropriate for the age and circumstances of the UAM, or the SSPUAM and the public prosecutor may decide to immediately assign the UAM to an adult blood relative up to the third degree or to a person in the UAM's friendly environment for day-to-day care, if this serves the best interest of the minor.⁴²

The SSPUAM ensures that special accommodation centers and accompanying services are available for UAMs. The IPC provides for two main types of special accommodation centers, namely, long-term and emergency accommodation facilities. Long-term accommodation facilities consist of Accommodation Centers for Unaccompanied Minors (for ages 6-18), which are integrated care centers that offer a wide range of services such as accommodation, food, psychosocial support, healthcare, legal aid, educational activities and vocational training, interpretation, financial support under a funded program, clothing, and personal hygiene; and Supervised Semi-Independent Living Apartments where UAMs who are at least 16 years old and do not have circumstances that require close supervision may be placed and receive services such as accommodation, certain material benefits, financial assistance, psychosocial support, interpretation, assistance in access to education, vocational training and the labor market, legal aid, and access to healthcare.⁴³ Long-term special accommodation facilities may be operated by

³⁷ Id. art. 66Δ.

³⁸ Id. art. 66E.

³⁹ Id. art. 66ΣΤ.

⁴⁰ Id.

⁴¹ Id. art. 64(1).

⁴² Id. art. 64(2).

⁴³ Id. arts. 66ΚΣΤ; 66ΚΖ.

the same types of noncommercial legal entities that can be registered in the System as a GSP.⁴⁴ SSPUAM is responsible for the supervision of long-term accommodation facilities, and examining and deciding accommodation requests that are filed by GSPs for the placement of UAMs under their guardianship in appropriate accommodation facilities.⁴⁵

SSPUAM is also responsible for identifying and immediately placing in emergency accommodation facilities UAMs who are homeless or are living in precarious circumstances.⁴⁶

V. Detention and Repatriation of Unaccompanied Minors

A. Administrative Detention During Application Process

Article 52 of the IPC provides that UAMs should be detained only in exceptional circumstances and never in correctional facilities. The detention, if necessary because alternative and less restrictive measures cannot be applied, must be kept as short as possible, and every effort should be made to refer the minor to accommodation centers that are suitable for minors. The minor must always be held separately from adults. The law limits the allowable detention period to 25 days, after which the UAM must be transferred to an accommodation center. All decisions regarding detention must be made considering the best interest of the minor. While in detention, minors must be provided with opportunities to engage in leisure activities, including games and educational and recreational activities appropriate to their age.⁴⁷

B. Removal Detention

The law provides for removal detention as a last resort. According to the generally applicable rules, an asylum seeker whose application is denied is generally given from seven to 30 days for his or her voluntary departure after the removal decision is finalized.⁴⁸ This period may be extended to a maximum of one year, depending on the specific circumstances of the case.⁴⁹ Removal detention and coerced removal apply only after the prescribed period for voluntary departure expires.⁵⁰

The law nevertheless provides certain protections for UAMs. Accordingly, before a removal decision is rendered, the bodies responsible for the care of the UAM must be given an opportunity

⁴⁴ Id. art. 66KH. For example, according to its 2022 report, METAdrasi operated 14 supervised semi-independent living apartments by 2021 that had hosted 173 beneficiaries since 2018. See METAdrasi, *supra* note 1, at 8.

⁴⁵ IPC art. 66ΛΑ; 66Λ.

⁴⁶ Id. art. 66ΛΓ.

⁴⁷ Id. art. 51.

⁴⁸ Id. art. 51(1); Law 3907/2011, E.K.E.D. 2011, A:7 (transposing Directive 2008/115/EC “on common standards and procedures in Member States for returning illegally staying third-country nationals” into Greek law), art. 22, <https://perma.cc/6CZP-9VGX> (in Greek).

⁴⁹ Law 3907/2011 art. 22(2).

⁵⁰ Id. art. 23.

to provide assistance, and the best interest of the minor must be given due consideration.⁵¹ Moreover, before removing an unaccompanied minor from the country, the competent authorities must verify that he or she will be returned to a family member, a designated guardian, or appropriate reception facilities in the state of return.⁵²

VI. Resettlement and Integration Programs

A. Resettlement Programs

According to a press release issued by the European Commission, 1,274 UAMs who had arrived in Greece had been resettled in other European countries under the European Union's "voluntary relocation scheme" by October 2022.⁵³ Thirteen EU member-states and Switzerland, Norway, and Iceland participate in the relocation scheme that is managed by the EU Agency for Migration and the International Organization for Migration (IOM) in cooperation with the United Nations Commissioner for Human Rights, United Nations Children's Fund, and the Greek government.⁵⁴ EU funding is provided for the preparation for relocation, pre-relocation accommodation, and transfer costs through the EU Asylum Migration and Integration Fund.⁵⁵ A reform of the intra-EU resettlement framework appears to be part of the negotiations on the EU's proposal for a "New Pact on Migration and Asylum."⁵⁶

B. Integration

Article 51 of the IPC mandates the integration of international protection applicants who are minors into the public education system for primary and secondary education no later than three months from the date of the completion of the identification of the minor by competent authorities.⁵⁷ The law provides that nonformal education programs may be available in accommodation centers to facilitate integration, however these programs may not replace formal education in the public education system.⁵⁸ It has been reported by METAdrasi that in certain

⁵¹ Id. art. 25(1).

⁵² Id. art. 25(2).

⁵³ *European Solidarity in Action: Over 5000 Relocations from Greece*, Eur. Comm'n (Oct. 12, 2022), <https://perma.cc/3P8T-EUV2>.

⁵⁴ Id.; IOM, *Voluntary Scheme for the Relocation from Greece to Other European Countries* (2022), <https://perma.cc/MQ2L-D2EX>.

⁵⁵ See *Asylum, Migration and Integration Fund (2021-2027)*, Eur. Comm'n, <https://perma.cc/3XGS-S82V>. The Eur. Comm'n, *European Solidarity in Action*, supra note 53, notes that €35 million was used for relocations from the previous iteration of the fund, the 2014-2020 Asylum, Migration and Integration Fund.

⁵⁶ *New Pact on Migration and Asylum*, Eur. Comm'n, <https://perma.cc/RZ22-NUXR> (mentioning more funding and flexibility for resettlement programs); *Editorial: European Pact on Migration and Asylum – Latest Developments*, ECRE (Mar. 17, 2023), <https://perma.cc/H5DW-FC9V> (in which the European Council on Refugees and Exiles notes that a proposal for a Union Resettlement Framework has moved forward in the present stage of negotiations. For the current status of the proposal, see Eur. Parl., *Legislative Train: EU Resettlement Framework* (Mar. 2023), <https://perma.cc/J9VD-RKRY>.

⁵⁷ IPC art. 51(2); METAdrasi, supra note 1, at 19.

⁵⁸ IPC art. 51(3).

public schools where more than 40 percent of the student population is composed of foreigners, adjustments have been made in teaching approaches and techniques to add intercultural and citizenship-related elements into the teaching; however, it appears that refugee and migrant children in these “intercultural” schools have more limited contact with local children than in mainstream schools, which some migrant-participants in the METAdrasi report thought limited opportunities to socially integrate.⁵⁹ The intercultural school concept appears to have been subject to much criticism in the relevant scholarly literature on similar grounds.⁶⁰

The METAdrasi report identifies the inclusion of the Supervised Semi-Independent Living Apartments concept (which had first been started as a pilot project) in the legislative framework as an important step towards better integration of UAMs into Greek society.⁶¹ The report quotes from participants in the program who report they have benefited from the supportive environment that is provided, and notes that the program helps UAMs attain autonomy and better integration into the host community by assisting UAMs in developing necessary life skills.⁶² The report, however, also noted that the effectiveness of the program was decreased significantly when UAMs enter the program when they are 17 or older, and recommends streamlining the placement procedure so UAMs can be placed in the program as soon as they turn 16.⁶³

VII. Family Reunification

Greek immigration law allows only legal residents, including refugee status holders, to apply for family reunification.⁶⁴ There appears to be no advantageous special regime for family reunification that is available to UAMs, regardless of the status of their application for international protection.⁶⁵ Nevertheless, the law requires authorities to consider possibilities for family reunification in the light of the best interest of the minor “when implementing” the IPC with regard to minors in general, and the IPC provides, as a general principle applicable to the processing of UAMs, that all authorities must, within their area of competence “swiftly seek a

⁵⁹ METAdrasi, *supra* note 1, at 19.

⁶⁰ *Id.*

⁶¹ *Id.* at 21. According to the report, METAdrasi also operated four apartments for young adults over 18 years old who were UAMs, which hosted them until they achieved the minimum skills to live an independent life. *Id.* These facilities, which at the time of publishing of the report had reportedly benefited 163 persons, also provide services such as psychosocial support, educational and vocational training, and job consulting. *Id.* at 8. This extension of the independent living program to young adults, however, does not appear to have been incorporated into the IPC’s framework for long-term accommodation facilities under the SSPUAM’s supervision.

⁶² *Id.* at 21.

⁶³ *Id.* at 22, 28.

⁶⁴ See Law 4251/2014 art. 70; Presidential Decree 131/2006, E.K.E.D. 2006, A:143 as amended by Presidential Decree 167/2008, E.K.E.D. 2008, A:223, and Presidential Decree 113/2013, E.K.E.D. 2013, A:146, art. 13 <https://perma.cc/A8J3-3ZXR> (English translation of text consolidating amendments by P.D. 167/2008); <https://perma.cc/44PT-52UZ> unofficial English translation of P.D. 113/2013); GCR, *supra* note 14, at 238.

⁶⁵ For the administrative practice with regard to the family reunification applications of recognized refugees, see GCR, *supra* note 14, at 238.

durable solution compatible with the well-being of the unaccompanied minor and his or her best interests, such as social inclusion, family reunification, relocation and return.”⁶⁶

⁶⁶ IPC art. 63; 66B(4).

Israel

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SUMMARY Israel has ratified a number of international conventions on refugees and on the rights of the child. Migrants may apply for asylum in Israel in accordance with a special procedure issued by the Ministry of Interior. Those qualifying for immigration under the Law of Return (*olim*) do not need to apply for asylum and are entitled to a variety of benefits including financial aid and participation in integration programs. Non-olim Ukrainian citizens are not required to file individual applications for asylum and are not subject to deportation procedures at this time.

The processing of asylum applications by unaccompanied minors requires handling with sensitivity to the minors' specific circumstances. The state provides interpreters' services during interviews. A number of NGOs and pro-bono lawyers provide applicants legal assistance and representation. There are procedures in place that facilitate the arrival of children based on the ground of family reunification. Israel has a well-established child protection system.

Israel has implemented repatriation programs for Africans who illegally crossed into Israel via Egypt through unrecognized border crossings. There do not appear to be repatriation programs currently available for Ukrainian refugees.

I. Introduction

Israel is a signatory to the Convention of the Rights of the Child.¹ It is also a signatory to the 1951 UN Convention Relating to the Status of Refugees, the 1967 Protocol Relating to the Status of Refugees,² the Final Act of the United Nations Conference on the Status of Stateless Persons, 1954,³ and the 1961 Convention on the Reduction of Statelessness.⁴ Israel has traditionally maintained restrictive immigration policies, however.⁵

¹ Convention on the Rights of the Child, Nov. 20, 1989, 1577 U.N.T.S. 3, <https://perma.cc/5BVH-XSCR>.

² Convention and Protocol Relating to the Status of Refugees, July 28, 1951, 19 U.S.T. 6259, 189 U.N.T.S. 137 (Convention) & Jan. 31, 1967, 19 U.S.T. 6223, 606 U.N.T.S. 267 (Protocol), <http://perma.cc/V86S-GU6S>; *Convention Relating to the Status of Refugees: Status of Signatories and Parties*, United Nations Treaty Collection (U.N.T.C.), <https://perma.cc/63FJ-VBR3>; *Protocol Relating to the Status of Refugees: Status of Parties*, U.N.T.C., <https://perma.cc/C5HT-GKGM>.

³ Final Act of the United Nations Conference on the Status of Stateless Persons, Sept. 28, 1954, 5158 U.N.T.S. 118-24, <https://perma.cc/5STD-FDRM>.

⁴ Convention on the Reduction of Statelessness, Aug. 30, 1961, 989 U.N.T.S. 175, <https://perma.cc/PS5N-BPMD>.

⁵ Ruth Levush, Israel, *Refugee Law and Policy in Selected Countries* 165, Law Library of Congress (Mar. 2016), <https://perma.cc/FHF5-R8RD>.

The processing of asylum requests is regulated under a procedure⁶ issued by Israel's Ministry of Interior Population and Immigration Authority (PIA), based on authorities prescribed in the Entry into Israel Law, 5712-1952.⁷

Refugees who qualify for immigration under Law of Return, 5710-1950 (hereafter *aliyah*) are processed differently and are eligible for a variety of programs that are not extended to those who do not.⁸

In accordance with the Law of Return, every Jew, child and grandchild of a Jew, spouse of a Jew, and spouse of a child or a grandchild of a Jew, has a right to immigrate to Israel as an *oleh*.⁹ The law authorizes the Minister of the Interior and the Minister of Foreign Affairs "to issue regulations regarding its implementation, as well as the granting of immigrant visas and residence certificates to minors up to the age of 18 subject to the approval of the Knesset (Israel's parliament) Constitution, Law and Justice Committee."¹⁰

The Ministry of Aliyah and Integration (MAI) is responsible for implementation of government policies regarding immigration of *olim* (plural of *oleh*).¹¹ The Ministry of the Interior is responsible for the implementation of laws and procedures regarding the entry and exit of non-olim.

II. Defining Unaccompanied Minors

In 2003, the PIA issued a special procedure for handling the entry and exit of unaccompanied minors at recognized border crossings (Procedure 6.4.0003). The procedure was updated periodically with the latest update adopted in 2015.¹² The procedure applies to the "handling of the entry and exit of at Israel's air, land and sea border crossings of minors who are not accompanied by one of their parents or a guardian, and not as part of a delegation from a public authority in Israel."¹³ The procedure regulates documentation and verification of documents proving the consent of the minor's parents to the entry and exit of their unaccompanied minor.¹⁴

The handling of asylum requests is regulated under Procedure 5.2.0012. This procedure provides that "[t]he processing of an asylum application submitted by an unaccompanied minor, a person

⁶ *Procedure for Dealing with Political Asylum Seekers in Israel* (Procedure 5.2.0012), § 1(B) (updated Mar. 21, 2022), Ministry of Interior Population and Immigration Authority (PIA), <https://perma.cc/4LUV-SW9F>.

⁷ Entry into Israel Law, 5712-1952, SH 5712 No. 111 p. 354, as amended, Nevo Legal Database (Nevo), <https://perma.cc/Q3LV-QM44> (in Hebrew, by subscription).

⁸ Law of Return, 5710-1950, No. 51 p. 159, as amended, Nevo, <https://perma.cc/P5SG-ZAEJ> (in Hebrew, by subscription).

⁹ Id. §§ 1, 4 & 4A.

¹⁰ Id. § 5.

¹¹ *Homepage*, Ministry of Aliyah and Integration, <https://perma.cc/2SHQ-LVZ6>.

¹² *Experimental Procedure for Handling the Entry and Exit of Unaccompanied Minors at Border Crossings* (Procedure 6.4.0003) (updated May 12, 2015), PIA, <https://perma.cc/AW4M-27H5> (in Hebrew).

¹³ Id. § B.

¹⁴ Id. § D(8), form B & § E(f1).

suffering from mental disorders or a torture victim will be done with special attention and sensitivity to their specific circumstances.”¹⁵

In the absence of a separate definition for unaccompanied minors under Procedure 5.2.0012, it is likely that the definition provided under Procedure 6.4.0003 would apply to the handling of asylum requests.

III. Restrictions on Claiming Asylum

A. African “Infiltrators”

Entry into Israel that does not occur through legally designated border crossings constitutes a criminal offense under the Prevention of Infiltration (Offenses and Jurisdiction) Law, 5714-1954, as amended. Those who cross into Israel without passing through designated borders (infiltrators) may be sentenced for five years imprisonment, a fine, or both. Infiltrators, however, may file asylum requests.¹⁶

According to a 2011 Knesset report, there were reportedly about 200 unaccompanied minors from third countries who entered Israel via undesignated border crossings from Egypt in 2010.¹⁷ By July 2020, there were reportedly 37,288 persons who infiltrated into Israel from Egypt, 71% of whom were citizens of Eritrea (26,563), 21% citizens of Sudan (7,624), 7% citizens of other countries in Africa, and 1% citizens of the rest of the world.¹⁸

The number of infiltrators has drastically declined in recent years following the completion of the construction of a barrier between Egypt and Israel, which has almost completely prevented crossing from Egypt into Israel. Consequently, there has been a significant decline in the growth rate of some of the children’s populations.¹⁹ A similar barrier along the border with Jordan was reportedly built in 2016-17.²⁰ By 2020, 613 infiltrators had left Israel.²¹

Israel has implemented a number of repatriation programs with regard to infiltrators. According to the United Nations High Commissioner for Refugees (UNHCR), since 2009, Israel has resettled over 1,000 refugees, mostly to Australia, Canada, Denmark, Finland, France, the Netherlands,

¹⁵ Procedure 5.2.0012, *supra* note 6, § 1(B).

¹⁶ Prevention of Infiltration (Offenses and Jurisdiction) Law, 5714-1954, as amended, Nevo, <https://perma.cc/Z3QF-2DY7> (in Hebrew, by subscription); see also, Ruth Levush, Israel, *Refugee Law and Policy in Selected Countries*, *supra* note 5.

¹⁷ *Designated Travel Documents for Minors (Minor Visa)- Comparative Survey*, KIRC (June 27, 2011), <https://perma.cc/FER6-2PYE> (in Hebrew).

¹⁸ *Statistics on Foreigners in Israel*, PIA (July 2020), <https://perma.cc/82ZX-WFDQ> (in Hebrew).

¹⁹ *Alternatives to Imprisonment of Children of Immigrants in Israel*, Hotline for Refugees and Migrants, <https://perma.cc/7944-KUDR> (in Hebrew).

²⁰ Amir Buchbut, *Watch: This is What the Fence Being Built on the Israel-Jordan Border Looks Like from a Bird's Eye View*, Walla (July 28, 2016), <https://perma.cc/H873-WXAH> (in Hebrew).

²¹ *Statistics on Foreigners in Israel*, *supra* note 18.

New Zealand, Norway, Spain, Switzerland, Sweden, and the United States. In 2019, there were 289 spots available for refugees to be resettled out of Israel.²²

The repatriation of infiltrators to third countries is regulated under Procedure No. 10. 9.0005, issued on January 30, 2018.²³ According to the procedure, the State of Israel has reached arrangements with two different African countries that enables Israel to offer infiltrators the opportunity to safely relocate to a third country and unsure that they would not be repatriated to their countries of origin.²⁴ Israel further offered infiltrators who consented to be relocated within a specified three months period an amount of \$3500 each.²⁵

According to Procedure 10. 9.0005, the population slated for repatriation to third countries was that of infiltrators from Eritrea and Sudan who have not applied for asylum, those whose application for asylum has been denied, and those who applied for asylum after January 1, 2018.²⁶

Third country repatriation procedures do not apply to women, minors, custodian parents of a minor child, and persons suspected of being victims of human trafficking.²⁷

According to the UNHCR,

[v]ery few Eritreans and Sudanese asylum-seekers in Israel have been granted refugee status. The authorities instead provide these individuals with temporary group protection with limited rights and entitlements, including protection from refoulement and informal access to the labour market. This form of protection does not lead to a long-term solution for them.

Since the early 2000s, the temporary group protection scheme has also been used for nationals of the Democratic Republic of Congo, Sierra Leone, Liberia, Côte d'Ivoire, and South Sudan.

Following political changes in some of these countries, most notably Sierra Leone, Liberia, and Côte d'Ivoire, most of the asylum-seekers (some 2,000) have repatriated. These nationals were given six months to one-year to prepare for their return. Some saved money to help them upon their return home or learned a new skill to ease their reintegration into their county's recovering labour market.

In the case of South Sudan, a newborn state that declared independence in July 2011, refugees were asked to return prematurely on short notice. An estimated 1,500 persons were returned to South Sudan. Few vulnerable families and people with special medical

²² *Resettlement*, UNHCR Israel, <https://perma.cc/DMZ5-9LQB>.

²³ *Removal for Third Countries (Procedure 10. 9.0005)* (Jan. 30, 2018), PIA, <https://perma.cc/ZV64-ZA7G> (in Hebrew).

²⁴ *Id.* § 2.3.

²⁵ *Id.* § 2.4.

²⁶ *Id.* § 3.

²⁷ *Id.* § 3.2.

and mental needs were allowed to stay in Israel, in the absence of proper facilities and services to cater to their special needs.²⁸

According to a comprehensive comparative study issued by Israel's PIA in October 2022,

infiltrators from Darfur and the Nuba Mountains are not persecuted on the basis of their ethnic origin in Sudan, and as a rule, they can return to live safely in the capital city of Khartoum

The completion of the study is an important step in advancing the ability to decide on individual asylum applications of immigrants from Darfur and the Nuba Mountains in Israel, and it can be assumed that in the absence of individual grounds, many asylum applications will be denied. The comprehensive study was recently transferred to the Ministry of Foreign Affairs for its assistance, following the receipt of an opinion from the National Security Council containing information that also supports the conclusions drawn from the study.²⁹

B. Refugees from Ukraine, Russia and Belarus

In 2022, the Ministry of Interior authorized the entry of a limited number of persons ineligible for *aliya* from Ukraine and Russia. The number of those admitted, including unaccompanied minors, however, has not been identified.³⁰ UNHCR has no resettlement quotas or places for Ukrainian refugees.³¹

On February 27, 2022, the PIA announced that Ukrainian citizens staying in Israel would not be required to file individual applications for asylum and that they would not be subject to deportation procedures “until the situation in their home country clears up.”³²

According to data received from PIA, from the outbreak of the war between Russia and Ukraine, until January 4, 2023, 57,223 *aliya*-eligible immigrants arrived in Israel: 41,813 from Russia, 13,420 from Ukraine, and 1,990 from Belarus. Initially, 61% of those arriving from Ukraine were women due to the restrictions imposed on the exit of men from Ukraine, but later on the gap has narrowed. Between October and November of 2022, a total of more than 10,000 immigrants

²⁸ *Voluntary Repatriation*, UNHCR Israel, <https://perma.cc/SET7-JLU5>.

²⁹ PIA Press Release, Minister Shaked toughens the policy towards Sudanese from Darfur and the Nubia Mountains, stating that they, too, are not in danger in Sudan (Oct. 18, 2022), <https://perma.cc/59EW-EER9> (in Hebrew).

³⁰ Ilia Eliyhu, Knesset Center of Information and Research (KIRC), *Data on Aliyah to Israel from Ukraine and Russia During 2022* (Dec. 12, 2022), <https://perma.cc/6YG9-CE4T> (in Hebrew).

³¹ *Information for Ukrainians in Israel*, UNHCR Israel, <https://perma.cc/T37D-NXXM>.

³² PIA Press Release, The Population & Immigration Authority is honored to announce . . . that following the warfare in Ukraine . . . no enforcement and deportation activities will be conducted (Feb. 27, 2022), <https://perma.cc/4ZA6-6SW4>.

arrived from Russia in parallel with the announcement of the military drafting of men in Russia at the end of September.³³

In total, 138,231 non-aliyah eligible citizens of Ukraine, Russia and Belarus have reportedly entered Israel during the Russia-Ukraine war. They received a B/2 visa, which is a three-month tourist visa. Non-olim include 90, 221 from Russia (221,90), 41, 425 from Ukraine, and 6,585 from Belarus. As of January 4, 2023, 77% of the total number (106, 091 of them) were no longer in Israel.³⁴

IV. Protection Offered to Unaccompanied Minors

A. Processing Asylum Requests

Procedure 5.2.0012 requires interviews of asylum seekers to be conducted with sensitivity to gender considerations, with particular sensitivity to victims of gender-based violence, including sexual violence. For this purpose, employees of the Ministry's unit dealing with asylum requests are required to undergo training that

will include contents that deal with gender sensitivity, such as: the psychological effects of trauma (unwillingness to provide full information, difficulties in giving a statement, memory disorders); cultural perceptions towards women in the country of origin and their effect on the asylum seeker).³⁵

Interviews are done in the language of the asylum seeker or with the assistance of a translator. The asylum seeker may be represented by an attorney.³⁶

According to the UNHCR,

[a]side from unaccompanied minors and victims of trafficking, asylum seekers do not enjoy access to State legal aid in their asylum adjudication or other non-criminal proceedings. To facilitate the legal process for asylum seekers, UNHCR cooperates with a number of NGOs and pro-bono lawyers providing legal assistance and representation. Interpreters are provided by the State during all interviews, although a recent amendment to the Procedure allows asylum seekers to bring their own interpreters if the State is unable to provide one in the relevant language.³⁷

B. Role of Child Protection Agencies

A UNHCR report states that Israel has a well-established child protection system. In August 2020, there were "approximately 8,500 children of asylum-seekers, the majority born in Israel. UNHCR

³³ Ilia Eliyahu, Knesset Information and Research Center, *Data on those entering Israel (Olim and Non-Olim) During the War between Russia and Ukraine 1* (Jan. 8, 2023), <https://perma.cc/3CGM-ACYM> (in Hebrew).

³⁴ *Id.* p. 2.

³⁵ *Procedure 5.2.0012*, *supra* note 6, § 1.1.

³⁶ *Id.* § 3.

³⁷ *National RSD Procedures in Israel*, UNHCR Israel, <https://perma.cc/QK9N-ZAQ2>.

works with education, social services, and health authorities and local organisations to ensure their protection and care.”³⁸

V. Detention and Repatriation of Unaccompanied Minors

A. Detention of Migrants Arriving Through Recognized Legal Border Crossings

The Entry into Israel Law authorizes the detention of persons entering Israel without a valid visa for up to 60 days

with detention reviewed by the ‘Immigration Detention Review Tribunal’ within 96 hours and thereafter every 30 days. Detention beyond the 60-day period is permitted under this law if release would harm public health or the order or security of the State, or if the detainee fails to cooperate with his deportation from the country.³⁹

Foreign nationals who are either refused entry into the country or who were unlawfully residing in the country may be detained prior to deportation at the Yahalom airport detention facility, which is run by the Ministry of Interior. According to the non-profit organization Hotline for Refugees and Migrants, in 2020, no families with children were held in Yahalon for long periods of time.⁴⁰

A newspaper article, which was published in January 2023, claims that the facility processed 40,414 people between 2017 and 2022, the majority of whom stayed at Yahalom less than a week. During that period, 1,142 minors were detained there. The article claims that PIA had produced an internal audit report on its Yahalom detention facility but had refused to publish it because of concerns that doing so might “violate privacy and undermine proper functioning and [their] ability to do [their] jobs.”⁴¹

According to the article,

[o]ne of the criticisms presented in the report is the sparsity of toys and other equipment needed for a family making an extended stay in the facility. Authority officials note that they are pushing for purchases of toys for children being held in the facility. Likewise, the comptroller proposed that the authority consider allowing minors staying in the facility to use a cellphone. According to authority guidelines, every minor entering the facility must meet with a social worker within 24 hours of arrival, and that families may only be held up to 72 hours.⁴²

³⁸ UNHCR, *Israel Factsheet 4* (Aug. 2020), <https://perma.cc/7A6R-M732>.

³⁹ *Detention of Asylum Seekers in Israel*, UNHCR Israel, <https://perma.cc/CZ28-YPEH>; Entry into Israel Law, 5712-1952, § 13, SH 5712 No. 111 p. 354, *supra* note 7.

⁴⁰ Hotline for Refugees and Migrants, *Detention of Migrants and Asylum Seekers in Israel, Annual Monitoring Report 2020* 13 (June 2021), <https://perma.cc/G7FH-5V63>.

⁴¹ Bar Peleg, *Israel Refuses to Release Full Report on Negligence at Airport Detention Facility*, Haaretz (Jan. 9, 2023), <https://perma.cc/N7NU-3SEL>.

⁴² *Id.*

B. Detention of Infiltrators

The Prevention of Infiltration (Offenses and Jurisdiction) Law, 5714-1954, as amended, authorizes the Minister of Defense to order the deportation from Israel of infiltrators.⁴³ The law was designed to apply to illegal crossing into Israel from neighboring countries that had been in a state of war with Israel.

Following the influx in illegal crossings via Egypt by thousands of migrants from Africa, certain provisions of the law were amended with regard to detention procedures of infiltrators. As noted, since the construction of the Egypt-Israel border fence in June 2012, there has been a marked decrease in new arrivals, “from over 12,000 in mid-2012 to only 22 in 2014; 220 in 2015; 18 in 2016, and 0 since May 2016.”⁴⁴ The temporary provisions regarding detention under this law have meanwhile expired.⁴⁵

VI. Resettlement and Integration Programs

A. Aliyah Eligible Immigrants

Israel has operated a number of programs to facilitate the entry and residence of unaccompanied minors who qualify as olim under the Law of Return for purpose of attending high school and developing their Jewish identity. In addition, private entities, such as the Young Members of the Chabad Association, have brought to Israel unaccompanied minors from Chernobyl and other places with government approval.⁴⁶

According to information posted on the MAI website, olim may receive an absorption basket based on eligibility criteria, as follows:

[t]he Absorption Basket is financial assistance for new immigrants during the initial period in Israel, as they settle into their new lives. Assistance is provided to cover living expenses for the duration of ulpan [Hebrew classes] study (6 months). The financial assistance also includes rental assistance for the first 12 months in Israel. The absorption basket is provided to new immigrants from the world over.⁴⁷

The ministry’s website contains “absorption basket payment tables” arranged by marital and pre and post retirement age status.⁴⁸ In addition to financial aid, the MAI maintains a variety of

⁴³ Prevention of Infiltration (Offenses and Jurisdiction) Law, 5714-1954, *supra* note 16, § 30(a).

⁴⁴ *Detention of Asylum Seekers in Israel*, UNHCR Israel, <https://perma.cc/CZ28-YPEH>.

⁴⁵ The text of the Prevention of Infiltration (Offenses and Jurisdiction) Law, 5714-1954, effective under temporary amendment passed in 2014, containing provisions on detention, now expired, <https://perma.cc/6TA7-UGDA>.

⁴⁶ State Comptroller Report, *Bringing Children to Israel Not by Their Parents* (2014), <https://perma.cc/86Z2-UL2C> (in Hebrew).

⁴⁷ *Absorption Basket – "Sal Klita"* (updated to Feb. 2, 2023), MAI, <https://perma.cc/T6Y2-LCVK>.

⁴⁸ *Id.*

programs designed to assist olim in regard to employment, business and entrepreneurship, integration of scientists, learning Hebrew, and other educational programs.⁴⁹

B. Immigrants who are Not Eligible for Aliyah

Persons not eligible for aliyah are subject to different procedures than olim with regard to conditions of stay in Israel (e.g., the possibility of working) and government assistance.

Various ministries and other bodies are engaged in providing assistance to non-olim citizens of Ukraine. These include the ministries of welfare, education, health, interior, MIA, and local authorities. According to a Knesset report, about 75% of non-olim Ukrainian citizens live in Israel with a host family, due to the difficulty of renting an apartment on their own, however.⁵⁰

VII. Family Reunification

A child born in Israel to a parent who has authorization for permanent or temporary residence may be eligible for the same status as the parent under conditions enumerated in procedures issued by the population and immigration agency of the ministry of interior.⁵¹

In accordance with Procedure 5.2.0012, a person who has been recognized as a refugee by the Minister of Interior and who has received a A/5 temporary residence visa will be allowed to submit an application for a residency license for his or her spouse and minor children. The application will be examined by an advisory committee that will provide its assessment to the PIA's Director General for a decision on eligibility.⁵²

⁴⁹ *New Immigrants*, MAI, <https://perma.cc/8WVX-F5SR>.

⁵⁰ Ilia Eliyahu, *Data on Aliyah to Israel from Ukraine and Russia in 2022*, *supra* note 30.

⁵¹ *Procedure for Handling the Filing of Applications for a Minor under Regulation 12 of the Entry into Israel Regulations, 5734-1974 (Procedure 5.2.0029)* (Aug. 1, 2017), Hamoked, <https://perma.cc/7QNQ-XJEN> (in Hebrew); *Procedure 5.2.0029* (updated May 7, 2019), <https://perma.cc/L7NW-E5R2> (in Hebrew).

⁵² *Procedure 5.2.0012*, *supra* note 6, § 12(A).

Italy

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SUMMARY As of December 2022, the number of unaccompanied foreign minors (*Minori Stranieri Non Accompagnati*, MSNA) registered in Italy was around twenty thousand. Italy is a party to the Convention on the Rights of the Child of 1989. Recent legislation on MSNA from 2017 overhauled the legal regime applying to MSNA. The core rule is that MSNA may never be rejected at the border, and refoulement and expulsion are prohibited. Once a MSNA is found in the Italian territory, they must be provided with a full array of health and social services and assistance aimed at their identification, determination of age, and wellbeing. The paramount rule is that all decisions must be made based on the best interest of the child. Once MSNA have been provided with basic services, the legislation grants them a roster of legal and social benefits first and foremost, and a residence permit allows them to pursue educational and social integration opportunities. Repatriation of MSNA is allowed under strict criteria and conditions, and family reunification is broadly permitted pursuant to European Union and domestic Italian legislation.

I. Introduction

A. Statistics

The most recent report on statistics related to unaccompanied foreign minors in Italy was prepared by the Ministry of Labor and Social Policies, considering information available through December 31, 2022.¹ The following are some highlights of this report:

- Unaccompanied foreign minors (*Minori Stranieri Non Accompagnati*, MSNA) registered in Italy through December 31, 2022, numbered 20,089, which shows a sharp increase since 2021 (+64%) and is mainly due to the humanitarian crisis taking place in Ukraine since February of 2022;²
- MSNA from Ukraine amount to 5,042 (25.1%), from Egypt, 4,899 (24.4%), Tunisia: 1,800, Albania: 1,347, and Pakistan: 1,082;³
- Of the total MSNA, 85.1% are males and 14.9% are females;
- Most MSNA are 17 years of age (44.4%), while those 16 years of age are 24% of the total and those between 7 and 14 years of age amount to 17.5%; and

¹ Direzione Generale dell'Immigrazione e delle Politiche di Integrazione – Divisione II, *Unaccompanied Foreign Minors in Italy, Semiannual Report Data as of December 31, 2022*, <https://perma.cc/B3WW-H73V>.

² *Unaccompanied Foreign Minors: Rules and Data on the Presence, Protection and Reception of Unaccompanied Minors*, Direzione Generale dell'Immigrazione e delle Politiche di Integrazione, <https://perma.cc/3VYK-WG95>.

³ Id.

- The Italian regions that receive MSNA in larger numbers are: Sicily (3,923, that is, 19.5% of the total), Lombardy (2,880, 14.3%), Calabria (2,068, 10.3%) and Emilia-Romagna (1,814, 9%).⁴

Further statistical information on the presence of MSNA in Italy can be found on the website of the Ministry of Labor and Social Policies.⁵

B. Jurisdictional Responsibilities

Per Regulation No. 535 of 1999, the General Directorate of Immigration and Integration Policies, part of the Ministry of Labor and Social Policies, is the government agency in charge of recording MSNA information in the database created for that purpose.⁶ The Directorate prepares and publishes in-depth reports twice a year on the presence of MSNA in Italy, monitoring the presence, characteristics, and welcoming of MSNA, while also accounting for new arrivals and removals, requests for international protection, family surveys in the countries of origin, and opinions on the conversion of residence permits upon MSNA reaching the age of majority.⁷ The reports must also illustrate the Italian and international procedural and regulatory innovations and measures for the social and employment integration of MSNA.⁸

The Committee for Foreign Minors, under the Presidency of the Council of Ministers, has jurisdiction to oversee compliance with the legal requirements established to grant residence to MSNA temporarily admitted into the national territory.⁹

Juvenile courts (*tribunale per i minorenni*) have jurisdiction to order, in exceptional cases, the expulsion of a MSNA.¹⁰

⁴ Id.

⁵ *Rapporti di Approfondimento sulla Presenza dei MSNA in Italia (2023)*, Ministero del Lavoro e delle Politiche Sociali, <https://perma.cc/TL5Y-LKRD>. See also UNICEF, UNHCR, IOM, *Ricerca su Minori Stranieri Non Accompagnati e la loro Transizione verso l'Età Adulta. Nota Concettuale* (2018), <https://perma.cc/H7EF-MGCM>.

⁶ Decreto del Presidente del Consiglio dei Ministri 9 dicembre 1999, n. 535, Regolamento concernente i Compiti del Comitato per i Minori Stranieri, a norma dell'Articolo 33, commi 2 e 2-bis, del Decreto Legislativo 25 luglio 1998, n. 286 (D.P.R. No. 535), art. 4, <https://perma.cc/A5UY-MD89>.

⁷ *Minori Stranieri Non Accompagnati*, Direzione Generale dell'Immigrazione e delle Politiche di Integrazione, <https://perma.cc/LAW8-ANXP>.

⁸ Id.

⁹ Decreto Legislativo 25 luglio 1998, n. 286, Testo unico delle Disposizioni concernenti la Disciplina dell'Immigrazione e Norme sulla Condizione dello Straniero (D.L. No. 286), art. 33(1), <https://perma.cc/2ZT9-7K82>.

¹⁰ Id. arts. 3(1)(a) & 3(1)(b).

C. Legislative Framework

1. Domestic Framework

Several legislative and regulatory texts cover the topic of MSNA in Italy, namely

- Law No. 47 of April 7, 2017, Provisions on Protective Measures of Foreign Unaccompanied Minors;¹¹
- Legislative Decree No. 142 of August 18, 2015, Implementation of Directive 2013/33/EU containing Rules relating to the Reception of Applicants for International Protection, as well as of Directive 2013/32/EU, containing Common Procedures for the purposes of Recognition and Withdrawal of International Protection Status;¹²
- Law No. 189 of July 30, 2002, Amending the Normative on Immigration and Asylum;¹³
- Decree No. 535 of the President of the Council of Ministers of December 9, 1999, Regulation concerning the Duties of the Committee for Foreign Minors.¹⁴ The competences of the Council were transferred to the General Directorate of Immigration and Integration Policies in 2012.¹⁵
- Regulation No. 394, Implementing Legislative Decree No. 286 of 1998;¹⁶ and
- Legislative Decree No. 286 of 1998, Consolidated Text on Immigration.¹⁷

Law No. 47 introduced important amendments to Legislative Decree No. 286 of 1998 concerning MSNA, declaring the intention of the Italian Republic to further international cooperation efforts underway for the protection of MSNA who might enter the national territory,¹⁸ also declaring that MSNA have a right to request international protection upon entering the Italian territory.¹⁹

¹¹ Legge 7 aprile 2017, n. 47 Disposizioni in materia di Misure di Protezione dei Minori Stranieri non Accompagnati (June 5, 2017) (Law No. 47), <https://perma.cc/U9GD-SLN8>.

¹² Decreto Legislativo 18 agosto 2015, n. 142 Attuazione della Direttiva 2013/33/UE recante Norme relative all'Accoglienza dei Richiedenti Protezione Internazionale, nonché della Direttiva 2013/32/UE, recante Procedure Comuni ai fini del Riconoscimento e della Revoca dello Status di Protezione Internazionale (D.L. No. 142), <https://perma.cc/N42N-27F8>.

¹³ Legge 30 luglio 2002, n. 189, Modifica alla Normativa in materia di Immigrazione e di Asilo (Law No. 189), <https://perma.cc/A55H-8DAZ>.

¹⁴ D.P.R. No. 535.

¹⁵ *Minori Stranieri Non Accompagnati*, Ministero del Lavoro e delle Politiche Sociali, <https://perma.cc/5HLR-M8HK>.

¹⁶ Decreto del Presidente della Repubblica 31 agosto 1999, n. 394, Regolamento recante Norme di Attuazione del Testo Unico delle Disposizioni concernenti la Disciplina dell'Immigrazione e Norme sulla Condizione dello Straniero, a norma dell'articolo 1, comma 6, del Decreto Legislativo 25 luglio 1998, n. 286, <https://perma.cc/8BYK-FKER>.

¹⁷ D.L. No. 286.

¹⁸ Law No. 47, art. 20(1).

¹⁹ Id. art. 18.

2. *International Framework*

Legislative Decree No. 286 of 1998 provides that in all administrative and judicial procedures that have been established to implement the right to family unity and concerning minors, priority must be given to the best interests of the child,²⁰ as provided in the Convention on the Rights of the Child of 1989.²¹ This Convention was ratified by Italy by Law No. 176 of 1991, which further stated that priority consideration of the best interests of the child must be given in all administrative and judicial procedures concerning family reunification and separation matters.²²

Current legislation declares the intention of the Italian Republic to join international cooperation efforts underway in order to protect MSNA who might enter the national territory.²³

II. Defining Unaccompanied Minors

For legal purposes, a MSNA is defined as “a minor who is not an Italian or European Union citizen, who for whatever reason is found in Italian territory or is subject to Italian jurisdiction, and who lacks the assistance or representation of his parents or other adults who would be responsible for him according to Italian legislation.”²⁴

III. Restrictions on Claiming Asylum

A. Limits on Consideration of Asylum Applications from Minors who Transited Through Third Countries

Border police are authorized to reject foreigners at border crossing points when such foreigners, irrespective of their age, lack the requisites established in the law for entry into the national territory.²⁵ This authorization also applies to foreigners who were previously admitted temporarily to the territory based on their need for public assistance.²⁶ Minors also fall into the category of foreigners who can be apprehended in the interior after having entered the national territory avoiding border controls, and must be accompanied to the border.²⁷

²⁰ D.L. No. 286, art. 28(3).

²¹ Convention on the Rights of the Child, art. 3, para. 1, Nov. 20, 1989, 1577 U.N.T.S. 3, <https://perma.cc/72UX-XSZP>.

²² Legge 27 maggio 1991, n. 176, Ratifica ed Esecuzione della Convenzione sui Diritti del Fanciullo, fatta a New York il 20 Novembre 1989 (Nov. 11, 1991), art. 3, <https://perma.cc/WT33-AF9L>.

²³ Law No. 47, art. 20(1).

²⁴ Id. art. 2(1). All translations are by author.

²⁵ D.L. No. 286, art. 10(1).

²⁶ Id. art. 10(2)(b).

²⁷ Id. art. 10(2)(a).

B. Safe Third Country Agreements

No information was found on this topic.

C. Exceptions for Unaccompanied Minors

In exceptional cases when the expulsion of a foreign minor is ordered by the juvenile court, such a measure may be adopted only if it does not cause a risk of serious damage to the minor.²⁸

IV. Protection Offered to Unaccompanied Minors

A. Humanitarian and Other Assistance

The law mandates the provision of immediately necessary humanitarian assistance, including first aid and specially-dedicated hospitality facilities, to MSNA found in the national territory.²⁹

In effect, MSNA found in the Italian territory have a right to obtain healthcare and education opportunities, even before they receive a residence permit.³⁰ The intervention of cultural mediators is required in all decisions concerning the minors' health and education needs.³¹

B. Judicial and Administrative Assistance

The law establishes a Committee for Foreign Minors under the Presidency of the Council of Ministers to oversee compliance with the legal requirements established to grant residence to MSNA temporarily admitted into the national territory.³²

MSNA also have the right to be heard in all judicial and administrative proceedings affecting them.³³ Their consent is necessary for the intervention of non-governmental organizations dedicated to the assistance of vulnerable persons in legal procedures concerning them.³⁴ The minors have the right to appoint legal counsel of their confidence to handle judicial and administrative procedures involving them; starting in 2017, funds for the payment of legal fees incurred by MSNA are provided for under the Law.³⁵

²⁸ Law No. 47, arts. 3(1)(a) & 3(1)(b).

²⁹ D.L. No. 286, arts. 4(1) & 5(3).

³⁰ Law No. 47, art. 14(1).

³¹ Id. art. 14(3).

³² D.L. No. 286, art. 33(1).

³³ Law No. 47, art. 15(1) & 2-ter.

³⁴ Id. art. 15(1) & 19(1).

³⁵ Id. art. 16(1).

C. Identification of the Minor

The procedure for the identification of an MSNA operates as follows: when an MSNA first comes into contact with an Italian government official or has been reported to the police authorities, social services employees, other representatives of the respective local authority, or delegates of the judicial authority, an inquiry must begin to determine the personal and family history of the MSNA in order to adopt the best protective measures.³⁶ A “cultural mediator” must be present in the interviews with the minor.³⁷ A “cultural mediator” is a person with a professional degree granted by an Italian institution of higher education, whose services are used in different contexts, including by juvenile courts, to assist in the proceedings involving foreign persons.³⁸

Public security authorities, aided by cultural mediators and in the presence of the permanent or temporary guardian assigned to the minor, interview the minor to determine his or her identity, but, as already stated, only after any immediately necessary humanitarian assistance is provided to the minor.³⁹ The MSNA must receive information – with the help of the cultural mediator, in a language that he or she can understand and in accordance with his or her degree of maturity and literacy – of the fact that his or her age can be determined with the aid of socio-health examinations, also about the type of examinations which he or she must undergo, the possible expected results and their possible consequences, including the consequences deriving from his or her possible refusal to undergo such examinations.⁴⁰ This information must also be provided to the person who, even temporarily, exercises guardianship powers over the presumed minor.⁴¹ Social and health examinations that could compromise the psycho-physical state of the person are prohibited.⁴²

The result of the socio-medical assessment is communicated to the minor, in a manner congruent with his or her age, maturity, and level of literacy, to the person in charge of parental responsibility and to the judicial authority that ordered the assessment.⁴³ The margin of error must always be indicated in the final report.⁴⁴

Local government agencies must provide first aid and hospitality facilities especially dedicated to MSNA.⁴⁵

³⁶ Id. art. 5(1), adding article 19-bis(1) to D.L. No. 142.

³⁷ Id. art. 5(3).

³⁸ *Chi è il Mediatore Interculturale?* [Who Is the Cultural Mediator?], *Mediatore Interculturale* (Apr. 23, 2014), <https://perma.cc/3V38-XRN5>.

³⁹ Law No. 47, art. 5(3).

⁴⁰ Id. art. 5(4).

⁴¹ Id. art. 5(5).

⁴² Id. art. 5(6).

⁴³ Id. art. 5(7).

⁴⁴ Id. art. 5(7).

⁴⁵ Id. art. 5(1).

D. Determination of the Age of MSNA

In cases of well-founded doubts relating to the age declared by the minor, such age must be ascertained through documents and also with the assistance of the respective diplomatic and consular authorities.⁴⁶ The age of the minor must be established only if there is no risk that the establishment of age could result in persecution of the minor.⁴⁷ If there are still well-founded doubts regarding the age declared by an unaccompanied foreign minor, at the request of the Attorney General of the Republic, the local juvenile court establishes the age of the minor.⁴⁸

E. Human Trafficking

Per the Law, particular attention must be borne by the respective authorities so that MSNA do not fall victim to human trafficking.⁴⁹ The MSNA also has a right to receive adequate assistance from the authorities when the minor has been the victim of human trafficking.⁵⁰

F. Visas

The police chief (*questore*) issues a residence permit for minors in the following cases:

- To MSNA traced in the national territory and reported to the competent authorities, at the request of the minor, directly or through the person exercising parental authority over them. The permit is valid until the age of majority;⁵¹ and
- Based on family reasons, to minors younger than 14 years of age who are entrusted to public or private assistance institutions according to Law No. 184 of 1982,⁵² or are subjected to the guardianship of an Italian citizen with the same cohabitant, or minors aged 14 years of age or older who are subject to the protection of a foreigner legally residing in the national territory or of an Italian citizen with the same cohabitant.⁵³

Based on their particular situation of vulnerability, the law protects MSNA who enter Italy without an adult by recognizing the same rights for the MSNA as those given to Italian and European Union minors.⁵⁴

Outside of the aforementioned situations, unaccompanied foreign minors are subject to the general legislation on immigration and the status of foreigners in Italy.

⁴⁶ Id. art. 5(3).

⁴⁷ Id. art. 5(2).

⁴⁸ Id. art. 5(4).

⁴⁹ Id. art. 17(1).

⁵⁰ Id. art. 17(2).

⁵¹ Id. art. 10(1)(a).

⁵² Legge 4 maggio 1983, n. 184 (Law No. 184), art. 9, para. 4, <https://perma.cc/P2BP-QF7Y>.

⁵³ Law No. 47, art. 10(1)(b).

⁵⁴ Id. art. 1(1).

G. Legal Representation

The law recognizes the right of MSNA to be heard in all judicial and administrative proceedings affecting them,⁵⁵ to appoint their own legal counsel, and to receive funds for the payment of their legal fees.⁵⁶

H. Role of Child Protection Agencies

The Law creates the National Information System for Foreign Unaccompanied Minors, dependent of the Ministry of Labor and Social Policies.⁵⁷ The System maintains a special archive with information for each unaccompanied foreign minor.⁵⁸ Such registration is aimed at protecting the best interest of the minor.⁵⁹

V. Detention and Repatriation of Unaccompanied Minors

A. Procedures (Special Courts or Tribunals, Appeals, Judicial Review)

The amendments introduced by Law No. 47 specify that foreign unaccompanied minors may never be rejected at the border, and refoulement and expulsion are prohibited.⁶⁰

B. Alternatives to Detention

1. Placing with Foster Families

Several government agencies join in conducting an investigation to establish whether the minor has appropriate family members who may assume the care of the minor; only if there is no willing and able family member is the minor placed with a foster family.⁶¹ Local government entities may promote the designation of foster families to whom juvenile courts may entrust the care of foreign unaccompanied minors.⁶²

2. Appointment of Tutors

Law No. 47 ordered the creation within 90 days from its entry into force of a roster of volunteer tutors at all juvenile courts throughout the country, composed by citizens selected and vetted by

⁵⁵ Id. art. 15(1).

⁵⁶ Id. art. 16(1).

⁵⁷ Id. art. 9(1).

⁵⁸ Id. art. 9(1)–(2).

⁵⁹ Id. art. 9(3).

⁶⁰ Id. art. 3(1)(a) & b).

⁶¹ Id. art. 6(2), adding art. 19(7-quater) to D.L. No. 142.

⁶² Id. art. 7(1), adding art. 2(1-bis) to Law No. 184.

local governments, to teach the Italian language to MSNA, and to provide MSNA with other necessary assistance and guidance.⁶³

3. *Continued Assistance Beyond the Age of Maturity*

In the case of MSNA who reach the age of majority and, despite having followed a path of social integration, still need support to achieve autonomy (for example, when the minor is pursuing formal educational opportunities), the respective juvenile court may order, at his or her request or that of the social welfare authorities, his or her placement under the care of the respective social services agency. This right to be placed with a social service agency expires upon the MSNA reaching the age of 21.⁶⁴

C. Conditions of Detention

Facilities for the welcoming of MSNA must satisfy the minimum standards for services and assistance provided by residential facilities for minors and be authorized or accredited in accordance with national and regional legislation.⁶⁵

D. Educational and Humanitarian Programs Offered in Detention

Besides what has been stated above on this report, no further information on this topic was found.

E. Repatriation (Financial Assistance, Conditions)

General immigration legislation provides that based on reasons of public order or state security, the Minister of the Interior may order the expulsion of a foreigner, even if not resident in the state, with prior notice to the President of the Council of Ministers and the Minister of Foreign Affairs.⁶⁶ The respective questore may also order an administrative expulsion when the foreigner entered the national territory avoiding border controls and was not rejected, as mandated by the law.⁶⁷ Similarly, the questore may order the expulsion of a foreigner who has been detained in the national territory without having previously requested a residence permit within the prescribed term (except in the case of *force majeure*), when the persons' residence permit has been revoked or annulled, or when the permit expired more than 60 days prior and no renewal has been requested.⁶⁸

⁶³ Id. art. 11(1).

⁶⁴ Id. art. 13(2).

⁶⁵ Id. art. 12(1)(b), adding article 19(2-bis) to D.L. No. 142.

⁶⁶ D.L. No. 286, art. 13(1).

⁶⁷ Id. art. 13(2)(a).

⁶⁸ Id. art. 13(2)(b).

Notwithstanding the above, the legislation sets forth special provisions concerning the expulsion of a MSNA from the Italian territory.⁶⁹ Per this legislation, the respective local juvenile court, at the request of the questore, may order the assisted and voluntary repatriation of a MSNA only when it does not cause a risk of serious damage to the minor,⁷⁰ and when reunion of the MSNA with his or her family in the country of origin or in a third country is in the best interests of the child.⁷¹

The law prohibits the expulsion or refoulement to a state where the foreigner may be subjected to persecution for reasons of race, sex, language, citizenship, religion, political opinions, or personal or social conditions, or may be at risk of being sent to another state where he or she will not be protected from persecution.⁷²

Except for reasons of public order or state security, foreign minors under 18 years of age may not be subject to administrative expulsion, without prejudice to their right to follow their parents or foster parents who have been expelled.⁷³

VI. Resettlement and Integration Programs

A. Jurisdictional Responsibility

Besides what has been stated above on this report, no further information on this topic was found.

B. Funding

Besides what has been stated above on this report, no further information on this topic was found.

C. Approaches

Besides what has been stated above on this report, no further information on this topic was found.

VII. Family Reunification

A. Availability

EU legislation concerning family reunification applies in Italy. Per EU legislation, MSNA who are under international protection have the right to reunite with their own families in any of the 25 EU states (excluding Belgium and Hungary).⁷⁴ EU legislation provides that

⁶⁹ Id. art. 31(4).

⁷⁰ Law No. 189, arts. 3(1)(a) & 3(1)(b).

⁷¹ Law No. 47, art. 8(1).

⁷² D.L. No. 286, art. 19(1).

⁷³ Id. art. 19(2)(a).

⁷⁴ Centro Studi di Politica Internazionale, *Primo Rapporto Osservatorio Nazionale sui Minori Stranieri Non Accompagnati in Italia 2020*, at 37, <https://perma.cc/WLQ7-RW46>.

[i]f the refugee is an unaccompanied minor, the Member States:

(a) shall authorise the entry and residence for the purposes of family reunification of his/her first-degree relatives in the direct ascending line without applying the conditions laid down in Article 4(2)(a);

(b) may authorise the entry and residence for the purposes of family reunification of his/her legal guardian or any other member of the family, where the refugee has no relatives in the direct ascending line or such relatives cannot be traced.⁷⁵

In addition, Regulation (EU) No 604/2013 provides that

the Member State where the unaccompanied minor lodged an application for international protection shall, as soon as possible, take appropriate action to identify the family members, siblings or relatives of the unaccompanied minor on the territory of Member States, whilst protecting the best interests of the child.⁷⁶

B. Procedure

Implementing Regulation (UE) No. 118/2014 establishes the presence of a family member, relative or relation of the MSNA as a means of proof within the process of determining the State responsible for examining an application for international protection.⁷⁷

Foreigners may request reunification for dependent minor children.⁷⁸ For purposes of reunification, minor children are those younger than 18 years of age. Adopted or foster minors or minors subject to custody are included in the definition of children.⁷⁹

Regardless of whether they are unmarried or legally separated, foreigners who are present in the national territory may request reunification with their family members, including dependent minor children and those of the spouse or born out of wedlock, on condition that the other parent has given his or her consent.⁸⁰

⁷⁵ Council Directive 2003/86/EC of 22 September 2003 on the Right to Family Reunification, art. 10(3), <https://perma.cc/PB7F-YWHR>.

⁷⁶ Regulation (EU) No 604/2013 of the European Parliament and of the Council of June 26, 2013, Establishing the Criteria and Mechanisms for Determining the Member State Responsible for Examining an Application for International Protection Lodged in One of the Member States by a Third-Country National or a Stateless Person (Recast), article 6(4), <https://perma.cc/37QV-863P>.

⁷⁷ Commission Implementing Regulation (EU) No 118/2014 of 30 January 2014 Amending Regulation (EC) No 1560/2003 laying down detailed Rules for the Application of Council Regulation (EC) No 343/2003 Establishing the Criteria and Mechanisms for Determining the Member State Responsible for Examining an Application for International Protection Lodged in One of the Member States by a Third-Country National, Annex II(I)(1), <https://perma.cc/88MJ-FQ4F>.

⁷⁸ D.L. No. 286, art. 29(1)(b).

⁷⁹ Id. art. 29(2).

⁸⁰ Id. art. 29(b).

The minor child of a foreigner who is a regular resident of Italy is registered on the residence permit or residence card of one or both parents up to the age of 14 and follows the legal status of the parent with whom he or she lives, or if residing with both parents, then that of the parent with the most favorable status.⁸¹ Upon reaching 14 years of age, a minor registered on the residence permit or residence card of his or her parent or the foreigner to whom the minor has been entrusted, receives a residence permit or a residence card for family reasons that is valid until the age of majority.⁸²

C. Restrictions

Overall, the process of tracing family members of unaccompanied minors remains a difficult challenge to implement throughout the European Union, including Italy.⁸³

⁸¹ Id. art. 31(1).

⁸² Id. art. 31(1).

⁸³ *Primo Rapporto Osservatorio Nazionale Minori Stranieri Non Accompagnati*, supra note 74, at 38.

Malta

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SUMMARY Malta is a series of small islands located in the Mediterranean Sea between Sicily and Libya. It is not considered a desirable state by asylum seekers, but many have found themselves on its shores after encountering difficulties in the seas while trying to get to mainland Europe. Malta struggled with an influx of asylum seekers at the turn of this century, but numbers have drastically dropped in recent years. Malta is a signatory of the Refugee Convention and, as a Member State of the European Union (EU), it has transposed into its national laws a number of EU directives providing common standards that define who qualifies for international protection and set the procedures for granting and withdrawing international protection.

The International Protection Agency is responsible for all parts of the process for international protection, and the Agency for the Welfare of Asylum Seekers is responsible for implementing laws and policy.

The laws of Malta provide special protections for unaccompanied minors seeking international protection. These individuals are provided with legal assistance and representatives to help them navigate the asylum procedure. Maltese law prohibits the use of detention for minors under the age of 16. Individuals claiming to be under the age of 18, or in cases where the age of an applicant is uncertain, undergo an age assessment to determine their age. During the time they are waiting for the assessment, these individuals are typically detained, and the conditions of their detention have been the subject of much criticism.

Once unaccompanied minors receive refugee status, they are eligible for family reunification with their first-degree relatives in the direct ascending line, or their guardian if these individuals cannot be located or are no longer alive, if it is in their best interests for this to occur. If it is, the family is traced, using the assistance of international organizations, and once documentation and examinations determine an individual is a member of the family member, a visa is issued to enable the individual to enter Malta.

I. Introduction

The state of Malta consists of six small islands totaling 316 square kilometers located in the Mediterranean Sea between Sicily and Libya. It is one of the most densely populated countries in the world.¹ Malta achieved independence from Britain in 1964 and adopted a constitution that

¹ Home Aff., *Strategy for the Reception of Asylum Seekers and Irregular Migrants* 3, <https://perma.cc/H8PE-YVXB>.

same year.² It became a member of the European Union (EU) on May 1, 2004,³ and adopted the Euro as its currency on January 1, 2008.⁴

Malta has traditionally been a country of emigration.⁵ It is not considered a desirable state by asylum seekers and irregular migrants. However, these individuals often find themselves in Malta after encountering difficulties in the seas nearby while trying to get to mainland Europe, as it is a country of first arrival in the Central Mediterranean, which, up until recently, had a large search and rescue region.⁶

Taking into account Malta's population of approximately 518,000 people,⁷ the ratio of asylum seekers to the population is one of the highest in Europe.⁸ This has caused "significant repercussions [in the country] in terms of resources and accommodation logistics, as well as in relation to other key aspects, including international protection, integration as well as the return of those found not to be deserving of international protection."⁹

A. Statistics

Malta struggled with large number of asylum seekers from 2002,¹⁰ although the number of applications received in recent years has dropped substantially. Malta received 4,021 applications for asylum in 2019. This dropped by almost half in 2020 to 2,419, by half again in 2021, when Malta received 1,281 applications,¹¹ and to 913 in 2022.¹² The drop in numbers can possibly be attributed to a "drastic[] decrease" in the Armed Forces of Malta's sea patrols,¹³ along with a memorandum of understanding with Libya that aims to strengthen cooperation and combat human traffickers both on land and at sea.¹⁴

² Constitution of Malta (Const.), <https://perma.cc/XPM8-2DSG>.

³ *Malta in the EU*, Eur. Comm'n, <https://perma.cc/9DYN-SQ5B>.

⁴ *Malta and the Euro*, Eur. Comm'n, <https://perma.cc/Y3DC-U65Z>.

⁵ *Governance of Migrant Integration in Malta*, Eur. Comm'n, <https://perma.cc/4HSD-R4XL>.

⁶ Dunja Mijatović, *Country Report: Commissioner for Human Rights of the Council of Europe: Report Following Her Visit to Malta From 11 to 16 October 2021* ¶ 39 (Report COMM DH(2022)1, Feb. 15, 2022), <https://perma.cc/8RDC-KBWV>.

⁷ *Population, Total - Malta*, World Bank, <https://perma.cc/PPW7-3MT4>.

⁸ Press Release, National Statistics Office, Malta, World Refugee Day (June 20, 2022), <https://perma.cc/B6X3-ZRX6>.

⁹ Home Aff., *supra* note 1, at 3.

¹⁰ *Id.* at 2.

¹¹ Aditus Found., *Aida Asylum Information Database Country Report: Malta* 33 (2021), <https://perma.cc/G4YF-J4ZR>.

¹² *Malta 2022 Factsheet*, UNHCR (Dec. 31, 2022), <https://perma.cc/G2EW-YES9>.

¹³ Aditus Found., *Aida Asylum Information Database Country Report: Malta*, *supra* note 11.

¹⁴ Press Release, Statement by the Office of the Prime Minister (May 28, 2020), <https://perma.cc/NP27-M7AZ>.

In 2022, the recognition rate of asylum seekers – those granted refugee status or subsidiary protection – was 6%, down from 8% in 2021.¹⁵ The majority of asylum seekers arriving in Malta, in descending order, are nationals of Sudan, Syria, Eritrea, Somalia, and Libya.¹⁶

Malta received 537 unaccompanied and separated children on its shores in 2020, accounting for 24% of arrivals. Most of these children originated from Sudan (22%), Somalia (21%), Bangladesh (15%) and Eritrea (14%). In 2022, 17 individuals were assessed as unaccompanied minors and 10 as separated children. During the registration period for international protection, 33 individuals changed their date of birth, and nine of those were assessed as minors.¹⁷

B. Legislative Framework

Malta is a signatory to the Refugee Convention of July 28, 1951, and its protocol. As an EU member, Malta has transposed into its national laws a number of EU directives providing common standards that define who qualifies for international protection and set the procedures for granting and withdrawing international protection.¹⁸

The International Protection Act (IPA) provides the framework for those seeking international protection and refugee status in Malta. Article 2 of the act defines the term refugee as

a third country national who, owing to a well-founded fear of being persecuted for reasons of race, religion, nationality, membership of a particular social group or political opinion, is outside the country of his nationality and is unable or, owing to such fear, is unwilling to avail himself of the protection of that country; or who, not having a nationality and being outside the country of his former habitual residence, as a result of such events is unable or, owing to such fear, is unwilling to return to it.¹⁹

Acts of persecution are defined as

- (a) acts of physical or mental violence, including acts of sexual violence;
- (b) legal, administrative, police, and/or judicial measures
- (c) prosecution or punishment which is disproportionate or discriminatory;
- (d) denial of judicial redress resulting in a disproportionate or discriminatory manner;

¹⁵ UNHCR, *supra* note 12.

¹⁶ Aditus Found., *Aida Asylum Information Database Country Report: Malta*, *supra* note 11, at 33.

¹⁷ UNHCR, *supra* note 12.

¹⁸ See, e.g., the Procedural Standards for Granting and Withdrawing International Protection Regulations, SL 420.07, <https://perma.cc/9JL9-BKGJ>; Reception of Asylum Seekers Regulations, SL 420.06, <https://perma.cc/JPE5-KGHB>; Temporary Protection for Displaced Persons (Minimum Standards) Regulations, SL 420.05, <https://perma.cc/2LWL-F7PC>; and International Protection Appeals Tribunal (Procedures) Regulations, SL 420.01, <https://perma.cc/U4C6-PA3Z>.

¹⁹ International Protection Act (IPA) art. 2, <https://perma.cc/XN2G-X4YW>.

- (e) prosecution or punishment for refusal to perform military service in a conflict, where performing military service would include crimes or acts falling within the scope of the grounds for exclusion as set out in article 12(2);
- (f) acts of a gender-specific or child-specific nature.²⁰

The events that cause the well-founded fear of persecution may arise after the applicant has left the country, or be based on acts the applicant has engaged in since they left the country of origin, unless this is “based on circumstances which the applicant has created by his own decision since leaving the country of origin.”²¹ Refugee status is granted to an individual in Malta “where it is established that he faces a well-founded fear of persecution in his country of origin or habitual residence in terms of the Convention.”²²

The principle of non-refoulement, contained in article 33 of the UN Convention on Refugees, prohibits the return of refugees to a country where their lives or freedom would be threatened on account of race, religion, nationality, membership of a particular social group or political opinion. Under Article 14 of the IPA, which incorporates the principle of non-refoulement into the national law of Malta, this prohibition does not apply to refugees when there are reasonable grounds to believe that they are a danger to the security of Malta or have been convicted of a serious crime and constitute a danger to the community.²³

C. Government Responsibilities

In Malta, the International Protection Agency (IPA) is responsible for all parts of the process for international protection, beginning with the registration, “examination and determination of eligibility for subsidiary protection being undertaken by the . . . IPA.”²⁴ The Agency for the Welfare of Asylum Seekers (AWAS) is responsible for “the implementation of national legislation and policy concerning the welfare of refugees, persons enjoying international protection and asylum seekers.”²⁵ It manages reception facilities and provides information for asylum seekers, facilitating services for these individuals from other public entities. It also works to promote government plans for resettlement and voluntary returns.²⁶

All applications for asylum must be made at IPA premises.²⁷ The IPA has three procedures under which an applicant for international protection may be processed: a regular procedure, an accelerated procedure,²⁸ or the Dublin procedure. No time limit is specified during which an

²⁰ Id.

²¹ Id. art 8.

²² Id.

²³ Id. IPA art. 2.

²⁴ IPA art. 4(3). See also Aditus Found., *Aida Asylum Information Database Country Report: Malta*, supra note 11, at 17, 31.

²⁵ *Mission & Function*, Awas.gov.mt, <https://perma.cc/ZZC8-AA97>.

²⁶ Id.

²⁷ Aditus Found., *Aida Asylum Information Database Country Report: Malta*, supra note 11, at 32.

²⁸ IPA arts. 23, 24. This procedure may be used for applications that are considered to be manifestly unfounded.

asylum seeker must make or lodge an application. The law provides that the IPA cannot reject or exclude applications from examination because they were not made as soon as possible.²⁹

II. Defining Unaccompanied Minors

The term “unaccompanied minor” is defined in article 2 of the IPA as

a person below the age of eighteen years who arrives in Malta unaccompanied by an adult responsible for him whether by law or by custom, for as long as he is not effectively taken into the care of such a person and includes any minor who is left unaccompanied after he has entered Malta.³⁰

The term “minor” is defined in article 2 of the IPA as “a third country national or stateless person below the age of eighteen years.”³¹

The Reception of Asylum Seekers Regulation further defines unaccompanied minors as

persons below the age of eighteen who arrive in Malta unaccompanied by an adult responsible for them whether by law or by custom, and for as long as they are not effectively taken into the care of such a person; it includes minors who are left unaccompanied after they have entered Malta.³²

III. Restrictions on Claiming Asylum

Article 24 of the IPA provides a number of grounds under which an application for international protection is considered inadmissible. In such cases, an accelerated examination procedure is used to determine whether the application is manifestly unfounded. Applicants are permitted to “present their views, with regard to the application, of the grounds referred to in this article before a decision on the admissibility of an application has been taken.”³³

A. First Country of Asylum

Article 24 of the IPA provides that applications for international protection are inadmissible if the applicant has been in a country that is considered to be a first country of asylum.³⁴ The term “first country of asylum” is defined in article 2 of the IPA as a

²⁹ Procedural Standards for Granting and Withdrawing International Protection Regulations, reg. 8(1).

³⁰ IPA art. 2.

³¹ *Id.*

³² Reception of Asylum Seekers Regulations, SL 420.06, reg. 2, <https://perma.cc/4EWH-763V>. This definition is also reflected in the Procedural Standards for Granting and Withdrawing International Protection Regulations.

³³ IPA art. 24.

³⁴ *Id.* art. 24(b).

country where an applicant for international protection:

- (a) has been recognised in that country as a refugee and he can still avail himself of that protection; or
- (b) he otherwise enjoys sufficient protection in that country including benefiting from the principle of non-refoulement and subject to re-admission to that country.³⁵

Article 2(b) appears to cover countries that the asylum seeker has traveled through prior to arriving in Malta.

The IPA reported that it did not make any decisions on this basis in 2021; however, contrary reports were provided to the Asylum Information Database from non-governmental organizations (NGOs), which reported they had met applicants who had been granted protection in another country and later arrived in Malta, where applications for international protection were refused.³⁶ According to the Asylum Information Database, the NGO's concluded that the refusal of the IPA to accept such applications resulted in the lack of records regarding decisions taken under this article.³⁷

B. Safe Third Countries

The IPA contains the concept of a “safe third country.”³⁸ Article 23 of the act provides that an application for international protection in Malta is inadmissible if the applicant has resided in a safe third country for a “meaningful period of time prior to his entry to Malta.”³⁹ Article 2 of this act defines “safe third country” as

a country of which the applicant is not a national or citizen and where –

- (a) life and liberty are not threatened on account of race, religion, nationality, membership of a particular social group or political opinion;
- (b) the principle of non-refoulement in accordance with the Convention is respected;
- (c) the prohibition of removal, in violation of the right to freedom from torture and cruel, inhuman or degrading treatment as laid down in international law, is respected;

³⁵ Id. art. 2.

³⁶ *Country Report: Malta, Safe Third Country*, Asylum Info. Database & Eur. Council on Refugees & Exiles (last updated May 23, 2022), <https://perma.cc/H2J8-FXL2>.

³⁷ Id.

³⁸ IPA art. 24(c) and sched. The schedule to the act provides a list of safe third countries: Algeria, Australia, Bangladesh, Benin, Botswana, Brazil, Canada, Cape Verde, Chile, Costa Rica, Egypt, Gabon, Ghana, India, Jamaica, Japan, Morocco, New Zealand, Senegal, Tunisia, the United States of America, and Uruguay as well as the Member States of the European Union and European Economic Area.

³⁹ IPA arts. 2, 24(c).

- (d) the possibility exists to request refugee status and, if found to be a refugee, to receive protection in accordance with the Convention;
- (e) the applicant had resided for a meaningful period of time prior to his entry into Malta;
- (f) there is no risk of serious harm as defined in this article

“serious harm” means:

- (a) death penalty or execution; or
- (b) torture or inhuman or degrading treatment or punishment of an applicant in the country of origin; or
- (c) serious and individual threat to a civilian’s life or person by reason of indiscriminate violence in situations of international or internal armed conflict[.]⁴⁰

A report from the Asylum Database and the European Council of Refugees and Exiles noted that

no specific information was provided as regards the actual interpretation and application of the safe third country concept by the IPA. The latter confirmed that no decision has been taken on the basis of this concept in 2020 and 2021. NGOs and lawyers confirmed that, in their experience, the principle is never used.⁴¹

C. Safe Country of Origin

Malta includes the safe country of origin principle in its laws. This provides that applications from those whose country of origin is designated as safe are considered to be manifestly unfounded, which results in an accelerated procedure, where applicants must show they have serious grounds for considering the country is not safe in their particular circumstances.⁴² There is no right of appeal to any decision made on these grounds.

The IPA is responsible for designating safe third countries, and those designated as such are listed in the schedule to the Procedural Standards for Granting and Withdrawing International Protection Regulations.⁴³

D. Exceptions for Unaccompanied Minors

There do not appear to be any exceptions for unaccompanied minors under the above provisions. Article 24A of the IPA specifically provides that unaccompanied minors may be examined using the accelerated procedure when they

⁴⁰ Id. art. 2.

⁴¹ *Country Report: Malta, Safe Third Country*, Asylum Info. Database & Eur. Council on Refugees & Exiles, *supra* note 36.

⁴² IPA art. 2.

⁴³ Procedural Standards for Granting and Withdrawing International Protection Regulations.

- are from a country that has been determined as a safe country of origin,
- have introduced a subsequent application for international protection that is inadmissible, or
- for serious reasons, are considered “a danger to the national security or public order of Malta” or have “been forcibly expelled for serious reasons of public security or public order under national law.”⁴⁴

IV. Protection Offered to Unaccompanied Minors

A. Arrival

Article 13 of the IPA provides that any person under the age of 18 “who is found under circumstances which clearly indicate that he is a child or young person in need of care, shall be allowed to apply for international protection.”⁴⁵

The Agency for the Welfare of Asylum Seekers (AWAS)⁴⁶ is responsible for screening asylum seekers for vulnerability.⁴⁷ At the point of disembarkation, “only persons who are manifestly and visibly vulnerable (e.g., families with young children) are identified and flagged by AWAS.”⁴⁸ Others who may be flagged as vulnerable include unaccompanied minors, those with serious chronic illnesses, the mentally ill, individuals over 60 years of age, the physically disabled, and those with psychological problems.⁴⁹ The policy is to process unaccompanied minors and other vulnerable individuals ahead of other asylum seekers upon their arrival at the examination area.⁵⁰

Unaccompanied minors who declare they are below 18 years of age when they enter Malta, or provide this information on their application form, are automatically referred to AWAS. It assesses the age of those whose age is in question, and the assessment must be completed within six days of the child’s arrival.⁵¹ A report from the Council of Europe found there were no protocols and procedures in place to identify unaccompanied minors on arrival or during detention and that “identification remains ad hoc based on NGO or AWAS observation.”⁵²

⁴⁴ IPA art. 23A.

⁴⁵ Id. art. 13.

⁴⁶ Agency for the Welfare of Asylum Seekers Regulations, SL217.11, <https://perma.cc/3R6U-4WUU>.

⁴⁷ Id.

⁴⁸ Aditus Found., *Aida Asylum Information Database Country Report: Malta*, supra note 11, at 58.

⁴⁹ Id.

⁵⁰ Home Aff., supra note 1, at 8.

⁵¹ Id. at 60.

⁵² Council of Europe, *Grevio Baseline Evaluation Report: Malta* ¶ 250 (Nov. 23, 2020), <https://perma.cc/F8PK-3J6J>.

B. Processing Unaccompanied Minors

Unaccompanied minors are placed in an initial reception center for medical screening and processing. At the initial reception center, they are then informed of their right to apply for international protection by the Office of the Refugee Commissioner. A case worker is assigned to each irregular migrant, who follows them through the initial reception phase. The policy guidance notes that the initial reception facility must make efforts “to provide minors with physical reception conditions and activities appropriate to their age.”⁵³ The stay at the initial reception facility should typically be no longer than seven days, but may be extended if the health of the asylum seeker requires it. If the stay needs to be extended, the health authorities must inform the irregular immigrant of the reasons why “in a language they may be reasonably supposed to understand.”⁵⁴

After unaccompanied minors have undergone the intake process, they are then accommodated at AWAS-run centers that are designed to meet the specific needs of minors in a “homely and child-friendly environment,”⁵⁵ or they are released to adult relatives or a foster family.⁵⁶ With regard to the age and maturity of the minors, their views are taken into account when determining whose custody they are released into.⁵⁷

The centers and services provided there must

- respect the personal safety and confidentiality of residents,
- provide for their basic needs, and
- respect ethnic and cultural diversity.⁵⁸

The procedural regulations require that any changes in residence of an unaccompanied minor must be kept to a minimum.⁵⁹

C. Role of Child Protection Agencies

There are a number of laws that require the notification of the relevant agencies when a person comes into contact with a person claiming to be an unaccompanied minor. The IPA is under a legal duty to inform the competent authorities immediately when an unaccompanied minor makes an application for international protection.⁶⁰ The Minor Protection (Alternative Care) Act

⁵³ Home Aff., *supra* note 1, at 14.

⁵⁴ *Id.*

⁵⁵ *Id.* at 20. The requirement for specialized centers for children is provided for in Reception of Asylum Seekers Regulations, reg. 15(2).

⁵⁶ Procedural Standards for Granting and Withdrawing International Protection Regulations, reg. 18(3).

⁵⁷ *Id.*

⁵⁸ Home Aff., *supra* note 1, at 20.

⁵⁹ Procedural Standards for Granting and Withdrawing International Protection Regulations, reg. 18(3).

⁶⁰ IPA art. 13.

created the position of child protection director in the Foundation for Social Welfare Services.⁶¹ The act requires any person who comes into contact with someone claiming to be an unaccompanied minor to refer that person to the principal immigration officer, who must notify the child protection director.⁶² Within 72 hours of being notified of an unaccompanied minor's presence in Malta, the director must register the minor and provide the minor with an identification document. The Minor Protection (Alternative Care) Act requires the chief executive officer of AWAS to cooperate with child protection director.⁶³

Once the minor has been registered and issued an identification document, the child protection director must ask a court to appoint a representative to support and assist the minor with the procedures contained in the IPA. AWAS is typically appointed as the legal guardian of the child.⁶⁴

The person or entity charged in the care order with the care and custody of the minor is responsible for assisting and supporting the minor, such as by identifying the persons or entities that may be involved in the care, custody, and protection of the minor; coordinating the work of these persons or entities; and ensuring that the minor is offered care, accommodation, education and medical care without delay.⁶⁵ All decisions relating to the minor must be taken in the best interests of the child.⁶⁶

D. Age Assessment

The child protection director is responsible for referring the unaccompanied minor to AWAS so it can “undertake those investigations and evaluations as they deem appropriate to determine whether the minor is in fact an unaccompanied minor.”⁶⁷ The Strategy for the Reception of Asylum Seekers and Irregular Migrants (Strategy) states that an age assessment is undertaken in all cases of unaccompanied minors, except for those who “are undoubtedly children.”⁶⁸ Age assessments must occur within “a reasonable period of time after an application for international protection has been lodged.”⁶⁹ They are conducted by AWAS, with support from the European Union Agency for Asylum (EASO) using “psycho-social assessment procedures approved by AWAS management.”⁷⁰

The person or entity with care and custody of the child must accompany the minor and represent the child during the age assessment and any other investigations or evaluations conducted by

⁶¹ Minor Protection (Alternative Care) Act cap. 602, <https://perma.cc/BB9F-V6HM>.

⁶² Id. art. 21.

⁶³ Id.

⁶⁴ Id. See also IPA art. 13; Children and Young Persons (Care Orders) Act, <https://perma.cc/3U5N-N8GL>.

⁶⁵ Children and Young Persons (Care Orders) Act.

⁶⁶ Minor Protection (Alternative Care) Act art. 21(3)(e).

⁶⁷ Id. art. 21(4).

⁶⁸ Home Aff., *supra* note 1, at 11.

⁶⁹ Reception Regulations, reg. 14(1)(a).

⁷⁰ Home Aff., *supra* note 1, at 15.

AWAS.⁷¹ Age assessments must be conducted by a qualified medical professional and in a language the applicant understands, be as minimally invasive as possible, and be performed with respect for the applicant's dignity. Malta uses medical age assessment procedures "as a last resort when the age of the migrant in question remains in doubt."⁷² The Procedural Regulations state that unaccompanied minors must be informed of the consequences of refusing to undergo an age assessment procedure, "which may include the rejection of the application."⁷³ However, the regulation provides that refusing to undergo the age assessment cannot be the sole grounds for the refusal of an application.⁷⁴

The age assessment procedures in Malta have been criticized by the European Council on Refugees and Exiles as being "plagued by a lack of adequate procedural guarantees, including a lack of information about the procedure."⁷⁵

E. Protection Orders

Once the age assessment procedures establish that the applicant is an unaccompanied minor, the child protection director must submit a request to the court for a protection order and prepare a care plan to be filed with the application. Once the court is satisfied that the person named in the order is an unaccompanied minor and that the care plan is appropriate, it must issue the protection order. The court can impose other conditions that it sees as appropriate, such as placing the minor in the care and custody of the chief executive officer of AWAS or another competent authority or entity, without the need for a hearing.⁷⁶ If the court is not satisfied that the care plan is appropriate, it must schedule a hearing to be held within 10 working days, and the court appoints curators (guardians) to represent both parents, at which point the court will give a final decision on the protection order.

The final protection order continues in force until the unaccompanied minor reaches the age of 18 or it is revoked by the court.⁷⁷ Prior to revoking the protective order, the court must consider any recommendations from the Minors Care Review Board and the reasons for the recommendations. It must also consider the views of the following individuals:

- The minor, if the child is deemed to have a sufficient understanding of the proceedings,
- the children's advocate,⁷⁸

⁷¹ Minor Protection (Alternative Care) Act, art. 21(3)(h).

⁷² Home Aff., *supra* note 1, at 15.

⁷³ Procedural Standards for Granting and Withdrawing International Protection Regulations.

⁷⁴ *Id.*

⁷⁵ Aditus Found., *Aida Asylum Information Database Country Report: Malta*, *supra* note 11.

⁷⁶ Minor Protection (Alternative Care) Act art. 21(6).

⁷⁷ Minor Protection (Alternative Care) Act arts. 21(7), 22; Code of Organization and Civil Procedure cap. 12, art. 930, <https://perma.cc/B5GH-2QUL>.

⁷⁸ A children's advocate must have "receive[d] such relevant training so as to effectively represent and safeguard the views and wishes of the minor . . . when the Children's Advocate is to be engaged in relation to an unaccompanied minor the relevant Children's Advocate should also receive or have received training on

- the parent or parents,
- the key social worker,
- the alternative caregiver,
- the tutor and/or the curator (guardian or conservator), and
- any other person the court deems appropriate.⁷⁹

In cases where the “court determines that there are sufficient reasons to revoke a protection order, it shall refer the case to the Review Board in order to prepare a reintegration plan.”⁸⁰

If the age assessment procedure determines the asylum seeker claiming to be a minor is an adult, the child protection director must apply to the court to revoke the first decree and, if the court is satisfied the applicant is not an unaccompanied minor, it may do so. The applicant is then referred to the police, who consider all the circumstances of the case to decide whether a detention order should be issued.⁸¹ If the court is not satisfied the applicant is not an unaccompanied minor, a hearing must be held within 10 working days. The court appoints guardians to represent both parents, at which point the court will give a final decision.⁸²

There is a right to an appeal when the age assessment determines the applicant is over the age of 18,⁸³ but the European Council on Refugees and Exiles has reported that “[t]he duration of age assessment appeals is significant, with nearly all cases filed in 2021 still pending in January 2022. This leads to situations where the appellants abandon their appeals or simply turn 18 before any decision is issued.”⁸⁴

F. Legal Representation

The Minor Protection (Alternative Care) Act specifically requires the person or entity entrusted with the care and custody of a minor to “ensure that the minor has suitable legal and judicial representation and assistance with regards to his residence status, his request for asylum, or for any other legal or administrative procedures.”⁸⁵ The person or entity with care and custody of the child are further required to “submit the views of the minor in any court or before any

the problems and issues affecting migrant children and children seeking international protection.” Minor Protection (Alternative Care) Act art. 25(2).

⁷⁹ Minor Protection (Alternative Care) Act art. 22.

⁸⁰ Id. art. 22(4).

⁸¹ Home Aff., *supra* note 1, at 11.

⁸² Minor Protection (Alternative Care) Act art. 21(7); Code of Organization and Civil Procedure cap. 12, art. 930.

⁸³ *Special Reception Needs of Vulnerable Groups: Malta*, Asylum Info. Database & Eur. Council on Refugees & Exiles (last updated May 23, 2022), <https://perma.cc/PQM4-Y6QT>.

⁸⁴ Aditus Found., *Aida Asylum Information Database Country Report: Malta*, *supra* note 11.

⁸⁵ Minor Protection (Alternative Care) Act art. 21(3)(d).

administrative authority,”⁸⁶ explain any procedures to the minor, and give any other relevant information to the child.⁸⁷

In addition to the Minor Protection (Alternative Care) Act, the IPA requires an unaccompanied minor applicant to be assisted by a representative appointed by the chief executive officer of AWAS.⁸⁸ A representative is defined in the act as

a person or an organisation appointed by the competent bodies in order to assist and represent an unaccompanied minor in asylum procedures with a view to ensuring the best interests of the child and exercising legal capacity for the minor where necessary. Where an organisation is appointed as a representative, it shall designate a person responsible for carrying out the duties of a representative in respect of the unaccompanied minor.⁸⁹

The representative is required to “perform his duties in the best interests of the minor and . . . have the necessary knowledge of the special needs of minors.”⁹⁰ The representative must inform the unaccompanied minor about the interview for international protection, its meaning, and the consequences that flow from the interview. Where appropriate, the representative must also inform the minor about how to prepare him or herself for the interview. The representative must be present during the interview and can “ask questions or make comments within the framework set by the person who conducts the interview.”⁹¹

The requirement for representation is reflected in both the Procedural Standards for Granting and Withdrawing International Protection Regulations and the Reception of Asylum Seekers Regulations.⁹² The Procedural Standards for Granting and Withdrawing International Protection Regulations further provide that unaccompanied minors must be provided with legal and procedural information free of charge.⁹³

While there have been a number of criticisms about the international protection process for unaccompanied minors, the United Nations High Commissioner for Refugees (UNHCR) determined that access to asylum procedures for unaccompanied minors had “greatly improved through 2022.”⁹⁴

⁸⁶ Id. art. 21(3)(f).

⁸⁷ Id. art. 21(3)(g).

⁸⁸ IPA art. 13. See also Procedural Standards for Granting and Withdrawing International Protection Regulations, reg. 18.

⁸⁹ IPA art. 2.

⁹⁰ Procedural Standards for Granting and Withdrawing International Protection Regulations, reg. 18(1)(b).

⁹¹ Id. reg. 18(1)(d).

⁹² Id. reg. 15.

⁹³ Id. regs. 12, 18(1)(e).

⁹⁴ UNHCR, *supra* note 12.

G. Temporary Humanitarian Protection

The IPA may grant temporary humanitarian protection for applicants who do not qualify for refugee status or subsidiary protection status if they are deemed to qualify for protection on humanitarian grounds. This may apply to “unaccompanied minor[s] who cannot be returned to [their] country of origin pursuant to the principle of the best interests of the child.”⁹⁵

V. Detention and Repatriation of Unaccompanied Minors

In 2016, the European Court of Human Rights ruled that Malta had violated articles 3 and 5(4) of the convention when it detained two children seeking asylum for eight months to determine their age. The court concluded that “[a] detention order for the sole reason of State bureaucratic convenience equates the targeted people with commodities.”⁹⁶ Following the judgment, Malta amended its Reception Regulations to prohibit the detention of vulnerable applicants, including unaccompanied minors. The regulations state,

(1)(c) . . . Provided that applicants identified as minors shall not be detained, except as a measure of last resort:

Provided further that applicants who claim to be minors shall not be detained, except as a measure of last resort, unless the claim is evidently and manifestly unfounded.

(2) Whenever the vulnerability of an applicant becomes apparent at a later stage, assistance and support shall be provided from that point onwards, pursuant to a reassessment of the case.

(3) Whenever the vulnerability of an applicant is ascertained, no detention order shall be issued or, if such an order has already been issued, it shall be revoked with immediate effect.⁹⁷

Thus, the regulations provide that whenever the vulnerability of an applicant is ascertained, no detention order will be issued or, if such an order has already been issued, it must be revoked with immediate effect.⁹⁸ It appears to leave open the detention of applicants who do not undoubtedly look like a minor to have their age ascertained. Further, the Minor Protection (Alternative Care) Act provides that “whenever possible the minor shall not be placed in detention or in accommodation with persons who are not minors,”⁹⁹ although the Reception of Asylum Seekers Regulations state that unaccompanied minors aged 16 and over can be placed in accommodation with adult asylum seekers.¹⁰⁰

⁹⁵ IPA art. 17A(1)(a).

⁹⁶ Abdullahi Elmi and Aweys Abubakar v. Malta, App. Nos. 25794/13 & 28151/13 (2016), <https://perma.cc/W67R-5JER>.

⁹⁷ Reception of Asylum Seekers Regulations, reg. 14; Home Aff., *supra* note 1, at 15.

⁹⁸ Reception of Asylum Seekers Regulations, reg. 14(3).

⁹⁹ Minor Protection (Alternative Care) Act art. 21(3)(c).

¹⁰⁰ Reception Regulations, reg. 15.

The current policy for unaccompanied minor asylum seekers is not to use detention, or any alternatives to detention.¹⁰¹ Despite this policy, it has been noted that

in practice, upon arrival, alleged unaccompanied minors and other manifestly vulnerable persons are immediately de facto detained either in pursuance of the Health Regulations or most of the time without any legal basis and without any form of assessment until they are released or detained under the Reception Regulations.¹⁰²

Unaccompanied minors whose age is unclear when they arrive in Malta seeking international protection are reportedly detained with other adults, pending an age assessment.¹⁰³ Despite the adverse ruling from the European Court of Human Rights over how long Malta can take to conduct an age assessment procedure, there reportedly continue to be long delays before age assessments are conducted.¹⁰⁴

The European Council on Refugees and Exiles found that

[t]he policy of detaining asylum seekers automatically upon arrival continued in 2021, with the use of de facto detention for the first months, either as a measure of quarantine against COVID-19 or on the basis of the health ordinance. During this period of detention, all asylum seekers except families and young children are detained, including individuals claiming to be minors.¹⁰⁵

As noted above, the regulations provide that when a vulnerability “becomes apparent at a later stage, assistance and support is provided from that point onwards.”¹⁰⁶ To provide the law and policy with effect, Malta uses the age assessment procedure discussed in Part IV.D above, to determine whether an applicant is a minor. A report with a recommendation is provided after the assessment, and if the report “concludes the person is vulnerable, he/she is automatically released from detention in case she/he is detained and transferred to the IRC where he/she is seen by the Therapeutic Unit. They are eventually transferred to an open centre.”¹⁰⁷

A report from the Council of Europe has stated the detention continues in some cases even after the applicant has been determined to be a minor if there are no spaces available at the open centers.¹⁰⁸ The report from the Council of Europe was based on an evaluation during September

¹⁰¹ Home Aff., *supra* note 1, at 13.

¹⁰² Asylum Info. Database & Eur. Council on Refugees & Exiles, *Special Reception Needs of Vulnerable Groups: Malta*, *supra* note 83.

¹⁰³ Aditus Found., *Aida Asylum Information Database Country Report: Malta*, *supra* note 11.

¹⁰⁴ *Id.*

¹⁰⁵ *Id.*

¹⁰⁶ *Detention of Vulnerable Minors: Malta*, Asylum Info. Database & Eur. Council on Refugees & Exiles, <https://perma.cc/QJA6-TDS7>.

¹⁰⁷ *Id.*

¹⁰⁸ *Id.* See also Council Eur., *Report to the Maltese Government on the Visit to Malta Carried Out by the European Committee for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment (CPT) from 17 to 22 September 2020* ¶ 57 (Mar. 10, 2021), <https://perma.cc/L29W-8NMF>.

2020. The number of individuals seeking asylum has dropped by over 60% since that time, but we have been unable to locate an updated report to determine whether crowding remains an issue. A habeas corpus action filed in January 2022 for three confirmed minors and four others awaiting an age assessment who had been detained for two months, and another case filed with the Immigration Appeal Board in March 2022, indicate that Malta continues to detain children, in this case alongside adults, pending the determination of an age assessment.¹⁰⁹ UNHCR Malta and NGOs have condemned Malta's continued detention of children.¹¹⁰

Malta reportedly uses an open reception center to cater for individuals who are clearly unaccompanied minors. For those whose age is uncertain, no alternatives to detention appear to be used before the age assessment.

There are a few avenues through which detainees may appeal their detention. They may file an application for judicial review under the civil code,¹¹¹ challenge the lawfulness of the detention under article 34 of the Constitution,¹¹² and contest their detention under article 5 of the European Convention on Human Rights.

A. Conditions of Detention

Article 14 of the Reception Regulations provides that in “the implementation of the provisions relating to material reception conditions and health care, including mental health, account shall be taken of the specific situation of vulnerable persons who shall include minors, unaccompanied minors.”¹¹³ This regulation further provides that AWAS must ensure support is provided to applicants who have special reception needs and take these needs into account during the entire asylum procedure.¹¹⁴

The Detention Regulations provide that detention centers must “provide for the secure but humane accommodation of detained persons . . . allowing as much freedom as possible, consistent with maintaining a safe and secure environment.”¹¹⁵ These regulations provide that detainees must be provided with at least one hour in the open air each day and “activities to meet their recreational needs.”¹¹⁶ Educational programs may be provided at detention centers, and a library must be provided at each center.¹¹⁷

¹⁰⁹ Aditus Found., *Malta Still Detains Children with Adults in Safi Detention Centre* (Apr. 10, 2022), <https://perma.cc/S9VL-PM78>.

¹¹⁰ *Detention of Vulnerable Minors: Malta*, Asylum Info. Database & Eur. Council on Refugees & Exiles, *supra* note 106.

¹¹¹ Code of Organization and Civil Procedure art. 469A.

¹¹² Const. art. 34.

¹¹³ Reception Regulations, reg. 14(1)(a).

¹¹⁴ *Id.*

¹¹⁵ Detention Service Regulations, SL 217.19, reg. 10, <https://perma.cc/E339-4NCT>.

¹¹⁶ *Id.* reg. 26.

¹¹⁷ *Id.*

The conditions under which unaccompanied minors are held has been criticized in multiple reports. A report from the Council of Europe found that, at the time of a visit in September 2020, the open centers were at capacity, and unaccompanied minors were held with adults, including single males, in cramped and poor conditions.¹¹⁸ The report noted the detention did not provide the unaccompanied minors with “access to any activities, education, or even the exercise yard to play games,” and it noted “the lack of any psychosocial support or tailored programmes for children and other vulnerable groups.”¹¹⁹ The report observed, “these establishments are not designed to cater for children, and not only are they inadequate in terms of material conditions, they also completely lack an adequate regime and any specific care provision to cater to the best interests of the child.”¹²⁰ A 2021 report found that unaccompanied minors were “not attending school and were not involved in other meaningful activities.”¹²¹

The University of Malta reported that unaccompanied minors of 16 and 17 years of age who were awaiting age assessments were routinely held with adults, which “violates the legal obligation to consider children as persons under the age of 18.”¹²² The European Council on Refugees and Exiles found that detained applicants were held in unsanitary conditions due to overcrowding, with “limited access to day light, clean water and sanitation.”¹²³ It further found that detainees were not provided with reading materials or leisure activities. The Malta Chamber of Psychologists, while acknowledging the disproportionate burden faced by Malta caused by irregular migration, stated that detainees were subject to inhumane conditions that had a major negative impact on the mental health of those held.¹²⁴

B. Educational and Humanitarian Programs Offered in Detention

School is mandatory for children from 5 to 16 years of age, regardless of the child’s immigration status.¹²⁵ Minors have access to public school education at no charge,¹²⁶ and those who do not speak English or Maltese are provided with an induction course for up to a year to prepare them for mainstream classes.¹²⁷

¹¹⁸ Letter from Ruth Farrugia et al. to Minister for Children (Oct. 24, 2019), Malta Today, <https://perma.cc/8RVD-HC8Z>.

¹¹⁹ Council Eur., *Report to the Maltese Government on the Visit to Malta Carried Out by the European Committee for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment*, supra note 108, at ¶ 59.

¹²⁰ Id.

¹²¹ Aditus Found., *Aida Asylum Information Database Country Report: Malta*, supra note 11, at 85.

¹²² Farrugia et al., supra note 19.

¹²³ *Conditions in Detention Facilities: Malta*, Asylum Info. Database & Eur. Council on Refugees & Exiles, <https://perma.cc/T3PL-KNEF>.

¹²⁴ *Human Rights Cannot Be Ignored, Chamber of Psychologists Insists*, Times of Malta (Sept. 10, 2020), <https://perma.cc/VW9M-HDYD>.

¹²⁵ Reception of Asylum Seekers, reg. 9.

¹²⁶ Home Aff., supra note 1, at 19.

¹²⁷ Agency for the Welfare of Asylum Seekers, *Information Booklet for Residents of Open Centres* 8, <https://perma.cc/XGQ6-5LQQ>.

The Strategy notes, “All Government Departments and entities are to ensure that refugees, beneficiaries of subsidiary protection and asylum seekers are given access to the services they are entitled to in terms of the [IPA] and other applicable legislation.”¹²⁸ Article 13 of the IPA provides that applicants for international protection must have access to state education and training in Malta.¹²⁹

The IPA provides that applicants for international protection must receive state medical care and services.¹³⁰ Health care is provided in open centers, and a migrant health liaison office has been created to help overcome challenges posed by cultural diversity, such as language barriers and “cultural differences in the explanation for the cause of disease and the interpretation of symptoms.”¹³¹ The assistance provided helps migrants understand how to access healthcare in Malta, health education sessions designed for gender, age and specific health issues, and translated materials on different health topics.

C. Repatriation

As noted in Part I.B above, article 14 of the IPA enshrines the prohibition of refoulement into the domestic laws of Malta and prohibits the return of asylum seekers to countries where their “life or freedom would [would be] threatened on account of his race, religion, national, membership of a particular social group or political opinion.”¹³²

Applicants, including unaccompanied minors, whose applications are rejected are typically issued a return decision and removal order.¹³³ The return decision states the reasons the individual is a prohibited immigrant and that there is the possibility to apply for voluntary departure from Malta. If voluntary departure is rejected, a removal order is issued that states the applicant will be detained until removal occurs. There is a right to appeal both the decision and the removal order before the Immigration Appeals Board, which must be filed within three working days of the decision.¹³⁴

Article 15 of the IPA provides that recognized refugees or those with subsidiary protection may submit a written request to the minister for settlement to another country and requires the minister to do all that is required to help with this purpose.

D. Voluntary Return

Malta is part of the European Return and Reintegration Network (ERRIN), which is funded through the European Union Asylum, Migration and Integration Fund and participating member

¹²⁸ Home Aff., *supra* note 1, at 21.

¹²⁹ IPA art. 13(2).

¹³⁰ *Id.*

¹³¹ Home Aff., *supra* note 1, at 22.

¹³² IPA art. 14.

¹³³ Immigration Act, cap. 217, arts. 14, 17, <https://perma.cc/DB8H-4LC7>.

¹³⁴ *Id.* art. 25A.

states.¹³⁵ ERRIN provides reintegration assistance to individuals, including unaccompanied minors, who wish to voluntarily return to their country of origin. The support, which is provided after the individual has applied and been approved by ERRIN, includes airport pickup and assistance, travel assistance in the country of origin, and the provision of basic essentials and temporary housing along with long-term housing support. Further assistance is available, such as help setting up a small business, support locating job placements, and support for vocational training, school, and language training along with social, legal, and medical support.¹³⁶

VI. Resettlement and Integration Programs

In 2017, Malta adopted its first integration strategy.¹³⁷ Malta's first integration program, known as the "I Belong" program, was launched in 2018.¹³⁸ The "I Belong" program is one of the main pillars of the integration strategy.¹³⁹ It is funded by the European Union's Asylum, Migration and Integration Fund and the Maltese government.¹⁴⁰ "I Belong" consists of a series of courses on both the English and Maltese languages and on cultural orientation to help immigrants integrate into Maltese society. A formal application must be submitted to be accepted for the program. The complete program totals 230 hours of education and requires an 80% attendance rate and 50% pass mark to obtain a certificate.¹⁴¹

The Intercultural and Anti-Racism Unit within the Human Rights Directorate is responsible for the implementation of the strategy and action plan.¹⁴² It "serves as the main governmental coordinating body that imparts information, receives integration requests and follows migrants' progress on their integration in Malta."¹⁴³ The unit is responsible for "assist[ing] all persons of migrant background residing in Malta on their individual path to integration."¹⁴⁴

¹³⁵ *About ERRIN*, Eur. Return & Reintegration Network, <https://perma.cc/6RH6-JYNP>.

¹³⁶ *What We Do: Joint Reintegration Programmes*, Eur. Return & Reintegration Network, <https://perma.cc/M9LA-BLN6>.

¹³⁷ Ministry for Eur. Aff. & Equality, *Integration = Belonging: Migrant Integration Strategy & Action Plan Vision 2020* (Dec. 2017), <https://perma.cc/49GU-ACQU>.

¹³⁸ *I Belong, Malta's National Integration Programme*, Eur. Comm'n, <https://perma.cc/85DF-CXS5>.

¹³⁹ *Integration = Belonging*, Humanrights.gov.mt, <https://perma.cc/K5J7-2WK9>.

¹⁴⁰ *I Belong, Malta's National Integration Programme*, *supra* note 138.

¹⁴¹ *I Belong Programme*, Humanrights.gov.mt, <https://perma.cc/G496-B26K>.

¹⁴² *About the Intercultural and Anti-Racism Unit*, Humanrights.gov.mt, <https://perma.cc/CR6S-LG7E>.

¹⁴³ *Id.*

¹⁴⁴ *Id.*

VII. Family Reunification

Once an unaccompanied minor is determined to be a refugee, AWAS begins procedures to trace any family members if it is in the best interests of the child. AWAS receives the assistance of international organizations when necessary.¹⁴⁵ Applicants for refugee status who do not yet have a decision, and those granted subsidiary protection, are not eligible to apply for family reunification.¹⁴⁶

The Procedural Regulations provide that,

in cases where there may be a threat to the life or integrity of the minor himself or his close relatives, particularly if they have remained in the country of origin, care must be taken to ensure that the collection, processing and circulation of information concerning these persons is undertaken on a confidential basis¹⁴⁷

Where family members are identified, further action is taken if it is in the best interests of the child,¹⁴⁸ “possibly with a view to reuniting the minor with his or her family members.”¹⁴⁹

The Family Reunification Regulations provide that family reunification for unaccompanied minors is only available for “first-degree relatives in the direct ascending line.”¹⁵⁰ If the unaccompanied minor does not have such a relative, or the relative cannot be traced, the entry and residence of their legal guardian or other member of the family may be authorized.¹⁵¹ Documentary evidence of the relationship should be shown. If this evidence is not available, information and other evidence during the examination of the application may be taken into account, and not having this documentation alone will not cause the application to fail.¹⁵² The requirement for sponsors to have lawfully resided in Malta for two years does not apply in the case of recognized refugees.¹⁵³

Applications for family reunification should be made within three months of the date the applicant was granted refugee status. Applications submitted after this time require evidence that the sponsor has suitable family accommodations and stable and regular resources that are not social benefits and are equivalent to the statutory minimum wage in Malta.¹⁵⁴

¹⁴⁵ Procedural Standards for Granting and Withdrawing International Protection Regulations, reg. 18(4).

¹⁴⁶ Id. reg. 3.

¹⁴⁷ Id.

¹⁴⁸ Minor Protection (Alternative Care) Act, cap. 602, art. 21(4).

¹⁴⁹ Home Aff., *supra* note 1, at 18.

¹⁵⁰ Family Reunification Regulations, SL 217.06, reg. 24, <https://perma.cc/JHZ7-HGWB>.

¹⁵¹ Id.

¹⁵² Id. reg. 25.

¹⁵³ Id. reg. 27.

¹⁵⁴ Id. See also *Criteria and Conditions*, Asylum Info. Database & Eur. Council on Refugees & Exiles (last updated May 23, 2022), <https://perma.cc/X8JD-H3VP>.

Once an application for family reunification is granted, the family member is required to obtain a visa. Problems may arise during this process in countries without a Maltese embassy and subsequently require family members to travel to countries have one.¹⁵⁵ Once family members who are able to obtain a visa arrive in Malta, they are granted a renewable residence permit for one year.¹⁵⁶ Family members are able to access education and vocational guidance and training. Within the first 12 months of their arrival, they also may obtain employment and self-employment but must have an employment license, which requires an assessment of the situation of the labor market.¹⁵⁷ Additional conditions may be attached to the residence permit requiring the sponsor and family members to successfully attend and complete courses in Maltese.¹⁵⁸

¹⁵⁵ *Status & Rights of Family Members: Malta*, Asylum Info. Database & Eur. Council on Refugees & Exiles (last updated May 23, 2022), <https://perma.cc/M768-5J54>.

¹⁵⁶ Family Reunification Regulations, reg. 1.

¹⁵⁷ *Id.* reg. 15.

¹⁵⁸ *Id.* reg. 1.

Russian Federation

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SUMMARY Russian law does not distinguish unaccompanied minors as a separate category of migrants. Without special status, unaccompanied minors are not granted specific protections of rights guaranteed by international law. Minors located in Russia are subject to childhood protection regulations, and child protection agencies are involved in deciding whether a child should be returned home or placed in a state institution. Repatriation of migrant children within the Commonwealth of Independent States is conducted in accordance with an international agreement, but as to minors from countries not party to this agreement, courts rarely order deportation.

I. Introduction

Migration is an important social, economic, and political factor in Russia.

According to [International Organization for Migration] estimates, for many years Russia has held second place, behind the United States, for the number of foreigners present in the country. It is also second in Europe, after Germany, for the number of migrants. According to the OECD, Russia has the highest number of illegal migrants in the world, comprising almost 7% of the country's population; whereas legal migrant workers comprise 2.5% of the population.¹

Before the pandemic, the country received around 15 million foreign migrants per year. In 2021 and 2022, due to the pandemic, the number of migrants decreased by approximately one-half.² Around 52% of migrants are labor migrants. Russia remains a favorable labor market for citizens of the former Soviet republics. In 2021, 22% of Russia's migrants came from Ukraine (1.6 million), 20% came from Uzbekistan (1.5 million), 14% came from Tajikistan (1 million) and 9% (660,000) arrived from Kazakhstan and Kyrgyzstan each.³ Approximately 1 million of those who migrated to Russia in 2021 were under the age of 18.⁴ No information on the numbers of unaccompanied or undocumented minor migrants was found.

¹ Integral Human Development, *Country Profiles: Russia*, Exec. Summ. (2019), <https://perma.cc/A3RL-9C2L>.

² Roman Chuprov, *Ministry of Internal Affairs Reported on Migration Situation in the Country*, MVD-Media (Apr. 8, 2022), <https://perma.cc/THX8-3LLJ> (in Russian).

³ Id.

⁴ Russian Statistics Agency, *Migration and Population of the Russian Federation in 2021*, <https://perma.cc/7EKP-CX85> (in Russian).

The agency in charge of migration control is the Migration Directorate at the Federal Ministry of Internal Affairs (the national police). The Migration Directorate has regional branches in each constituent component of the Russian Federation. In dealings with migrants under the age of 18, the Migration Directorate is required to work with regional and local institutions for the protection of children and guardianship.

On May 1, 2022, the Supreme Court of Russia published a summary of migration-related positions and practice of international organizations working in the field of human rights protection as guidance for lower courts on how to ensure the rights of migrants in court rulings.⁵ Section 13 of the document enumerates guarantees for migrant children, including rights to registration and identification, protection of personal data, family life, protection from exploitation and violence, health care, education, personal inviolability, return to one's home country, access to justice, and other issues.

The main domestic legal act regulating migration is the Federal Law on the Legal Status of Foreign Nationals in the Russian Federation.⁶ This law does not address minors as a separate category of migrants. Children who arrived together with their parents or legal guardians are viewed as members of their family and are subject to general migration regulations.

Legally, only minors older than 16 years of age can enter Russia unaccompanied, and only if they possess a written consent from their parents or guardians.⁷ Usually, minors may arrive to Russia for varied private purposes or for education in a state-accredited educational institution. Migration of minors for work is not allowed because it is illegal to employ foreign and stateless individuals under the age of 18. Minors are required to live and move inside the country together with their parents or guardians. They are subject to the migrants' registration for their family, and the term of their permitted presence in the country is that established for their parents.⁸

Humanitarian protection is regulated by the Federal Law on Refugees.⁹ The law provides for recognizing refugees, and for granting the right to reside in Russia to those without refugee status who have sufficient humanitarian reasons for protection.

In matters involving children, acts regulating the legal status of children and their rights should be taken into account. These include the Family Code of the Russian Federation,¹⁰ the Federal

⁵ Supreme Court of the Russian Federation, *Summary of the Practice and Legal Positions of International Human Rights Organizations in Regard to Protection of Migrants' Rights* (May 1, 2022), <https://perma.cc/FM5U-2RLU> (in Russian).

⁶ Federal Law on the Legal Status of Foreign Citizens in the Russian Federation, No. 115-FZ, adopted on July 25, 2002, last amended on Dec. 29, 2022, <https://perma.cc/K675-3B3Y> (in Russian).

⁷ *Id.* art. 6.

⁸ *Id.*

⁹ Federal Law on Refugees, No. 4528-1, adopted on Feb. 19, 1993, last amended on July 14, 2022, <https://perma.cc/Y9UQ-7JXS> (in Russian).

¹⁰ Family Code of the Russian Federation, No. 223-FZ, adopted on Dec. 29, 1995, last amended on Dec. 19, 2022, <https://perma.cc/8FX8-ZSQC> (in Russian).

Law on Guardianship and Custody,¹¹ and the Federal Law on the Basic Guarantees of the Rights of the Child in the Russian Federation.¹² According to these laws, a minor is a person under 18 years of age. The place of residence of a child under the age of 14 is determined by the place of residence of his parents or legal representatives; the establishment of guardianship for children left without parental care is required.¹³

Presently, the treatment of unaccompanied minor migrants appears to be unregulated under Russian law, and contradictory provisions seem to complicate resolution of legal issues that arise. A legal scholar recommended the following administrative measures aimed at improving protection of unaccompanied minor migrants:

- Establish mandatory registration of migrant children
- Ensure exchange of information and coordination between migration authorities and child protection institutions
- Define processes to hold minors responsible for administrative violations of migration procedures
- Determine the procedure for identification of unaccompanied minor migrants who are undocumented
- Take into account the legal status of minor unaccompanied foreigners when they are administratively removed, deported, or readmitted¹⁴

II. Defining Unaccompanied Minors

Unaccompanied minors are not distinguished as a separate category of migrants. Without special status, unaccompanied migrant children in Russia do not enjoy the specific protections that are supposed to be guaranteed under international law. According to a research paper, Russian law does not recognize the concept of unaccompanied child migrants, despite Russia's ratification of the UN Convention on the Rights of the Child in 1990.

The wording “unaccompanied and separated children” is not mentioned in legal acts related to children or to migrants. But if mentioned, it would be understood and interpreted within the national context of regulation of children's rights.

¹¹ Federal Law on Guardianship and Custody, No. 48-FZ, adopted on Apr. 24, 2008, last amended on Apr. 30, 2021, arts. 6, 13, <https://perma.cc/U75H-XAL4> (in Russian).

¹² Federal Law on the Basic Guarantees of the Rights of the Child in the Russian Federation, No. 124-FZ, adopted on July 24, 1998, last amended on Dec. 29, 2022, <https://perma.cc/YUX2-REL8> (in Russian).

¹³ Family Code, art. 145.

¹⁴ N.V. Poliakova, *Problems of Administrative Regulation of Minor Migrants' Legal Status*, Vestnik Voronezhskogo Instituta MVD (2017), <https://perma.cc/3L2P-QQGT> (in Russian).

In accordance with the national law . . . [a] child separated from parents would be labeled “a child left without parental care” [and would be treated as having been] abandoned or neglected by the parents.¹⁵

In order to find a placement for a child, a local state authority dealing with protection of children’s rights will decide whether to attempt to return the child to his or her home country or place the child within a state institution.¹⁶

III. Restrictions on Claiming Asylum

Because unaccompanied children are not defined as migrants or given a specified migrant status, Russian law fails to guarantee protection of basic rights.¹⁷ Not having recognition as a special migrant category, unaccompanied minors are subject to regular asylum application procedures.

It is not clear if minors can submit asylum claims without parental consent, and no decision on granting asylum to an unaccompanied minor has been found. A regular application for asylum must be submitted in person to the local office of the Internal Affairs Ministry within seven days after a petitioner’s arrival in Russia or the establishment of circumstances preventing their return to the country of citizenship or permanent residence.¹⁸ A petition for humanitarian protection and refugee status can be submitted to a diplomatic or consular office of the Russian Federation abroad. The diplomatic office then conducts a preliminary review and, in case of favorable resolution, issues a temporary protection certificate, which allows entry into Russia, where the decision on granting refugee status is made by the authorities.¹⁹

IV. Protection Offered to Unaccompanied Minors

A. Visas

To enter Russia legally, children need to be in possession of their own visa and passport. Visa applications from children are reviewed in the same way as those of adults and should be submitted together with their parents’ visa applications. There are no special visas for children.²⁰

¹⁵ Natalya V. Kravchuk, *Re-Defining Unaccompanied and Separated Children in Russia*, 2016 Law: J. Higher Sch. Econ., No. 2, at 36, 41, <https://perma.cc/U5ZG-84NJ>.

¹⁶ *Id.* at 42.

¹⁷ Elena Zinchenko, Evgeniy Khazov & Irina Evseeva, *Legal Status of Migrant Children in the Russian Federation*, *Pedagogical Sciences Journal*, No. 3, 2020, at 81-83, <https://perma.cc/3T26-4R6T> (in Russian).

¹⁸ Federal Law on Refugees, arts. 4, 12.

¹⁹ Decree of the Russian Federation President No. 748 of July 21, 1997, on Approving the Statute on Granting Political Asylum by the Russian Federation, last amended on Dec. 18, 2018, <https://perma.cc/R7UC-Z5P7> (in Russian).

²⁰ *Visa to Russia*, Embassy of the Russian Federation in the USA, <https://perma.cc/2L94-GPFB>.

B. Legal Representation

Russian law requires that cases of administrative violations committed by minors be resolved by the local commission on the affairs of minors and protection of their rights. The participation of the minor's legal representative in administrative proceedings is mandatory. Because parents or guardians of an unaccompanied minor migrant are not present, the law does not allow such local commissions to resolve the case, and no decision can be made when an unaccompanied minor migrant is accused of violations. The law does not allow appointment of a temporary legal representative for an unaccompanied minor migrant.²¹

C. Role of Child Protection Agencies

Child protection agencies are involved in resolving issues related to "children in difficult life situations" and those who are without parental control and placed in federal institutions.²² These institutions do not distinguish between Russian and migrant children with regard to treatment. They serve as legal representatives of unaccompanied minor migrants when these minors are identified and placed in federal institutions for children without parental control. The participation of child protection agencies in court proceedings is required in cases with unaccompanied minor migrants.²³

V. Detention and Repatriation of Unaccompanied Minors

If an undocumented minor cannot be properly identified, has no place of residence, or committed a legal offense in an administrative unit he or she does not reside, a minor who has reached the age of administrative responsibility (16 years) can be placed in a center for temporary detention of minor offenders.²⁴ However, this placement does not resolve the problem of punishment and further release. Because the procedure for identification of an undocumented minor migrant is not established by legislation precisely, local courts often refuse to accept cases of undocumented foreign minors. That usually extends the period in which a minor migrant is held in a detention center.²⁵

With respect to repatriation, minors who arrived from a member state of the Commonwealth of Independent States and certain other countries are returned to their home country pursuant to the Agreement on Cooperation in Return of Minors to the States of their Permanent Residency.²⁶ Together with Russia, this agreement was signed by Azerbaijan, Armenia, Belarus, Georgia,

²¹ Zinchenko et al., *supra* note 17.

²² Federal Law on the Basic Guarantees of the Rights of the Child in the Russian Federation, art. 15.

²³ *Id.*

²⁴ Federal Law on Foundations of the System of Prevention of Underage Vagrancy and Juvenile Delinquency, No. 120-FZ, adopted on June 24, 1999, last amended on Nov. 21, 2022, <https://perma.cc/J83E-VPZ9> (in Russian).

²⁵ Poliakova, *supra* note 14.

²⁶ Agreement Among the Commonwealth of Independent States Member States on Cooperation in Questions of Returning Minors to the States of their Permanent Residency, October 7, 2002, <https://perma.cc/5RFU-Y2BA> (in Russian).

Kazakhstan, Kyrgyzstan, Moldova, Tajikistan, Uzbekistan, and Ukraine. Minors from these states are transferred to representatives of their states' authorities, or are brought back to the home country accompanied by staff of the detention center and given to their legal representatives or to the institutions of child protection and guardianship.

With respect to minors from countries not part of this agreement, scholars have noted that return of minors to their home countries is complicated by the difficulty of locating the child's parent or guardian or transferring the child to guardianship authorities. As a result, Russian courts rarely order deportation of unaccompanied minors to such countries.²⁷

Researchers have noted that under current Russian deportation rules and procedures, which address adults only, minors are often separated from their parents by Russian law enforcement and become unaccompanied migrant children.²⁸ Because children under 16 cannot be held liable for violations of migration laws, Russian courts usually order the deportation of foreigners in violation of migration law without their children. The law does not provide funding for deporting children under 16 years, and does not allow placement of a minor in migrant detention centers run by the Ministry of Internal Affairs where migrants are held until removal occurs.²⁹ Before a child's deportation order is issued, it is the duty of the court to review if the child's parents or legal guardians have financial means to pay for their child's transfer. If parents are unable to or refuse to pay, the court can consider whether donations or of assistance from the local immigrant community is available.³⁰

Separation also occurs when courts order self-deportation of a migrant and prohibit his or her return to Russia for a specific period of time. Because the court lacks authority to include the child in the deportation order, this minor often remains in Russia without supervision from parents or guardians.³¹

No information was located about established educational programs for unaccompanied minors. Current Russian regulations allow placement of foreign minors in public educational institutions if they are children of documented migrants who are present in Russia legally.³² In 2022, the period of temporary registration for migrant children was extended from 90 days to the duration of their parents' work permit, allowing them to continue to attend school.³³

²⁷ Poliakova, *supra* note 14.

²⁸ Sergey Mikheev, *Separation of Migrant Parents from Their Children: Violation of the Convention on the Rights of the Child*, ADC Memorial (2017), <https://perma.cc/847W-UXH4> (in Russian).

²⁹ *Protection of the Rights of Minors in the Expulsion of Foreign Citizens – Legal Representatives of Children*, State Services, Dinskoi District (Krasnodar) Office of Family and Childhood, <https://perma.cc/EEN6-FA8W> (in Russian).

³⁰ *Id.*

³¹ *Id.*

³² Sergey Chetverkin, *Information on the Rights of Children of Migrants in the Russian Federation*, Staff-House, <https://perma.cc/P5VS-RRL7> (in Russian).

³³ Victoria Kartasheva, *Children of Labor Migrants Were Offered to Extend the Terms of Stay in Russia*, *Parlamentskaia Gazeta* (Dec. 1, 2021), <https://perma.cc/M3YW-YGGQ> (in Russian).

Turkey

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SUMMARY Turkey currently hosts more than 3.7 million refugees or asylum seekers, 1.7 million of whom are children. There is no publicly available and reliable data regarding the number of unaccompanied minors among this current child population, or the number of refugees or asylum seekers who were unaccompanied minors when they were first processed by immigration authorities. Turkish asylum law provides for certain procedural and welfare measures protecting unaccompanied foreign minors who enter the country, and mandates that all administrative processes involving these persons must be conducted in light of the best interest of the child. Unaccompanied foreign minors must be handed over to the care of the Ministry of Family and Social Services after their initial registration is done by immigration authorities. The Ministry is responsible for placing the child with responsible relatives, a foster family, or in an appropriate public childcare institution. Special protections afforded to unaccompanied minors in the asylum application process include requiring specially qualified personnel to be present during any interview with the minor, and a categorical exemption from administrative immigration detention. There are no special or accelerated procedures for obtaining asylum or a visa for unaccompanied foreign minors, however, special procedures are provided for family tracking and reunification. General provisions regarding repatriation and voluntary return apply to unaccompanied minors, but subject to the requirement that all administrative and judicial processes take into account the best interest of the child.

I. Introduction

A. Statistics and Categories of Asylum

1. *Statistics*

Turkey hosts the world's largest population of refugees.¹ A large majority of this population consists of Syrian nationals that sought protection in Turkey as a result of the Syrian Civil War that started in 2011. By April 6, 2023, according to the Ministry of Internal Affairs, 3,426,719 Syrian nationals were under "temporary protection," a special asylum status that is applicable for Syrian nationals and persons seeking protection as part of the mass population movement occurring as a result of the war.² The rest, which numbered about 318,000 people in mid-2022, are refugees

¹ United Nations High Commissioner for Refugees: UN Refugee Agency (UNHCR), *Türkiye Fact Sheet*, February 2023, 1 (2023), <https://perma.cc/GPV8-4LUR>.

² See *Distribution of Syrians Under Temporary Protection by Year* (2023), Presidency of Migration Management, <https://perma.cc/6TPX-LVZC>; *Temporary Protection in Turkey*, Presidency of Migration Management, <https://perma.cc/TQ4G-2M62>.

and asylum seekers that have arrived from other places of the world.³ In 2022, 33,246 applications for asylum were made by persons not subject to the “temporary protection” regime.⁴ The different types of asylum status that exist in Turkish law will be explained below.

According to UNHCR data for the year 2021, Turkey hosted 1.7 million children (defined as persons under 18 years of age) who held some type of asylum status,⁵ and a further 123,000 children who were seeking asylum.⁶ However, there are no publicly available statistics about the share of unaccompanied foreign minors (UFMs) among these asylum status holder and asylum seeker populations.⁷

2. Categories of Asylum

The Turkish legal framework governing the provision of asylum differentiates between two main types of protection: “international protection” and “temporary protection.” This distinction wholly applies to UFMs with all of the legal consequences that follow from it.

a. International Protection

The international protection framework that is set forth by the Law on Foreigners and International Protection (LFIP)⁸ and its implementing regulation, the Regulation on the Implementation of the Law on Foreigners and International Protection (RFIP)⁹ is largely in line with the European Union laws governing the granting and withdrawing of protection to asylum seekers in the EU.

Turkey is a party to the 1951 Convention on the Status of Refugees and its 1967 Protocol;¹⁰ it maintains the geographic limitation allowed by the Convention that limits protection to refugees that seek asylum in Turkey due to “events occurring in Europe.” As a result, the LFIP framework makes a tri-fold distinction between refugee status (that is, refugees that have the full range of rights and protections provided under the Convention, hereinafter referred to as “convention

³ UNHCR, *supra* note 1, at 1.

⁴ *Up-to-Date Statistics – International Protection*, Presidency of Migration Management, <https://perma.cc/W88S-SLHX>.

⁵ *Refugee Data Finder* (Population figures dataset query for Demographics: Refugees: Turkey), UNHCR, <https://perma.cc/5RPC-BWKT>.

⁶ *Refugee Data Finder* (Population figures dataset query for Demographics: Asylum-seekers: Turkey), UNHCR, <https://perma.cc/9EM2-E33E>.

⁷ See Ceday Avcı, *Türkiye’de 750 Bin “Vatansız” Yenidoğan Var*, *Bianet.org* (July 4, 2022), <https://perma.cc/X5EL-E4EF> (in Turkish).

⁸ *Yabancılar ve Uluslararası Koruma Kanunu (LFIP)*, Law No. 6458, Official Gazette (O.G.) No. 28615, Apr. 11, 2013, <https://perma.cc/B4Z6-9DZG> (in Turkish).

⁹ *Yabancılar ve Uluslararası Koruma Kanununun Uygulanmasına İlişkin Yönetmelik (RFIP)*, O.G. No. 29656, Mar. 17, 2016, <https://perma.cc/ED6X-66PA> (in Turkish).

¹⁰ Geneva Convention Relating to the Status of Refugees, July 28, 1951, 189 U.N.T.S. 150; Protocol Relating to the Status of Refugees, Jan. 31, 1967, 606 U.N.T.S. 267. See consolidated text of Convention and Protocol at <https://perma.cc/H5FX-JT3Z>.

refugees” to avoid confusion), “conditional refugee” status, and subsidiary protection status, rather than the two-fold refugee/subsidiary protection distinction that exists in EU law.

The “conditional refugee” status is granted to asylum seekers that fulfil the eligibility criteria for refugee status as provided by the Convention, but are seeking protection from events occurring outside of Europe. The main difference between the convention refugee status and the conditional refugee status is that the latter is granted protection in Turkey “until resettled in a third country.”¹¹ Moreover, the administration may require conditional refugees to reside in a predetermined area, and require them to periodically notify authorities of their whereabouts.¹² Conditional refugees are not entitled to receive the “refugee travel document” (also known as the “Geneva Passport”) that is issued to convention refugees, and must apply for a single use travel document to leave or re-enter the country.¹³

The LFIP framework otherwise provides conditional refugees a level of protection similar to convention refugees; most importantly, conditional refugees cannot be returned to a place where they may be subjected to torture, inhuman or degrading punishment or treatment or, where their life or freedom would be threatened on account of their race, religion, nationality, membership in a particular social group, or political opinion (the non-refoulement principle), and cannot be detained for the mere fact that they entered into the country to seek asylum, but only exceptionally for reasons such as determination of identity or a serious threat to public order or security.¹⁴

The third type of international protection is the “subsidiary protection” status, which is granted to foreigners who do not qualify as convention refugees or conditional refugees, but if returned to their country of origin or prior residence, will

- a) be sentenced to death or face the execution of the death penalty;
- b) face torture or inhuman or degrading treatment or punishment;
- c) face serious threat to themselves by reason of indiscriminate violence in situations of international or nationwide armed conflict;

and therefore are unable or, for the reason of such threat, are unwilling to avail themselves of the protection of their country of origin or country of prior residence.¹⁵ Similar to conditional refugees, persons granted subsidiary protection may be required to reside in an area determined by the administration and to notify authorities of their whereabouts.¹⁶ They are also subject to the

¹¹ LFIP, *supra* note 8, art. 62.

¹² *Id.* art. 82.

¹³ *Id.* art. 84.

¹⁴ *Id.* art. 4.

¹⁵ *Id.* art. 63.

¹⁶ *Id.* art. 82.

same rules regarding travel documents.¹⁷ Like convention refugees and conditional refugees, subsidiary protection status holders benefit from the non-refoulement principle.¹⁸

b. Temporary Protection

Article 91 of the LFIP provides the legal basis for the establishment of a special “temporary protection” status to provide protection, outside of the international protection framework, to persons who have arrived in Turkey to seek urgent and temporary refuge as part of a mass movement of people. On this basis, a temporary protection status was created by the Regulation on Temporary Protection (RTP).¹⁹ The RTP authorizes the President of the Republic to declare the scope of temporary protection.²⁰ Currently, the RTP applies to all “citizens of the Syrian Arab Republic, stateless people and refugees, who have arrived in Turkey since April 28, 2011, whether individually or as part of a mass movement of people, due to events unfolding in Syria” and “citizens of the Syrian Arab Republic who have arrived in Turkey since April 28, 2011 due to events unfolding in Syria and, having crossed to the Aegean islands [i.e. Greek islands in the Aegean Sea] after March 20, 2016 via irregular ways, were readmitted to Turkey and have made an application for protection.”²¹ Like persons subject to the international protection regime, persons under temporary protection benefit from the principle of non-refoulement.²²

B. Jurisdictional Responsibilities

The legal framework for asylum involves different institutions throughout the processing of an unaccompanied minor in the asylum system.

1. *The Presidency of Migration Management and Provincial Directorates of Migration Management*

The Presidency of Migration Management (PMM), which is organized under the Ministry of Internal Affairs, is responsible through its field offices (the Provincial Directorates of Migration Management (PDMMs)) to conduct the initial registration of persons seeking asylum within the territory of Turkey or at ports of entry.²³ The PDMMs are required to make an assessment at initial registration regarding whether the asylum seeker belongs to one of the categories designated as “persons with special needs,” which includes unaccompanied minors among other categories such as persons with disabilities, pregnant women, persons who have suffered severe psychological, physical, or sexual violence, etc.²⁴ In cases where the physical development of the asylum seeker appears to be incongruous with the declared age at registration and the asylum

¹⁷ Id. art. 84.

¹⁸ Id. art. 4.

¹⁹ Geçici Koruma Yönetmeliği (RTP), O.G. No. 29153, Oct. 22, 2014, <https://perma.cc/3BHD-J4KT> (in Turkish).

²⁰ Id. art. 10.

²¹ Id. provisional article 1.

²² Id. art. 6.

²³ RFIP, *supra* note 9, arts. 65, 66.

²⁴ Id. art. 113(1),(2); Ministry of Internal Affairs, *Geçici Koruma Kapsamındaki Yabancıların İşlemleri Hakkında*, Circular No. 2017/10, § A(5), <https://perma.cc/YP6V-RS3Z> (in Turkish).

seeker does not possess identification documents proving the declared age, the PDMM is required to conduct a “comprehensive age determination that includes physical and psychological assessments.”²⁵ Asylum seekers subject to age determination are to be lodged in special shelters established by the PDMMs while awaiting the final age determination report.²⁶

2. *The Ministry of Family and Social Services and Field Offices, The General Directorate of Child Services, and Childcare Institutions*

Once the PDMM determines that the asylum seeker is an UFM (at the outset or after the age determination process), the PDMM will complete the initial registration procedures including issuing the UFM a foreigner identification number or a temporary protection identification card if the minor is eligible for temporary protection. The PDMM must then immediately refer the UFM to the appropriate provincial field office of the Ministry of Family and Social Services (i.e. a Provincial Directorate of Family and Social Services (PDFS)).²⁷ Before the UFM is handed over to the PDFS, the PDMM must ensure that the UFM is examined in a health institution for diseases or substance addiction and necessary treatments are carried out. In addition, the PDMM must obtain from the health institution a report finding that residing in a collective living environment would not pose a health hazard to the UFM.²⁸

Once the UFM is handed over to the appropriate PDFS, the Ministry of Family and Social Services is responsible for the placement of the UFM in a care environment, which is done by one of the following according to the child’s needs: placement with adult relatives, placement with a foster family, or admittance in a childcare institution.²⁹ Public childcare institutions in Turkey are operated by the General Directorate of Child Services, which also supervises related services provided by the non-governmental sector.³⁰ If the UFM is processed under one of the international protection categories (i.e. convention refugee, conditional refugee, or subsidiary protection), the refugee status determination process shall continue before the PMM and its provincial organization until a final decision is rendered (if the UFM is processed under the temporary protection category, the status determination is made at the initial registration). After a positive status determination is made (or temporary protection is granted), the PMM remains the administrative agency responsible for all transactions and processes related to the continuation and termination of the asylum status of the UFM, the UFM’s removal, voluntary return or final resettlement in a third country, and for coordinating with the Ministry of Family and Social Services and other related agencies in the provision of public services such as education and health services.

²⁵ RFIP, supra note 9, art. 123(1)(b); Refakatsiz Çocuklar Yönergesi (UMD), Directive of October 20, 2015, art. 6(1)(c), <https://perma.cc/VL77-6BEL> (in Turkish).

²⁶ RFIP, supra note 9, art. 123(1)(ç); UMD, supra note 25, art. 6(1)(ç).

²⁷ LFIP, supra note 8, art. 66(1)(b); RFIP, supra note 9, art. 123(1)(a); UMD, supra note 25, art. 6(1)(e).

²⁸ UMD, supra note 25, art. 6(1)(e), (f).

²⁹ RFIP, supra note 9, art. 123(1)(a); UMD, supra note 25, art. 6(1)(g).

³⁰ Sosyal Hizmetler Kanunu [Law on Social Services], Law No. 2828, O.G. No. 18059, May 24, 1983, art. 4(a), <https://perma.cc/J6V2-XANG> (in Turkish).

3. Courts

Final decisions of all administrative authorities, including the PMM's decisions regarding admissibility of asylum applications, administrative detention orders, refugee status determinations, and removal decisions are reviewable in administrative courts after available administrative remedies are exhausted.³¹

The Turkish Civil Code (TCC) requires any minor who is not in the legal custody of a parent to be placed under guardianship.³² This applies also to children who are placed in childcare institutions. Civil judgeships of the peace have jurisdiction to appoint guardians to minors with civil courts of first instance having power to review the decisions made by a guardian on behalf of a minor.³³

The LFIP provides that the Law on Protection of Children (LPC) applies to all proceedings under the LFIP concerning UFM's from the moment of initial registration.³⁴ The LPC establishes specialized "children's courts," which have jurisdiction to issue child protection orders and to adjudicate all criminal matters involving minors under 18 years of age, regardless of whether they have been emancipated prior to the age of majority.³⁵

C. Legislative framework

- The main legislation governing the processing of asylum applications is the Law on Foreigners and International Protection (LFIP). LFIP mandates immigration authorities to hand over asylum seekers determined to be UFM's to the Ministry of Family and Social Services for purposes of sheltering and eventual protective placement with a childcare institution or responsible adults.
- The procedure applicable to UFM's is further detailed in the LFIP's implementing regulation, the Regulation on the Implementation of the Law on Foreigners and International Protection (LFIP).
- The Regulation on Temporary Protection (RTP) includes some additional provisions regarding the processing of UFM's that are subject to the temporary protection regime rather than international protection.
- The Unaccompanied Minors Directive (UMD),³⁶ issued by the General Directorate of Children Services of the now Ministry of Family and Social Services on October 20, 2015, provides in detail the procedure by which PDMM's shall process the asylum applications of

³¹ LFIP, *supra* note 8, art. 80.

³² Türk Medeni Kanunu (TCC), Law No. 4721, O.G. No. 24607, Dec. 8, 2001, art. 404, <https://perma.cc/XW3D-YV3N> (in Turkish).

³³ *Id.* art. 396.

³⁴ LFIP, *supra* note 8, art. 66(1)(a); Çocuk Koruma Kanunu (LPC), Law No. 5395 (O.G. No. 25876, July 15, 2005), <https://perma.cc/4CCV-PJ2P> (in Turkish).

³⁵ LPC, *supra* note 34, arts. 25, 26.

³⁶ See UMD, *supra* note 25.

unaccompanied persons who are apparently minors or have declared to be minors, the procedure for the transfer of UFM to the care of the PDFs, the principles governing the interactions with UFM in initial registration and the rest of the refugee status determination process (such as status determination interviews), and rules regarding the sheltering and placement of UFM with childcare institutions, responsible adult relatives, or foster families.

- Circular No. 2017/10 on the Procedure and Principles Regarding the Processing of Foreigners Subject to Temporary Protection,³⁷ issued by the now PMM on November 29, 2017, governs the administrative procedure at the initial registration at PDMMs with regards to persons subject to the temporary protection regime. The Circular requires immigration authorities to enter the asylum seeker's UFM status at initial temporary protection registration if applicable.
- The Law on Social Services³⁸ and the Regulation on the Planning of Child Protection Services and the Procedure and Principle Governing the Operation of Childcare Institutions (RPCS)³⁹ governs the operation of childcare institutions to which UFM may be placed following their initial registration in accordance with the relevant provisions of LFIP, RLFIP, and UMD.
- The Law on Protection of Children (LPC) lays out general principles concerning the treatment of minors in all administrative and judicial proceedings and provides for child protection and support measures that can be taken by the related administrative and judicial bodies in coordination with the General Directorate of Child Services under the Ministry of Family and Social Services. The LPC also establishes 'children's prosecutorial bureaus' which are prosecutorial bodies with authority to request courts to grant protective orders with regards to minors and to prosecute minor offenders, and 'children's courts' which are trial courts that have jurisdiction to issue protective orders and to adjudicate criminal cases involving minors. The LFIP provides that the Law on Protection of Children (LPC) applies to all proceedings under the LFIP concerning UFM from the moment of initial registration.⁴⁰

II. Defining Unaccompanied Minors

For the purposes of the Turkish international protection and temporary protection framework, "unaccompanied minor" is defined as "a child who arrives in Turkey without being accompanied by an adult who by law or custom is responsible for him or her, or, a child left unaccompanied after entry into Turkey, provided that he or she did not subsequently come under the active care of a responsible adult."⁴¹

³⁷ See Circular No. 2017/10, *supra* note 24.

³⁸ See Law on Social Services, *supra* note 30.

³⁹ Çocuk Koruma Hizmetleri Planlama ve Çocuk Bakım Kuruluşlarının Çalışma Usul ve Esasları Hakkında Yönetmelik (RPCS), O.G. No. 31945, Sept. 6, 2022, <https://perma.cc/X3BK-FKCT> (in Turkish).

⁴⁰ LFIP, *supra* note 8, art. 66(1)(a).

⁴¹ RLFIP, *supra* note 9, art. 3(1)(y); RTP, *supra* note 19, art. 3(1)(m); UMD, *supra* note 25, art. 4(1)(p).

III. Restrictions on Claiming Asylum

The restrictions on claiming asylum under the Turkish international protection and temporary protection framework appear in three categories: grounds for exclusion from international protection, inadmissibility grounds for international protection applications, and grounds for exclusion from temporary protection.⁴² These grounds are generally applicable and no exceptions are provided in the law for UFM.

According to article 64 of the LFIP, the following are the grounds on which an applicant may be excluded from international protection:

- the applicant is covered by the language of article 1(D) paragraph 1, (E), and (F) of the United Nations Convention on the Status of Refugees as amended by the 1967 Protocol;
- there are “reasons to believe that the applicant committed cruel acts outside Turkey, regardless of the motive, before applying for international protection;”
- there are serious indications that the applicant poses a danger to public order or public security; or
- the applicant has previously committed a crime that is not covered by article 1(F) of the Convention on the Status of Refugees but which, if committed in Turkey, would entail imprisonment, and the applicant has left his or her country of origin or residence only to avoid serving the punishment.

Where an application of the asylum seeker is processed under the international protection category, the PDMM may decide that the asylum seeker’s application is inadmissible. The PDMM must assess the admissibility of the application in the initial registration phase, but an application may be held to be inadmissible at any stage in the process during which grounds for inadmissibility are detected.⁴³ Article 72 of LFIP provides the following grounds on which an application may be found to be inadmissible:

- (a) subsequent applications that do not put forward a different reason;
- (b) applications submitted by persons who were processed previously as family members and have signed a waiver relinquishing the right to make a personal application where the application of such person is (i) made during the pendency of the original application without a justifying reason or (ii) made after the original application was rejected, without providing any additional reasons;
- (c) applications made by persons who are determined to have come from a country where they have been already recognized as a refugee or where it is determined that the asylum seeker had an opportunity to benefit from sufficient and effective protection including the principle of non-refoulement; and
- (c) applications of asylum seekers who have come from a safe third country where he or she has or could have made an application for international protection that would result

⁴² The RTP does not make a distinction between grounds for exclusion and inadmissibility for temporary protection because the limited geographical scope of temporary protection and the fact that an additional refugee status determination is not required for the granting of temporary protection make the “inadmissibility” grounds that exist for international protection irrelevant for temporary protection.

⁴³ RFIP, *supra* note 9, arts. 73-74.

in protection conforming to the standards of the Convention Relating to the Status of Refugees and its 1967 Protocol.⁴⁴

The restrictions on temporary protection are slightly different than those on the granting of international protection. Article 8 of the RTP provides for a list of persons ineligible for temporary protection, or whose temporary protection status must be cancelled if discovered after registration. These are the following:

- a) Those with respect to whom there are serious reasons to consider that they are guilty of actions defined in Article 1 (F) of the Convention Relating to the Status of Refugees dated 28/7/1951 amended by the 1967 Protocol Relating to the Status of Refugees;
- b) Those regarding whom there are reasons indicating that he or she has committed cruel acts outside of Turkey for any reason whatsoever;
- c) He or she has taken part in the commission of crimes or acts as specified in subparagraphs (a) and (b) of this paragraph or incited others to commit such crimes or acts;
- ç) Those who took part in armed conflicts in his or her country and did not permanently cease such activities;
- d) Those who are identified as having committed, planned to commit, or participated in acts of terrorism;
- e) Those who are considered to be a threat to the public due to being convicted of a serious crime and those who are considered to pose danger to national security, public order, or public security;
- f) Those who have previously committed a crime or crimes for which an imprisonment sentence would have been given if committed in Turkey and have left their country of origin or country of residence in order to avoid punishment for that crime;
- g) Those who are convicted of crimes against humanity by international courts;
- ğ) Those who have committed one of the crimes laid down in Chapter Seven of Part Four of the Turkish Penal Code No. 5237 of 26/9/2004 [i.e. Crimes against state secrets and espionage].⁴⁵

While the general restrictions on international protection or temporary protection applications apply to UFM's without exception, UFM's are exempt from the "accelerated assessment" procedure for denying international protection applications that are *prima facie* inadmissible or are suspect for certain reasons.⁴⁶ UFM's are thus spared from summary denial of their applications under this procedure.

⁴⁴ LFIP, *supra* note 8, art. 72.

⁴⁵ RTP, *supra* note 19, art. 8.

⁴⁶ LFIP, *supra* note 8, art. 79. Applications are subject to the accelerated assessment process in cases where the applicant, (a) has never mentioned elements that would require international protection when presenting reasons while lodging the application; (b) misled the authorities by presenting untrue or misleading information or documents or, by withholding information or documents that might negatively impact the decision; (c) has destroyed or disposed of identity or travel documents in bad faith in order to make determination of identity or citizenship difficult; (ç) has been placed under administrative detention pending removal; (d) has applied solely to postpone or prevent the implementation of a decision that would lead to his/her removal from Turkey; (e) poses a public order or public security threat or, has previously been removed from Turkey on such grounds; (f) repeats the application after the [initial] application is considered to have been withdrawn. *Id.* The assessment interview for such applications must take place within three days of

IV. Protection Offered to Unaccompanied Minors

A. Visas

In Turkish immigration law, UFM's are not eligible for, or subject to, a special visa regime outside of the international protection or temporary protection systems. UFM's who have entered Turkey regularly or irregularly are subject to the same general rules regarding the conditions to remain in the country and the issuance of short- and long-term residence permits, applicable to other foreigners.⁴⁷

B. Legal Representation

The international protection and temporary protection framework do not provide for a general right to counsel in the administrative proceedings related to asylum; neither does a general right to counsel exist in the procedure before administrative courts in cases of judicial review of the administration's decisions. Generally, applicants for international protection may be represented by counsel at their own expense in administrative proceedings other than the initial application and the refugee status determination interview, to which the applicant's attorney may attend as an observer.⁴⁸ Applicants for international protection have may be represented by counsel at their own expense in all administrative proceedings.⁴⁹ As a matter of course, the applicants may be represented by counsel in judicial proceedings before administrative courts at their own expense.⁵⁰

Nevertheless, the procedure under the LFIP ensures that the UFM will have some civil representation, at least once the UFM is transferred to the care of the General Directorate of Child Services. The RPCS provides that the childcare institutions in which a minor is placed must immediately initiate the necessary legal procedures for the appointment of a guardian for the

the initial registration, and decisions on the applications must be finalized within five days of the interview. LFIP art. 79(2).

⁴⁷ A country report published by the European Council of Refugees and Exiles (ECRE) reports on the basis of anecdotal evidence that UMs accommodated in childcare institutions have been at occasions granted Turkish citizenship if it was established that they have no relatives in Turkey. ECRE, *Asylum Information Database Country Report: Türkiye, 2021 Update* 172 (2022), <https://perma.cc/5SPU-AJ98>. If accurate, this would be irregular as the Law on Turkish Citizenship does not provide for such a ground for the acquisition of Turkish citizenship. See *Türk Vatandaşlığı Kanunu*, Law No. 5901, O.G. No. 27256, June 12, 2009, arts. 9-22, <https://perma.cc/FLV2-J9KE> (in Turkish). On the contrary, according to article 71(ç) of the Regulation on the Implementation of the Law on Turkish Citizenship, time spent in the country as an applicant or grantee of asylum is not included in the calculation of the five-year continuous residency requirement for naturalization on the basis of residency. See *Türk Vatandaşlığı Kanununun Uygulanmasına İlişkin Yönetmelik*, O.G. No. 27544, Apr. 6, 2010, <https://perma.cc/2CP7-PDZS> (in Turkish).

⁴⁸ RFIP, *supra* note 9, arts. 65, 82.

⁴⁹ RTP, *supra* note 19, art. 53.

⁵⁰ Applicants may generally benefit from formal legal aid programs administered by bar associations under the Law on Attorneys where they cannot afford to hire a lawyer. RTP, *supra* note 19, art. 53; *Avukatlık Kanunu* (Law on Attorneys), O.G. No. 13168, Apr. 7, 1969, arts. 176-179, <https://perma.cc/C2P6-MKJR>.

minor to prevent any loss of rights of the child.⁵¹ The Turkish Civil Code (TCC) requires any minor who is not in the legal custody of a parent to be placed under guardianship.⁵² Under the TCC, guardians are appointed by court order.⁵³ A guardian may represent the minor in all legal transactions.⁵⁴ Fees associated with the guardianship duty may be paid by the treasury if the minor does not have means to pay.⁵⁵

Additionally, the LFIP requires that the LPC applies to all processes that the UFM is subject to from the moment that the UFM's application for international protection or temporary protection is received, and that the best interests of the child must be the governing principle in all processes and transactions involving the UFM.⁵⁶ The LPC generally provides for procedural protections for minors in criminal process, however it requires governmental authorities in all formal proceedings (including administrative proceedings, of which asylum proceedings is a type) that interact with a minor they consider to be in need of protection to report the fact to the General Directorate of Child Services, which in turn may request from a children's court to issue protective orders for the minor.⁵⁷ While the LPC does not provide for mandatory representation of minors in judicial and administrative proceedings, it nevertheless reiterates the primacy of the best interests and welfare of the child as a governing principle in all proceedings.⁵⁸

C. Role of Child Protection Agencies

Once the UFM is handed over to the appropriate PDFS by the PDMM that has completed the UFM's initial registration and (if necessary) age determination, the Ministry of Family and Social Services will place the UFM with adult relatives, with a foster family, or in a childcare institution.⁵⁹ The Unaccompanied Minors Directive of 2015 governs the role of the Ministry and the relevant PDFS after the child is transferred to their care. The Directive provides that the placement of the UFM with a foster family, if possible with a family of same nationality, should be given preference over placement in a childcare institution, if this is in line with the best interest of the UFM and the UFM's own wishes.⁶⁰ UFM's, to the extent possible and considering the age and maturity of the UFM's, must not be separated from their siblings, and their location of placement must not be changed unless necessary.⁶¹

⁵¹ RPCS, *supra* note 39, art. 36(1).

⁵² TCC, *supra* note 32, art. 404.

⁵³ *Id.* art. 413.

⁵⁴ *Id.* art. 448.

⁵⁵ *Id.* art. 457.

⁵⁶ LFIP, *supra* note 8, art. 66.

⁵⁷ LCP, *supra* note 34, arts. 5, 6.

⁵⁸ See *id.* art. 4.

⁵⁹ RFIP, *supra* note 9, art. 123(1)(a); UMD, *supra* note 25, art. 6(1)(g).

⁶⁰ UMD, *supra* note 25, art. 5.

⁶¹ *Id.* art. 6(h).

UFMs who are not placed with a family are to be admitted in one of the various types of childcare institutions that is appropriate in light of their age, sex, and personal condition.⁶² UFMs who suffer from mental or physical disabilities, chronic illnesses, or psychological disorders and UFMs who are considered youthful offenders under the LPC must be placed in appropriate social services institutions.⁶³

For UFMs to be placed in childcare facilities, the authorities must obtain from the children's courts the requisite child protection orders for care in institutions.⁶⁴ UFMs must be appointed a counselor by the childcare institution, who shall inform the UFM of the services that the institution shall provide and orient the UFM to life in the institution.⁶⁵

The Ministry must ensure that school-age UFMs placed in childcare institutions are enrolled in appropriate primary or secondary schools, and for those who are older, appropriate placements in extended study programs or occupational schools are made available, if possible.⁶⁶ The UFMs must also be provided with free Turkish language courses.⁶⁷ Health costs of the UFMs who are placed in childcare institutions are covered by the national mandatory general health insurance system.⁶⁸

The UFM's appointed counselor must accompany the UFM in the refugee status determination interview, and the views of the UFM's counselor must be considered in the preparation of the interview report.⁶⁹ A copy of the interview report must be sent to the relevant PDFS for inclusion in the UFM's file.⁷⁰ The Ministry must communicate with the relevant PDMM to monitor the status of the UFM's application for international protection, and communicate to asylum authorities any request by the UFM for family reunification in the origin country, third country, or voluntary return.⁷¹

⁶² Id. art. 7(1)(a).

⁶³ Id. art. 8(6).

⁶⁴ Id. art. 10(1)(a).

⁶⁵ Id. art. 10(1)(d)-(g).

⁶⁶ Id. art. 10(1)(i), (i).

⁶⁷ Id. art. 10(1)(j).

⁶⁸ Id. art. 10(1)(ç).

⁶⁹ Id. art. 6(1), (i).

⁷⁰ Id. art. 6(i).

⁷¹ Id. art. 10(k), (l), and (n).

V. Detention and Repatriation of Unaccompanied Minors

A. Detention

UFMs are categorically excluded from the administrative immigration detention measures provided under the LFIP.⁷² As explained above, the special provisions of the LFIP and RFIP require the referral of the UFM to the PDFS which will proceed with accommodating UFM in an appropriate care environment for the entire duration of their asylum process (including eventual removal, if status is denied), or until they reach majority.

UFMs who are accommodated in childcare institutions must be offered appropriate educational, health, and socialization services.⁷³

B. Repatriation

Like all other asylum seekers, UFM who seek asylum benefit from the non-refoulment principle enshrined in the LFIP.⁷⁴ UFM are not subject to a special repatriation regime and are removable on ordinary grounds upon denial or termination of status. UFM for whom a final removal decision order has been rendered, however, may not be placed in removal detention in removal centers unless they are at least 16 years old and special accommodations are provided.⁷⁵ Rules on voluntary return are equally applicable to UFM. Nevertheless, as in all other administrative processes involving UFM, the LFIP requires the administration to take into account the best interest of the child in the removal or voluntary removal procedure.⁷⁶

VI. Resettlement and Integration Programs

A. Resettlement

Resettlement of persons under international protection is managed by the PMM in coordination with the United Nations High Commissioner for Refugees (UNHCR). Resettlement of Syrian nationals under temporary protection is mainly carried out through two programs; the regular UNHCR resettlement program and the “one-to-one” resettlement program that was established between the European Union and Turkey following the EU-Turkey statement of March 18, 2016, and under which the European Union committed to receive one Syrian under temporary protection for resettlement in an EU country for every Syrian asylum seeker returned to Turkey from Greece. The PMM is responsible for identifying candidates for resettlement and referring

⁷² See Part I(B) and IV(C) *supra*; see also ECRE, *supra* note 47, at 120.

⁷³ See generally UMD, *supra* note 25, art. 10.

⁷⁴ LFIP, *supra* note 8, art. 4.

⁷⁵ RFIP, *supra* note 9, art. 123(2)(d).

⁷⁶ LFIP, *supra* note 8, art. 66(1)(a).

them to UNHCR and the relevant EU bodies as applicants for resettlement.⁷⁷ Final decisions are made by the third countries.⁷⁸

According to PMM data, between 2014 and April 2023, 21,147 Syrians under temporary protection were resettled in third countries through the UNHCR program or directly, the majority of these being resettled in Canada (10,998), USA (4,791), UK (2,681), and Norway (1,931).⁷⁹ An additional 37,347 were settled in EU member states under the “one-to-one” scheme in the same time period, the main countries of resettlement being Germany (15,390), France (5,745), Netherlands (5,520), Sweden (3,152), and Finland (2,742).⁸⁰

The PMM does not publish statistics on the number of persons under international protection who were resettled, although resettlement remains the ultimate objective of the “conditional refugee” status under the LFIP. UNHCR’s Turkey office regularly publishes statistics which sometimes include the year-to-date number of resettlement applications that it has processed. These statistics include resettlement applications made by conditional refugees or applicants for conditional refugee status in addition to Syrians under temporary protection. For example, according to a July 2022 “operational update,” the UNHCR processed resettlement applications from 10,584 applicants between the beginning of 2022 and July 31, 2022 and 5,144 persons left the country in the same period to be resettled in one of 14 third countries.⁸¹ These statistics also do not provide the breakdown of the numbers between different asylum statutes, other than stating that 8% of the 5,144 persons were Afghan nationals (and thus most probably conditional refugees).⁸²

There are no specific rules in the asylum law framework regarding the resettlement of UFM. UFM are thus subject to the general rules applicable to persons with the same asylum status. We found no substantive information regarding the factors that the PMM give weight to when determining candidates for resettlement, and how the fact that a person was registered as an UFM factors into the determination.

B. Integration

The Turkish asylum law framework does not specifically envisage the eventual settlement of the asylum status holders in Turkey.⁸³ Indeed, the conditional refugee and temporary protection categories are expressly designed to provide short-term protection with the eventual return of

⁷⁷ See ECRE, *supra* note 47, at 175.

⁷⁸ *Id.*

⁷⁹ *Up-to-Date Statistics – Temporary Protection*, Presidency of Migration Management, <https://perma.cc/NCA7-PNJA>.

⁸⁰ *Id.*

⁸¹ UNHCR, *Operational Update May-June 2022: Türkiye*, <https://perma.cc/4S3S-EAEL>.

⁸² *Id.*

⁸³ See e.g. LFIP, *supra* note 8, art. 42(2) (providing that convention refugees, conditional refugees, persons under subsidiary protection, and persons under temporary protection are ineligible to apply for long-term residence permits).

asylum status holders to a third country (for conditional refugees) or to their country of origin (for persons under temporary protection) being the final objective. In particular, the LFIP expressly states that conditional refugees are allowed to stay in the country “until resettled in a third country.”⁸⁴ Likewise, the temporary protection framework provides for only a temporary regime to manage mass movements caused by crises that take place in countries of origin that are limited in time, such as war or national disasters, and envisages a presidential determination declaring that the end of the relevant crisis, which may terminate the protection status of all status holders en masse with the expectation that it is now safe for the whole guest population to return to the country of origin.⁸⁵

Nevertheless, the LFIP and RFIP empower the PMM to establish “[social] cohesion” programs for asylum seekers and status holders.⁸⁶ The cohesion scheme appears to consist of a patchwork of programs implemented by various government agencies and funded by different sources including the European Union, the World Bank, various funding streams coordinated by the United Nations Regional Refugee & Resilience (3RP) Plan, and the central government budget.⁸⁷

Programs ensuring the access to education of children under international or temporary protection and Turkish language courses appear to be the cohesion schemes most relevant to UFM. Article 42 of the Constitution of Turkey provides that “no one shall be deprived of the right of education.”⁸⁸ Formal basic education is mandatory by law for all children between the ages 6 and 14, and is provided in public schools for free.⁸⁹ In accordance with this constitutional and legal mandate, school-age children who are subject to the international protection or temporary protection regimes are eligible to enroll in Turkish-language public schools after their competence level is determined by an equivalence assessment conducted by the Ministry of National Education.⁹⁰ While the legal framework does not distinguish between children subject to the international protection regime and those subject to the temporary protection regime with relation to access to basic education, the services actually available to these populations appear to vary due to the different sources of funding, with apparently more international funding being made available for the Syrian population under temporary protection.

⁸⁴ Id. art. 62.

⁸⁵ See RTP, *supra* note 19, arts. 1, 11, and 14. However, upon terminating the temporary protection regime, the president of the republic has the authority to (a) fully suspend the temporary protection and to return persons benefiting from temporary protection to their countries; (b) collectively grant on persons benefiting from temporary protection an [international protection] status provided that they satisfy the conditions of such status, or to assess the applications of those who applied for international protection on an individual basis; or (c) allow persons benefiting from temporary protection to stay in Turkey subject to conditions to be determined within the scope of the Law. See id. art. 11.

⁸⁶ LFIP, *supra* note 8, art. 96; RFIP, *supra* note 9, art. 118.

⁸⁷ See generally *EU Support to Refugees in Türkiye*, European Commission, <https://perma.cc/FH3G-B5L5>; Regional Refugee & Resilience Plan, *Regional Strategic Overview 2023*, <https://perma.cc/RC3P-M4U2>.

⁸⁸ Constitution of Turkey, <https://perma.cc/M6RG-FCAT>.

⁸⁹ İlköğretim ve Eğitim Kanunu, Law No. 222 (O.G. No. 10705, Jan. 12, 1961), arts. 2, 3, <https://perma.cc/U2JC-V5RL> (in Turkish).

⁹⁰ RTP, *supra* note 19, art. 28(3); ECRE, *supra* note 47, at 98.

In 2018, an Accelerated Learning Program (ALP) was launched by the government to provide catch-up education for Syrian children under temporary protection who were out of school or had missed several years of education due to their circumstances. The ALP was initiated in provinces where Syrian children (of which more than 1.7 million are under temporary protection in Turkey) were concentrated and includes reinforcement courses in basic reading, writing and numeracy skills, and intensive Turkish language courses aimed at achieving educational equivalency sufficient for the children to enter/reenter regular or extended first or secondary education.⁹¹ The ALP is a collaboration between the Ministry of National Education, The Ministry of Youth and Sports, the Turkish Red Crescent, and UNICEF, and is partially funded by the European Union.⁹² An equivalent program is not found for children under international protection, however that population is reported to have access to Turkish language courses offered by the Turkish Red Crescent across the country, and may still benefit from EBA TV, which the Ministry of National Education's distance education service that is made available to the public on the state TV channels and on the internet.⁹³

Public childcare institutions in which UFM's are placed are required by directive to ensure the children's enrolment and attendance in the formal education system and Turkish language classes.⁹⁴

VII. Family Reunification

While the LFIP and RFIP provides that holders of "refugee" and "subsidiary protection" status are eligible for making a family reunification application for their qualified relatives, holders or applicants of "conditional refugee" status (which applies to nearly all asylum seekers or asylum status holders in Turkey who are subject to the temporary protection regime) are specifically excluded from eligibility, with no exceptions made for UFM's who are subject to the "conditional refugee" status.⁹⁵

On the other hand, under the RTP, persons who are under temporary protection (comprising the vast majority of asylum status holders in Turkey) have a right to apply for family reunification in Turkey on behalf of their qualified relatives.⁹⁶ The RTP requires that the family reunification requests of UFM's under temporary protection must be processed immediately upon receipt.⁹⁷ According to ECRE, the Turkish Red Crescent (*Türk Kızılay*) and the Presidency of Disaster and Emergency Management under the Ministry of Internal Affairs are the main agencies that work on family tracking and family reunifications.⁹⁸ The Turkish Red Crescent reported that as of

⁹¹ See UNICEF, *Yaygın Eğitim Programı* (date unknown), <https://perma.cc/UM99-TN9Y> (in Turkish); ECRE, *supra* note 47, at 187.

⁹² UNICEF, *supra* note 90.

⁹³ ECRE, *supra* note 47, at 98-99.

⁹⁴ UMD, *supra* note 25, art. 10(i)-(j).

⁹⁵ See LFIP, *supra* note 8, art. 34(1).

⁹⁶ RTP, *supra* note 19, art. 49.

⁹⁷ *Id.*

⁹⁸ ECRE, *supra* note 47, at 173.

October 2022 they processed 4002 cases of family reunification 3939 cases of family tracking.⁹⁹ Disaggregated numbers for UFM's are not provided.

⁹⁹ Turkish Red Crescent, *Migration Services Directorate Monthly Report: October 2022* 44 (November 2022), <https://perma.cc/4H5U-2MFY>.

United Kingdom

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SUMMARY The laws that govern both immigration and the care of unaccompanied minors in the United Kingdom (UK) are complex and contained in a number of different statutes, secondary legislation, and the common law. There is an overarching principle that all decisions involving children must be taken with regard to safeguarding and promoting their well-being.

The government currently spends around 3 billion pounds (approximately US\$3.77 billion) a year on the asylum system. There has recently been a significant increase in the arrival of unaccompanied minors in the UK by small boat, and the government notes the majority are aged 16 and 17 years. Where the age of the individual is unclear, an age assessment is performed. The government reported in 2022 that half of those who underwent this assessment were found to be adults.

Unaccompanied minors, considered to be those under the age of 18 who are not with any family members, may make an application for asylum on their own behalf, and are typically put into the care of local authorities while these applications are being considered. Local authorities must treat them in the same manner as other “cared for” children in their area. This includes the provision of health services and education.

Due to the overarching principle of safeguarding and promoting the well-being of minors, a new immigration category, known as unaccompanied asylum-seeking child leave, was created for unaccompanied minors whose applications for asylum are refused and who are not eligible for any other forms of protection or leave, but who cannot be removed to their country of origin due to a lack of adequate reception facilities. This leave is temporary and allows the unaccompanied minors to stay in the UK until they turn 18 and there is no longer a requirement for adequate reception facilities in their country of return.

While unaccompanied minors may be detained for up to 24 hours, guidance from the government states detention is typically not used. Due to an increase in arrivals of unaccompanied minors, many are being housed in hotels while awaiting transfer to a local authority, which has caused concern, and a number of minors have been reported as missing.

Unaccompanied minors are entitled to a free legal representative, who helps them complete forms and is present during a substantive interview where their claim is considered.

Government guidance notes the ultimate aim is the reunification of unaccompanied minors with their families, but the default location for the reunions is not the UK. There is no specific provision in the Immigration Rules for the reunion of unaccompanied minors with their families in the UK, as the government does not want to create an

incentive for families to send their children unaccompanied to the UK in the hopes of being reunited and settling there. Nevertheless, the authorities have discretion to do so.

The government has recently introduced a bill that, if enacted, will provide that any asylum or human rights claims from unaccompanied minors who enter the UK illegally as well as those who travel through safe third countries will be declared inadmissible, and they will be removed and not be permitted to settle in the UK. The secretary of state will also be able to introduce regulations on the amount of time an unaccompanied minor may be detained.

I. Introduction

The United Kingdom of Great Britain and Northern Ireland (UK), consisting of England, Wales, Scotland, and Northern Ireland, has recently undergone a period of devolution with the creation of a Scottish Parliament, a Welsh Assembly, and a Northern Ireland Assembly (currently suspended) that can legislate in certain areas. Citizenship and nationality are not devolved areas, however, and thus remain the responsibility of the UK Parliament.¹ The secretary of state for the Home Department (a member of the British executive branch) and the department, commonly referred to as the Home Office, have responsibility for almost all matters relating to immigration, including asylum, nationality, and border control laws.

Since 1891, the common law of the UK has provided that “no alien has any right to enter this country except by leave of the Crown.”² The Aliens Restriction Act 1914,³ the Aliens Restriction (Amending) Act 1919,⁴ and the rules and orders made under these acts gave the common law rule a statutory basis and formed the restrictions on immigration.

A. Statistics

The UK receives a large number of applications for asylum seekers each year and spends around 3 billion pounds (approximately US\$3.77 billion) a year on the asylum system.⁵ Applications for

¹ “Nationality” refers to the status of those individuals who are British citizens, British subjects with the right of abode in the United Kingdom and who are thus outside the scope of the United Kingdom’s immigration control, and citizens of British Overseas Territories. In this report, the term “citizenship” is used to include nationality. These terms are commonly interchanged. Nationality has been defined as a person’s international identity that demonstrates they belong to a state, as evidenced by a passport. Citizenship has been considered to be more “a matter of law determined by the facts of a person’s date and place of birth, those of their parents and the application of the provisions of the relevant legislation,” and is concerned with the rights, duties, and opportunities that a person has within a state, such as voting rights, military service, and access to healthcare. Laurie Fransman, *Fransman’s British Nationality Law* 12 (2d ed. 1998).

² *Musgrove v. Chun Teeong Toy* [1891] A.C. 272, followed in *Schmidt v. Home Office* [1969] 2 Ch. 149, <https://perma.cc/LC3J-YKQ4> (by subscription).

³ Aliens Restriction Act 1914, 4 & 5 Geo. 5, c. 12, <https://perma.cc/Y5FY-YFL5>.

⁴ Aliens Restriction (Amendment) Act 1919, 9 & 10 Geo. 5, c. 92, <https://perma.cc/4G8L-2SXH>.

⁵ *Illegal Migration Bill: Overarching Factsheet*, Home Off. (last updated Apr. 28, 2023), <https://perma.cc/LGE6-WFY2>.

asylum peaked in 2002 at 84,132, dropping significantly to 17,916 in 2010 before rising again, to 75,751 applications in 2022.⁶ In this period, asylum seekers and refugees comprised 18% of immigrants to the UK, and 5,242 unaccompanied minors made claims for asylum, comprising 7% of total applications for asylum.⁷ In the year ending March 31, 2022, 5,540 unaccompanied minors were being cared for in England.⁸ The majority of unaccompanied minors who claimed asylum in 2022 were aged 16 or 17 years old and, in cases where there was a dispute over the age of an individual, almost half were found to be adults.⁹ In 2021, the UK had nine applications for every 10,000 people living in the UK. In contrast, across the member states of the European Union (EU) the average is 14 asylum applications for every 10,000 people. The UK ranked 16th across the EU plus UK for asylum applications per person.¹⁰ In 2022, the refusal rate of applications at the initial decision was 24%. This is the lowest refusal rate since 1990, significantly down from the 88% refusal rate in 2004.¹¹

There have been shifts in the countries from which applicants arrive. In 2021, 42% of applicants were nationals of Middle Eastern countries, and 23% were nationals of African countries. In 2022, 31% of applicants were from Asian countries; 24% of applicants were from European countries; 23% of applicants were from Middle Eastern countries, and 17% were from African countries.¹²

B. Jurisdictional Responsibilities

1. Home Office

The Home Office is the government department with primary responsibility for almost all aspects of immigration, including asylum, nationality, and border control laws. Various directorates within the Home Office handle specific items relating to these areas of responsibility.¹³

UK Visas and Immigration, acting on behalf of the home secretary and minister for immigration, is responsible for processing asylum applications.¹⁴ The Border Force is responsible for immigration and customs controls at UK ports and airports.¹⁵ Immigration Enforcement ensures that immigration laws are complied with, such as the prohibition on working without proper

⁶ Georgina Sturge, HC Libr., SN01403, *Asylum Statistics* 11 (Mar. 1, 2023), <https://perma.cc/ASW4-MRPN>.

⁷ Gov.uk, *National Statistics, How Many People Do We Grant Protection to?* (Nov. 24, 2022), <https://perma.cc/P65N-347V>; Gov.uk, *Policy Paper, Illegal Migration Bill: Children Factsheet* (last updated Apr. 28, 2023), <https://perma.cc/B5NR-26AG>.

⁸ Gov.uk, *Policy Paper, Illegal Migration Bill: Children Factsheet*, *supra* note 7.

⁹ *Id.*

¹⁰ Sturge, *supra* note 6, at 16.

¹¹ *Id.* at 5.

¹² *Id.*

¹³ *Home Office*, Gov.uk, <https://perma.cc/DX59-MN9Y>.

¹⁴ *About Us – UK Visas & Immigration*, Gov.uk, <https://perma.cc/Y6UP-23ZF>.

¹⁵ *About Us – Border Force*, Gov.uk, <https://perma.cc/J6MK-AM75>.

authorization,¹⁶ and that individuals who do not have permission to remain in the UK are removed.

2. Local Authorities

Local authorities across Great Britain, and Health and Social Care Trusts in Northern Ireland, have a legal duty to safeguard and promote the welfare of children who are in need and provide “services appropriate to those children’s needs.”¹⁷ Under section 20 of the Children Act 1989, unaccompanied minors are considered to be “looked after” children,¹⁸ and local authorities have a duty to provide accommodation to them. A care plan must also be put in place to provide for the services that are needed “to achieve or maintain a reasonable standard of health or development”¹⁹ for unaccompanied minors. To ensure that unaccompanied minors are not placed in a few local authorities near ports of arrival, the National Transfer Scheme (NTS) was established. The NTS provides that unaccompanied minors may be transferred from one local authority to another. A local authority requesting the transfer of an unaccompanied minor must care for unaccompanied minors who meet or exceed 0.1% of the general child population of that authority, and the local authority to which the child is being transferred must not meet that threshold.²⁰

3. Refugee Council Panel of Advisers

All unaccompanied children who arrive in the UK must be referred to the Refugee Council Panel of Advisers, also known as the Children’s Panel, within 24 hours of the minors’ first encounter with a government worker, who is typically an immigration officer. The Refugee Council Panel of Advisers is responsible for assisting and advising unaccompanied children through the asylum process and helping them with interactions with the Home Office and other government agencies, such as local authorities. The Refugee Council Panel of Advisers does not provide legal advice, but can act in the role of a responsible adult.²¹

¹⁶ *About Us – Immigration Enforcement*, Gov.uk, <https://perma.cc/7UKV-H83B>.

¹⁷ Children Act 1989, c. 41, § 17, <https://perma.cc/NV9L-YLFD>. In Scotland, the duty is contained in the Children (Scotland) Act 1995, c. 36, § 22, <https://perma.cc/LA93-FV52>; in Wales, the duty is contained in the Social Services and Well-Being (Wales) Act 2014 (anaw 4), pt. 2, <https://perma.cc/MM6K-RX7R>; and in Northern Ireland, the duty is contained in the Children (Northern Ireland) Order 1995, SI 1995/755, reg. 18, <https://perma.cc/T2L5-2CSV>.

¹⁸ Children Act 1989, c. 41, §§ 18, 20 & 22; Children (Scotland) Act 1995, c. 36, § 25; Social Services and Well-Being (Wales) Act 2014 (anaw 4), § 75; Children (Northern Ireland) Order 1995, SI 1995/755, reg. 21. See also Dep’t for Educ., *Care of Unaccompanied Migrant Children and Child Victims of Modern Slavery: Statutory Guidance for Local Authorities* (Nov. 2017), <https://perma.cc/378C-U4MS>.

¹⁹ Care Planning, Placement and Case Review (England) Regulations 2010, SI 2010/959, reg. 4, <https://perma.cc/K7F2-LGRD>.

²⁰ Immigration Act 2016, c. 19, §§ 69-73, <https://perma.cc/JRK9-X3FV>. See also Dep’t for Educ. & Home Off., *National Transfer Scheme Protocol for Unaccompanied Asylum Seeking Children 4* (ver. 4.0, last updated Sept. 5, 2022), <https://perma.cc/B9P9-K7K3>.

²¹ Home Off., *Children’s Asylum Claims 22* (ver. 4.0, Dec. 31, 2020), <https://perma.cc/78NC-6LSL>.

In Scotland, a similar role is provided by the Scottish Guardianship Service, which works with unaccompanied minors who are either seeking asylum or who have been trafficked.²² Referral to the Scottish Guardianship Service is typically done by local authorities, and the service then supports the unaccompanied minor through the immigration and welfare process.²³

C. Legislative Framework

1. International Agreements

The legal framework that governs how asylum claims from unaccompanied minors are processed includes both international agreements and national legislation. The UK is a signatory of the following international agreements:

- the 1951 United Nations Convention Relating to the Status of Refugees and the 1967 Protocol (the Refugee Convention),²⁴ which are the main sources for laws governing international protection,
- the United Nations Convention on the Rights of the Child,²⁵ and
- the European Convention on Human Rights (ECHR),²⁶ as implemented into the domestic laws of the UK by the Human Rights Act 1998,²⁷ which requires public authorities to act in a manner that is compatible with the ECHR.

2. National Laws

The Immigration Act 1971,²⁸ and the Immigration Rules made under it,²⁹ contain the primary statutory regime governing immigration in the UK. The Immigration Rules are a fluid set of rules that change frequently.³⁰ The law requires individuals who are not British or Commonwealth

²² *Support for Separated Children and Young People*, Scottish Guardianship Serv., <https://perma.cc/55HJ-Y9LD>. See also Hannah Stott & Ravi KS Kholi, *An Evaluation of the Scottish Guardianship Service: The Work of Guardians Within Asylum Determination and National Referral Mechanism Processes*, Scottish Guardianship Serv. (Nov. 2022), <https://perma.cc/9DBJ-SH5R>.

²³ Home Off., *Children's Asylum Claims*, *supra* note 21, at 22.

²⁴ Convention Relating to the Status of Refugees (Refugee Convention), July 28, 1951, 189 U.N.T.S. 137, <https://perma.cc/X8Y6-8NGS>.

²⁵ Convention on the Rights of the Child (CRC), Nov. 20, 1989, 1577 U.N.T.S. 3, <https://perma.cc/75BM-KGD6>.

²⁶ European Convention on Human Rights [ECHR], Nov. 4, 1950, 213 U.N.T.S. 221, <https://perma.cc/8HJN-RVC4>.

²⁷ Human Rights Act 1998, c. 42, <https://perma.cc/AA3R-SEZB>.

²⁸ Immigration Act 1971, c. 77, <https://perma.cc/4KSN-42ZB>.

²⁹ Immigration Rules, pt. 1, <https://perma.cc/7CN3-QU72>.

³⁰ Immigration Act 1971, c. 77, § 3(2). To change these rules, a Statement of Changes to the Immigration Rules is laid before Parliament; these changes enter into law within 40 days unless Parliament objects to them.

citizens with the right of abode in the UK (or members of the European Economic Area)³¹ to obtain leave to enter the UK from an immigration officer upon their arrival.³² It is currently an offense for an individual to unlawfully enter the UK, overstay or violate a condition of leave granted, or overstay a lawful entry.³³ The offense is punishable by up to five years imprisonment, a fine, or both.³⁴

3. *The Immigration Rules*

The Immigration Rules state that minors can make a claim for protection “in their own right,”³⁵ and that this should be made at the earliest opportunity. Failing to do so without a reasonable explanation is taken into account and can damage the credibility of a subsequent application.³⁶ The Immigration Rules provide that “in view of their potential vulnerability, particular priority and care is to be given to the handling of their cases.”³⁷ Unaccompanied minors may qualify for refugee status, humanitarian protection, family or private life leave, discretionary leave, or unaccompanied asylum seeking child (UASC) leave.³⁸

A minor’s application for refugee status must meet the same criteria and standard of proof as that of other individuals seeking asylum. The secretary of state must be satisfied that

- (i) they are in the United Kingdom or have arrived at a port of entry in the United Kingdom; and
- (ii) they are a refugee, as defined in Article 1 of the 1951 Refugee Convention; and
- (iii) there are no reasonable grounds for regarding them as a danger to the security of the United Kingdom in accordance with Article 33(2) of the Refugee Convention; and
- (iv) having been convicted by a final judgment of a particularly serious crime, they do not constitute a danger to the community of the United Kingdom in accordance with Article 33(2) of the Refugee Convention as defined in Section 72 of the Nationality Immigration and Asylum Act 2002; and
- (v) refusing their application would result in them being required to go (whether immediately or after the time limited by any existing leave to enter or remain in the UK) in breach of the Refugee Convention, to a country in which they would be persecuted on account of their race, religion, nationality, political opinion or membership of a particular social group.³⁹

³¹ The European Economic Area consists of the Members of the European Union plus Norway, Iceland, and Liechtenstein. *European Economic Area (EEA) /Relations with the EU, EFTA*, <https://perma.cc/J28V-YUQ3>.

³² Immigration Act 1971, c. 77, § 3; Immigration Rules, pt. 1, ¶ 7.

³³ Immigration Act 1971, c. 77, § 24(1)(b), (c).

³⁴ Id. § 24(F1).

³⁵ Immigration Rules, pt. 11, ¶ 349.

³⁶ Id.

³⁷ Id. pt. 11, ¶ 350.

³⁸ Home Off., *Children’s Asylum Claims*, supra note 21, at 64.

³⁹ Immigration Rules, pt. 11, ¶¶ 334, 351.

The Immigration Rules specifically notes that, when processing unaccompanied minors

account should be taken of the applicant's maturity and in assessing the protection claim of a child more weight should be given to objective indications of risk than to the child's state of mind and understanding of their situation. An asylum application made on behalf of a child should not be refused solely because the child is too young to understand their situation or to have formed a well founded fear of persecution. Close attention should be given to the welfare of the child at all times.⁴⁰

When assessing the credibility of a claim, Home Office staff

must [on a case-by-case basis] demonstrate as part of the decision making process consideration of any distinct factors taken into account during the assessment of credibility in a child's claim . . . including:

- the child's age and maturity at the time of the event and at the time of the interview
- mental or emotional trauma experienced by the child
- educational level
- fear or mistrust of authorities
- feelings of shame
- painful memories, particularly those of a sexual nature.⁴¹

4. *Safeguarding and Promoting the Welfare of Children*

Section 55 of the Borders, Citizenship and Immigration Act 2009 places a duty on the secretary of state to make arrangements to ensure that its immigration functions are "discharged having regard to the need to safeguard and promote the welfare of children who are in the United Kingdom."⁴² Statutory guidance to this provision defines the term safeguarding and promoting the welfare of children as

- protecting children from maltreatment;
- preventing impairment of children's health or development (where health means 'physical or mental health' and development means 'physical, intellectual, emotional, social or behavioural development');
- ensuring that children are growing up in circumstances consistent with the provision of safe and effective care; and
- undertaking that role so as to enable those children to have optimum life chances and to enter adulthood successfully.⁴³

⁴⁰ Id. pt. 11, ¶ 351.

⁴¹ Home Off., *Children's Asylum Claims*, supra note 21, at 53.

⁴² Borders, Citizenship and Immigration Act 2009, c. 11, § 55, <https://perma.cc/E726-DLMW>. See also Home Off., UK Border Agency, *Every Child Matters – Change for Children: Statutory Guidance to the UK Border Agency on Making Arrangements to Safeguard and Promote the Welfare of Children* (Nov. 2009), <https://perma.cc/SBU2-KUKF>.

⁴³ Home Off., UK Border Agency, *Every Child Matters – Change for Children, Statutory Guidance to the UK Border Agency on Making Arrangements to Safeguard and Promote the Welfare of Children*, supra note 42, at ¶ 1.4.

In addition to this duty to safeguard and promote the welfare of children, the best interests of the child must also be a primary, but not the only,⁴⁴ consideration in any decision involving a child in the UK.⁴⁵ The best interests of the child must be balanced against the wider public interests “and the need to provide effective immigration control.”⁴⁶ Home Office Guidance states: “The overall assessment of the child’s best interests will generally be a matter of considering the child’s individual circumstances and experiences in the UK alongside information about the conditions the child would face in the country of return.”⁴⁷ A decision may be made to remove a child, even if it is not in the child’s best interests, if these “interests are outweighed by the need to uphold immigration control,”⁴⁸ and these considerations must be detailed in any decision.

During the asylum process, staff and decision makers who handle children must consider whether the children are: safe during their time in the UK, being dealt with in an age-sensitive and child-friendly manner reflecting their maturity and vulnerability, having their best interests taken into account when decisions are made about them, having their physical and medical needs addressed, having their age and maturity taken into account, experiencing mental or emotional trauma from past events, and having their right to preserve their identity protected.⁴⁹

To help ensure that that any decisions affecting a child, or any services provided under arrangements made by the secretary of state to conduct these functions are provided with regard to this need, any decisions taken on an application from an unaccompanied minor must be made by a “person who is trained to deal with protection claims from children.”⁵⁰

5. Granting Protection

The Supreme Court has set out six factors that should be considered when making an immigration decision involving the deportation of a parent, and the Home Office has noted “the spirit of which can be applied in the context of an [unaccompanied minor].”⁵¹ The factors are:

- is it reasonable to expect the child to live in another country?
- what is the level of the child’s integration into this country?
- how long has the child been away from the country of the parents?
- where and with whom will the child live if compelled to live overseas?
- what will the arrangements be for the child in that other country?

⁴⁴ UK Visas & Immigr., *Transition at Age 18 Instruction* (ver. 4), <https://perma.cc/4XDS-GJSW>.

⁴⁵ Gov.uk, *Guidance: Certification of Protection and Human Rights Claims Under Section 94 of the Nationality, Immigration and Asylum Act 2002 (Clearly Unfounded Claims) (Accessible)* (last updated Apr. 18, 2023), <https://perma.cc/Q2AP-GUY2>.

⁴⁶ Home Off., *Children’s Asylum Claims*, supra note 21, at 67. Examples that may be considered during this balancing exercise are listed.

⁴⁷ Id.

⁴⁸ Id. at 68.

⁴⁹ Id. at 18.

⁵⁰ Immigration Rules, pt. 11, ¶ 352ZB.

⁵¹ Home Off., *Children’s Asylum Claims*, supra note 21, at 67.

- what is the strength of the child's relationship with a parent or other family members that would be severed if the child moves away or stayed in the UK?⁵²

If unaccompanied minors meet the refugee criteria, they should be granted refugee status, provided they do not fall within an exclusion, as discussed in Part III.C, below.⁵³

6. *Other Types of Protection*

If unaccompanied minors' claims for refugee status are refused, they may qualify for a grant of humanitarian protection if they "would face a real risk of suffering serious harm and [are] unable, or, owing to such risk, unwilling to avail themselves of the protection of that country."⁵⁴

In cases where an unaccompanied minor is refused both asylum and humanitarian protection, it must be determined whether "there are safe, adequate and sustainable reception arrangements in the child's home country" (discussed in Part III.B, below).⁵⁵ If there are, the application from the unaccompanied minor may be refused. If adequate and sustainable reception arrangements are not in place, "and there is no current prospect of them being made, and but for this it would be reasonable for the child to return,"⁵⁶ the unaccompanied minor cannot be lawfully returned to their country of origin and they may be granted limited leave to remain as a UASC under the Immigration Rules.⁵⁷ In order to be granted this leave, the following criteria must be met:

- The applicant must be an unaccompanied minor seeking asylum who is under 17.5 years of age throughout the duration of the leave granted in this capacity,
- the applicant must have applied for asylum and been granted neither refugee status nor humanitarian protection,
- there must be no adequate reception arrangements in the country to which they would be returned,
- there are no reasonable grounds to consider the applicant a danger to the security of the UK,
- the applicant must not be excluded from being a refugee,⁵⁸

⁵² Id. at 66, referring to *ZH v Secretary of State for the Home Department* [2011] UKSC 4, ¶ 29, <https://perma.cc/63JJ-KYR6>.

⁵³ Home Off., *Children's Asylum Claims*, supra note 21, at 61.

⁵⁴ Immigration Rules, pt. 11, ¶ 339C. See also Home Off., *Humanitarian Protection in Asylum Claims Lodged on or After 28 June 2022* (ver. 7.0, June 28, 2022), <https://perma.cc/X7JS-YJ38>.

⁵⁵ Home Off., *Children's Asylum Claims*, supra note 21, at 64.

⁵⁶ Id. at 65.

⁵⁷ Immigration Rules, pt. 11, ¶ 352ZC-F.

⁵⁸ Refugee or Person in Need of International Protection (Qualification) Regulations 2006, reg. 7, <https://perma.cc/NR7R-LACL>; Immigration Rules, pt. 11, ¶ 339D.

- the applicant does not pose a danger to the community in the UK by virtue of being convicted of a serious crime, as defined in section 72 of the Nationality, Immigration and Asylum Act 2002,⁵⁹
- at the date of the application, the applicant is not subject to a deportation order or a decision to make a deportation order.⁶⁰

When leave is granted under these provisions, the Immigration Rules provide it should be granted for 30 months, or until the unaccompanied minor reaches 17.5 years of age, whichever is the shorter time frame. If, at any time, the applicant meets one or more of the criteria listed above, or has been found to misrepresent or omit facts to obtain leave under these provisions, the leave will cease.⁶¹ This leave is not qualifying leave towards settlement indefinite leave to remain.⁶² Once unaccompanied minors reach 17.5 years of age, they will be considered for return, and the procedure discussed immediately below will be followed. Section 82 of the Nationality, Immigration and Asylum Act 2002 provides a right of appeal for UASC leave.⁶³

Unaccompanied minors who are older than 17.5 but younger than 18 should be considered for return, taking into account “the commitment that no unaccompanied child will be returned without safe, adequate and sustainable reception arrangements being in place.” If the reception arrangements are considered to be adequate and with the approval of a senior manager, the unaccompanied minor may be removed. In cases where the unaccompanied minor cannot be removed due to concerns over the reception standards in the country of origin, or if there are no return arrangements, the unaccompanied minor is notified that, once they turn 18, they “will be liable for removal”⁶⁴ unless they qualify for leave to remain on other grounds. This provides the unaccompanied minor and their social worker with six months to prepare the minor for the return to their country of origin.⁶⁵ At all points during this process, the duty to safeguard and promote the welfare of the minor should be considered, and if the reception conditions at any point fail to meet the standards, the return must be halted with immediate effect.⁶⁶

Prior to the incorporation of UASC into the immigration rules, discretionary leave outside the rules was used, but guidance from the Home Office notes that discretionary leave may be used if there are compelling reasons that are in the best interests of the child to grant a longer period of leave.⁶⁷

⁵⁹ Nationality, Immigration and Asylum Act 2002, c. 41, <https://perma.cc/L5C5-8DMZ>.

⁶⁰ Immigration Rules, pt. 11, ¶ 352ZC-F.

⁶¹ Id. pt. 11, ¶ 352ZE.

⁶² Home Off., *Children’s Asylum Claims*, supra note 21, at 64.

⁶³ Nationality, Immigration and Asylum Act 2002, c. 41, § 82.

⁶⁴ Home Off., *Children’s Asylum Claims*, supra note 21, at 65.

⁶⁵ Id. at 64.

⁶⁶ Id. at 65 and the Borders, Citizenship and Immigration Act 2009, c. 11, § 55.

⁶⁷ Home Off., *Discretionary Leave* 16 (ver. 10.0, Mar. 16, 2023), <https://perma.cc/35M2-P6NB>.

7. *Withdrawing Applications*

Unaccompanied minors may withdraw their application at any point, and must do so through a representative or responsible adult.⁶⁸ Applications may also be treated as being withdrawn where a minor does not comply with requests for information, either by failing to submit without a reasonable explanation or submitting the information late. If the minor fails to attend the substantive interview, the claim may be treated as implicitly withdrawn.⁶⁹ This treatment is not automatic, and efforts must be made to determine why the child did not attend, such as contacting the minor's legal representative, before a decision to refuse the claim on grounds of noncompliance is made.⁷⁰ The Refugee Council Panel of Advisers: Children's Panel must be notified of any decision refusing a claim on these grounds.⁷¹

8. *The Illegal Migration Bill*

Due to a substantial increase in individuals attempting to enter the UK unlawfully via small boats,⁷² which is inherently dangerous, and concerns over gangs having an incentive to smuggle people into the country, the government introduced the Illegal Migration Bill, which is currently under consideration in the House of Lords.⁷³ The government has stated that the purpose of the bill is to "make it unambiguously clear that, if you enter the UK illegally, you should not be able to remain here. Instead, you will be detained and promptly removed either to your home country or to a safe country where any asylum claim will be considered."⁷⁴ Under the current provisions of the bill, individuals entering the UK without lawful permission will be detained and removed to their home country, or if it is not safe for them to be removed there, to a safe third country, such as Rwanda,⁷⁵ and applications for asylum will be considered from these countries.⁷⁶

If enacted, the bill would place a duty on the secretary of state to remove individuals who enter the UK without lawful permission from the country as soon as is reasonably practicable.⁷⁷ It would not require the secretary of state to remove unaccompanied minors until they are 18 years

⁶⁸ Home Off., *Withdrawing Asylum Claims* 11 (ver. 6.0, May 7, 2020), <https://perma.cc/WY3E-S9KC>.

⁶⁹ Id. at 68.

⁷⁰ Id.

⁷¹ Id.

⁷² Press Release, Home Off. & Rt. Hon. Suella Braverman KC MP, More French Officers to Patrol Beaches to Tackle Small Boat Crossings (Nov. 14, 2022), <https://perma.cc/6VTV-Q9HD>.

⁷³ Illegal Migration Bill, HL Bill 133, <https://perma.cc/E7XE-2WW2>. See also David Wallace Lockhart & Dominic Casciani, *Rishi Sunak: Hurdles in the Race to Pass Illegal Migration Bill*, BBC News (Mar. 9, 2023), <https://perma.cc/D29T-TKQR>.

⁷⁴ *Illegal Migration Bill: Overarching Factsheet*, Home Off., *supra* note 5.

⁷⁵ It should be noted that the government policy to use Rwanda as a safe third country is currently being considered by the courts: *R (on application of AAA, AHA, et al.) v. Secretary of State for the Home Department* [2022] EWHC 3230 (Admin), <https://perma.cc/V2KB-377W>. See also *London Court Allows Appeal Over UK's Rwanda Migrant Plan*, Reuters (Jan. 17, 2023), <https://perma.cc/4VZW-HZG4>.

⁷⁶ Id.

⁷⁷ *Illegal Migration Bill*, UK Parliament, <https://perma.cc/VC8P-QEDG>.

old, but the secretary of state would have the power to do so. The bill would provide that any asylum or human rights claims from unaccompanied minors who enter the UK illegally will be declared inadmissible, as well as from those who travel through safe third countries. They would not be permitted to settle in the UK and, once removed, would not be allowed to re-enter.⁷⁸ While the bill would not require the secretary of state to remove unaccompanied children until they turn 18 years of age, it would empower the secretary of state to reunite them with their parents; to a designated safe country where the person is either a national or has a passport or other identity document.⁷⁹ The secretary of state would have discretion to introduce regulations specifying other circumstances under which unaccompanied minors could be removed, and for how long they could be detained before their removal.⁸⁰ During the time unaccompanied minors who entered the country without lawful permission are in the UK before they turn 18 and are removed, the bill provides that, where necessary, the secretary of state would be responsible for providing, or arranging, accommodation and appropriate support for them prior to any transfer to a local authority. Local authorities could also transfer the unaccompanied minors back to the care of the secretary of state. Once removed under the provisions of the bill, the unaccompanied minor would not be allowed to re-enter the UK.

The bill would add Albania, Iceland, Liechtenstein, Norway, and Switzerland to the list of designated countries. The government intention behind the bill is to ensure that individuals in need of asylum will enter through legal routes and avoid dangerous crossings and human trafficking, and it has stated it intends to create more of these routes.⁸¹ The bill would also place an annual cap on the number of people who may claim asylum in the UK, although this can be amended “in the face of humanitarian emergencies.”⁸²

The bill has been subject to considerable criticism from human rights groups, which have described it as a ban on asylum and assert it breaches a number of the UK’s international obligations.⁸³ The bill itself includes a statement from a government minister, noting “I am unable to make a statement that, in my view, the provisions of the Illegal Migration Bill are compatible with the Convention rights, but the Government nevertheless wishes the House to proceed with the Bill.”⁸⁴

⁷⁸ Id.

⁷⁹ Illegal Migration Bill, HL Bill 133, cl. 3, *supra* note 73.

⁸⁰ Id. cl. 10. See also Gov.uk, *Policy Paper, Illegal Migration Bill: Children Factsheet*, *supra* note 7.

⁸¹ *Illegal Migration Bill: Overarching Factsheet*, Home Off., *supra* note 5.

⁸² Id.

⁸³ *UK Asylum and Policy: Illegal Migration Bill*, UNHCR, <https://perma.cc/MJP7-XT5V>. See also Emilie McDonnell, *UK Says Refugees Not Welcome*, Hum. Rts. Watch (Mar. 8, 2023), <https://perma.cc/32XG-437L>; UK “Illegal Migration Bill” Exacerbates Risks for Survivors of Modern Slavery: IOM Statement, Int’l Org. for Migration (Mar. 28, 2023), <https://perma.cc/FMG4-9VQH>.

⁸⁴ Illegal Migration Bill, HL Bill 133, *supra* note 73, at 1.

II. Defining Unaccompanied Minors

The Immigration Rules define the term “minor” as any person under the age of 18,⁸⁵ and the term “unaccompanied asylum seeking minor” as a person who

- a) is under 18 years of age when the asylum application is submitted.
- b) is applying for asylum in their own right; and
- c) is separated from both parents and is not being cared for by an adult who in law or by custom has responsibility to do so.⁸⁶

Guidance published by the Home Office on child asylum seekers notes that “[b]eing unaccompanied is not necessarily a permanent status and may change, particularly if the child has family members in the UK.”⁸⁷ The policy notes that an accompanied asylum-seeking child is a person “being cared for either by parents or by someone who in law or custom has responsibility to do so.”⁸⁸

As noted above, the Immigration Rules state that minors can make a claim for protection “in their own right”⁸⁹ and that this should be made at the earliest opportunity. Failing to do so without a reasonable explanation is taken into account and may damage the credibility of the application.⁹⁰

A. Interview

Upon arrival, minors do not undergo the same screening interview that adult asylum seekers do. Biometric data is taken, other than for minors under the age of five years old,⁹¹ and minors undergo a welfare interview, which is distinguished from the screening interview that adults undergo because its sole purpose is to identify any welfare or human trafficking concerns.⁹² Additionally, any information obtained during this interview “cannot be used to examine the basis of the claim for asylum.”⁹³ Once the welfare interview and form is complete, the unaccompanied minor is referred to the National Asylum Allocation Team, who allocates the care of the child to a local authority.⁹⁴

⁸⁵ Immigration Rules, pt. 11, ¶ 349.

⁸⁶ Id. pt. 11, ¶ 352ZD.

⁸⁷ Home Off., *Children’s Asylum Claims*, supra note 21, at 10.

⁸⁸ Id.

⁸⁹ Immigration Rules, pt. 11, ¶ 349.

⁹⁰ Id.

⁹¹ Home Off., *Children’s Asylum Claims*, supra note 21, at 32.

⁹² AN & FA v. Secretary of State for the Home Department [2012] EWCA (Civ) 1636, <https://perma.cc/B5KK-CNTB>.

⁹³ Home Off., *Children’s Asylum Claims*, supra note 21, at 25, 31.

⁹⁴ Id. at 32.

B. Age Assessment

“Merton compliant”⁹⁵ age assessments may be undertaken on unaccompanied minors where the secretary of state, local authority, or other specified public authority does not have sufficient evidence to determine the age of the individual.⁹⁶ These are conducted to “guard against the detention of children generally, including accidental detention of someone who is believed to be an adult but subsequently found to be a child.”⁹⁷

Merton compliant age assessments “are holistic assessments, involving detailed background research and analysis of information, and are fundamentally different from the initial age assessments that are carried out when people arrive at the border.”⁹⁸ A number of factors are used to determine age, including physical appearance and demeanor using the “benefit of the doubt” principle, so when the age is unclear, the individual should be treated as a minor.⁹⁹ The standard of proof used for an age assessment is the balance of probabilities,¹⁰⁰ and the results of any age assessment is binding on the secretary of state and local authorities, unless new information is provided after the age assessment has been undertaken.¹⁰¹

Legislation was recently introduced to enable the secretary of state, after obtaining scientific advice about appropriate methods,¹⁰² to make regulations specifying the scientific methods to be used for age assessments. These methods can include the measurement of body parts and the analysis of samples, such as DNA, taken from a person.¹⁰³ Regulations have yet to be made under this section. Additionally, the secretary of state recently established the National Age Assessment

⁹⁵ *B v London Borough of Merton* [2003] EWHC 1689 (Admin) (Commonly referred to as “Merton”), <https://perma.cc/4R6Y-EL6A>. This case sets out a number of principles that should be followed when determining the age of an unaccompanied minor. These are discussed in Home Off., *Assessing Age* 39 (ver. 6.0, Mar. 31, 2023), <https://perma.cc/D2EX-3KZP>.

⁹⁶ Nationality and Borders Act 2022, c. 36, §§ 49, 51, <https://perma.cc/4F67-E3C8>. See also Home Off., *Assessing Age*, *supra* note 95.

⁹⁷ Home Off., *Assessing Age*, *supra* note 95, at 14.

⁹⁸ *Id.*

⁹⁹ Home Off., *Assessing Age*, *supra* note 95, at 14.

¹⁰⁰ Nationality and Borders Act 2022, c. 36, § 50.

¹⁰¹ *Id.* § 56. See also Home Off., *Assessing Age*, *supra* note 95, at 14.

¹⁰² This advice will be provided by the Age Estimation Science Advisory Committee. Gov.uk, *Age Estimation Science Advisory Committee*, <https://perma.cc/6XD5-FUMQ>.

¹⁰³ *Id.* § 52. As of May 1, 2023, the interim Age Estimation Science Advisory Committee has published a report on biological evaluation methods to assist in the assessment of the age of unaccompanied minors, but the secretary of state does not appear to have made any regulations under this section. Interim Age Estimation Sci. Advisory Comm., *Biological Evaluation Methods to Assist in Assessing the Age of Unaccompanied Asylum-Seeking Children* (Oct. 2022), <https://perma.cc/H4VS-8WKP>.

Board,¹⁰⁴ whose purpose is to set national standards for age assessments. The board is currently being phased in across the country.¹⁰⁵

Persons who have undergone an age assessment have a right of appeal if they claim they are a different age than the one for which they have been assessed. The right of appeal is to the first-tier tribunal, which must determine the individuals' ages on the balance of probabilities and assign them dates of birth.¹⁰⁶

C. Substantive Interview

The Immigration Rules require all children over the age of 12 who have claimed asylum to undergo an interview "about the substance of their protection claim unless the child is determined to be unfit or unable to be interviewed, or meets one of the other exceptions contained in paragraph 339NA."¹⁰⁷ An unaccompanied minor may request that the interviewer be of a specific gender and communicate through the minor's preferred communication method or language.¹⁰⁸ The interview may be conducted through video conference.¹⁰⁹ Interviews must be conducted with a guardian, representative, or adult who must be independent from the secretary of state and responsible for the child. The interviewer must have undergone specialist training in how to interview children and "have particular regard to the possibility that a child will feel inhibited or alarmed."¹¹⁰

Interpreters are provided by the Home Office for each stage of the asylum process for minors who cannot speak English. The interpreters are required to "provide an impartial interpretation of the claimant's account"¹¹¹ and must follow the Interpreters Code of Conduct.¹¹² The interpreter must interpret questions verbatim and "ensure adequate and appropriate interpretation of child-friendly and age-appropriate language is being used."¹¹³

The interview may be suspended if the child appears tired or distressed and, at all stages, the duty to safeguard and promote the welfare of the child must be taken into account.¹¹⁴ Guidance

¹⁰⁴ Home Off., *National Age Assessment Board: The National Age Assessment Board and Sections 50 and 51 of the Nationality and Borders Act 2022* (ver. 1.0, Mar. 31, 2023), <https://perma.cc/MTM2-QSG8>.

¹⁰⁵ *New Board Will Strengthen Age Assessments of Small Boat Arrivals*, Gov.uk (Mar. 31, 2023), <https://perma.cc/XT5L-TG4D>.

¹⁰⁶ Nationality and Borders Act 2022, c. 36, § 54.

¹⁰⁷ Immigration Rules, pt. 11, ¶ 352.

¹⁰⁸ Home Off., UK Border Agency, *Every Child Matters – Change for Children: Statutory Guidance to the UK Border Agency on Making Arrangements to Safeguard and Promote the Welfare of Children*, *supra* note 43, at 11.

¹⁰⁹ Home Off., *Children's Asylum Claims*, *supra* note 21, at 45.

¹¹⁰ Immigration Rules, pt. 11, ¶ 352.

¹¹¹ Home Off., *Children's Asylum Claims*, *supra* note 21, at 15.

¹¹² Home Off., *Interpreters Code of Conduct* (ver. 4.0 Nov. 30, 2021), <https://perma.cc/KHK9-YPEY>.

¹¹³ Home Off., *Children's Asylum Claims*, *supra* note 21, at 15.

¹¹⁴ Borders, Citizenship and Immigration Act 2009, c. 11.

for the Home Office contains several principles that must be considered in the interview, which include taking into account the child's age, mental development, and maturity,¹¹⁵ when authorities are determining the credibility of the claim.¹¹⁶ Interviews may be waived in certain circumstances, such as if the children have been through an extremely traumatic experience, there is adequate documentary evidence to show this, and it is not in the best interests of the children for them to recount it.¹¹⁷

In some cases, the unaccompanied minor may turn 18 before the substantive asylum interview has occurred. In these cases, Home Office staff must, where possible, continue to follow the best practice for children's cases.¹¹⁸

III. Restrictions on Claiming Asylum

A. Limits on Asylum Applications from Minors Who Transited Through Third Countries

The Nationality, Immigration and Asylum Act 2002 provides that claims from individuals who have traveled through a safe third country and claimed, or could reasonably be expected to have claimed, asylum but failed to do so, or who have a connection to a safe third country, may have their claim declared inadmissible in the UK,¹¹⁹ if there is a reasonable prospect that they can be removed in a reasonable time to a safe third country. These provisions do not apply to unaccompanied minors. Instead, if the conditions above are met, the unaccompanied minor may be invited to withdraw the claim for protection in cases where a close family member in a third country is identified who is willing to care of the minor and is deemed suitable by the UK's social services to do so, it is in the best interests of the child, the unaccompanied minor agrees to the reunification, and the third country agrees to admit the minor.¹²⁰

B. Safe Third Country Agreements

The UK has designated a number of countries as "safe"¹²¹ and, adopting a case-by-case approach, the Home Office certifies any applications for asylum from individuals entitled to residence in

¹¹⁵ Home Off., *Children's Asylum Claims*, supra note 21, at 43.

¹¹⁶ Asylum and Immigration (Treatment of Claimants, etc.) Act 2004, c. 19, <https://perma.cc/Z9WT-AXVR>; Immigration Rules, pt. 11, ¶ 351.

¹¹⁷ Home Off., *Children's Asylum Claims*, supra note 21, at 39.

¹¹⁸ Id. at 49.

¹¹⁹ Nationality, Immigration and Asylum Act 2002, c. 41, § 80B-C.

¹²⁰ Gov.uk, *Inadmissibility: Safe Third Country Cases (Accessible)* (last updated May 11, 2022), <https://perma.cc/N5MR-HPN6>.

¹²¹ These states are listed in the following order in the Nationality, Immigration and Asylum Act 2002, c. 41, § 94(4): the Republic of Albania, Jamaica, Macedonia, the Republic of Moldova, Bolivia, Brazil, Ecuador, South Africa, Ukraine, India, Mongolia, Ghana (in respect of men), Nigeria (in respect of men), Bosnia-Herzegovina, Gambia (in respect of men), Kenya (in respect of men), Liberia (in respect of men), Malawi (in respect of men), Mali (in respect of men), Mauritius, Montenegro, Peru, Serbia, Sierra Leone (in respect of men), Kosovo, and South Korea.

any of these states as clearly unfounded. There are no appeals from this decision.¹²² A clearly unfounded case is where the caseworker considers:

- a manifestly unfounded claim is a claim which is so clearly without substance that it is bound to fail
- it is possible for a claim to be manifestly unfounded even if it takes more than a cursory look at the evidence to come to a view that there is nothing of substance in it.¹²³

The secretary of state is responsible for designating countries as safe and does so by statutory instrument under powers granted by the Nationality, Immigration and Asylum Act 2002. In order to designate a country, the secretary of state must be satisfied that

there is in general in that State or part no serious risk of persecution of persons entitled to reside in that State or part, and removal to that State or part of persons entitled to reside there will not in general contravene the United Kingdom's obligations under the Human Rights Convention.¹²⁴

If the country of origin is a designated state that does not have adequate reception arrangements, the Home Office will not certify the claim as clearly unfounded, and UASC leave should be granted.¹²⁵

C. Exclusions from the Refugee Convention

Unaccompanied minors are subject to Article 1F of the Refugee Convention. This exclusion provides that the Refugee Convention does not apply to individuals who have committed crimes against humanity or peace, war crimes, serious non-political crimes outside their country of refuge, or "acts contrary to the purposes and principles of the United Nations."¹²⁶ When determining whether this exclusion applies to a minor, the context of each case and the child's age and maturity should be taken into account.

If an unaccompanied minor is convicted of a criminal offense in the UK and sentenced to 12 or more months of imprisonment, unlike adults, they are not subject to automatic deportation.¹²⁷ The judge in the case can recommend that they be deported, or they can be "considered for deportation on grounds of being non-conducive to the public good, under the provisions of the

¹²² Id. § 94(3A).

¹²³ Gov.uk, *Guidance: Certification of Protection and Human Rights Claims Under Section 94 of the Nationality, Immigration and Asylum Act 2002 (Clearly Unfounded Claims) (Accessible)*, supra note 45. See also *R v Secretary of State for the Home Department, ex P. Thangarasa* and *R v Secretary of State for the Home Department, ex P. Yogathas* [2002] UKHL 36, <https://perma.cc/YA6V-SJPC>; *ZL & VL v Secretary of State for the Home Department* [2003] EWCA (Civ) 25, <https://perma.cc/GZX8-UKWQ>; Home Off., *Children's Asylum Claims*, supra note 21, at 21.

¹²⁴ Nationality, Immigration and Asylum Act 2002, c. 41.

¹²⁵ Id. § 94.

¹²⁶ Refugee Convention art. 1F.

¹²⁷ UK Borders Act 2007, c. 30, §§ 32-33, <https://perma.cc/9ECA-L9KE>.

Immigration Act 1971.”¹²⁸ If deportation is considered to be the appropriate action, it typically does not occur until the unaccompanied minor is 18 years of age, unless the offender has family in their home country or safe third country, or there are adequate reception arrangements in the home country.¹²⁹

IV. Protection Offered to Unaccompanied Minors

A. Visas

There is no visa that may be obtained to travel to the UK to claim asylum. In order to claim asylum, the individual must be physically present in the UK and meet the criteria for asylum listed in Part I.3.C, above.

B. Legal Representation

“Separated children” are eligible for legal aid for entry clearance, leave to enter or remain in the UK, appeals from an age assessment decision, and registration as a British citizen.¹³⁰ The term “separated child” is defined as a person under the age of 18, or whose age is uncertain but is being treated as under 18, who is not being cared for by a parent or person with parental responsibility and is being looked after by a local authority.¹³¹ Legal aid includes the attendance of a legal representative during the substantive interview.¹³² No legal representation is provided during the unaccompanied minor’s first interview, known as the welfare interview, as this interview is solely related to their welfare.¹³³

The Immigration Rules require the secretary of state to provide representatives, who can be legal representatives, social workers, charity workers, or other guardians, to the children to represent or assist them during the examination of the application.¹³⁴ A representative should have “the opportunity to inform the unaccompanied child about the meaning and possible consequences of the interview and, where appropriate, how to prepare themselves for the interview.”¹³⁵ The representative has the right to be present during the interview and ask questions and make comments within the framework that has been set by the interviewer.

¹²⁸ Home Off., *Criminal Casework Managing Foreign National Offenders Under 18 Years Old* 6 (ver. 6.0, Jan. 14, 2016), <https://perma.cc/3CYK-SM2R>.

¹²⁹ *Id.* at 21.

¹³⁰ Legal Aid, Sentencing and Punishment of Offenders Act 2012, c. 10, sched. 1, pt. 1, ¶¶ 31A-31B, <https://perma.cc/ME72-RZUZ> (as inserted by the Legal Aid, Sentencing and Punishment of Offenders Act 2012 (Legal Aid for Separated Children) (Miscellaneous Amendments) Order 2019, SI 2019/1396, <https://perma.cc/53QU-7EQ2>, and amended by the Nationality and Borders Act 2022, c. 36).

¹³¹ *Id.*

¹³² Home Off., *Children’s Asylum Claims*, *supra* note 21, at 23.

¹³³ *Id.* at 23.

¹³⁴ Immigration Rules, pt. 11, ¶ 352ZA.

¹³⁵ *Id.*

During the review of an unaccompanied minor's case, staff from the Home Office explain the asylum process to the minor and ensure the legal representative has the opportunity to meet with the minor before completing the statement of evidence form. If the unaccompanied minor does not have legal representation, a Home Office staff member must inform the minor's social worker that the minor is entitled to free legal advice and recommend that the social worker discuss this with the child urgently.¹³⁶

While the Home Office provides interpreters for the different stages of the asylum process who are required to act independently, legal representatives may, with Home Office approval, bring their own interpreters.¹³⁷ If approved, an interpreter for the legal representative may only observe the proceedings and make comments at the end "but only insofar as they relate to a serious discrepancy in translation or because the child has not understood something."¹³⁸

In addition to a legal representative, a responsible adult who is independent of the Home Office must be present when fingerprints are taken of a child under the age of 16 years and during interviews with the child about the substance of the asylum claim.¹³⁹ In some cases, with the consent of the child, the legal representative may also act as the responsible adult.¹⁴⁰

The responsible adult must act in the best interests of the child and provides support for the child by: providing independent support to the child, looking after the well-being of the child, and raising any welfare concerns or needs. The responsible adult should also attend the asylum interview with the child to provide moral support and ensure the child is comfortable and understands the interview process and that any welfare needs are provided for. The responsible adult may also provide additional information to the interviewer that "may have a bearing on the child's emotional wellbeing and fitness for interview . . . [such as that] the child had an early morning start to attend the interview."¹⁴¹

C. Role of Child Protection Agencies

As noted above, local authorities across Great Britain, and Health and Social Care Trusts in Northern Ireland, have a legal duty to safeguard and promote the welfare of children who are in need and provide "services appropriate to those children's needs."¹⁴² This includes the provision

¹³⁶ Home Off., *Children's Asylum Claims*, supra note 21, at 34.

¹³⁷ Id. at 15.

¹³⁸ Id. at 16.

¹³⁹ Id. at 20.

¹⁴⁰ Id.

¹⁴¹ Id. at 21.

¹⁴² Children Act 1989, c. 41, § 17, <https://perma.cc/NV9L-YLFD>. In Scotland, the duty is contained in the Children (Scotland) Act 1995, c. 36, § 22, <https://perma.cc/LA93-FV52>; in Wales, the duty is contained in the Social Services and Well-Being (Wales) Act 2014 (anaw 4), pt. 2, <https://perma.cc/MM6K-RX7R>; and in Northern Ireland, the duty is contained in the Children (Northern Ireland) Order 1995, SI 1995/755, reg. 18, <https://perma.cc/T2L5-2CSV>.

of accommodation where there is no person with parental responsibility for them.¹⁴³ Accommodation for unaccompanied minors is typically the responsibility of the local authorities across Great Britain and the Health and Social Care Trusts in Northern Ireland,¹⁴⁴ who either provide assistance or accommodation.¹⁴⁵ Guidance to the Home Office states that local authorities should assess the needs of the unaccompanied minor and provide accommodation based upon their circumstances. The guidance further notes that those aged under 16 are “likely to be placed with a foster parent or in a children’s home.”¹⁴⁶

Children who are cared for by a person who is not a relative or official foster caregiver are considered to be in private foster care.¹⁴⁷ When the Home Office becomes aware of a situation like this, it must ensure “that the relationship is genuinely one of welfare and that it is recognised and appropriately monitored by local authority children’s services.”¹⁴⁸ Where the social services have confirmed that they are satisfied with the arrangements and have no welfare or safeguarding concerns, the children are considered to be accompanied asylum seeking children.¹⁴⁹

Children over the age of 16 may be placed in accommodation that is classed as “other arrangements.”¹⁵⁰ This type of accommodation is known as “unregulated accommodation” as it does not face the same registration requirements and inspections under the Care Standards Act 2000 that children’s homes or foster care providers do.¹⁵¹ Local authorities determine whether unaccompanied minors age 16 years old or over should be placed in supported lodgings, supported accommodation or shared accommodation. When making this decision, the “local authority must be satisfied that any such placement is in the best interests of each individual young person, with practice in line with all relevant statutory guidance and care planning regulations.”¹⁵²

The government has stated that because the increase in small boat crossings put a “severe strain on the asylum accommodation system [the government] had no alternative but to temporarily use specialist hotels to give some unaccompanied minors a roof over their heads while local

¹⁴³ Children Act 1989, c. 41, § 18; Children (Scotland) Act 1995, c. 36, § 25; Social Services and Well-Being (Wales) Act 2014 (anaw 4), § 75; Children (Northern Ireland) Order 1995, SI 1995/775, reg. 21.

¹⁴⁴ Children Act 1989, c. 41, § 18; Children (Scotland) Act 1995, c. 36, § 25; Social Services and Well-Being (Wales) Act 2014 (anaw 4), § 75; Children (Northern Ireland) Order 1995, SI 1995/775, reg. 21.

¹⁴⁵ Children Act 1989, c. 41, §§ 17, 20.

¹⁴⁶ Home Off., *Children’s Asylum Claims*, supra note 21, at 12.

¹⁴⁷ Children Act 1989, c. 41, Children (Northern Ireland) Order 1995, SI 1995/775; Foster Children (Scotland) Act 1984, c. 56, <https://perma.cc/325F-NJDV>.

¹⁴⁸ Home Off., *Children’s Asylum Claims*, supra note 21, at 20.

¹⁴⁹ Id. at 19. Children Act 1989, c. 41; Children (Northern Ireland) Order 1995, SI 1995/775; Foster Children (Scotland) Act 1984, c. 56.

¹⁵⁰ Children Act 1989, c. 41, § 22C.

¹⁵¹ Care Standards Act 2000, c. 14, <https://perma.cc/DP48-BM6E>.

¹⁵² Home Off., *Children’s Asylum Claims*, supra note 21, at 13.

authority accommodation is found.”¹⁵³ Unaccompanied minors, typically over the age of 16, are frequently accommodated in one of six hotels run by the Home Office.¹⁵⁴ Concerns have been raised that housing unaccompanied minors in this type of accommodation leaves them vulnerable for targeting by criminal networks, and it has been reported that 200 unaccompanied minors accommodated in these hotels have gone missing.¹⁵⁵ The government has stated that it has no power to detain children in this setting,¹⁵⁶ and “[w]hen any child goes missing, a multi-agency, missing persons protocol is activated, and many of those who have gone missing are subsequently traced and located.”¹⁵⁷ It should be noted that the government has introduced a number of pieces of legislation and measures to make it difficult for individuals to reside in the UK without lawful permission.¹⁵⁸

To help decrease the use of hotels for unaccompanied minors, the government has provided local authorities with a lump sum of £15,000 (approximately US\$18,750) per unaccompanied minor in their care.¹⁵⁹ This is in addition to the normal funding arrangements of between £114 to £143 (about US\$142 to US\$179) per night per unaccompanied minor,¹⁶⁰ which stops if a child goes missing for more than 28 consecutive days.¹⁶¹

V. Detention and Repatriation of Unaccompanied Minors

A. Detention

While the UK currently does not typically detain unaccompanied minors, they may be detained under the provisions of paragraph 16(2) of schedule 2 of the Immigration Act 1971, but only in short-term holding facilities for up to 24 hours.¹⁶² Guidance from the Home Office notes that,

[a]s a general principle, even where one of the statutory powers to detain is available in a particular case, unaccompanied children must not be detained other than in the very exceptional circumstances specified in paragraph 18B of schedule 2 to the Immigration Act

¹⁵³ 726 Parl. Deb. H.C. (6th ser.) (2023) col. 859, <https://perma.cc/2Z2J-JYYH>.

¹⁵⁴ 827 Parl. Deb. (HL) (2022-23), <https://perma.cc/R93E-GNCC>.

¹⁵⁵ Rajeev Syal & Diane Taylor, *UK Minister Admits 200 Asylum-Seeking Children Have Gone Missing*, *Guardian* (Jan. 24, 2023), <https://perma.cc/UR8C-Q99F>.

¹⁵⁶ 726 Parl. Deb. H.C. (6th ser.) col. 859.

¹⁵⁷ Gov.uk, *Policy Paper, Illegal Migration Bill: Children Factsheet*, *supra* note 7. See also Dep’t for Educ., *Statutory Guidance on Children Who Run Away or Go Missing from Home or Care* (Jan. 2014), <https://perma.cc/Y3QS-HLYL>.

¹⁵⁸ Gov.uk, *Guidance: Risks of Illegal Migration to the UK* (June 17, 2022), <https://perma.cc/N2LR-5H9K>.

¹⁵⁹ Gov.uk, *Guidance, Temporary Additional Funding - National Transfer Scheme (Accessible Version)* (last updated May 2, 2023), <https://perma.cc/W9MD-73A5>.

¹⁶⁰ Home Off., *Funding to Local Authorities Financial Year 2023/24* (ver. 1.0, Apr. 24, 2023), <https://perma.cc/UZQ8-FYXC>.

¹⁶¹ Gov.uk, *Guidance, Temporary Additional Funding - National Transfer Scheme (Accessible Version)*, *supra* note 159, ¶ 3.3.

¹⁶² Immigration Act 1971, sched. 2, ¶ 18B.

1971. . . . Failure to adhere to the legal powers and policy on detaining children can have very significant consequences.¹⁶³

Such consequences include potential liability for the payment of damages in cases where the Home Office detains an individual it reasonably believes to be an adult, but who is later determined to be a child,¹⁶⁴ along with causing a negative impact to the mental and physical health of the unaccompanied minor.¹⁶⁵

A judgment from the Court of Appeal provides that children should only be placed in a holding facility when there is a concrete reason to do so. The local authority should be contacted as soon as the Home Office is aware the individual in detention is an unaccompanied minor.¹⁶⁶

B. Educational and Humanitarian Programs

Unaccompanied minors under the care of local authorities are entitled to accommodation, education,¹⁶⁷ and health services,¹⁶⁸ in the same manner as other children cared for in the UK, such as admission into public schools.¹⁶⁹ This includes the provision of health, personal education, and a care plan,¹⁷⁰ which must detail how an unaccompanied minor's needs are being met.¹⁷¹

C. Repatriation (Financial Assistance, Conditions)

1. Voluntary Return

The Home Office provides a voluntary returns service. It is offered to an unaccompanied minor if the minor is being returned to the country of origin or another country. Discussions about return may only be started once the unaccompanied minor's right of appeal has been exhausted,

¹⁶³ Home Off., *Assessing Age*, supra note 95, at 14.

¹⁶⁴ R v Secretary of State for the Home Department [2017] EWCA (Civ) 138, <https://perma.cc/DD8X-37HN>.

¹⁶⁵ Home Off., *Assessing Age*, supra note 95, at 14.

¹⁶⁶ AN & FA v Secretary of State for the Home Department [2012] EWCA (Civ) 1636.

¹⁶⁷ Dep't for Educ., *Promoting the Education of Looked-After Children and Previously Looked-After Children: Statutory Guidance for Local Authorities* (Feb. 2018), <https://perma.cc/6SYJ-J72C>.

¹⁶⁸ Dep't for Educ. & Dep't Health, *Promoting the Health and Well-Being of Looked-After Children: Statutory Guidance for Local Authorities, Clinical Commissioning Groups and NHS England* (Mar. 2015), <https://perma.cc/Q6FC-QUMC>.

¹⁶⁹ Children Act 1989, c. 41, § 17, <https://perma.cc/NV9L-YLFD>. In Scotland, the duty is contained in the Children (Scotland) Act 1995, c. 36, § 22, <https://perma.cc/LA93-FV52>; in Wales, the duty is contained in the Social Services and Well-Being (Wales) Act 2014 (anaw 4), pt. 2, <https://perma.cc/MM6K-RX7R>; and in Northern Ireland, the duty is contained in the Children (Northern Ireland) Order 1995, SI 1995/755, reg. 18, <https://perma.cc/T2L5-2CSV>. See also Dep't for Educ., *Care of Unaccompanied Migrant Children and Child Victims of Modern Slavery Statutory Guidance for Local Authorities*, supra note 18, at 20.

¹⁷⁰ Care Planning, Placement and Case Review (England) Regulations 2010, SI 2010/959, Reg. 5.

¹⁷¹ Dep't for Educ., *Care of Unaccompanied Migrant Children and Child Victims of Modern Slavery Statutory Guidance for Local Authorities*, supra note 18, at 20.

and the minor has no legal right to remain in the UK or is in the UK on UASC or UASC discretionary leave.¹⁷²

An assisted voluntary return may be appropriate for unaccompanied minors returning to their home. In these returns, the individual must be eligible and apply to the Home Office, which may provide up to £3,000 (about US\$ 2,400) in reintegration support to pay for education for the minor upon return.¹⁷³ Unaccompanied minors are not eligible for an assisted return if reception facilities in the country of return are inadequate.¹⁷⁴

2. *Involuntary Return*

When an unaccompanied minor's application for asylum or other protection has failed, and the minor is not eligible for UASC or other form of leave, the minor is liable to be removed. The policy of the Home Office is that unaccompanied minors are only removed from the UK when "the secretary of state is satisfied that safe and adequate reception arrangements are in place in the country to which the child is to be removed."¹⁷⁵

Home Office guidance notes "[i]t is not possible to draw an exhaustive list of what counts as adequate reception as these will vary in kind and in degree and each case must be considered on its individual merits."¹⁷⁶ It does state that a home of the minor's family or relatives, or reception arrangements from the country of destination, are considered when determining whether there are safe and adequate reception arrangements.¹⁷⁷ While each case must be considered on its own merits, the Home Office considers reception arrangements in the country of origin to be adequate if it has arrangements with nongovernmental organizations to provide specific assistance to the unaccompanied minor upon return, if the child will be met by a representative from the child welfare authorities in the country of return upon arrival, and if there are health, education, and care services available to children.¹⁷⁸

As noted above, in cases where reception arrangements in the country of return are inadequate, unaccompanied minors will be granted a form of temporary leave until they turn 18 and adequate reception arrangements are no longer a requirement for removal.

¹⁷² Home Off., *Children's Asylum Claims*, supra note 21, at 77.

¹⁷³ Home Off., *Voluntary and Assisted Returns* 5 (Ver. 4.0, May 28, 2021), <https://perma.cc/9KUT-TXBL>.

¹⁷⁴ Id. at 16.

¹⁷⁵ Home Off., *Children's Asylum Claims*, supra note 21, at 70.

¹⁷⁶ Id.

¹⁷⁷ Id.

¹⁷⁸ Id. at 71.

VI. Resettlement and Integration Programs

As noted above, unaccompanied minors are typically placed into the care of local authorities and are entitled to accommodation, education, and health services. Local authorities must put in place a care plan for minors in their care. The plan must include a plan for their upbringing, arrangements for health, education and training, emotional and behavioral development, and identity, taking into account their religion, racial origin, cultural and linguistic background, family and social relationships, social presentation and self-care skills.¹⁷⁹

Unaccompanied minors aged 16 or older receive a pathway plan, created by the Home Office and local authorities. The pathway plan includes

the assessed or identified needs, identified timescales, action plan to meet these needs and the responsible person which assist the child to make the transition from care to the responsibilities of adulthood. It must be flexible and regularly updated. These matters will all be handled by the local authority.¹⁸⁰

The pathway plan includes items such as education, job opportunities, and training where appropriate and how these can be funded. The unaccompanied minor's immigration status is taken into account in these plans, along with the possibility that the claim may fail.¹⁸¹ Home Office guidance notes that pathway plans typically reflect the provisions of the Children Act 1989.

At age 18, the local authority continues to have a duty to support individuals who have left care until they are 21 years of age, and local authorities continue to act as a corporate parent to those leaving care between the ages of 21 to 25.¹⁸² To do this, local authorities "should support [care leavers] in a way that is consistent with the way in which birth parents support their own children as they grow up, helping them transition to independent life."¹⁸³

Local authorities caring for unaccompanied minors receive funding of between £114 to £143 (about US\$142 to US\$179) per night per unaccompanied minor,¹⁸⁴ and can receive a lump sum of

¹⁷⁹ Care Planning, Placement and Case Review (England) Regulations 2010, SI 2010/959, Reg. 5.

¹⁸⁰ Home Off., *Children's Asylum Claims*, supra note 21, at 74.

¹⁸¹ Dep't for Educ., *Care of Unaccompanied Migrant Children and Child Victims of Modern Slavery Statutory Guidance for Local Authorities*, supra note 18.

¹⁸² Children and Social Work Act 2017, c. 16, § 1, <https://perma.cc/B6CX-5DYA>.

¹⁸³ Dep't for Educ., *Extending Personal Adviser Support to All Care Leavers to Age 25: Statutory Guidance for Local Authorities* 37 (Feb. 2018), <https://perma.cc/98WA-3QJA>. Children Act 1989, c. 41, §§ 22, 23CZB. A similar duty is in effect in Scotland, Wales, and Northern Ireland. See also UK Visas & Immigr., *Transition at Age 18 Instruction*, supra note 44.

¹⁸⁴ Home Off., *Funding to Local Authorities Financial Year 2023/24*, supra note 160.

£15,000 (approximately US\$18,750) per unaccompanied minor in their care.¹⁸⁵ These payments stop if a child goes missing for more than 28 consecutive days.¹⁸⁶

VII. Family Reunification

A. Family Tracing

Once an unaccompanied minor has made a claim for asylum in the UK, regulation 6 of the Asylum Seeker (Reception Conditions) Regulations 2005 places a duty on the Home Office to “endeavour to trace the members of the minor’s family as soon as possible after the minor makes his claim for asylum.”¹⁸⁷ Family tracing is considered to be

- restoring family links where they have been broken
- maintaining established family links
- obtaining information as to the family’s current circumstances to assist in the identification of a durable solution.¹⁸⁸

During the unaccompanied minor case review, the Home Office explains the asylum and family tracing process to the minor.¹⁸⁹ At all stages, safeguarding and promoting the welfare of the child should be considered,¹⁹⁰ and the child’s best interests should be a primary, but not the only, consideration.¹⁹¹

In searching for family members, the “Home Office may take appropriate steps to trace them.”¹⁹² In addition to any tracing undertaken by the Home Office, the unaccompanied minor should be informed about family tracing services provided by the British Red Cross, which is an independent humanitarian organization.¹⁹³ While the Home Office can request that the unaccompanied minor inform them of the outcome of family tracing, any findings from the British Red Cross’s family tracing are confidential and will only be disclosed to the unaccompanied minor.¹⁹⁴

Family tracing is not conducted in cases where the unaccompanied minor displays indicators of having been trafficked, such as fear of close family members or distress at the prospect of locating

¹⁸⁵ Gov.uk, *Guidance, Temporary Additional Funding - National Transfer Scheme (Accessible Version)*, supra note 159, at ¶ 3.

¹⁸⁶ Id. at ¶ 3.3.

¹⁸⁷ Asylum Seekers (Reception Conditions) Regulations 2005, SI 2005/7, reg. 6, <https://perma.cc/K7BD-CJJN>.

¹⁸⁸ Home Off., *Family Tracing* 5 (ver. 3.0, Dec. 31, 2020), <https://perma.cc/Y8HB-K6MM>.

¹⁸⁹ Home Off., *Children’s Asylum Claims*, supra note 21, at 34.

¹⁹⁰ Borders, Citizenship and Immigration Act 2009, c. 11, § 55.

¹⁹¹ Home Off., *Family Tracing*, supra note 188 at 12.

¹⁹² Home Off., *Children’s Asylum Claims*, supra note 21, at 36.

¹⁹³ Id.

¹⁹⁴ Id.

them, and Home Office staff suspect that family members facilitated the trafficking.¹⁹⁵ The Home Office also does not begin family tracing where the child is in contact with the family and knows the family's location or where it accepts the child's claim that there are no surviving family members.¹⁹⁶

B. Family Reunification

The Home Office notes that reuniting unaccompanied minors with their families is typically the ultimate goal, but the default location for reunification is not the UK. Children with protection status are ineligible to sponsor family members under the refugee family reunion rules.¹⁹⁷ The government has stated this is to avoid creating an incentive for children being forced to leave their families and traveling to the UK in the hopes of reuniting the entire family there.¹⁹⁸ Thus, the relationship requirements for family reunion apply only to the partners and children of refugees in the UK, not to the parents or siblings of children with protection status in the UK.¹⁹⁹ Family reunification may occur in the UK using the Article 8 provisions of the Immigration Rules, which provide

Where an applicant does not meet the requirements for a partner under FRP.4.1. or for a child under FRP.5.1. to FRP 6.2., the decision maker must consider, on the basis of the information provided by the applicant, whether there are exceptional circumstances which would make a refusal of the application a breach of Article 8 of the ECHR, because such refusal would result in unjustifiably harsh consequences for the applicant or their family member, whose Article 8 rights it is evident from the information provided would be affected by a decision to refuse the application.²⁰⁰

Government policy notes that “decision makers must use their discretion and consider whether there are any compelling compassionate factors which may warrant a grant of leave outside the rules. Each case must be considered on its individual merits and include consideration of the best interests of the child in the UK.”²⁰¹

An unaccompanied minor may be reunited with their family, even in cases where they have been granted temporary refugee permission or temporary humanitarian permission, if refusing the application would breach the UK's obligation under Article 8 of the European Convention on Human Rights, or where “there are insurmountable obstacles to family life continuing elsewhere other than in the UK and if the applicant is a child, and the decision maker is satisfied that family reunion in the UK is in the child's best interests in line with the secretary of state's duty under

¹⁹⁵ Home Off., *Children's Asylum Claims*, supra note 21, at 36.

¹⁹⁶ Home Off., *Family Tracing*, supra note 189, at 5.

¹⁹⁷ Sec'y State for Home Dep't, Cm 8778, *Human Rights of Unaccompanied Migrant Children and Young People in the UK* 12 (2013-14), <https://perma.cc/Y4KH-EMWQ>.

¹⁹⁸ Home Off., *Family Reunion: For Individuals With Protection Status in the UK* 25 (ver. 9.0, Apr. 12, 2023), <https://perma.cc/J7PP-QUHE>.

¹⁹⁹ Immigration Rules, Appendix Family Reunion (Protection), FRP 4.1, 5.1, <https://perma.cc/5AG8-W634>.

²⁰⁰ Id.

²⁰¹ Home Off., *Family Reunion: For Individuals With Protection Status in the UK*, supra note 199, 198 at 25.

section 55 of the Borders, Citizenship and Immigration Act 2009.”²⁰² If the decision maker is satisfied these requirements are met, the application will be granted, and leave will be granted for the same duration as the unaccompanied minor, up to a maximum time of 33 months.²⁰³

Whether the child can be reunited with their family is one of the primary considerations as to whether reception conditions in the minor’s country of origin are satisfactory and that removal can be conducted safely.²⁰⁴ In cases where the family has been traced and it is not safe for the minor to be removed to the country in which the family is located,²⁰⁵ reuniting them in the UK is an option.

²⁰² Immigration Rules, Appendix Family Reunion (Protection), FPR 7.2(b).

²⁰³ *Id.* FPR 8.1, 9.1-2.

²⁰⁴ *Id.*

²⁰⁵ Home Off., *Statement of Policy in Relation to Family Reunion of Accompanied Children Seeking International Protection in the EU or the UK* (Mar. 2020), <https://perma.cc/D8RD-LBS8>.

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		Immigration Act	https://perma.cc/DB8H-4LC7
		International Protection Act	https://perma.cc/XN2G-X4YW
		Minor Protection (Alternative Care) Act	https://perma.cc/BB9F-V6HM
		Agency for the Welfare of Asylum Seekers Regulations, SL217.11	https://perma.cc/3R6U-4WUU
	Regulation	Family Reunification Regulations, SL 217.06	https://perma.cc/JHZ7-HGWB
		International Protection Appeals Tribunal (Procedures) Regulations, SL 420.01	https://perma.cc/U4C6-PA3Z
		Procedural Standards for Granting and Withdrawing International Protection Regulations, SL 420.07	https://perma.cc/9JL9-BKGJ
		Reception of Asylum Seekers Regulations, SL 420.06	https://perma.cc/JPE5-KGHB
		Temporary Protection for Displaced Persons (Minimum Standards) Regulations, SL 420.05	https://perma.cc/2LWL-F7PC
Russia	Treaty	Agreement Among the Commonwealth of Independent States Member States on Cooperation in Questions of Returning Minors to the States of their Permanent Residency	https://perma.cc/5RFU-Y2BA
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